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BLACKWOOD'S EDINBURGH MAGAZINE.

No. CCCXXIX. JANUARY, 1844. VOL. LV.

STATE PROSECUTIONS.

The Englishman who, however well inclined to defer to the wisdom "of former ages," should throw a glance at the stern realities of the past, as connected with the history of his country, will be little disposed to yield an implicit assent to the opinions or assertions of those, who maintain the superiority of the past, to the disparagement and depreciation of the present times. Maxims and sayings of this tendency have undoubtedly prevailed from periods of remote antiquity. The wise monarch of the Jewish nation even forbade his people to ask "the cause that the former days were better than these;" "for," he adds, "thou dost not enquire wisely concerning this." Far different would be the modern precept of a British monarch. Rather let the English subject "enquire *diligently* concerning this," for he cannot fail to enquire wisely. Let him enquire, and he will find that "the former days" of England were days of discord, tyranny, and oppression; days when an Empson and a Dudley could harass the honest and well-disposed, through the medium of the process of the odious star-chamber; when the crown was possessed of almost arbitrary power, and when the liberty and personal independence of individuals were in no way considered or regarded; days when the severity of our criminal laws drew down from a French philosopher the sneer, that a history of England was a history of the executioner; when the doomed were sent out of the world in bands of twenty, and even thirty, at a time, at Tyburn or at "Execution dock;" and when, in the then unhealthy tone of public morals, criminals famous for their deeds of violence and rapine, were regarded rather as the heroes of romance, than as the pests and scourges of society. Let him enquire, and he will find that all these things have now long since passed away; that the rigours of the criminal law have been entirely mitigated, and that the great charters of our liberties, the fruits of accumulated wisdom and experience, have now been long confirmed. These facts, if universally known and duly pondered over, would go far to banish discontent and disaffection, and would tend to produce a well-founded confidence in the inherent power of adaptation to the necessities of the people, possessed by the constitution of our country. Thus, the social wants of the outer man having been in a great

measure supplied, the philanthropy of modern times has been chiefly employed on the mental and moral improvement of the species; the wants of the inner man are now the objects of universal attention, and education has become the great necessity of the age. Hitherto, the municipal laws and institutions of this country have been defective; inasmuch as they have made little or no provision for the adequate instruction of the people. Much, no doubt, has been already done, and education, even now, diffuses her benignant light over a large portion of the population; among whom, the children of the ignorant are able to instruct their parents, and impart, to those who gave them being, a share in the new-found blessing of modern times. Much, however, remains still to be done, and the splendid examples of princely munificence which a great minister of the crown has recently shown the wealthier classes of this wealthy nation, may, in the absence of a state provision, have the effect of stimulating private exertion and generosity. In spite, however, of the moral and intellectual advancement of the present age, the passions and evil designs of the vicious and discontented are still able to influence vast masses of the people. The experience of the last few years unfortunately teaches us, that increased knowledge has not yet banished disaffection, and that though, during the last quarter of a century, the general standard of the nation's morality may have been elevated above its former resting-place, that education, in its present state of advancement, has not as yet effectually disarmed discontent or disaffection, by showing the greater evil which ever attends the endeavour to effect the lesser good, by violent, factious, or seditious means.

Within the last thirteen years, the government has been compelled, on several occasions, to curb the violence and to repress the outbreaks of men who had yet to learn the folly of such attempts; and the powers of the executive have been frequently evoked by those who, of late years, have wielded the destinies of this country. Several state prosecutions have taken place during this period. They never occur without exciting a lively interest; the public eye is critically intent upon the minutest detail of these proceedings; and the public attention is concentrated upon those to whom is confided the vindication of the public rights and the redressing of the public wrongs. It has been often asked by some of these critical observers, How is it that, when great crimes or misdemeanours are to be punished, when the bold and daring offender is to be brought to justice, when the body politic is

the offended party, when the minister honours a supposed offender with his notice in the shape of criminal proceedings, and the government condescends to prosecute—how is it, it has been asked on such occasions, when the first talent, science, and practical skill, are all arranged against the unfortunate object of a nation's vengeance, that the course of justice should be ever broken or impeded? Is the machinery then set in motion in truth defective—is there some inherent vice in the construction of the state engine? Is the law weak when it should be strong? Is its boasted majesty, after all, nothing but the creation of a fond imagination, or a delusion of the past? Are the wheels of the state-machine no longer bright, polished, and fit for use as they once were? or are they choked and clogged with the rust and dust of accumulated ages? Or, if not in the machine, does the fault, ask others of these bold critics, rest with the workmen who guide and superintend its action? Are the principles of its construction now no longer known or understood? Are they, like those of the engines of the Syracusan philosopher, lost in the lapse of time? Is the crown less efficiently served than private individuals? and can it be possible, it has even been demanded, that those who are actively employed on these occasions have been so long removed on the practice of what is often deemed the simpler portion of the law, and so long employed in the higher and more abstruse branches of the science, that they have forgotten the practice of their youth, and have lost the knowledge acquired in the commencement of their professional career? Lesser criminals, it is said, are every day convicted with ease and expedition—how is it, therefore, that the cobweb of the law holds fast the small ephemerae which chance to stray across its filmy mesh, but that the gaudy insect of larger form and greater strength so often breaks through, his flight perhaps arrested for a moment, as he feels the insidious toil fold close about him? It is, however, only for a moment; one mighty effort breaks his bonds—he is free—and flies off in triumph and derision, trumpeting forth his victory, and proclaiming his escape from the snare, in which it was hoped to encompass him. The astute and practised gentlemen thus suspected, strong in the consciousness of deep legal knowledge, and ready practical skill and science, may justly despise the petty attacks of those who affect to doubt their professional ability and attainments. Some in high places have not hesitated to hint, on one occasion, at collusion, and to assert, that a certain prosecution failed, because there was no real desire to punish.

Such is the substance of the various questions and speculations to which the legal events of the last thirteen years have given rise. We have now collected and enumerated them in a condensed form, for the purpose of tracing their rise and progress, and in order that we may demonstrate that, though there may possibly exist some reasons for these opinions, founded often on a misapprehension of the real circumstances of the cases quoted in their support, that they have, in fact, little or no substantial foundation. With this view, therefore, we shall briefly notice those trials, within the period of which we speak, which form the groundwork of these charges against the executive, before we proceed to state the real obstacles which do, in fact, occasionally oppose the smooth and *rapid* progress of a "State Prosecution."

The first of these proceedings, which occurred during the period of the last thirteen years, was the trial of Messrs O'Connell, Lawless, Steel, and others. This case perhaps originated the opinions which have partially prevailed, and was, in truth, not unlikely to make a permanent impression on the public mind. In the month of January 1831, true bills were found against these parties by the Grand Jury of Dublin, for assembling and meeting together for purposes prohibited by a proclamation of the Lord Lieutenant; and for conspiring to do an act forbidden by the law. By every possible device, by demurrers and inconsistent pleas, delays were interposed; and though Mr O'Connell withdrew a former plea of not guilty, and pleaded guilty to the counts to which he had at first demurred—though Mr Stanley, in the House of Commons, in reply to a question put by the Marquis of Chandos, emphatically declared, that it was impossible for the Irish government, consistently with their dignity as a government, to enter into any negotiation implying the remotest compromise with the defendants—and that it was the unalterable determination of the law-officers of Ireland to let the law take its course against Mr O'Connell—and that, let him act as he pleased, judgment would be passed against him—still, in spite of this determination of the government, so emphatically announced by the Irish Secretary, the statute on which the proceedings were founded was actually suffered to expire, without any previous steps having been taken against the state delinquents. There has ever been that degree of mystery about this event, which invariably rouses attention and excites curiosity; the escape of those parties was a great triumph over the powers, or the expressed

inclinations of the government, which was well calculated to set the public mind at work to discover the latent causes which produced such strange and unexpected results. After an interval of seven years, another case occurred, which was not calculated materially to lessen the impression already made upon the public; for although, in the following instance, the prosecution was conducted to a successful termination, yet questions of such grave importance were raised, and fought with such ability, vigour, and determination, that the accomplishment of the ends of justice, if not prevented, was certainly long delayed.

On the 17th December 1838, twelve prisoners were brought to Liverpool, charged in execution of a sentence of transportation to Van Diemen's Land for having been concerned in the Canadian revolt. Here the offenders had been tried, convicted, sentenced, and actually transported. The prosecutors, therefore, might naturally be supposed to have got fairly *into* port, when they saw the objects of their tender solicitude fairly *out* of port, on their way to the distant land to which the offended laws of their country had consigned them.

If justice might not account her work as done, at a time when her victims had already traversed a thousand leagues of the wide Atlantic, when could it be expected that the law might take its course without further let or hindrance? On the 17th of December, as has been observed, the prisoners arrived at Liverpool, and were straightway consigned to the care and custody of Mr Batchelor, the governor of the borough jail of Liverpool; by whom they were duly immured in the stronghold of the borough, and safely placed under lock and key. Things, however, did not long continue in this state. In a few days twelve writs of *habeas corpus* made their sudden and unexpected appearance, by which Mr Batchelor was commanded forthwith to bring the bodies of his charges, together with the causes of detention, before the Lord Chief Justice of England. Mr Batchelor obeyed the command in both particulars; the judges of the Court of Queen's Bench met; counsel argued and re-argued the matter before them, but in vain—the prisoners were left in the governor's care, in which they remained, as if no effort had been made to remove them from his custody. All, however, was not yet over; for, as though labouring under a strange delusion, four of the prisoners actually made oath that they had never been arraigned, tried,

convicted, or sentenced at all, either in Canada or elsewhere! Upon this four more writs of *habeas corpus* issued, commanding the unhappy Mr Batcheldor to bring the four deluded convicts before the Barons of the Exchequer. This was done; arguments, both old and new, were heard with exemplary patience and attention; the play was played over again; but the Barons were equally inexorable with the Court of Queen's Bench, and the four prisoners, after much consideration, were again remanded to the custody of the governor of the jail, and, together with their eight fellow-prisoners, were, in course of time, duly conveyed to the place of their original destination.

The next of these cases, in chronological order, is that of the Monmouthshire riots in 1839. This case, also, might tend to corroborate the opinion, that the service of the state, in legal matters, is attended with much difficulty and embarrassment. It will, however, be seen upon examination of the facts of the case, that the difficulty which then arose, proceeded solely from the lenity and indulgence shown to the prisoners by the crown. On New-Year's day 1840, John Frost and others, were brought to trial, on a charge of high treason, before a special commission at Monmouth. The proceedings were interrupted by an objection taken by the prisoners' counsel, that the terms of a statute, which requires that a list of witnesses should be delivered to the prisoners *at the same time* with a copy of the indictment, had not been complied with. The indictment had, in fact, been delivered five days before the list of witnesses. This had been done in merciful consideration to the prisoners, in order that they might be put in possession of the charge, to be brought against them, as early as it was in the power of the crown to give them the information, and probably before it was *possible* that the list of witnesses could have been made out. The trial, however, proceeded, subject to the decision of the fifteen judges upon the question, thus raised upon the supposed informality, which nothing but the *anxious mercy* of the crown had introduced into the proceedings; and the parties were found guilty of the offence laid to their charge. In the ensuing term, all other business was, for a time, suspended; and the fifteen judges of the land, with all the stately majesty of the judicial office, were gathered together in solemn conclave in Westminster Hall. A goodly array, tier above tier they sat—the heavy artillery of a vast legal battery about to open the fire of their learning, with that imposing dignity which becomes the

avengers of the country's and the sovereign's wrongs. Day after day they met, heard, and deliberated upon arguments, which were conspicuous from their consummate learning and ability. At length these learned persons delivered their judgments, and, amid much diversity of opinion, the majority thought, upon the whole, that the conviction was right, and that the terms of the statute had been virtually complied with. The criminals, however, probably in consequence of the doubts and difficulty of the case, were absolved on the most highly penal consequences of their crime, and were, by a sort of compromise, transported for life to one of the penal settlements.

The doubt which some have entertained of the real insanity of Oxford, and others who have recently attempted the same crime which he so nearly committed, has caused these cases also to be brought forward in confirmation of the opinions, which we contend rest upon no real foundation. The insanity of a prisoner is, however, a fact, upon which it is the province of the jury to decide, under the direction of the presiding judge. In each case the law was luminously laid down by the judge for the guidance of the jury, who were fully instructed as to what the law required to establish the insanity of its prisoner, and to prove that "lesion of the will" which would render a human being irresponsible for his acts. These verdicts, undoubtedly, gave rise to a grave discussion, whether the law, as it now stands, was sufficiently stringent to have reached these cases; and though this question was decided in the affirmative, the mere entertaining of the doubt afforded another specious confirmation of the impression, that a singular fatality was attendant upon a state prosecution. This idea received another support from the case of Lord Cardigan, who, about this period, was unexpectedly acquitted, on technical grounds, from a grave and serious charge. This, however, was no state prosecution, and we do but notice it, *en passant*, in corroboration of our general argument.

We now come to the case of the Chartists in 1842. For some time previous to the summer of 1842, great distress, it will be remembered, prevailed among the manufacturing population of the northern and midland counties. The misery of the preceding winter had been dreadful in the extreme; emaciated, haggard beings might be daily seen wandering about the country half naked, in the coldest weather; sufferings, almost without a parallel,

were borne with patience and resignation. Despair there might be in the hearts of thousands, but those thousands were mute and passive in their misery; all was dark, all was hopeless; the wintry wind of penury blew untempered, keen upon them, but still they cried not; hunger preyed upon their very vitals, but they uttered no complaint. Let us not, even now, refuse a passing tribute of honour and respect to the passive heroism which in many an instance marked the endurance of the hopeless misery of those dreadful times. At length, however, evil and designing men came among the sufferers—remedies for the pressing evil, and means of escape from the wretchedness of their condition, were darkly hinted at; redress was whispered to be near, and they, the hungry fathers of famished children, lent a greedy ear to the fair promises of men whom they deemed wiser than themselves. The tempter's seedtime had arrived, the ground was ready, and the seed was sown. Day by day, nay, hour by hour, was the bud of disaffection fostered with the greatest care; and, day by day, its strength and vitality increased. When, at length, the people were deemed ripe for action, the mask was thrown off, treasonable schemes and projects were openly proclaimed by the leaders of the coming movement, and echoed, from a hundred hills, by vast multitudes of their deluded followers. Large meetings were daily held on the neighbouring moors, where bodies of men were openly trained and armed for active and offensive operations. At length the insurrection, for such in truth it was, broke forth. Then living torrents of excited and exasperated men poured down those hillsides; the peaceful and well-affected were compelled to join the insurgent ranks, busy in the work of destruction and intimidation; when each evening brought the work of havoc to a temporary close, they laid them down to rest where the darkness overtook them. The roads were thus continually blockaded, and those who, under cover of the night, sought to obtain aid and assistance from less disturbed districts, were often interrupted and turned back by bodies of these men. Authority was at an end, and a large extensive district was completely at the mercy of reckless multitudes, burning to avenge the sufferings of the past, and bent on preventing, as they thought, a recurrence of them in future. The very towns were in their hands; "in an evil hour" a vast body of insurgents was "admitted" into one of the largest mercantile towns of the kingdom, where they pillaged and laid waste in every direction. In another town of the district a fearful riot was put down by force, some of the leaders of the mob being shot dead while heading a

charge upon the military. The ascendancy of the law was at length asserted; many arrests took place; the jails were crowded with prisoners; and the multitudes without, deserted by those to whom they had looked up for advice, their friends in prison, with the unknown terrors of the law suspended over them, probably then felt that, miserable and lost as they had been before, they had now fallen even lower in the scale of human misery. Criminal proceedings were quickly instituted. Several commissions were sent down to the districts in which these disturbances had taken place, in order that the offenders might meet with *speedy* punishment. The law officers of the crown, with many and able assistants, in person conducted the proceedings. Temperate, mild, dignified, and forbearing was their demeanour; in no case was the individual the object of prosecution; it was the *crime*, through the person of the criminal, against which the government proceeded. No feelings of a personal nature were there exhibited; and a mild, but firm, as it were, a parental correction of erring and misguided children, seemed to be the sole object of those who then represented the government. Conviction was heaped upon conviction—sentence followed sentence—the miserable tool was distinguished from the man who made him what he was—the active emissary, the secret conspirator, also received each their proportionate amount of punishment. True, a few of the more cautious and crafty, all included in one indictment, eventually escaped the penalty due to their crimes; but, among the multitude of cases which were then tried, this was, we believe, the only instance even of partial failure. In spite of this single miscarriage of the government, the great object of these proceedings was completely answered; the end of all punishment was attained; the vengeance which the law then took had all the effect which the most condign punishment of these few men could have accomplished; the constitutional maxim of "*poena ad paucos, metus ad omnes*," has been amply illustrated by these proceedings; Chartism has been suppressed, by the temperate application of the constitutional means which were then resorted to for the correction of its violence, and the prevention of its seditious schemes.

We must not omit to mention the instances of signal and complete success which have been, from time to time, exhibited in other prosecutions against Feargus O'Connor and different members of the Chartist body, within the period of which we speak. On none of these occasions has the course of

justice been hindered, or even turned aside; but the defendants have, we believe, without exception, paid the penalty of their crimes by enduring the punishments awarded by the court.

The recent trials of the Rebecca rioters were also signally successful and effective; and the prejudices of a Welsh jury, which some feared would prove a fatal stumblingblock, were overcome by the dispassionate appeal to their better judgment than made by the officers of the crown.

From a review of the cases, it therefore appears, that the failures of a state prosecution have been comparatively few; and that the crown has met with even more than the average success which the "glorious uncertainty of the law" in general permits to those who tempt its waywardness, and risk the perils of defeat. The welfare and interest of the nation, however, lie in the *general* results of these proceedings, rather than the *particular event* of an individual trial. Therefore, though we should assume that a part only of what was intended has been accomplished, still if that portion produces the same general results as were hoped for from the successful accomplishment of the whole, the object of the government has been attained. Now, it may be observed, that, with perhaps the single exception of the case of Mr O'Connell in 1831, the end and object of all state prosecution has been uniformly and completely accomplished, by the suppression of the evil which the crown in each instance was anxious to put down. When this has taken place, there can have been no failure. Beyond what is necessary for the welfare of the state, and the general safety and security of the persons and property of individuals, the crown has no interest in inflicting punishment; it never asks for more than is required to effect *these objects*, and it can scarcely be content with less.

There are, however, difficulties almost peculiar to the more serious offences against the state, but which are entirely different, in their nature, from those imaginary difficulties which have formed the subject of so much declamation. A passing glance at the proceedings now pending in Ireland, will give the most casual observer some idea of what is sometimes to be encountered by those to whom is entrusted the arduous duty of conducting a state prosecution. Look back on the "tempest of provocation," which recently assailed the Irish Attorney-General, on the vexatious delays and

frivolous objections which sprang up at every move of the crown lawyers, called forth by one who, though "*not valiant*," was well known to the government to be "most cunning offence" ere they challenged him, but who, "despite his cunning fence and active practice," may perhaps find, that this time the law has clutched him with a grasp of iron. In ordinary cases, criminals may, no doubt, be easily convicted; and in the great majority of the more common crimes and misdemeanours, the utmost legal ingenuity and acumen might be unable to detect a single error in the proceedings, from first to last. Still it must be remembered, that even among the more common of ordinary cases, in which the forms are simple, the practice certain, and in which the law may be supposed to be already defined beyond the possibility of doubt, error, or misconception—even in such cases, questions occasionally arise which scarcely admit of any satisfactory solution—questions in which the fifteen judges, to whom they may be referred, often find it impossible to agree, and which may therefore be reasonably supposed to be sufficiently perplexing to the rest of the world. State offences, such as treason and sedition, which are of comparatively rare occurrence, present many questions of greater intricacy than any other class of crimes. In treason especially, a well-founded jealousy of the power and prerogatives of the crown has intrenched the subject behind a line of outposts, in the shape of forms and preliminary proceedings; the accused, for his greater security against a power which, if unwatched, might become arbitrary and oppressive, has been invested with rights which must be respected and complied with, and by the neglect of which the whole proceedings are rendered null and void. At this moment, in all treasons, except attempts upon the person of the sovereign, "the prisoner," in the language of Lord Erskine, "is covered all over with the armour of the law;" and there must be twice the amount of evidence which would be legally competent to establish his guilt in a criminal prosecution for any other offence, even by the meanest and most helpless of mankind. Sedition is a head of crime of a somewhat vague and indeterminate character, and, in many cases, it may be extremely difficult, even for an acute and practised lawyer, to decide whether the circumstances amount to sedition. Mr East, in his pleas of the crown, says, that "sedition is understood in a more general sense than treason, and extends to other offences, not capital, of a like tendency, but without any actual design against the king in contemplation, such as contempts of the king and his government, riotous assemblings for

political purposes, and the like; and in general all contemptuous, indecent, or malicious observations upon his person and government, whether by writing or speaking, or by tokens, calculated to lessen him in the esteem of his subjects, or weaken his government, or raise jealousies of him amongst the people, will fall under the notion of seditious acts." An offence which admits of so little precision in the terms in which it is defined, depending often upon the meaning to be attached to words, the real import of which is varied by the tone or gesture of the speaker, by the words which precede, and by those which follow, depending also upon the different ideas which men attach to the same words, evidently rests on very different grounds from those cases, where actual crimes have been perpetrated and deeds committed, which leave numerous traces behind, and which may be proved by the permanent results of which they have been the cause. Technical difficulties without number also exist: the most literal accuracy, which is indispensable—the artful inuendoes, the artistical averments, which are necessary, correctly to shape the charge ere it is submitted to the grand jury, may be well conceived to involve many niceties and refinements, on which the case may easily be wrecked. It must also be remembered that the utmost legal ingenuity is called into action, and the highest professional talent is engaged in the defence of the accused. The enormous pressure upon the accused himself, who, probably from the higher or middle classes, with ample means at his command, an ignominious death perhaps impending, or, at the least, imprisonment probably for years in threatening prospect close before him; his friends active, moving heaven and earth in his behalf, no scheme left untried, no plan or suggestion rejected, by which it may, even in the remotest degree be possible to avert the impending doom; the additional rancour which politics sometimes infuse into the proceedings, the partisanship which has occasioned scenes such as should never be exhibited in the sacred arena of the halls of justice, animosities which give the defence the character of a party conflict, and which cause a conviction to be looked upon as a political defeat, and an acquittal to be regarded as a party triumph—all these circumstances, in their combined and concentrated force, must also be taken into consideration. In such a case every step is fought with stern and dogged resolution; even mere delay is valuable, for when all other hope is gone, the chapter of accidents *may* befriend the accused; it is one chance more; and even one chance, however slight, is not to be thrown away. Such is a faint picture of the defensive operations on

such occasions: how is this untiring, bitter energy met by those who represent the crown?

"Look on this picture and on that."

Here all is calm, dignified, generous, and forbearing; every consideration is shown, every indulgence is granted, to the unfortunate being who is in jeopardy. The crown has no interest to serve beyond that which the state possesses in the vindication of the law, and in that cool, deliberate, and impartial administration of justice which has so long distinguished this country. Nothing is unduly pressed against the prisoner, but every extenuating fact is fairly laid before the jury by the crown; it is, in short, generosity, candor, and forbearance, on the one side, matched against craft, cunning and the resolution *by any means* to win, upon the other. Such are the real difficulties which may be often felt by those who conduct a state prosecution. Surely it is better far that these difficulties should, in some instances, be even wholly insuperable, and that the prosecution should be defeated, than that any change should come over the spirit in which these trials are now conducted; or that the crown should ever even attempt to make the criminal process of the law an instrument of tyranny and oppression, as it was in the days of Scroggs and Jefferies, and when juries, through intimidation, returned such verdicts as the crown desired. Our very tenacity of our liberties may tend to render these proceedings occasionally abortive; and the twelve men composing a jury of the country, though possibly all their sympathies would be at once enlisted in behalf of a wronged and injured subject, may, unconsciously to themselves, demand more stringent proof, in cases where the sovereign power appears before then as the party; and more especially, when the offence is of an impersonal nature, and where the theory of the constitution, rather than the person or property of individuals, is the object of aggression. In the olden time such was the power of the crown, that, whenever the arm of the state was uplifted, the blow fell with unerring accuracy and precision; but now, when each object of a state prosecution is a sort of modern Briareus, the blow must be dealt with consummate skill, or it will fail to strike where it was meant to fall. On this account, perhaps, in addition to then own intrinsic paramount importance, the proceedings now pending in Ireland, have become the object of universal and absorbing interest throughout the whole

of the United Kingdom. Under these circumstances it has occurred to us, that a popular and accurate review of the several stages of a criminal prosecution, by which the general reader will be able, in some degree, to understand the several steps of that proceeding which is now pending, might not be unacceptable or uninformative at the present moment. It must, however, be observed, that it is scarcely possible to divest a subject so technical in its very nature from those terms of art which, however familiar they may be to many of our readers, cannot be understood by all without some explanation, which we shall endeavour to supply as we proceed.

The general importance of information of this nature has been well summed up by a great master of criminal law. "The learning touching these subjects," says Sir Michael Foster, "is a matter of great and universal concernment. For no rank, no elevation in life, and, let me add, no conduct, how circumspect soever, ought to tempt a reasonable man to conclude that these enquiries do not, nor possibly can, concern him. A moment's cool reflection on the utter instability of human affairs, and the numberless unforeseen events which a day may bring forth, will be sufficient to guard any man, conscious of his own infirmities, against a delusion of this kind."

Let us suppose the minister of the day, having before been made aware that, in a portion of the kingdom, a state of things existed that demanded his utmost vigilance and attention, to have ascertained the reality of the apparent danger, and to have procured accurate information as to the real character of the proceedings, and to find that acts apparently treasonable or seditious, as the case may be, had been committed. Suppose him, charged with the safety of the state, and responsible for the peace, order, and well-being of the community, to set the constitutional process of the law in motion against the offending individuals; his first step, under such circumstances, must be to procure full and satisfactory evidence of the facts as they really exist. For this purpose agents must be employed, necessarily in secret, or the very end and object of their mission would be frustrated, to collect and gather information from every authentic source, and to watch, with their own eyes the proceedings which have attracted attention. This is a work of time, perhaps; but suppose that it is complete, and that the minister having before him in evidence, true and unmistakable, a complete case of crime to lay before a jury, what, under these circumstances, is the

first step to be taken by the crown? Either of two distinct modes of procedure may be chosen; the one mode is by an *ex officio* information, the other is by indictment. An indictment is the mode by which all treasons and felonies must be proceeded against, and by which ordinary misdemeanours are usually brought to punishment. An *ex officio* information is an information at the suit of the sovereign, filed by the Attorney-General, as by virtue of his office, without applying to the court where filed for leave, and without giving the defendant any opportunity of showing cause why it should not be filed. The principal difference between this form of procedure and that by indictment, consists in the manner in which the proceedings are commenced; in the latter case, the law requires that the accusation should be warranted by the oath of twelve men, before he be put to answer it—or in other words that the grand jury must give that information to the court, which, in the former case, is furnished by the law officer of the crown. The cases which are prosecuted by *ex officio* information, are properly such enormous misdemeanours as peculiarly tend to disturb and endanger the government or to molest or affront the sovereign in the discharge of the functions of the royal office. The necessity for the existence of a power of this nature in the state, is thus set forth by that learned and illustrious judge, Sir William Blackstone. "For offences so highly dangerous, in the punishment or prevention of which a moment's delay would be fatal, the law has given to the crown the power of an immediate prosecution, without waiting for any previous application to any other tribunal: which power, thus necessary, not only to the ease and safety, but even to the very existence of the executive magistrate, was originally reserved in the great plan of the English constitution, wherein provision is wisely made for the preservation of all its parts."

The crown, therefore, in a case such as we have imagined, must first make choice between these two modes of procedure. The leniency of modern governments has of late usually resorted to the process by indictment; and the crown, waiving all the privileges which appertain to the kingly office, appears before the constituted tribunals of the land, as the redresser of the public wrongs, invested with no powers, and clothed with no authority beyond the simple rights possessed by the meanest of its subjects. We shall, for this reason, take no further notice of the *ex officio* information; and as treasons form a class of offences governed by laws and rules peculiar to

itself, we shall also exclude this head of crime from our consideration, and confine ourselves solely to the ordinary criminal process by which offenders are brought to justice.

In, general, the first step in a criminal prosecution, is to obtain a warrant for the apprehension of the accused party. In ordinary cases, a warrant is granted by any justice of the peace upon information, on the oath of some credible witness, of facts from which it appears that a crime has been committed, and that the person against whom the warrant is sought to be obtained, is probably the guilty party, and is a document under the hand and seal of the justice, directed generally to the constable or other peace-officer, requiring him to bring the accused, either generally before *any* justice of the county, or only before the justice who granted it. This is the practice in ordinary cases; but in extraordinary cases, the warrant may issue from the Lord Chief Justice, or the Privy Council, the Secretaries of State, or from any justice of the Court of Queen's Bench. These latter warrants are, we believe, all tested, or dated England, and extend over the whole kingdom. So far the proceedings have been all *ex parte*, one side only has been heard, one party only has appeared, and all that has been done, is to procure or compel the appearance of the other. The warrant is delivered to the officer, who is bound to obey the command which it contains. It would seem, however, that, as was done in a recent case in Ireland, it is sufficient if the appearance of the accused be virtually secured, even without the intervention of an actual arrest.

When the delinquent appears, in consequence of this process, before the authorities, they are bound immediately to examine into the circumstances of the alleged crime; and they are to take down in writing the examinations of the witnesses offered in support of the charge. If the evidence is defective, and grave suspicion should attach to the prisoner, he may be remanded, in order that fresh evidence may be procured; or the magistrate, if the case be surrounded with doubt and difficulty, may adjourn it for a reasonable time, in order to consider his final decision. The accused must also be examined, but not upon oath; and his examination also must be taken down in writing, and may be given in evidence against him at the trial; for although the maxim of the common law is "*nemo tenebitur prodere seipsum*," the legislature, as long ago as the year 1555, directed that, in

cases of felony, the examination of the prisoner should be taken; which provision has recently been extended to misdemeanours also. Care must be taken that his examination should not even *appear* to have been taken on oath; for in a very recent case, in which *all* the examinations were contained upon one sheet of paper, and under one general heading—from which they all purported to have been taken upon oath, the prisoner's admission of his guilt contained in that examination, was excluded on the trial, and the rest of the evidence being slight, he was accordingly acquitted. Now, if upon the enquiry thus instituted, and thus conducted, it appears, either that no such crime was committed, or that the suspicion entertained against the accused is wholly groundless, or that, however positively accused, if the balance of testimony be strongly in favour of his innocence, it is the duty of the magistrate to discharge him. But if, on the other hand, the case seems to have been entirely made out, or even if it should appear probable, that the alleged crime has in fact been perpetrated by the defendant, he must either be committed to prison, there to be kept, in safe custody, until the sitting of the court before which the trial is to be heard; or, he may be allowed to give bail—that is, to put in securities for his appearance to answer the charge against him. In either of these alternatives, whether the accused be committed or held to bail, it is the duty of the magistrate to subscribe the examinations, and cause them to be delivered to the proper officer, at, or before, the opening of the court. Bail may be taken by two justices in cases of felony, and by one in cases of misdemeanour. In this stage of the proceedings, as the commitment is only for safe custody, whenever bail will answer the same intention, it ought to be taken, as in inferior crimes and misdemeanours; but in offences of a capital nature, such as the heinous crimes of treason, murder, and the like, no bail can be a security equivalent to the actual custody of the person. The nature of bail has been explained, by Mr Justice Blackstone, to be "a delivery or bailment of a person to his sureties, upon their giving, together with himself, sufficient security for his appearance: he being supposed to continue in their friendly custody, instead of going to gaol." To refuse, or even to delay bail to any person bailable, is an offence against the liberty of the subject, in any magistrate, by the common law. And the Court of Queen's Bench will grant a criminal information against the magistrate who improperly refuses bail in a case in which it ought to have been received. It is obviously of great importance, in order to ensure the appearance of the accused at the time and place of trial,

that the sureties should be men of substance; reasonable notice of bail, in general twenty-four or forty-eight hours, may be ordered to be given to the prosecutor, in order that he may have time to examine into their sufficiency and responsibility. When the bail appear, evidence may be heard on oath, and they may themselves be examined on oath upon this point; if they do not appear to possess property to the amount required by the magistrates, they may be rejected, and others must be procured, or the defender must go to prison. Excessive bail must not be required; and, on the other hand, the magistrate, if he take insufficient bail, is liable to be fined, if the criminal do not appear to take his trial. When the securities are found, the bail enter into a recognizance, together with the accused, by which they acknowledge themselves bound to the Queen in the required sums, if the accused does not appear to take his trial, at the appointed time and place. This recognizance must be subscribed by the magistrates, and delivered with the examinations to the officer of the court in which the trial is to take place. With this, the preliminary proceedings close: the accused has had one opportunity of refuting the charge, or of clearing himself from the suspicion which has gathered round him; but as yet, there is no written accusation, no written statement of the offence which it is alleged he has committed. True, he has heard evidence—he has heard a charge made orally against him—but the law requires greater particularity than this before a man shall be put in peril upon a criminal accusation. The facts disclosed in the evidence before the magistrates must be put in a legal form; the offence must be clearly and accurately defined in writing, by which the accused may be informed what specific charge he is to answer, and from which he may be able to learn what liability he incurs; whether his life is put in peril, or whether he is in danger of transportation or of imprisonment, or merely of a pecuniary fine. This is done by means of the indictment. The indictment is a written accusation of one or more several persons, preferred to and presented upon oath by a grand jury. This written accusation, before being presented to the grand jury, is properly termed a "bill;" and, in ordinary cases, it is generally prepared by the clerk of the arraigns at the assizes, and by the clerk of the peace at the quarter sessions; but, in cases of difficulty, it is drawn by counsel. It consists of a formal technical statement of the offence, which is engrossed upon parchment, upon the back of which the names of the witnesses for the prosecution are indorsed. In England it is delivered to the crier of the court, by whom the witnesses are sworn to the

truth of the evidence they are about to give before the grand jury. In the trial now pending in the Court of Queen's Bench in Ireland, a great question was raised as to whether a recent statute, which, on the ground of convenience, enabled grand juries in Ireland themselves to swear the witnesses, extended to trials before the Queen's Bench. This question was decided in the affirmative; therefore, in that country, the oath, in every case, must be administered by the grand jury themselves; whereas, in this country, the witnesses are sworn *in court*, and by the crier, as we have already mentioned. The grand jury, ever since the days of King Ethelred, must consist of twelve at least, and not more than twenty-three. In the superior courts they are generally drawn from the magistracy or superior classes of the community, being, as Mr Justice Blackstone expresses it, "usually gentlemen of the best figure in the county." They are duly sworn and instructed in the articles of their enquiry by the judge who presides upon the bench. They then withdraw, to sit and receive all bills which may be presented to them. When a bill is thus presented, the witnesses are generally called in the order in which their names appear upon the back of the bill. The grand jury is, at most, to hear evidence only on behalf of the prosecution; "for," says the learned commentator already quoted, "the finding of an indictment is only in the nature of an enquiry or accusation, which is afterwards to be tried and determined; and the grand jury are only to enquire upon their oaths, whether there be sufficient cause to call upon a party to answer it." They ought, however, to be fully persuaded of the truth of an indictment as far as the evidence goes, and not to rest satisfied with remote probabilities; for the form of the indictment is, that they, "*upon their oath*, present" the party to have committed the crime. This form, Mr Justice Coleridge observes, is perhaps stronger than may be wished, and we believe that the criminal law commissioners are now seriously considering the propriety of abolishing it.

After hearing the evidence, the grand jury endorse upon the bill their judgment of the truth or falsehood of the charge. If they think the accusation groundless, they write upon it, "not found," or "not a true bill;" in which case the bill is said to be ignored: but, on the other hand, if twelve at least are satisfied of the truth of the accusation, the words "true bill" are placed upon it. The bill is then said to be found. It then becomes an indictment, and is brought into court by the grand jury, and publicly delivered by the

foreman to the clerk of arraigns, or clerk of the peace, as the case may be, who states to the court the substance of the indictment and of the indorsement upon it. If the bill is ignored, and no other bill is preferred against the party, he is discharged, without further answer, when the grand jury have finished their labours, and have been themselves discharged. To find a bill, twelve at least of the jury must agree; for no man, under this form of proceeding at least, can be convicted even of a misdemeanour, unless by the unanimous voice of twenty-four of his equals; that is, by twelve at least of the grand jury assenting to the accusation, and afterwards by the whole petit jury of twelve more finding him guilty upon the trial.

This proceeding is wholly *ex parte*. As the informal statement of the crime brought the supposed criminal to answer before the inferior tribunal, so does the formal accusation call upon him to answer before the superior court. The preliminary proceedings being now complete, and every step having been taken which is necessary to put the accused upon his trial, the *ex parte* character of the proceedings is at an end. The time approaches when the accused must again be brought face to face with his accusers; and when, if he has been admitted to bail, his sureties must deliver him up to the proper authorities, or their bond is forfeited; in which case, a bench warrant for the apprehension of the delinquent may issue; and if he cannot still be found, he may be pursued to outlawry. It may be here mentioned, that the proceedings may be, at any period, removed from any inferior court into the Queen's Bench, by what is called a writ of *certiorari*. When the offender appears voluntarily to an indictment, or was before in custody, or is brought in upon criminal process to answer it in the proper court, he is to be immediately arraigned. The arraignment is simply the calling upon the accused, at the bar of the court, to answer the matter charged upon him in the indictment, the substantial parts, at least, of which are then read over to him. This is indispensable, in order that he may fully understand the charge. So voluminous are the counts of the indictment recently found against Mr O'Connell and others, that the reading of the charges they contained was the work of many hours. The accused is not always compelled immediately to answer the indictment; for if he appear in term-time to an indictment for a misdemeanour in the Queen's Bench, it is sufficient if he plead or demur within four days; the court has a discretionary power to enlarge the time; but if he neither pleads nor demurs within the time prescribed, judgment

may be entered against him as for want of a plea. If he appear to such an indictment, having been committed or held to bail within twenty days before the assizes or sessions at which he is called upon to answer, he has the option of *traversing*, as it is termed, or of postponing his trial to the next assizes or sessions. He is also always entitled, before the trial, on payment of a trifling charge, to have copies of the examinations of the witnesses on whose evidence he was committed or held to bail; and at the trial he has a right to inspect the originals gratuitously. In prosecutions for misdemeanours at the suit of the Attorney-General, a copy of indictment must be delivered, free of expense, if demanded by the accused. These seem to be all the privileges except that of challenge, which we shall explain hereafter, which the accused possesses, or to which the law gives him an absolute indefeasible claim as a matter of right. The *practice* of different courts may possibly vary in some degree on points such as those which have been recently mooted in Ireland; for instance, as to whether the names of the witnesses should be furnished to the accused, and whether their address and description should also be supplied. In such matters the practice might vary, in a considerable degree, in the superior courts of England and Ireland; and yet each course would be strictly legal, in the respective courts in which it was adopted; for, as it was clearly put by one of the Irish judges on a recent occasion, the practice of the court is the law of the court, and the law of the court is the law of the land.

When the time has arrived at which the accused must put in his answer to the indictment, if he do not confess the charge, or stand mute of malice, he may either plead, 1st, to the jurisdiction, which is a good plea when the court before whom the indictment is taken has no cognizance of the offence, as when a case of treason is prosecuted at the quarter sessions; or, 2dly, he may demur, by which he says, that, assuming that he has done every thing which the indictment lays to his charge, he has, nevertheless, been guilty of no crime, and is in nowise liable to punishment for the act there charged. A demurrer has been termed an issue in law—the question to be determined being, what construction the law puts upon admitted facts. If the question of law be adjudged *in favour* of the accused, it is attended with the same results as an acquittal in fact, except that he may be indicted afresh for the same offence; but if the question be determined *against* the prisoner, the law, in its tenderness, *will not* allow him, at least in cases of felony, to

be punished for his misapprehension of the law, or for his mistake in the conduct of his pleadings, but will, in such case, permit him to plead over to the indictment—that is, to plead not guilty; the consequences of which plea we will consider hereafter.

A third alternative is a plea of abatement, which is a plea praying that the indictment may be quashed, for some defect which the plea points out. This plea, though it was recently, made use of by the defendants in the case now pending in Ireland, is of very rare occurrence in ordinary practice—a recent statute having entirely superseded every advantage formerly to be derived from this plea, in cases of a misnomer, or a wrong name, and of a false addition or a wrong description of the defendant's rank and condition, which were the principal occasions on which it was resorted to.

The next alternative which the prisoners may adopt, is a special plea in bar. These pleas are of four kinds: 1. a former acquittal; 2. a former conviction; 3. a former attainder; 4. a former pardon, for the same offence. The first two of these pleas are founded on the maxim of the law of England, that no man is to be twice put in jeopardy for the same offence. A man is attainted of felony, only by judgment of death, or by outlawry; for by such judgment, the prisoner being already dead in law, and having forfeited all his property, there remains no further punishment to be awarded; and, therefore, any further proceeding would be superfluous. This plea has, however, been practically put an end to by a recent statute. A plea of pardon, is the converse of a plea of attainder; for a pardon at once destroys the end and purpose of the indictment, by remitting that punishment which the prosecution was calculated to inflict.

All these pleas may be answered by the crown in two ways—issue may be joined on the facts they respectively set forth; or they may be demurred to; by which step, the facts, alleged in the plea, are denied to constitute a good and valid defence in law. In *felony*, if any of these pleas are, either in fact or in law, determined against the prisoner, he cannot be convicted or concluded by the adverse judgment; and for this reason. Formerly all felonies were punishable with death, and, in the words of Mr Justice Blackstone, "the law allows many pleas by which a prisoner may escape death; but only one plea in consequence whereof it can be inflicted, viz., the

general issue, after an impartial examination and decision of the facts, by the unanimous verdict of a jury." The prisoner, therefore, although few felonies remain still capital, is nevertheless still allowed to plead over as before. In misdemeanours, however, which are never capital, and in which, therefore, no such principle could ever have applied, the judgment on these pleas appears to follow the analogy of a civil action. Thus, if, upon issue joined, a plea of abatement be found against the accused, the judgment, on that indictment, is final; though a second indictment may be preferred against him; but if, upon demurrer, the question of law is held to be against him, the judgment is, that he do answer the indictment. If a plea in bar, either on issue joined, or on demurrer, be determined against the defendant, the judgment is in such case final, and he stands convicted of the misdemeanour.

The general issue, or the plea of "not guilty," is the last and most usual of those answers to the indictment which we have enumerated, the others being all of extremely rare occurrence in the modern practice of the criminal law. By this plea, the accused puts himself upon his county, which county the jury are. The sheriff of the county must then return a panel of jurors. In England the jurors are taken from the "jurors' book" of the current year. It must be observed, that a new jurors' book comes into operation on the first of January in each year, having previously been copied from the lists of those liable to serve on juries, made out in the first instance, between the months of July and October, both inclusive, by the churchwardens and overseers of each parish, then reviewed and confirmed by the justices of the peace in petty sessions, and, through the high constable of the district, delivered to the next quarter sessions. If the proceedings are before the Queen's Bench, an interval is allowed by the court, in fixing the time of trial, for the impanneling of the jury, upon a writ issued to the sheriff for that purpose. The trial in a case of misdemeanour in the Queen's Bench is had at *nisi prius*, unless it be of such consequence as to merit a trial at bar, which is invariably had when the prisoner is tried for any capital offence in that court. But before the ordinary courts of assize, the sheriff, by virtue of a general precept directed to him beforehand, returns to the court a panel of not less than forty-eight nor more than seventy-two persons, unless the judges of assize direct a greater or smaller number to be summoned. When the time for the trial has arrived, and the

case is called on, jurors, to the number of twelve, are sworn, unless challenged as they appear; their names being generally taken promiscuously, one by one, out of a box containing a number of tickets, on each of which a juror's name is inserted. Challenges may be made, either on the part of the crown or on that of the accused, and either to the whole array or to the separate polls. The challenge to the array, which must be made in writing, is an exception to the whole panel, on account of some partiality or default in the sheriff, or his officer, who arrayed the panel, the ground of which is examined into before the court. Challenges to the polls—*in capita*—are exceptions to particular persons, and must be made in each instance, as the person comes to the box to be sworn, and before he is sworn; for when the oath is once taken the challenge is too late.

Sir Edward Coke reduces the heads of challenge to four. 1st, *propter honoris respectum*; as if a lord of Parliament be impannelled. 2d, *propter defectum*; as if a jurymen be an alien born, or be in other respects generally objectionable. 3d, *propter affectum*; for suspicion of bias or partiality: and 4th, *propter delictum*; or, for some crime that affects the juror's credit, and renders him infamous; In treason and felony, the prisoner is allowed the privilege of a limited number of *peremptory* challenges; after which, as in misdemeanours, there is no limit to the number of challenges, if the party shows some cause for each challenge to the court. This cause is tried by persons appointed for that purpose by the court, when no jurymen have been sworn; but when two jurymen have been sworn, they are the parties who must adjudicate upon the qualifications of those who are afterwards challenged, who, except when the challenge is *propter delictum*, may be themselves examined upon oath. The crown, also, we have seen, can exercise this privilege, but with this difference, that no cause for challenge need be shown by the crown, either in felonies or misdemeanours, till the panel is exhausted, and unless there cannot be a full jury without the persons so challenged.

When twelve men have been found, they are sworn to give a true verdict "according to the evidence," and the jury are then ready to hear the merits of the case. To fix their attention the closer to the facts which they are impannelled and sworn to try, the indictment, in cases of importance, is usually opened by the junior counsel for the crown—a proceeding, by

which they are briefly informed of the charge which is brought against the accused. The leading counsel for the crown then lays the *facts* of the case before the jury, in a plain unvarnished statement; no appeal is made to the passions or prejudices of the twelve men, who are to pronounce upon the guilt or innocence of the accused; but every topic, every observation, which might warp their judgment, or direct their attention from the simple facts which are about to be proved before them, is anxiously deprecated and avoided by the counsel for the prosecution. The witnesses for the crown are called one by one, sworn, examined, and cross-examined by the accused, or his counsel. When the case for the crown has been brought to a close, the defence commences, and the counsel for the defendant addresses the jury. It is the duty of the advocate, on such an occasion, to put forth all his powers in behalf of his client; to obtain acquittal is his object: he must sift the hostile evidence, he must apply every possible test to the accuracy of the testimony, and to the credibility of the witnesses; he may address himself to the reason, to the prejudices, to the sympathies, nay, even to the worst passions of the twelve men whose opinions he seeks to influence in favour of his client. He may proceed to call witnesses to disprove the facts adduced on the other side, or to show that the character of the accused stands too high for even a suspicion of the alleged crime; he has the utmost liberty of speech and action. He may indefinitely protract the proceedings, and there seems to be scarcely any limit, in point of law, beyond which the ultimate event of the trial may not be, by these means, deferred. Whenever the defence closes, in those cases in which the government is the real prosecutor, the representative of the crown has the general reply; at the close of which the presiding judge sums up the evidence to the jury, and informs them of the legal bearing of the facts, on the effect and existence of which the jury has to decide. This having been accomplished, it becomes the duty of the jury to deliberate, decide, and pronounce their verdict. If the verdict be "Not guilty," the accused is for ever quit and discharged of the accusation; but if the jury pronounce him guilty, he stands convicted of the crime which has been thus charged and proved against him, and awaits the judgment of the court. In felonies and ordinary misdemeanours, judgment is generally pronounced immediately upon, or soon after, the delivery of the verdict; in other cases, when the trial has been had before the Queen's Bench, the judgment may, in England, be pronounced either immediately or during the ensuing term. But whenever this event occurs, the prisoner has

still one chance more for escape: he can move an arrest of judgment, on the grounds either that the indictment is substantially defective, or that he has already been pardoned or punished for the same offense. These objections, if successful, will, even at this late stage of the proceedings, save the defendant from the consequences of his crime. But if these last resources fail, the court must give the judgment, or pronounce the measure of that punishment, which the law annexes to the crime of which the prisoner has been convicted.

By the law of this country, the *species* of punishment for every offence is always ascertained; but, between certain defined limits, the measure and degree of that punishment is, with very few exceptions, left to the discretion of the presiding judge. Treasons and some felonies are, indeed, capital: but, in the mercy of modern times, the great majority of felonies, and all misdemeanours, are visited, some with various terms of transportation or imprisonment, which, in most cases, may be with or without hard labour, at the discretion of the court. In these cases, the punishment is prescribed by the statute law; but there are some misdemeanours the punishment of which has not been interfered with by any statute, and to which, therefore, the common law punishments are still attached. The case of Mr O'Connell, which is now in abeyance, seems to range itself under this head of misdemeanours. Such cases are punishable by fine or imprisonment, or by both; but the amount of the one, or the duration of the other, is each left at large to be estimated by the court, according to the more or less aggravated nature of the offence, and, as it is said, also according to the quality and condition of the parties. That a fine should, in all cases, be reasonable, has been declared by Magna Charta; and the Bill of Rights has also provided, that excessive fine, or cruel and unusual punishments, should not be inflicted; but what may or may not be unreasonable or excessive, cruel or unusual, is left entirely to the judgment of the executive.

For crimes of a dark political hue, which, by their tendency to subvert the government or destroy the institutions of the country, necessarily assume a character highly dangerous to the safety and well-being of the state, it might be difficult to say what degree of punishment would be excessive or unusual. It seems probable, that in cases of this nature, which include crimes, so varied in their circumstances that there appears no limit to the

degree of guilt incurred—crimes, the nature and character of which could not possibly be foreseen or provided for, in all their infinite multiplicity of detail; it seems probable that, in such cases, a large discretion may have been purposely left by the framers of our constitution, in order that the degree of guilt, on each occasion, should be measured by an expansive self-adjusting scale of punishment, applied, indeed, and administered by the judges of the land, but regulated and adjusted, in each succeeding age, by the influence of public opinion, and by the spirit and temper of the times.

Even at this latest stage of criminal prosecution, in the interval which must necessarily elapse between the pronouncing and the infliction of the sentence, the convicted delinquent is not without a remedy for any wrong he may sustain in the act which terminates the proceedings. If any judgement not warranted by law be given by the court, it may be reversed upon a *writ of error*, which lies from all inferior criminal jurisdictions to the Queen's Bench, and from the Queen's Bench to the House of Peers. These writs, however, in cases of misdemeanour, are not allowed, of course, but on probable cause shown to the Attorney General; and then they are understood to be grantable of common right, and *ex debito justitiæ*. The crown, if every other resource has failed the prisoner, has always the power of exercising the most amiable of its prerogatives. Though the sovereign herself condemns no man, "the great operation of her sceptre is mercy," and the chief magistrate, in the words of Sir William Blackstone, "holding a court of equity in his own breast, to soften the rigour of the general law, in such criminal cases as merit an exemption from punishment," is ever at liberty to grant a free, unconditional, and gracious pardon to the injured or repentant convict.

We have now rapidly traced the progress of a criminal prosecution from its commencement to its close, and we have given a summary of the *ordinary* proceedings on such occasions. Although it may be possible that the practice of the courts in Ireland on minor points, should occasionally differ in some degree from the practice of the English Courts, we may, nevertheless, have rendered the proceedings now pending in the sister isle, more intelligible to the general reader, who may now, perhaps, be enabled to see the bearing, and understand the importance of many struggles, which, to the unlearned, might probably appear to be wholly beside the real

question now at issue between the crown and Mr O'Connell. Whatever be the result of that prosecution, whether those indicted be found guilty, or acquitted, of the misdemeanours laid to their charge; we feel assured, on the one hand, however long and grievous may have been the "provocation," that while there will be "nothing extenuate," neither will there be "set down aught in malice;" but that the measure of the retribution now demanded by the state, will be so temperately and equitably adjusted, that while the very semblance of oppression is carefully avoided, the majesty of the law, and the powers of the executive, will be amply and entirely vindicated. On the other hand, if Mr O'Connell, and his companions, in guilt or misfortune, should break through the cobwebs of the law, and hurl a *retrospective* defiance at the Government; we feel the utmost confidence, that the learning, foresight, and ability, of the eminent lawyers who represent the crown, together with the firmness and integrity of the Irish bench, "*sans peur et sans reproche*," will demonstrate to the millions who look on, that the constitutional powers of the state still remain uninjured and unimpaired in all their pristine and legitimate energy and vigour; and that neither in the machinery now set in motion, nor with those who conduct or superintend its action, but with others on whom, in the course of these proceedings, will be thrown the execution of a grave and all-important duty, must rest the real blame, if blame there be, of the failure of *this* "State Prosecution."

ADVENTURES IN TEXAS.

No. III.

THE STRUGGLE.

I had been but three or four months in Texas, when, in consequence of the oppressive conduct of the Mexican military authorities, symptoms of discontent showed themselves, and several skirmishes occurred between the American settlers and the soldiery. The two small forts of Velasco and Nacogdoches were taken by the former, and their garrisons and a couple of field-officers made prisoners; soon after which, however, the quarrel was made up by the intervention of Colonel Austin on the part of Texas, and Colonel Mejia on the part of the Mexican authorities.

But in the year '33 occurred Santa Anna's defection from the liberal party, and the imprisonment of Stephen F. Austin, the Texian representative in the Mexican congress, by the vice-president, Gomez Farias. This was followed by Texas adopting the constitution of 1824, and declaring itself an independent state of the Mexican republic. Finally, towards the close of 1835 Texas threw off the Mexican yoke altogether, voted itself a free and sovereign republic, and prepared to defend by arms its newly asserted liberty.

The first step to be taken was, to secure our communications with the United States by getting possession of the sea-ports. General Cos had occupied Galveston harbour, and built and garrisoned a block-fort, nominally for the purpose of enforcing the customs laws, but in reality with a view to cut off our communications with New Orleans and the States. This fort it was necessary to get possession of, and my friend Fanning and myself were appointed to that duty by the Alcalde, who had taken a prominent part in all that had occurred.

Our whole force and equipment wherewith to accomplish this enterprise, consisted in a sealed despatch, to be opened at the town of Columbia, and a half-breed, named Agostino, who acted as our guide. On reaching Columbia, we called together the principal inhabitants of the place, and of the neighbouring towns of Bolivar and Marion, unsealed the letter in their presence, and six hours afterwards the forces therein specified were assembled, and we were on our march towards Galveston. The next day the fort was taken, and the garrison made prisoners, without our losing a single man.

We sent off our guide to the government at San Felipe with news of our success. In nine days he returned, bringing us the thanks of congress, and fresh orders. We were to leave a garrison in the fort, and then ascend Trinity river, and march towards San Antonio de Bexar. This route was all the more agreeable to Fanning and myself, as it would bring us into the immediate vicinity of the *haciendas*, or estates, of which we had some time previously obtained a grant from the Texian government; and we did not doubt that we were indebted to our friend the Alcalde for the orders which thus conciliated our private convenience with our public duty.

As we marched along we found the whole country in commotion, the settlers all arming, and hastening to the distant place of rendezvous. We arrived at Trinity river one afternoon, and immediately sent messengers for forty miles in all directions to summon the inhabitants. At the period in question, the plantations in that part of the country were very few and far between, but nevertheless by the afternoon of the next day we had got together four-and-thirty men, mounted on mustangs, each equipped with rifle and bowie-knife, powder-horn and bullet-bag, and furnished with provisions for several days. With these we started for San Antonio de Bexar, a march of two hundred and fifty miles, through trackless prairies intersected with rivers and streams, which, although not quite so big as the Mississippi or Potomac, were yet deep and wide enough to have offered serious impediment to regular armies. But to Texian farmers and backwoodsmen, they were trifling obstacles. Those we could not wade through we swam over; and in due time, and without any incident worthy of note, reached the appointed place of rendezvous, which was on the river Salado, about fifteen miles from San Antonio, the principal city of the

province. This latter place it was intended to attack—an enterprise of some boldness and risk, considering that the town was protected by a strong fort, amply provided with heavy artillery, and had a garrison of nearly three thousand men, commanded by officers who had, for the most part, distinguished themselves in the revolutionary wars against the Spaniards. Our whole army, which we found encamped on the Salado, under the command of General Austin, did not exceed eight hundred men.

The day after that on which Fanning and myself, with our four and thirty recruits, reached headquarters, a council of war was held, and it was resolved to advance as far as the mission of Santa Espada. The advanced guard was to push forward immediately; the main body would follow the next day. Fanning and myself were appointed to the command of the vanguard, in conjunction with Mr Wharton, a wealthy planter, who had brought a strong party of volunteers with him, and whose mature age and cool judgment, it was thought, would counterbalance any excess of youthful heat and impetuosity on our part. Selecting ninety-two men out of the eight hundred, who, to a man, volunteered to accompany us, we set out for the mission.

These missions are a sort of picket-houses or outposts of the Catholic church, and are found in great numbers in all the frontier provinces of Spanish America, especially in Texas, Santa Fe, and Cohahuila. They are usually of sufficient strength to afford their inmates security against any predatory party of Indians or other marauders, and are occupied by priests, who, while using their endeavours to spread the doctrines of the Church of Rome, act also as spies and agents of the Mexican government.

On reaching San Espada we held a discussion as to the propriety of remaining there until the general came up, or of advancing at once towards the river. Wharton inclined to the former plan, and it was certainly the most prudent, for the mission was a strong building, surrounded by a high wall, and might have been held against very superior numbers. Fanning and I, however, did not like the idea of being cooped up in a house, and at last Wharton yielded. We left our horses and mustangs in charge of eight men, and with the remainder set out in the direction of the Salado, which flows from north to south, a third of a mile to the westward of the mission. About

half-way between the latter and the river, was a small group, or island, of muskeet trees, the only object that broke the uniformity of the prairie. The bank of the river on our side was tolerably steep, about eight or ten feet high, hollowed out here and there, and covered with a thick network of wild vines. The Salado at this spot describes a sort of bow-shaped curve, with a ford at either end, by which alone the river can be passed, for although not very broad, it is rapid and deep. We resolved to take up a position within this bow, calculating that we might manage to defend the two fords, which were not above a quarter of a mile apart.

At the same time we did not lose sight of the dangers of such a position, and of the almost certainty that if the enemy managed to cross the river, we should be surrounded and cut off. But our success on the few occasions on which we had hitherto come to blows with the Mexicans, at Velasco, Nacogdoches, and Galveston, had inspired us with so much confidence, that we considered ourselves a match for thousands of such foes, and actually began to wish the enemy would attack us before our main body came up. We reconnoitred the ground, stationed a picket of twelve men at each ford, and an equal number in the island of muskeet trees; and established ourselves with the remainder amongst the vines and in the hollows on the river bank.

The commissariat department of the Texian army was, as may be supposed, not yet placed upon any very regular footing. In fact, every man was, for the present, his own commissary-general. Finding our stock of provisions to be very small, we sent out a party of foragers, who soon returned with three sheep, which they had taken from a *rancho*, within a mile of San Antonio. An old priest, whom they found there, had threatened them with the anger of Heaven and of General Cos; but they paid little attention to his denunciations, and, throwing down three dollars, walked off with the sheep. The priest became furious, got upon his mule, and trotted away in the direction of the City to complain to General Cos of the misconduct of the heretics.

After this we made no doubt that we should soon have a visit from the worthy Dons. Nevertheless the evening and the night passed away without incident. Day broke—still no signs of the Mexicans. This treacherous sort

of calm, we thought, might forbode a storm, and we did not allow it to lull us into security. We let the men get their breakfast, which they had hardly finished when the picket from the upper ford came in with news that a strong body of cavalry was approaching the river, and that their vanguard was already in the hollow way leading to the ford. We had scarcely received this intelligence when we heard the blare of the trumpets, and the next moment we saw the officers push their horses up the declivitous bank, closely followed by their men, whom they formed up in the prairie. We counted six small squadrons, about three hundred men in all. They were the Durango dragoons—smart troops enough to all appearance, capitally mounted and equipped, and armed with carbines and sabres.

Although the enemy had doubtless reconnoitred us from the opposite shore, and ascertained our position, he could not form any accurate idea of our numbers, for with a view to deceive him, we kept the men in constant motion, sometimes showing a part of them on the prairie, then causing them to disappear again behind the vines and bushes. This was all very knowing for young soldiers such as we were; but, on the other hand, we had committed a grievous error, and sinned against all established military rules, by not placing a picket on the further side of the river, to warn us of the approach of the enemy, and the direction in which he was coming. There can be little doubt that if we had earlier notice of their approach, thirty or forty good marksmen—and all our people were that—might not only have delayed the advance of the Mexicans, but perhaps even totally disgusted them of their attempt to cross the Salado. The hollow way on the other side of the river, leading to the ford, was narrow and tolerably steep, and the bank was at least six times as high as on our side. Nothing would have been easier than to have stationed a party, so as to pick off the cavalry as they wound through this kind of pass, and emerged two by two upon the shore. Our error, however, did not strike us till it was too late to repair it; so we were fain to console ourselves with the reflection that the Mexicans would be much more likely to attribute our negligence to an excess of confidence in our resources, than to the inexperience in military matters, which was its real cause. We resolved to do our best to merit the good opinion which we thus supposed them to entertain of us.

When the whole of the dragoons had crossed the water, they marched on for a short distance in an easterly direction: then, wheeling to the right, proceeded southward, until within some five hundred paces of us, where they halted. In this position, the line of cavalry formed the chord of the arc described by the river, and occupied by us.

As soon as they halted, they opened their fire, although they could not see one of us, for we were completely sheltered by the bank. Our Mexican heroes, however, apparently did not think it necessary to be within sight or range of their opponents before firing, for they gave us a rattling volley at a distance which no carbine would carry. This done, others galloped on for about a hundred yards, halted again, loaded, fired another volley, and then giving another gallop, fired again. They continued this sort of *manège* till they found themselves within two hundred and fifty paces of us, and then appeared inclined to take a little time for reflection.

We kept ourselves perfectly still. The dragoons evidently did not like the aspect of matters. Our remaining concealed, and not replying to their fire, seemed to bother them. We saw the officers taking a deal of pains to encourage their men, and at last two squadrons advanced, the others following more slowly, a short distance in rear. This was the moment we had waited for. No sooner had the dragoons got into a canter, than six of our men who had received orders to that effect, sprang up the bank, took steady aim at the officers, fired, and then jumped down again.

As we had expected, the small numbers that had shown themselves, encouraged the Mexicans to advance. They seemed at first taken rather aback by the fall of four of their officers; but nevertheless, after a moment's hesitation, they came thundering along full speed. They were within sixty or seventy yards of us, when Fanning and thirty of our riflemen ascended the bank, and with a coolness and precision that would have done credit to the most veteran troops, poured a steady fire into the ranks of the dragoons.

It requires some nerve and courage for men who have never gone through any regular military training, to stand their ground singly and unprotected, within fifty yards of an advancing line of cavalry. Our fellows did it, however, and fired, not all at once, or in a hurry, but slowly and deliberately; a running fire, every shot of which told. Saddle after saddle

was emptied; the men, as they had been ordered, always picking out the foremost horsemen, and as soon as they had fired, jumping down the bank to reload. When the whole of the thirty men had discharged their rifles, Wharton and myself, with the reserve of six and thirty more, took their places; but the dragoons had almost had enough already, and we had scarcely fired ten shots when they executed a right-about turn, with an uniformity and rapidity which did infinite credit to their drill, and went off at a pace that soon carried them out of reach of our bullets. They had probably not expected so warm a reception. We saw their officers doing every thing they could to check their flight, imploring, threatening, even cutting at them with their sabres, but it was no use; if they were to be killed, it must be in their own way, and they preferred being cut down by their officers to encountering the deadly precision of rifles, in the hands of men who, being sure of hitting a squirrel at a hundred yards, were not likely to miss a Durango dragoon at any point within range.

Our object in ordering the men to fire slowly was, always to have thirty or forty rifles loaded, wherewith to receive the enemy should he attempt a charge *en masse*. But our first greeting had been a sickener, and it appeared almost doubtful whether he would venture to attack us again, although the officers did every thing in their power to induce their men to advance. For a long time, neither threats, entreaties, nor reproaches produced any effect. We saw the officers gesticulating furiously, pointing to us with their sabres, and impatiently spurring their horses, till the fiery animals plunged and reared, and sprang with all four feet from the ground. It is only just to say, that the officers exhibited a degree of courage far beyond any thing we had expected from them. Of the two squadrons that charged us, two-thirds of the officers had fallen; but those who remained, instead of appearing intimidated by their comrades' fate, redoubled their efforts to bring their men forward.

At last there appeared some probability of their accomplishing this, after a most curious and truly Mexican fashion. Posting themselves in front of their squadrons, they rode on alone for a hundred yards or so, halted, looked round, as much as to say—"You see there is no danger as far as this," and then galloping back, led their men on. Each time that they executed this manoeuvre, the dragoons would advance slowly some thirty or forty paces,

and then halt as simultaneously as if the word of command had been given. Off went the officers again, some distance to the front, and then back again to their men, and got them on a little further. In this manner these heroes were inveigled once more to within a hundred and fifty yards of our position.

Of course, at each of the numerous halts which they made during their advance, they favoured us with a general, but most innocuous discharge of their carbines; and at last, gaining confidence, I suppose, from our passiveness, and from the noise and smoke they themselves had been making, three squadrons which had not yet been under fire, formed open column and advanced at a trot. Without giving them time to halt or reflect—"Forward! Charge!" shouted the officers, urging their own horses to their utmost speed; and following the impulse thus given, the three squadrons came charging furiously along.

Up sprang thirty of our men to receive them. Their orders were to fire slowly, and not throw away a shot, but the gleaming sabres and rapid approach of the dragoons flurried some of them, and firing a hasty volley, they jumped down the bank again. This precipitation had nearly been fatal to us. Several of the dragoons fell, and there was some confusion and a momentary faltering amongst the others; but they still came on. At this critical moment, Wharton and myself, with the reserves, showed ourselves on the bank. "Slow and sure-mark your men!" shouted we both. Wharton on the right and I on the left. The command was obeyed: rifle after rifle cracked off, always aimed at the foremost of the dragoons, and at every report a saddle was emptied. Before we had all fired, Fanning and a dozen of his sharpest men had again loaded, and were by our side. For nearly a minute the Mexicans remained, as if stupefied by our murderous fire, and uncertain whether to advance or retire; but as those who attempted the former, were invariably shot down, they at last began a retreat, which was soon converted into a rout. We gave them a farewell volley, which eased a few more horses of their riders, and then got under cover again, to await what might next occur.

But the Mexican caballeros had no notion of coming up to the scratch a third time. They kept patrolling about, some three or four hundred yards off,

and firing volleys at us, which they were able to do with perfect impunity, as at that distance we did not think proper to return a shot.

The skirmish had lasted nearly three quarters of an hour. Strange to say, we had not had a single man wounded, although at times the bullets had fallen about us as thick as hail. We could not account for this. Many of us had been hit by the balls, but a bruise or a graze of the skin was the worst consequence that had ensued. We were in a fair way to deem ourselves invulnerable.

We were beginning to think that the fight was over for the day, when our videttes at the lower ford brought us the somewhat unpleasant intelligence that large masses of infantry were approaching the river, and would soon be in sight. The words were hardly uttered, when the roll of the drums, and shrill squeak of the fifes became audible, and in a few minutes the head of the column of infantry, having crossed the ford, ascended the sloping bank, and defiled in the prairie opposite the island of muskeet trees. As company after company appeared, we were able to form a pretty exact estimate of their numbers. There were two battalions, together about a thousand men; and they brought a field-piece with them.

These were certainly rather long odds to be opposed to seventy-two men and three officers' for it must be remembered that we had left twenty of our people at the mission, and in the island of trees. Two battalions of infantry, and six squadrons of dragoons—the latter, to be sure, disheartened and diminished by the loss of some fifty men, but nevertheless formidable opponents, now they were supported by the foot soldiers. About twenty Mexicans to each of us. It was getting past a joke. We were all capital shots, and most of us, besides our rifles, had a brace of pistols in our belts; but what were seventy-five rifles, and five or six score of pistols against a thousand muskets and bayonets, two hundred and fifty dragoons, and a field-piece loaded with canister? If the Mexicans had a spark of courage or soldiership about them, our fate was sealed. But it was exactly this courage and soldiership, which we made sure would be wanting.

Nevertheless we, the officers, could not repress a feeling of anxiety and self-reproach, when we reflected that we had brought our comrades into such a hazardous predicament. But on looking around us, our apprehensions

vanished. Nothing could exceed the perfect coolness and confidence with which the men were cleaning and preparing their rifles for the approaching conflict; no bravado—no boasting, talking, or laughing, but a calm decision of manner, which at once told us, that if it were possible to overcome such odds as were brought against us, those were the men to do it.

Our arrangements for the approaching struggle were soon completed. Fanning and Wharton were to make head against the infantry and cavalry. I was to capture the field-piece—an eight-pounder.

This gun was placed by the Mexicans upon their extreme left, close to the river, the shores of which it commanded for a considerable distance. The bank on which we were posted was, as before mentioned, indented by caves and hollows, and covered with a thick tapestry of vines and other plants, which was now very useful in concealing us from the artillerymen. The latter made a pretty good guess at our position however, and at the first discharge, the canister whizzed past us at a very short distance. There was not a moment to lose, for one well-directed shot might exterminate half of us. Followed by a dozen men, I worked my way as well as I could through the labyrinth of vines and bushes, and was not more than fifty yards from the gun, when it was again fired. No one was hurt, although the shot was evidently intended for my party. The enemy could not see us; but the notion of the vines, as we passed through them, had betrayed our whereabouts: so, perceiving that we were discovered, I sprang up the bank into the prairie followed by my men, to whom I shouted, above all to aim at the artillerymen.

I had raised my own rifle to my shoulder, when I let it fall again in astonishment at an apparition that presented itself to my view. This was a tall, lean, wild figure, with a face overgrown by long beard that hung down upon his breast, and dressed in a leather cap, jacket, and mocassins. Where this man had sprung from was a perfect riddle. He was unknown to any of us, although I had some vague recollection of having seen him before, but where or when, I could not call to mind. He had a long rifle in his hands, which he must have fired once already, for one of the artillerymen lay dead by the gun. At the moment I first caught sight of him, he shot down another, and then began reloading with a rapid dexterity, that proved him to be well

used to the thing. My men were as much astonished as I was by this strange apparition, which appeared to have started out of the earth; and for a few seconds they forgot to fire, and stood gazing at the stranger. The latter did not seem to approve of their inaction.

"D—— yer eyes, ye starin' fools," shouted he in a rough hoarse voice, "don't ye see them art'lerymen? Why don't ye knock 'em on the head?"

It certainly was not the moment to remain idle. We fired; but our astonishment had thrown us off our balance, and we nearly all missed. We sprang down the bank again to load, just as the men serving the gun were slewing it around, so as to bring it to bear upon us. Before this was accomplished, we were under cover, and the stranger had the benefit of the discharge, of which he took no more notice than if he had borne a charmed life. Again we heard the crack of his rifle, and when, having reloaded, we once more ascended the bank, he was taking aim at the last artilleryman, who fell, as his companions had done.

"D—— ye, for laggin' fellers!" growled the stranger. "Why don't ye take that 'ere big gun?"

Our small numbers, the bad direction of our first volley, but, above all, the precipitation with which we had jumped down the bank after firing it, had so encouraged the enemy, that a company of infantry, drawn up some distance in rear of the field-piece, fired a volley, and advanced at double-quick time, part of them making a small *détour* with the intention of cutting us off from our friends. At this moment, we saw Fanning and thirty men coming along the river bank to our assistance; so without minding the Mexicans who were getting behind us, we rushed forward to within twenty paces of those in our front, and taking steady aim, brought down every man his bird. The sort of desperate coolness with which this was done, produced the greater effect on our opponents, as being something quite out of their way. They would, perhaps, have stood firm against a volley from five times our number, at a rather greater distance; but they did not like having their mustaches singed by our powder; and after a moment's wavering and hesitation, they shouted out "Diabolos! Diabolos!" and throwing away their muskets, broke into precipitate flight.

Fanning and Wharton now came up with all the men. Under cover of the infantry's advance, the gun had been re-manned, but, luckily for us, only by infantry soldiers; for had there been artillerymen to seize the moment when we were all standing exposed on the prairie, they might have diminished our numbers not a little. The fuse was already burning, and we had just time to get under the bank when the gun went off. Up we jumped again, and looked about us to see what was next to be done.

Although hitherto all the advantages had been on our side, our situation was still a very perilous one. The company we had put to flight had rejoined its battalion, which was now beginning to advance by *échelon* of companies. The second battalion, which was rather further from us, was moving forward in like manner, and in a parallel direction. We should probably, therefore, have to resist the attack of a dozen companies, one after the other; and it was to be feared that the Mexicans would finish by getting over their panic terror of our rifles, and exchange their distant and ineffectual platoon-firing for a charge with the bayonet, in which their superior numbers would tell. We observed, also, that the cavalry, which had been keeping itself at a safe distance, was now put in motion, and formed up close to the island of musket trees, to which the right flank of the infantry was also extending itself. Thence they had clear ground for a charge down upon us.

Meanwhile, what had become of the twelve men whom we had left in the island? Were they still there, or had they fallen back upon the mission in dismay at the overwhelming force of the Mexicans? If the latter, it was a bad business for us, for they were all capital shots, and well armed with rifles and pistols. We heartily wished we had brought them with us, as well as the eight men at the mission. Cut off from us as they were, what could they do against the whole of the cavalry and two companies of infantry which were now approaching the island? To add to our difficulties, our ammunition was beginning to run short. Many of us had only had enough powder and ball for fifteen or sixteen charges, which were now reduced to six or seven. It was no use desponding, however; and, after a hurried consultation, it was agreed that Fanning and Wharton should open a fire upon the enemy's centre, while I made a dash at the field-piece before any more infantry had time to come up for its protection.

The infantry-men who had re-manned the gun were by this time shot down, and, as none had come to replace them, it was served by an officer alone. Just as I gave the order to advance to the twenty men who were to follow me, this officer fell. Simultaneously with his fall, I heard a sort of yell behind me, and, turning round, saw that it proceeded from the wild spectre-looking stranger, whom I had lost sight of during the last few minutes. A ball had struck him, and he fell heavily to the ground, his rifle, which had just been discharged, and was still smoking from muzzle and touchhole, clutched convulsively in both hands; his features distorted, his eyes rolling frightfully. There was something in the expression of his face at that moment which brought back to me, in vivid colouring, one of the earliest and most striking incidents of my residence in Texas. Had I not myself seen him hung, I could have sworn that *Bob Rock, the murderer*, now lay before me.

A second look at the man gave additional force to this idea.

"Bob!" I exclaimed.

"Bob!" repeated the wounded man, in a broken voice, and with a look of astonishment, almost of dismay. "Who calls Bob?"

A wild gleam shot from his eyes, which the next instant closed. He had become insensible.

It was neither the time nor the place to indulge in speculations on this singular resurrection of a man whose execution I had myself witnessed. With twelve hundred foes around us, we had plenty to occupy all our thoughts and attention. My people were already masters of the gun, and some of them drew it forwards and pointed it against the enemy, while the others spread out right and left to protect it with their rifles. I was busy loading the piece when an exclamation of surprise from one of the men made me look up.

There seemed to be something extraordinary happening amongst the Mexicans, to judge from the degree of confusion which suddenly showed itself in their ranks, and which, beginning with the cavalry and right flank of the infantry, soon became general throughout their whole force. It was a

sort of wavering and unsteadiness which, to us, was quite unaccountable, for Fanning and Wharton had not yet fired twenty shots, and, indeed, had only just come within range of the enemy. Not knowing what it could portend, I called in my men, and stationed them round the gun, which I had double-shotted, and stood ready to fire.

The confusion in the Mexican ranks increased. For about a minute they waved and reeled to and fro, as if uncertain which way to go; and, at last, the cavalry and right of the line fairly broke, and ran for it. This example was followed by the centre, and presently the whole of the two battalions and three hundred cavalry were scattered over the prairie, in the wildest and most disorderly flight. I gave them a parting salute from the eight-pounder, which would doubtless have accelerated their movements had it been possible to run faster than they were already doing.

We stood staring after the fugitives in perfect bewilderment, totally unable to explain their apparently causeless panic. At last the report of several rifles from the island of trees gave us a clue to the mystery.

The infantry, whose left flank extended to the Salado, had pushed their right into the prairie as far as the island of muskeet trees, in order to connect their line with the dragoons, and then by making a general advance, to attack us on all sides at once, and get the full advantage of their superior numbers. The plan was not a bad one. Infantry and cavalry approached the island, quite unsuspecting of its being occupied. The twelve riflemen whom we had stationed there remained perfectly quiet, concealed behind the trees; allowed squadrons and companies to come within twenty paces of them, and then opened their fire, first from their pistols, then from their rifles.

Some six and thirty shots, every one of which told, fired suddenly from a cover close to their rear, were enough to startle even the best troops, much more so our Mexican dons, who, already sufficiently inclined to a panic, now believed themselves fallen into an ambuscade, and surrounded on all sides by the incarnate *diabolos*, as they called us. The cavalry, who had not yet recovered the thrashing we had given them, were ready enough for a run, and the infantry were not slow to follow them.

Our first impulse was naturally to pursue the flying enemy, but a discovery made by some of the men, induced us to abandon that idea. They had opened the pouches of the dead Mexicans in order to supply themselves with ammunition, ours being nearly expended; but the powder of the cartridges turned out so bad as to be useless. It was little better than coal dust, and would not carry a ball fifty paces to kill or wound. This accounted for our apparent invulnerability to the fire of the Mexicans. The muskets also were of a very inferior description. Both they and the cartridges were of English make; the former being stamped Birmingham, and the latter having the name of an English powder manufactory, with the significant addition, "for exportation."

Under these circumstances, we had nothing to do but let the Mexicans run. We sent a detachment to the muskeet island, to unite itself with the twelve men who had done such good service there, and thence advance towards the ford. We ourselves proceeded slowly in the latter direction. This demonstration brought the fugitives back again, for they had, most of them, in the wild precipitation of their flight, passed the only place where they could cross the river. They began crowding over in the greatest confusion, foot and horse all mixed up together; and by the time we got within a hundred paces of the ford, the prairie was nearly clear of them. There were still a couple of hundred men on our side of the water, completely at our mercy, and Wharton, who was a little in front with thirty men, gave the word to fire upon them. No one obeyed. He repeated the command. Not a rifle was raised. He stared at his men, astonished and impatient at this strange disobedience. An old weather-beaten bear-hunter stepped forward, squirting out his tobacco juice with all imaginable deliberation.

"I tell ye what, capting!" said he, passing his quid over from his right cheek to his left; "I kalkilate, capting," he continued, "we'd better leave the poor devils of dons alone."

"The poor devils of dons alone!" repeated Wharton in a rage. "Are you mad, man?"

Fanning and I had just come up with our detachment, and were not less surprised and angry than Wharton was, at this breach of discipline. The man, however, did not allow himself to be disconcerted.

"There's a proverb, gentlemen," said he, turning to us, "which says, that one should build a golden bridge for a beaten enemy; and a good proverb it is, I calkilate—a considerable good one."

"What do you mean, man, with your golden bridge?" cried Fanning. "This is no time for proverbs."

"Do you know that you are liable to be punished for insubordination?" said I. "It's your duty to fire, and do the enemy all the harm you can; not to be quoting proverbs."

"Calkilate it is," replied the man very coolly. "Calkilate I could shoot 'em without either danger or trouble; but I reckon that would be like Spaniards or Mexicans; not like Americans—not prudent."

"Not like Americans? Would you let the enemy escape, then, when we have him in our power?"

"Calkilate I would. Calkilate we should do ourselves more harm than him by shooting down his people. That was a considerable sensible commandment of yourn, always to shoot the foremost of the Mexicans when they attacked. It discouraged the bold ones, and was a sort of premium on cowardice. Them as lagged behind escaped, them as came bravely on were shot. It was a good calkilation. If we had shot 'em without discrimination, the cowards would have got bold, seein' that they weren't safer in rear than in front. The cowards are our best friends. Now them runaways," continued he, pointing to the Mexicans, who were crowding over the river, "are jest the most cowardly of 'em all, for in their fright they quite forgot the ford, and it's because they ran so far beyond it, that they are last to cross the water. And if you fire at 'em now, they'll find that they get nothin' by bein' cowards, and next time, I reckon, they'll sell their hides as dear as they can."

Untimely as this palaver, to use a popular word, undoubtedly was, we could scarcely forbear smiling at the simple *naïve* manner in which the old Yankee spoke his mind.

"Calkilate, captings," he concluded, "you'd better let the poor devils run. We shall get more profit by it than if we shot five hundred of 'em. Next time they'll run away directly to show their gratitude for our ginerosity."

The man stepped back into the ranks, and his comrades nodded approvingly, and calculated and reckoned that Zebediah had spoke a true word; and meanwhile the enemy had crossed the river, and was out of our reach. We were forced to content ourselves with sending a party across the water to follow up the Mexicans, and observe the direction they took. We then returned to our old position.

My first thought on arriving there was to search for the body of Bob Rock—for he it undoubtably was, who had so mysteriously appeared amongst us. I repaired to the spot where I had seen him fall; but could discover no signs of him, either dead or alive. I went over the whole scene of the fight, searched amongst the vines and along the bank of the river; there were plenty of dead Mexicans—cavalry, infantry, and artillery, but no Bob was to be found, nor could any one inform me what had become of him, although several had seen him fall.

I was continuing my search, when I met Wharton, who asked me what I was seeking, and on learning, shook his head gravely. He had seen the wild prairieman, he said, but whence he came, or whither he was gone, was more than he could tell. It was a long time since any thing had startled and astonished him so much as this man's appearance and proceedings. He (Wharton,) had been stationed with his party amongst the vines, about fifty paces in rear of Fanning's people, when just as the Mexican infantry had crossed the ford, and were forming up, he saw a man approaching at a brisk trot from the north side of the prairie. He halted about a couple of hundred yards from Wharton, tied his mustang to a bush, and with his rifle on his arm, strode along the edge of the prairie in the direction of the Mexicans. When he passed near Wharton, the latter called out to him to halt, and say who he was, whence he came, and whither going.

"Who I am is no business of yourn," replied the man: "nor where I come from neither. You'll soon see where I'm goin'. I'm goin' agin' the enemy."

"Then you must come and join us," cried Wharton.

This the stranger testily refused to do. He'd fight on his own hook, he said.

Wharton told him he must not do that.

He should like to see who'd hinder him, he said, and walked on. The next moment he shot the first artilleryman. After that they let him take his own way.

Neither Wharton, nor any of his men, knew what had become of him; but at last I met with a bear-hunter, who gave me the following information.

"Calkilatin'," said he, "that the wild prairieman's rifle was a capital good one, as good a one as ever killed a bear, he tho't it a pity that it should fall into bad hands, so went to secure it himself, although the frontispiece of its dead owner warn't very invitin'. But when he stooped to take the gun, he got such a shove as knocked him backwards, and on getting up, he saw the prairieman openin' his jacket and examinin' a wound on his breast, which was neither deep nor dangerous, although it had taken away the man's senses for a while. The ball had struck the breast bone, and was quite near the skin, so that the wounded man pushed it out with his fingers; and then supporting himself on his rifle, got up from the ground, and without either a thankye, or a d——nye, walked to where his mustang was tied up, got on its back, and rode slowly away in a northerly direction.

This was all the information I could obtain on the subject, and shortly afterwards the main body of our army came up, and I had other matters to occupy my attention. General Austin expressed his gratitude and approbation to our brave fellows, after a truly republican and democratic fashion. He shook hands with all the rough bear and buffalo hunters, and drank with them. Fanning and myself he promoted, on the spot, to the rank of colonel.

We were giving the general a detailed account of the morning's events, when a Mexican priest appeared with a flag of truce and several waggons, and craved permission to take away the dead. This was of course granted, and we had some talk with the *padré*, who, however, was too wily a customer to allow himself to be pumped. What little we did get out of him, determined us to advance the same afternoon against San Antonio. We

thought there was some chance, that in the present panic-struck state of the Mexicans, we might obtain possession of the place by a bold and sudden assault.

In this, however, we were mistaken. We found the gates closed, and the enemy on his guard, but too dispirited to oppose our taking up a position at about cannon-shot from the great redoubt. We had soon invested all the outlets from the city.

San Antonio de Bexar lies in a fertile and well-irrigated valley, stretching westward from the river Salado. In the centre of the town rises the fort of the Alamo, which at that time was armed with forty-eight pieces of artillery of various calibre. The garrison of the town and fortress was nearly three thousand strong.

Our artillery consisted of two batteries of four six, and five eight-pounders; our army of eleven hundred men, with which we had not only to carry on the siege, but also to make head against the forces that would be sent against us from Cohahuila, on the frontier of which province General Cos was stationed, with a strong body of troops.

We were not discouraged, however, and opened our fire upon the city. During the first week, not a day passed without smart skirmishes. General Cos's dragoons were swarming about us like so many Bedouins. But although well-mounted, and capital horsemen, they were no match for our backwoodsmen. Those from the western states especially, accustomed to Indian warfare and cunning, laid traps and ambuscades for the Mexicans, and were constantly destroying their detachments. As for the besieged, if one of them showed his head for ten seconds above the city wall, he was sure of getting a rifle bullet through it. I cannot say that our besieging army was a perfect model of military discipline; but any deficiencies in that respect were made good by the intelligence of the men, and the zeal and unanimity with which they pursued the accomplishment of one great object—the capture of the city—the liberty and independence of Texas.

The badness of the gunpowder used by the Mexicans, was again of great service to us. Many of their cannon balls that fell far short of us, were collected and returned to them with powerful effect. We kept a sharp look-

out for convoys, and captured no less than three—one of horses, another of provisions, and twenty thousand dollars in money.

After an eight weeks' siege, a breach having been made, the city surrendered, and a month later the fort followed the example. With a powerful park of artillery, we then advanced upon Goliad, the strongest fortress in Texas, which likewise capitulated in about four weeks' time. We were now masters of the whole country, and the war was apparently at an end.

But the Mexicans were not the people to give up their best province so easily. They have too much of the old Spanish character about them—that determined obstinacy which sustained the Spaniards during their protracted struggle against the Moors. The honour of their republic was compromised, and that must be redeemed. Thundering proclamations were issued, denouncing the Texians as rebels, who should be swept off the face of the earth, and threatening the United States for having aided us with money and volunteers. Ten thousand of the best troops in Mexico entered Texas and were shortly to be followed by ten thousand more. The President, General Santa Anna, himself came to take the command, attended by a numerous and brilliant staff.

The Texians laughed at the fanfarronades of the dons, and did not attach sufficient importance to these formidable preparations. Their good opinion of themselves, and contempt of their foes, had been increased to an unreasonable degree by their recent and rapid successes. They forgot that the troops to which they had hitherto been opposed were for the most part militia, and that those now advancing against them were of a far better description, and had probably better powder. The call to arms made by our president, Burnet, was disregarded by many, and we could only get together about two thousand men, of whom nearly two-thirds had to be left to garrison the forts of Goliad and Alamo. In the first named place we left seven hundred and sixty men, under the command of Fanning; in the latter, something more than five hundred. With the remaining seven or eight hundred, we took the field. The Mexicans advanced so rapidly, that they were upon us before we were aware of it, and we were compelled to retreat,

leaving the garrisons of the two forts to their fate, and a right melancholy one it proved to be.

One morning news was brought to Goliad, that a number of country people, principally women and children, were on their way to the fort, closely pursued by the Mexicans. Fanning, losing sight of prudence in his compassion for these poor people, immediately ordered a battalion of five hundred men, under the command of Major Ward, to go and meet the fugitives and escort them in. The major, and several officers of the garrison, doubted as to the propriety of this measure; but Fanning, full of sympathy for his unprotected country-women, insisted, and the battalion moved out. They soon came in sight of the fugitives, as they thought, but on drawing nearer, the latter turned out to be Mexican dragoons, who sprang upon their horses, which were concealed in the neighbouring islands of trees, and a desperate fight began. The Mexicans, far superior in numbers, received every moment accessions to their strength. The Louis-Potosi and Santa Fé cavalry, fellows who seem born on horseback, were there. Our unfortunate countrymen were hemmed in on all sides. The fight lasted two days, and only two men out of the five hundred escaped with their lives.

Before the news of this misfortune reached us, orders had been sent to Fanning to evacuate the fort and join us with six pieces of artillery. He received the order, and proceeded to execute it. But what might have been very practicable for eight hundred and sixty men, was impossible for three hundred and sixty. Nevertheless, Fanning began his march through the prairie. His little band was almost immediately surrounded by the enemy. After a gallant defence, which lasted twelve hours, they succeeded in reaching an island, but scarcely had they established themselves there, when they found that their ammunition was expended. There was nothing left for them, but to accept the terms offered by the Mexicans, who pledged themselves, that if they laid down their arms, they should be permitted to return to their homes. But the rifles were no sooner piled, than the Texians found themselves charged by their treacherous foes, who butchered them without mercy. Only an advanced post of three men succeeded in escaping.

The five hundred men whom we had left in San Antonio de Bexar, fared no better. Not being sufficiently numerous to hold out the town as well as the

Alamo, they retreated into the latter. The Mexican artillery soon laid a part of the fort in ruins. Still its defenders held out. After eight days' fighting, during which the loss of the besiegers was tremendously severe, the Alamo was taken, and not a single Texian left alive.

We thus, by these two cruel blows, lost two-thirds of our army, and little more than seven hundred men remained to resist the numerous legions of our victorious foe. The prospect before us, was one well calculated to daunt the stoutest heart.

The Mexican general, Santa Anna, moved his army forward in two divisions, one stretching along the coast towards Velasco, the other advancing towards San Felipe de Austin. He himself, with a small force, marched in the centre. At Fort Bend, twenty miles below San Felipe, he crossed the Brazos, and shortly afterwards established himself with about fifteen hundred men in an entrenched camp. Our army, under the command of General Houston, was in front of Harrisburg, to which place the congress had retreated.

It was on the night of the twentieth of April, and our whole disposable force, some seven hundred men, was bivouacking in and about an island of sycamores. It was a cloudy, stormy evening: high wind was blowing, and the branches of the trees groaned and creaked above our heads. The weather harmonized well enough with our feelings, which were sad and desponding when we thought of the desperate state of our cause. We (the officers) were sitting in a circle round the general and Alcalde, both of whom appeared uneasy and anxious. More than once they got up, and walked backwards and forwards, seemingly impatient, and as if they were waiting for or expecting something. There was a deep silence throughout the whole bivouac; some were sleeping, and those who watched were in no humour for idle chat.

"Who goes there?" suddenly shouted one of the sentries. The answer we did not hear, but it was apparently satisfactory, for there was no further challenge, and a few seconds afterwards an orderly came up, and whispered something in the ear of the Alcalde. The latter hurried away, and, presently returning, spoke a few words in a low tone to the general, and then to us

officers. In an instant we were all upon our feet. In less than ten minutes, the bivouac was broken up, and our little army on the march.

All our people were well mounted, and armed with rifles, pistols, and bowie-knives. We had six field-pieces, but we only took four, harnessed with twice the usual number of horses. We marched at a rapid trot the whole night, led by a tall, gaunt figure of a man who acted as our guide, and kept some distance in front. I more than once asked the Alcalde who this was. "You will know by and by," was his answer.

Before daybreak we had ridden five and twenty miles, but had been compelled to abandon two more guns. As yet, no one knew the object of this forced march. The general commanded a halt, and ordered the men to refresh and strengthen themselves by food and drink. While they were doing this, he assembled the officers around him, and the meaning of our night march was explained to us. The camp in which the Mexican president and general-in-chief had entrenched himself was within a mile of us; General Parza, with two thousand men, was twenty miles further to the rear; General Filasola, with one thousand, eighteen miles lower down on the Brazos; Viesca, with fifteen hundred, twenty-five miles higher up. One bold and decided blow, and Texas might yet be free. There was not a moment to lose, nor was one lost. The general addressed the men.

"Friends! Brothers! Citizens! General Santa Anna is within a mile of us with fifteen hundred men. The hour that is to decide the question of Texian liberty is now arrived. What say you? Do we attack?"

"We do!" exclaimed the men with one voice, cheerfully and decidedly.

In the most perfect stillness, we arrived within two hundred paces of the enemy's camp. The *reveille* of the sleeping Mexicans was the discharge of our two field-pieces loaded with canister. Rushing on to within twenty-five paces of the entrenchment, we gave them a deadly volley from our rifles, and then, throwing away the latter, bounded up the breast-works, a pistol in each hand. The Mexicans, scared and stupefied by this sudden attack, were running about in the wildest confusion, seeking their arms, and not knowing which way to turn. After firing our pistols, we threw them away as we had done our rifles, and, drawing our bowie-knives, fell, with a shout, upon the

masses of the terrified foe. It was more like the boarding of a ship than any land fight I had ever seen or imagined.

My station was on the right of the line, where the breastwork, ending in a redoubt, was steep and high. I made two attempts to climb up, but both times slipped back. On the third trial I nearly gained the summit; but was again slipping down, when a hand seized me by the collar, and pulled me up on the bank. In the darkness and confusion I did not distinguish the face of the man who rendered me this assistance. I only saw the glitter of a bayonet which a Mexican thrust into his shoulder, at the very moment he was helping me up. He neither flinched nor let go his hold of me till I was fairly on my feet; then, turning slowly round, he levelled a pistol at the soldier, who, at that very moment, was struck down by the Alcalde.

"No thanks to ye, squire!" exclaimed the man, in a voice which made me start, even at that moment of excitement and bustle. I looked at the speaker, but could only see his back, for he had already plunged into the thick of the fight, and was engaged with a party of Mexicans, who defended themselves desperately. He fought like a man more anxious to be killed than to kill, striking furiously right and left, but never guarding a blow, though the Alcalde, who was by his side, warded off several which were aimed at him.

By this time my men had scrambled up after me. I looked round to see where our help was most wanted, and was about to lead them forward, when I heard the voice of the Alcalde.

"Are you badly hurt, Bob?" said he in an anxious tone.

I glanced at the spot whence the voice came. There lay Bob Rock, covered with blood, and apparently insensible. The Alcalde was supporting his head on his arm. Before I had time to give a second look I was hurried forward with the rest towards the centre of the camp, where the fight was at the hottest.

About five hundred men, the pick of the Mexican army, had collected round a knot of staff-officers, and were making a most gallant defence. General Houston had attacked them with three hundred of our people, but had not been able to break their ranks. His charge, however, had shaken them a

little, and, before they had time to recover from it, I came up. Giving a wild hurrah, my men fired their pistols, hurled them at their enemies' heads, and then springing over the carcasses of the fallen, dashed like a thunderbolt into the broken ranks of the Mexicans.

A frightful butchery ensued. Our men, who were for the most part, and at most times, peaceable and humane in disposition, seemed converted into perfect fiends. Whole ranks of the enemy fell under their knives. Some idea may be formed of the horrible slaughter from the fact, that the fight, from beginning to end, did not last above ten minutes, and in that time nearly eight hundred Mexicans were shot or cut down. "No quarter!" was the cry of the infuriated assailants: "Remember Alamo! Remember Goliad! Think of Fanning, Ward!" The Mexicans threw themselves on their knees, imploring mercy. "*Misericordia! Cuartel, por el amor de Dios!*" shrieked they in heart-rending tones but their supplications were not listened to, and every man of them would inevitably have been butchered, had not General Houston and the officers dashed in between the victors and the vanquished, and with the greatest difficulty, and by threats of cutting down our own men if they did not desist, put an end to this scene of bloodshed, and saved the Texian character from the stain of unmanly cruelty.

When all was over, I hurried back to the place where I had left the Alcalde with Bob—the latter lay, bleeding from six wounds, only a few paces from the spot where he had helped me up the breastwork. The bodies of two dead Mexicans served him for a pillow. The Alcalde was kneeling by his side, gazing sadly and earnestly into the face of the dying man.

For Bob was dying; but it was no longer the death of the despairing murderer. The expression of his features was calm and composed, and his eyes were raised to heaven with a look of hope and supplication.

I stooped down and asked him how he felt himself, but he made no answer, and evidently did not recollect me. After a minute or two,

"How goes it with the fight?" he asked in a broken voice.

"We have conquered, Bob. The enemy killed or taken. Not a man escaped."

He paused a little, and then spoke again.

"Have I done my duty? May I hope to be forgiven?"

The Alcalde answered him in an agitated voice.

"He who forgave the sinner on the cross, will doubtless be merciful to you, Bob. His holy book says: There is more joy over one sinner that repenteth than over ninety and nine just men. Be of good hope, Bob! the Almighty will surely be merciful to you!"

"Thank ye, squire," gasped Bob "you're a true friend, a friend in life and in death. Well, it's come at last," said he, while a resigned and happy smile stole over his features. "I've prayed for it long enough. Thank God, it's come at last!"

He gazed up at the Alcalde with a kindly expression of countenance. There was a slight shuddering movement of his whole frame—Bob was dead.

The Alcalde remained kneeling for a short time by the side of the corpse, his lips moving in prayer. At last he rose to his feet.

"God desireth not the death of a sinner, but rather that he may turn from his wickedness and live," said he, in a low and solemn tone. "I had those words in my thoughts four years ago, when I cut him down from the branch of the Patriarch."

"Four years ago!" cried I. "Then you cut him down, and were in time to save him! Was it he who yesterday brought us the news of the vicinity of the foe?"

"It was, and much more than that has he done," replied the Alcalde, no longer striving to conceal the tears that fell from his eyes. "For four years has he dragged on his wretched existence, weary of the world, and despised of all men. For four years has he served us, lived, fought, and spied for us, without honour, reward, hope, or consolation—without a single hour of tranquillity, or a wish for aught except death. All this to serve Texas and his

countrymen. Who shall say this man was not a true patriot? God will surely be merciful to his soul," said the Alcalde after a pause.

"I trust he will," answered I, deeply affected.

We were interrupted at this moment by a message from General Houston, to whom we immediately hastened. All was uproar and confusion. Santa Anna could not be found amongst the prisoners.

This was a terrible disappointment, for the capture of the Mexican president had been our principal object, and the victory we had gained was comparatively unimportant if he escaped. Indeed, the hope of putting an end to the war by his capture, had more than any thing encouraged and stimulated us to the unequal conflict.

The moment was a very critical one. Amongst our men were some thirty or forty most desperate characters, who began handling their knives, and casting looks upon the prisoners, the meaning of which it was impossible to mistake. Selecting some of our trustiest men, we stationed them as a guard over the captives, and, having thus assured the safety of the latter, began questioning them as to what had become of their general.

They had none of them seen Santa Anna since the commencement of the fight, and it was clear that he must have made his escape while we were getting over the breastworks. He could not be very far off, and we at once took measures to find him. A hundred men were sent off with the prisoners to Harrisburg, and a hundred others, capittally mounted on horses found in the Mexican camp, started to scour the country in search of the fugitive chief. I accompanied the latter detachment.

We had been twelve hours in the saddle, and had ridden over nearly a hundred miles of ground. We began to despair of finding the game we were in quest of, and were thinking of abandoning the chase, when at a distance of about seven miles from the camp, one of our most experienced hunters discovered the print of a small and delicate boot upon some soft ground leading to a marsh. Following this trail, it at last led us to a man sunk up to his waist in the swamp, and so covered with mud and filth, as to be quite unrecognizable. We drew him from his hiding-place, half dead with cold

and terror, and, having washed the dirt from his face, we found him to be a man of about forty years of age, with blue eyes, of a mild, but crafty expression; a narrow, high forehead; long, thin nose, rather fleshy at the tip; projecting upper lip, and long chin. These features tallied too exactly with the description we had had of the Mexican president, for us to doubt that our prisoner was Santa Anna himself.

The only thing that at all tended to shake this conviction, was the extraordinary poltroonery of our new captive. He threw himself on his knees, begging us, in the name of God and all the saints, to spare his life. Our reiterated assurances and promises were insufficient to convince him of his being in perfect safety, or to induce him to adopt a demeanour more consistent with his dignity and high station.

The events which succeeded this fortunate capture are too well known to require more than a very brief recapitulation. The same evening a truce was agreed upon between Houston and Santa Anna, the latter sending orders to his different generals to retire upon San Antonio de Bexar, and other places in the direction of the Mexican frontier. These orders, valueless as emanating from a prisoner, most of the generals were weak or cowardly enough to obey, an obedience for which they were afterwards brought to trial by the Mexican congress. In a few days, two-thirds of Texas were in our possession.

The news of these successes brought crowds of volunteers to our standard. In three weeks, we had an army of several thousand men, with which we advanced against the Mexicans. There was no more fighting, however, for our antagonists had had enough, and allowed themselves to be driven from one position to another, till, in a month's time, there was not one of them left in the country.

The Struggle was over, and Texas was Free!

CLITOPHON AND LEUCIPPE.

When enumerating (in our number for July, last year) the principal Greek romances which succeeded the *Ethiopics* of Heliodorus, we placed next to the celebrated production of the Bishop of Trica in point of merit (as it is generally held to have been also in order of time) the "Adventures of Clitophon and Leucippe," by Achilles Tatius. Though far inferior, both in the delineation of the characters and the contrivance of the story, to the *Ethiopics*, (from which, indeed, many of the incidents are obviously borrowed,) and not altogether free from passages offensive to delicacy, "Clitophon and Leucippe" is well entitled to a separate notice, not only from the grace of its style and diction, and the curious matter with which the narrative is interspersed, but from its presenting one of the few pictures, which have come down to these times, of the social and domestic life of the Greeks. In the *Ethiopics*, which may be considered as an *heroic* romance, the scene lies throughout in palaces, camps, and temples; kings, high-priests, and satraps, figure in every page; the hero himself is a prince of his own people; and the heroine, who at first appears of no lower rank than a high-priestess of Delphi, proves, in the sequel, the heiress of a mighty kingdom. In the work of Achilles Tatius, on the contrary, (the plot of which is laid at a later period of time than that of its predecessor,) the characters are taken, without exception, from the class of Grecian citizens, who are represented in the ordinary routine of polished social existence, amidst their gardens of villas, and occupied by their banquets and processions, and the business of their courts of law. There are no unexpected revelations, no talismanic rings, no mysterious secret affecting the fortunes of any of the personages, who are all presented to us at the commencement in their proper names and characters. The interest of the story, as in the *Ethiopics*, turns chiefly on an elopement, and the consequent misadventures of the hero and heroine among various sets of robbers and treacherous friends; but the lovers, after being thus duly punished for their undutiful escapade, are restored, at the finale, to their original position, and settle quietly in their native home, under their own vines and fig-trees.

Of the author himself little appears to be certainly known. Fabricius and other writers have placed him in the "third or fourth" century of our era; but this date will by no means agree with his constant imitations of Heliodorus, who is known to have lived at the end of the fourth and beginning of the fifth century; and Tatius, if not his contemporary, probably lived not long after him. Suidas (who calls him *Statius*) informs us that he was a native of Alexandria; and attributes to his pen several other works on various subjects besides the romance now in question, a fragment only of which—a treatise on the sphere—has been preserved. He adds, that he was a pagan when he wrote "*Clitophon and Leucippe*," but late in life embraced Christianity, and even became a bishop. This latter statement, however, is unsupported by any other authority, and would seem to be opposed by the negative testimony of the patriarch Photius, who (in his famous *Bibliotheca*, 118, 130) passes a severe censure on the immorality of certain passages in the works of Tatius, and would scarcely have omitted to inveigh against the further scandal of their having proceeded from the pen of an ecclesiastic. "In style and composition this work is of high excellence; the periods are generally well rounded and perspicuous, and gratify the ear by their harmony ... but, except in the names of the personages, and the unpardonable breaches of decorum of which he is guilty, the author appears to have closely copied Heliodorus both in the plan and execution of his narrative." In another passage, when treating of the *Babylonica*¹ of Iamblichus, he repeats this condemnation:—"Of these three principal writers of amorous tales. Heliodorus has treated the subject with due gravity and decorum. Iamblichus is not so unexceptionable on these points; and Achilles Tatius is still worse, in his eight books of *Clitophon and Leucippe*, the very diction of which is soft and effeminate, as if intended to relax the vigour of the reader's mind." This last denunciation of the patriarch, however, is somewhat too sweeping and indiscriminate, since, though some passages are certainly indefensible, they appear rather as interpolations, and are in no manner connected with the main thread of the story, the general tendency of which is throughout innocent and moral; and whatever may be said of these blemishes, it must be allowed that the pages of Achilles Tatius are purity itself when compared with the depravity of Longus, and some of his followers and imitators among the Greek romancists.

[1] This work is now lost, and we know it only by the abstract given by Photius in the passage quoted.

The period of time at which the adventures of *Clitophon and Leucippe* are supposed to take place, appears to be in the later ages of Grecian independence, when the successors of Alexander reigned in Syria and Egypt, and the colonized cities in Thrace and Asia Minor still preserved their municipal liberties. The story is related in the first person by the hero himself; a mode of narration which, though the best adapted for affording scope to the expression of the feelings of the principal personages, is, in this instance, very awkwardly introduced. A stranger, while contemplating a famous picture of the Rape of Europa in the Temple of Astarte at Sidon, is accosted by a young man, who, after a few incidental remarks, proceeds, without further preface, to recount his adventures at length to this casual acquaintance. This communicative gentleman is, of course, Clitophon; but before we proceed to the narrative of his loves and woes, we shall give a specimen of the author's powers in the line which appears to be his forte, by quoting his description of the painting above referred to:—"On entering the temple, my attention was attracted by a picture representing the story of Europa, in which sea and land were blended—the Phoenician Sea and the coasts of Sidon. On the land was seen a band of maidens in a meadow, while in the sea a bull was swimming, who bore on his shoulders a beautiful virgin, and was making his way in the direction of Crete. The meadow was decked with a profusion of bright flowers, to which a grateful shelter was afforded by the dense overhanging foliage of the shrubs and clumps of trees, which were interspersed at intervals throughout its extent; while so skilfully had the artist represented the appearance of light and shade, that the rays of the sun were seen to pass here and there through the interstices of the leaves, and cast a softened radiance on the ground underneath. A spring was seen bubbling up in the midst, and refreshing the flowers and plants with its cool waters; while a labourer with a spade was at work opening a fresh channel for the stream. At the extremity of the meadow, where it bordered on the sea, the maidens stood grouped together, in attitudes expressive of mingled joy and terror; their brows were bound with chaplets, and their hair floated in loose locks over their shoulders; but their features were pale, and their cheeks contracted, and they gazed with lips apart and opened eyes on the sea, as if on the point of uttering a cry half-suppressed by fear. They were standing on tiptoe on the very verge of the shore, with their tunics girt up to the knee, and extending their arms towards the bull, as if meditating to rush into the sea in pursuit of him, and yet

shrinking from the contact of the waves. The sea was represented of a reddish tint inshore, but further out the colour changed to deep azure; while in another part the waves were seen running in with a swell upon the rocks, and breaking against them into clouds of foam and white spray. In the midst of the sea the bull was depicted, breasting the lofty billows which surged against his sides, with the damsel seated on his back, not astride, but with both her feet disposed on his right side, while with her left hand she grasped his horn, by which she guided his motions as a charioteer guides a horse by the rein. She was arrayed in a white tunic, which did not extend much below her waist, and an under-garment of purple, reaching to her feet; but the outline of her form, and the swell of her bosom, were distinctly defined through her garments. Her right hand rested on the back of the bull, with the left she retained her hold of his horn, while with both she grasped her veil, which was blown out by the wind, and expanded in an arch over her head and shoulders, so that the bull might be compared to a ship, of which the damsel's veil was the sail. Around them dolphins were sporting in the water, and winged loves fluttering in the air, so admirably depicted, that the spectator might fancy he saw them in motion. One Cupid guided the bull, while others hovered round bearing bows and quivers, and brandishing nuptial torches, regarding Jupiter with arch and sidelong glances, as if conscious that it was by their influence that the god had assumed the form of an animal."

To return to Clitophon and his tale. He begins by informing his hearer, that he is the son of Hippias, a noble and wealthy denizen of Tyre, and that he had been betrothed from his childhood, as was not unusual in those times,² to his own half-sister Calligone:—but Leucippe, the daughter of Sostratus, a brother of Hippias, resident at Byzantium, having arrived with her mother Panthia, to claim the hospitality of their Tyrian relatives during a war impending between their native city and the Thracian tribes, Clitophon at once becomes enamoured of his cousin, whose charms are described in terms of glowing panegyric:—"She seemed to me like the representation of Europa, which I see in the picture before me—her eye beaming with joy and happiness—her locks fair,³ and flowing in natural ringlets, but her eyebrows and eyelashes jetty black—her complexion fair, but with a blush in her cheeks like that faint crimson with which the Lydian women stain ivory, and her lips like the hue of a fresh-opened rose." Love is not,

however, in this case, as in that of Theagenes and Chariclea, instantaneous on both sides; and the expedient adopted by Clitophon, with the aid of his servant Satyrus, (a valet of the *Scapin* school,) to win the good graces of the lady, are detailed at length, evincing much knowledge of the human heart in the author, and affording considerable insight into the domestic arrangements of a Grecian family.⁴ An understanding is at last effected between them, and Clitophon is in sad perplexity how to defer or evade his approaching nuptials with his sister-bride, when Calligone is most opportunely carried off by a band of pirates employed by Callisthenes, a young Byzantine, who, having fallen in love with Leucippe from the mere report of her beauty, and having been refused her hand by her father, has followed her to Tyre, and seeing Calligone in a public procession chaperoned by Panthia, has mistaken her for Leucippe! The lovers are thus left in the unrestrained enjoyment of each other's society; but Clitophon is ere long detected by Panthia in an attempt to penetrate by night into her daughter's chamber; and though the darkness prevents the person of the intruder from being recognised, the confusion which this untoward occurrence occasions in the family is such, that Clitophon and Leucippe, feeling their secret no longer safe, determine on an elopement. Accompanied by the faithful Satyrus, and by Clinias, a kinsman and confident of Clitophon, who generously volunteers to share their adventures, they accordingly set sail for Egypt; and the two gentlemen, having struck up an acquaintance with a fellow passenger, a young Alexandrian named Menelaus, beguile the voyage by discussing with their new friend the all-engrossing subject of love, the remarks on which at last take so antiplatonic a tone, that we can only hope Leucippe was out of hearing. These disquisitions are interrupted, on the third day of the voyage, by a violent tempest; and the sailors, finding the ship on the point of coming to pieces, betake themselves to the boat, leaving the passengers to their fate. But Clitophon and Leucippe, clinging to the forecastle, are comfortably wafted by the winds and waves to the coast of Egypt, and landed near Pelusium, where they hire a vessel to carry them to Alexandria; but their voyage through the tortuous branches of the Nile is intercepted by marauders of the same class, *Bucoli* or buccaniers, as those who figure so conspicuously in the adventures of *Chariclea* and *Theagenes*. The robbers are at this juncture in expectation of an attack from the royal troops; and, having been ordered by their priests to propitiate the gods by the sacrifice of

a virgin, are greatly at a loss for a victim, when chance throws Leucippe in their way. She is forthwith torn from her lover, and sent off to the headquarters of the banditti; and Clitophon is on his way to another of their retreats, when his captors are attacked and cut to pieces by a detachment of troops, whose commander, Charmides, commiserates the misfortunes of our hero, and hospitably entertains him in his tent.

[2] The laws of Athens permitted the marriage of a brother with his sister by the father's side only—thus Cimon married his half sister Elpinice; and several marriages of the same nature occur in the history of the Egyptian Ptolemies.

[3] Fair hair, probably from its rarity in southern climates, seems to have been at all times much prized by the ancients; witness the [Greek: Xanthos Menelaos] of Homer, and the "Cui *flavam* religas comam?" of Horace. The style of Leucippe's beauty seems to have resembled that of Haidee—

"Her hair, I said, was auburn; but her eyes
Were black as night, their lashes the same hue."

[4] One incident, where Clitophon pretends to have been stung on the lip by a bee, and to be cured by a kiss from Leucippe, has been borrowed by Tasso in the *Aminta*, (Act I. Scene 2.) "Che fingendo ch'un ape avesse morso il mio labbro di sotto," &c., whence the idea has been again copied by a host of later poetasters. This is not Tasso's only obligation to the Greek romances, as we have already seen that he was indebted to Heliodorus for the hint of his story of Clorinda.

A general attack on the buccanier force is projected for the next day, but the advance of the troops is found to be barred by a trench so wide and deep as to be impassable; and while preparations are made for filling it up, Leucippe is brought to the opposite brink by two officiating priests, sheathed in armor; and there, to the horror of Clitophon, apparently ripped up alive before the altar. After completing the sacrifice, and depositing the body in a sarcophagus, the robbers disperse; the passage of the trench is at length effected; and Clitophon is preparing to fall on his sword at the tomb of his murdered love, when his hand is stayed by the appearance of his faithful friends, Menelaus and Satyrus, whom he had supposed lost in the ship. The mystery is now explained. They had reached the shore, like Clitophon, on pieces of the wreck and having also fallen into the power of the robbers, (as appears to have been the inevitable fate of every one landing in Egypt at the time of this narrative,) were surprised by finding Leucippe among their fellow captives, and learning from her the dreadful fate which awaited her. Menelaus, however, having recognized some former acquaintances among the buccaniers, was released from his bonds; and having gained their confidence by proposing to enrol himself in their band, offered his services as sacrificer, which were accepted. He now contrived to equip Leucippe with an artfully constructed *false stomach*, and being further assisted in his humane stratagem by the discovery of a knife with a sliding blade, among some theatrical *properties* which the robbers had acquired in the course of casual plunder, succeeded in appearing to perform the sacrifice without any real injury to the victim, who at his call rises from the sarcophagus, and throws herself into her lover's arms.

It might be supposed, that after so portentously marvellous an escape as the one just related, the unlucky couple might be allowed a short respite at least from the persecutions of adverse fortune. But perils in love succeed without an interval to perils in war. It is the invariable rule of all Greek romances, as

we have remarked in a previous number, that the attractions both of the hero and heroine, should be perfectly irresistible by those of the other sex; and accordingly, the Egyptian officer Charmides no sooner beholds Leucippe, than he falls in love with her, and endeavours to gain over Menelaus to further his views. Menelaus feigns compliance, but privately gives information of the designs of Charmides to Clitophon, who is thrown into a dreadful state of consternation by his apprehensions of this powerful rival. At this juncture, however, Leucippe is suddenly seized with a fit of extravagant frenzy, which defies all the skill of the Egyptian camp; and under the influence of which she violently assaults her friends, and is guilty of sundry vagaries not altogether seemly in a well-bred young lady. Both her admirers, Charmides and Clitophon, are in despair, and equally in ignorance of the cause of her malady; but before any symptoms of amendment are perceptible, Charmides receives orders⁵ to march with his whole force against the buccaniers, by whom he is inveigled into an ambuscade, and with most of his men either slain or drowned by the breaking of the dykes of the Nile. The madness of Leucippe is still incurable, till a stranger named Choereas makes his appearance, and introducing himself to Clitophon, informs him that he has discovered from the confession of a domestic, that Gorgias, an officer who fell in the late action with the *Bucoli*, captivated, like every one else, by the resistless charms of the heroine, had administered to her a philtre, the undue strength of which had excited frenzy instead of love. By the administration of proper remedies, the fair patient is now restored to her senses: and the total destruction of the robber-colony by a stronger force sent against them having rendered the navigation of the Nile again secure, the lovers once more embark for Alexandria, accompanied by Menelaus and Choereas, and at length arrive in safety at the city, which they find illuminated for the great feast of Serapis. The first sight of the glories of Alexandria, at the supposed period of the narrative the largest and most magnificent city in the world, and many ages subsequently second only to Imperial Rome herself, excites the astonishment and admiration of the newcomers:—and the author takes the opportunity to dilate, with pardonable complacency, on the magnitude and grandeur of the place of his birth. "When I entered the city," (says Clitophon,) "by the gates called those of the sun, its wonderful beauty flashed at once upon my sight, almost dazzling my eyes with the excess of gratification. A lofty colonnade of pillars, on each side of the street,⁶ runs

right from the gates of the sun on one side, to those of the moon, (for these are its guardian deities,) on the other; and the distance is such, that a walk through the city is in itself a journey. When we had proceeded several stadia, we arrived at the square named after Alexander, whence other colonnades, like those I saw extending in a right line before me, branched off right and left at right angles; and my eyes, never weary of wandering from one street to another, were unable to contemplate separately the various objects of attraction which presented themselves. Some I had before my eyes, some I was hastening to gaze upon, when I found myself unable to pass by others, while a fresh series of marvels still awaited me, so that my powers of vision were at last fairly exhausted, and obliged to confess themselves beaten. The vast extent of the city, and the innumerable multitude of the population, produced on the mind the effect of a double paradox; for regarding the one, the stranger wondered where such a city, which seemed as large as a continent, could find inhabitants; but when his attention was drawn to the other, he was again perplexed how so many people, more numerous than a nation, could find room in any single city. Thus the two conflicting feelings of amazement remained in equilibrio."

[5] These orders are said to have come from the "*satrap*," the Persian title having been retained under the Ptolemies, for the governors of the *nomes* or provinces. The description of the stronghold of the buccaniers, in the deep recesses of a marsh, and approachable only by a single hidden path, (like the stockades of the North-American Indians in the swamps, as described by Cotton Mather,) if not copied, like most of the other Egyptian scenes, from the *Ethiopics*, presents a curious picture of a class of men of whom few details are in authentic history.

[6] The main street, according to Diodorus, was "forty stadia in length, and a *plethrum* (100 feet) in breadth; adorned through its whole extent by a succession of palaces and temples of the most costly magnificence. Alexander also erected a royal palace, which was an edifice wonderful both for its magnitude and the solidity of its architecture, and all the kings who have succeeded him, even up to our times, have spent great sums in further adorning and making additions to it. On the whole, the city may be fairly reckoned as the first in the world, whether for magnitude and beauty, for traffic, or for the greatness of its revenues."—"It comprehended," says Gibbon, speaking of it under the Roman Emperors, "a circumference of fifteen miles, and was peopled by 300,000 free inhabitants, besides, at least, an equal number of slaves."

Choereas, himself a native of the city, who had been called upon to take service in the late expedition against the buccaniers, does the honours of the locale to his new friends:—but he is not proof against the fatal charms of Leucippe, and resorts to the old expedient of procuring her abduction by a crew of pirates while on an excursion to the Pharos. The vessel of the captors is, however, chased by a guard-boat, and on the point of being taken, when Leucippe is brought on deck and decapitated by the pirates, who throw the headless body into the sea, and make their escape; while

Clitophon stays the pursuit, to recover the remains of his mistress for sepulture. Clitophon now returns to Alexandria to mourn for his lost love, and is still inconsolable at the end of six months, when he is surprised by the appearance of Clinias, whom he had supposed to have perished when the vessel foundered at sea. Clinias relates that having, like the others, floated on a piece of the wreck, he had been picked up by a ship, which brought him back to Sidon; and as his absence from home had been so short as not to have been generally noticed, he had thought it best not to mention it, especially as he had no good account to give of his fellow-fugitives. In the mean time, as Calligone is given up for lost, Sostratus, who has heard of his daughter's attachment to Clitophon, but not of the elopement, writes from Byzantium to give his consent to their union; and diligent enquiries are made in every direction for the runaway couple, till information is at length obtained that Clitophon has been seen in Egypt. His father, Hippias, is therefore preparing to set sail for Alexandria to bring back the truant, when Clinias, thinking it would be as well to forewarn Clitophon of what had occurred in his absence, starts without delay, unknown to Hippias, and reaches Alexandria before him.

The intelligence thus received throws Clitophon into fresh agonies of grief and remorse: he curses his own impatience in carrying off Leucippe, when a short delay would have crowned his happiness; accuses himself anew as the cause of her death; and declares his determination not to remain in Egypt and encounter his father. His friends, Menelaus and Clinias, in vain endeavour to combat this resolve; till the over-ready Satyrus finds an expedient for evading the difficulty. A young "Ephesian widow," named Melissa, fair and susceptible, who has lately lost her husband at sea, and become the heiress of his immense wealth, has recently (in obedience to the above-mentioned invariable law of Greek romance) fixed an eye of ardent affection on Clitophon; and it is suggested by his friends that, by marrying this new inamorata, and sailing with her forthwith on her return to Ephesus, his departure would at once be satisfactorily explained to his father on his arrival, and he might return to his friends at Tyre after their emotions at the tragical catastrophe of Leucippe had in some measure subsided. After much persuasion, Clitophon accedes to this arrangement, with the sole proviso that nothing but the *fiançailles*, or betrothal, shall take place in Egypt, and that the completion of the marriage shall be deferred till their arrival in

Ephesus—on the plea that he cannot pledge his faith to another in the land where his beloved Leucippe met with her fate. This proposal, after vehement opposition on the part of the amorous Ephesian, is at last agreed to; and Clitophon, with his half-married bride, sets sail for Ephesus, accompanied by Clinias; while Menelaus, who remains in Egypt, undertakes the task of explaining matters to Hippias. The voyage is prosperously accomplished; and Melissa becomes urgent for the formal solemnization of the nuptials; while Clitophon continues to oppose frivolous delays which might have roused the anger of a lady even of a less ardent temperament. Her affection, however, continues undiminished; but Clitophon, while visiting, in her company, her country residence in the neighbourhood of the city, is thunderstruck by fancying that he recognizes, in the disfigured lineaments of a female slave, said to be a Thessalian of the name of Lacoena, who approaches Melissa to complain of the ill-treatment she has received from the steward, Sosthenes, the features of his lost Leucippe. His suspicions are confirmed by a billet which Leucippe conveys to him through Satyrus; and his situation becomes doubly perplexing, as Melissa, more than ever at a loss to comprehend the cause of his indifference, applies to Leucippe, (whom she supposes to possess the skill of the Thessalians in magic,) for a love-charm to compel his affections, promising her liberty as a reward. Leucippe is delighted by the proof which this request affords of the constancy of her lover; but the preparations for his marriage with Melissa still proceed, and evasion appears impossible; when at the preliminary banquet, the return of her husband, Thersander, is announced, who had been falsely reported to have perished by shipwreck. A terrible scene of confusion ensues, in which Thersander,

—— "proceeding at a very high rate,
Shows the imperial penchant of a pirate."

Clitophon gets a violent beating, to which he submits with the utmost tameness, and is thrown into fetters by the enraged husband; and though Melissa, on certain conditions, furnishes him with the means of escape from the house in the disguise of a female, he again unluckily encounters Thersander, and is lodged in the prison of Ephesus. Leucippe, meanwhile, of whose unrivalled charms Thersander has been informed by Sosthenes, is still detained in bondage, and suffers cruel persecution from her brutal

master; who, at last, having learned from an overheard soliloquy her true parentage and history, as well as her attachment for Clitophon, (of her relations with whom he was not previously aware,) forms a scheme of ridding himself of this twofold rival, by sending one of his emissaries into the prison, who gives out that he has been arrested on suspicion of being concerned in the murder of Leucippe, who has been dispatched by assassins employed by the jealous Melissa. Clitophon at once gives full credence to this awkwardly devised tale, and determines not to survive his mistress, in spite of the remonstrances of Clinias, who argues with much reason, that one who had so often been miraculously preserved from death, might have escaped also on the present occasion. But Clitophon refuses to be comforted; and when brought before the assembly in the forum to stand his trial, on the charge, (apparently, for it is not very clearly specified,) of having married another man's wife, he openly declares himself guilty of Leucippe's murder, which he affirms to have been concerted between Melissa and himself, in order to remove the obstacle to their amours, and now revealed by him from remorse. He is, of course, condemned to death forthwith, and Thersander is triumphing in the unexpected success of his schemes, when the judicial proceedings are interrupted by the appearance of a religious procession, at the head of which Clitophon is astonished by recognizing his uncle Sostratus, the father of Leucippe, who had been deputed by the Byzantines to offer sacrifices of thanksgiving, at the Temple of Diana, for their victory over the Thracians. On hearing the state of affairs, he furiously denounces the murderer of his daughter; but at this moment it is announced that Leucippe, whom Thersander had believed to be in safe custody, has escaped, and taken refuge in the Temple of Diana!

The interest of the story is now at an end; but much yet remains before the conclusion. Thersander, maddened at the prospect of being thus doubly baulked of his prey, throws gross aspersions on the purity of Leucippe, and even demands that Clitophon, in spite of his now manifest innocence, shall be executed in pursuance of the previous sentence! but the high-priest of Diana takes the lovers under his protection, and the cause is adjourned to the morrow. Leucippe now relates the circumstances of her captivity:—the Alexandrian pirates, having deceived their pursuers by beheading another captive dressed in her garments, had next fallen out with and murdered their base employer Choereas, and finally sold her for two thousand drachmas to

Sosthenes: while from Sostratus, on the other hand, Clitophon receives tidings that his long-lost sister Calligone is on the point of marriage to Callisthenes, who, it will be remembered, had carried her off from Tyre by mistake for Leucippe, (having become enamoured of the latter without ever having seen her,) and on the discovery of his error, had made her all the amends in his power by an instant transfer of his affections. Thus everything is on the point of ending happily; but the sentence passed against Clitophon still remains unreversed, and Thersander, in the assembly of the following day, vehemently calls for its ratification. But the cause of the defendant is espoused by the high-priest, who lavishes on the character and motives of Thersander a torrent of abuse, couched in language little fitting his sacred character; while Thersander shows himself in this respect fully a match for his reverend antagonist, and, moreover, reiterates with fresh violence his previous charge against Leucippe. The debates are protracted to an insufferably tedious length; but the character of Leucippe is at last vindicated by her descent into a cavern, whence sounds of more than human melody are heard on the entrance of a damsel of untainted fame. The result of this ordeal is, of course, triumphant; and Thersander, overwhelmed with confusion makes his escape from the popular indignation, and is condemned to exile by acclamation as a suborner of false evidence; while the lovers, freed at length from all their troubles, sail for Byzantium in company with Sostratus; and after there solemnizing their own nuptials, return to Tyre to assist at those of Callisthenes and Calligone.

The leading defects observable in this romance are obviously the glaring improbability of many of the incidents, and the want of connexion and necessary dependence between the several parts of the story. Of the former—the device of the false stomach and theatrical dagger, by means of which Menelaus and Satyrus (after gaining, moreover, in a moment the full confidence of the buccaniers,) save the life of Leucippe when doomed to sacrifice, is the most flagrant instance; though her second escape from supposed death, when Clitophon imagines that he sees her head struck off by the Alexandrian pirates, is almost equally liable to the same objection; while in either case the deliverance of the heroine might as well have been managed, without prejudice either to the advancement or interest of the narrative, by more rational and probable methods. The too frequent introduction of incidents and personages not in any way connected with, or

conducive to the progress of the main plot, is also objectionable, and might almost induce the belief that the original plan was in some measure altered or departed from in the course of composition. It is difficult to conceive for what purpose the character of Calligone, the sister and fiancée of Clitophon, is introduced among the dramatic personae. She appears at the beginning only to be carried off by Callisthenes as soon as Clitophon's passion for Leucippe makes her presence inconvenient, and we incidentally hear of her as on the point of becoming his bride at the conclusion; but she is seen only for a moment, and never permitted to speak, like a walking gentlewoman on the stage, and exercises not the smallest influence on the fortunes of the others. Gorgias is still worse used: he is a mere *nominis umbra*, of whose bodily presence nothing is made visible; nor is so much as his name mentioned, except for the purpose of informing us that it was through his agency that the love-potion was administered to Leucippe, and that he has since been killed in the action against the buccaniers. The whole incident of the philtre, indeed, and the consequent madness of the heroine, is unnatural and revolting, and serves no end but to introduce Choereas to effect a cure. But even had it been indispensable to the plot, it might have been far more probably ascribed to the Egyptian commander Charmides, with whose passion for Leucippe we were already acquainted, and who had, moreover, learned from Menelaus that he had little chance of success by ordinary methods, from the pre-engagement of the lady to Clitophon.

Nor are these defects compensated by any high degree of merit in the delineation of the characters. With the exception of Leucippe herself, they are all almost wholly devoid of individual or distinguishing traits, and insipid and uninteresting to the last degree. Menelaus and Clinias, the confidants and trusted friends of the hero, are the dullest of all dull mortals—a qualification which perhaps fits them in some measure for the part they are to bear in the story, as affording some security against their falling in love with Leucippe, a fate which they, of all the masculine personages, alone escape. Their active intervention is confined to the preservation of Leucippe from the *bucoli* by Menelaus, and a great deal of useless declamation in behalf of Clitophon before the assembly of Ephesus from Clinias. Satyrus, also, from whose knavish ingenuity in the early part of the tale something better was to be expected, soon subsides into a well-behaved domestic, and hands his master the letter in which poor Leucippe makes

herself known to him at Ephesus, when she imagines him married to Melissa, with all the nonchalance of a modern footman. Clitophon himself is hardly a shade superior to his companions. He is throughout a mere passive instrument, leaving to chance, or the exertions of others, his extrication from the various troubles in which he becomes involved: even of the qualities usually regarded as inseparable from a hero of romance, spirit and personal courage, he is so utterly destitute as to suffer himself to be beaten and ill treated, both by Thersander and Sostratus, without an attempt to defend himself; and his lamentations, whenever he finds himself in difficulties, or separated from his ladye-love, are absolutely puerile. As to the other characters, Thersander is a mere vulgar ruffian—"a rude and boisterous captain of the sea,"—whose brutal violence on his first appearance, and subsequent unprincipled machinations, deprive him of the sympathy which might otherwise have been excited in behalf of one who finds his wife and his property unceremoniously taken possession of during his absence; while, on the other hand, the language used by the high-priest of Diana, in his invectives against Thersander and his accomplices, gives but a low idea of the dignity or refinement of the Ephesian hierarchy. But the female characters, as is almost always the case in the Greek romances, are far better drawn, and infinitely more interesting, than the men. Even Melissa, though apparently intended only as a foil to the perfections of Leucippe, wins upon us by her amorous weakness, and the invincible kindness of heart which impels her, even when acquainted with the real state of affairs, to protect the lovers against her husband's malpractices. Leucippe herself goes far to make amends for the general insipidity of the other characters. Though not a heroine of so lofty a stamp as Chariclea, in whom the spirit of her royal birth is all along apparent, she is endowed with a mingled gentleness and firmness, which is strongly contrasted with the weakness and pusillanimity of her lover:—her uncomplaining tenderness, when she finds Clitophon at Ephesus (as she imagines) the husband of another, and the calm dignity with which she vindicates herself from the injurious aspersions of Thersander, are represented with great truth and feeling, and attach a degree of interest to her, which the other personages of the narrative are very far from inspiring.

In the early part of the story, during the scenes in Tyre and Egypt, the action is carried on with considerable spirit and briskness; the author having

apparently thus far kept before him, as a model, the narrative of Heliodorus. But towards the conclusion, and, indeed from the time of the arrival of Clitophon and Melissa at Ephesus, the interest flags wofully. The *dénouement* is inevitably foreseen from the moment Clitophon is made aware that Leucippe is still alive and in his neighbourhood, and the arrival of Thersander, almost immediately afterwards, disposes of the obstacle of his engagement to Melissa; but the reader is acquainted with all these circumstances before the end of the fifth book; the three remaining books being entirely occupied by the proceedings in the judicial assembly, the recriminations of the high-priest, and the absurd ordeal to which Leucippe is subjected—all apparently introduced for no other purpose than to show the author's skill in declamation. The display of his own acquirements in various branches of art and science, and of his rhetorical powers of language in describing them, is indeed an object of which Achilles Tatius never loses sight; and continual digressions from the thread of the story for this purpose occur, often extremely *mal-à-propos*, and sometimes entirely without reference to the preceding narrative. Thus, when Clitophon is relating the terms of an oracle addressed to the Byzantines, previous to their war with the Thracians, he breaks off at once into a dissertation on the wonderful qualities of the element of water, the inflammable springs of Sicily, the gold extracted from the lakes of Africa, &c.—all which is supposed to be introduced into a conversation on the oracle between Sostratus and his colleague in command, and could only have come to the knowledge of Clitophon by being repeated to him *verbatim*, after a considerable interval of time, by Sostratus. Again, in the midst of the hero's perplexities at his threatened marriage with Calligone, we are favoured with a minute enumeration of the gems set in an ornament which his father purchased as part of the trousseau; and this again leads to an account of the discovery and application of the purple dye. The description of objects of natural history is at all times a favourite topic; and the sojourn of the lovers in Egypt affords the author an opportunity of indulging in details relative to the habits and appearances of the various strange animals found in that country—the crocodile, the hippopotamus, and the elephant, are described with considerable spirit and fidelity; and even the form and colours of the fabulous phoenix, are delineated with all the confidence of an eyewitness.

Many of these episodical sketches, though out of place when thus awkwardly inserted in the midst of the narrative, are in themselves curious and well written; but the most valuable and interesting among them are the frequent descriptions of paintings, a specimen of which has already been given. On this subject especially, the author dwells *con amore*, and his remarks are generally characterised by a degree of good taste and correct feeling, which indicates a higher degree of appreciation of the pictorial art than is generally ascribed to the age in which Achilles Tatius wrote. Even in the latter part of the first century of our era, Pliny, when enumerating the glorious names of the ancient Greek painters, laments over the total decline, in his own days, of what he terms (*Nat. Hist.* xxxv. 11) "an aspiring art;" but the monarchs of the Macedonian dynasties in Asia, and, above all, the Egyptian Ptolemies, were both munificent patrons of the fine arts among their own subjects, and diligent collectors of the great works of past ages; and many of the *chefs-d'oeuvres* of the Grecian masters were thus transferred from their native country to adorn, the temples and palaces of Egypt and Syria. We find, from Plutarch, that when Aratus was exerting himself to gain for the Achæan league the powerful alliance of Ptolemy Euergetes, he found no means so effectual in conciliating the good-will of the monarch, as the procuring for him some of the master-pieces of Pamphilus⁷ and Melanthius, the most renowned of the famous school of Sicyon; and the knowledge of the high estimation in which the arts were held, under the Egyptian kings, gives an additional value to the accounts given by Tatius of these treasures of a past age, his notices of which are the latest, in point of time, which have come down to us from an eyewitness. We have already quoted the author's vivid description of the painting of Europa at Sidon—we shall now subjoin, as a pendant to the former notice, his remarks on a pair of pictures at Pelusium:—

[7] Pamphilus was a Macedonian by birth, and a pupil of Eupompus, the founder of the school of Sicyon; to the presidency of which he succeeded. His pupils paid each a talent a year for instruction; and Melanthius, and even Apelles himself, for a time, were among the number.—Pliny, *Hist. Nat.* xxxv. 36. The great talent of Melanthius, like that of his master Pamphilus, lay in composition and grouping; and so highly were his pictures esteemed, that Pliny, in another passage, says, that the wealth of a city would hardly purchase one.

"In this temple (of Jupiter Casius) were two famous works of Evanthes, illustrative of the legends of Andromeda and Prometheus, which the painter had probably selected as a pair, from the similarity of the Subjects—the principal figure in each being bound to a rock and

exposed to the attack of a terrific animal; in one case a denizen of the air, in the other a monster of the sea; and the deliverers of both being Argives, and of kindred blood to each other, Hercules and Perseus—the former of whom encountered, on foot, the savage bird sent by Jove, while the latter mounted on borrowed wings into the air, to assail the monster which issued from the sea at the command of Neptune. In the picture of Andromeda, the virgin was laid in a hollow of the rock, not fashioned by art, but rough like a natural cavity; and which, if viewed only with regard to the beauty of that which it contained, looked like a niche holding an exquisite fresh from the chisel; but the sight of her bonds, and of the monster approaching to devour her, gave it rather the aspect of a sepulchre. On her features extreme loveliness was blended with deadly terror, which was seated on her pallid cheeks, while beauty beamed forth from her eyes; but, as even amid the pallor of her cheeks a faint tinge of colour was yet perceptible, so was the brightness of her eyes, on the other hand, in some measure dimmed, like the bloom of lately blighted violets. Her white arms were extended, and lashed to the rock; but their whiteness partook of a livid hue, and her fingers were like those of a corpse. Thus lay she, expecting death, but arrayed like a bride, in a long white robe, which seemed not as if woven from the fleece of the sheep, but from the web of the spider, or of those winged insects, the long threads spun by which are gathered by the Indian women from the trees of their own country. The monster was just rising out of the sea opposite to the damsel, his head alone being distinctly visible, while the unwieldy length of his body was still in a great measure concealed by the waves, yet so as partially to discover his formidable array of spines and scales, his swollen neck, and his long flexible tail, while the gape of his horrible jaws extended to his shoulder, and disclosed the abyss of his stomach. But between the monster and the damsel, Perseus was depicted descending to the encounter from the upper regions of the air—his body bare, except a mantle floating round his shoulders, and winged sandals on his feet—a cap resembling the helmet of Pluto was on his head, and in his left hand he held before him, like a buckler, the head of the Gorgon, which even in the pictured representation was terrible to look at, shaking its snaky hair, which seemed to erect itself and menace the beholder. His right hand grasped a weapon, in shape partaking of both a sickle and a

sword; for it had a single hilt, and to the middle of the blade resembled a sword; but there it separated into two parts, one continuing straight and pointed, like a sword, while the other was curved backwards, so that with a single stroke, it might both inflict a wound, and fix itself in the part struck. Such was the picture of Andromeda; the design of the other was thus:—

"Prometheus was represented bound down to a rock, with fetters of iron, while Hercules, armed with a bow and arrow, was seen approaching. The vulture, supporting himself by fixing his talons in the thigh of Prometheus, was tearing open the stomach of his victim, and apparently searching with his beak for the liver, which it was his destiny daily to devour, and which the painter had shown through the aperture of the wound. The whole frame of the sufferer was convulsed, and his limbs contracted with torture, so that, by raising his thigh, he involuntarily presented his side to the bird—while the other limb was visibly quivering in its whole length, with agony—his teeth were clenched, his lips parted, and his brows wrinkled. Hercules had already fitted the arrow to the bow, and aimed it against his tormentor: his left arm was thrown forward grasping the stock, while the elbow of the right was bent in the attitude of drawing the arrow to his breast; while Prometheus, full of mingled hope and fear, was endeavouring to fix his undivided gaze on his deliverer, though his eyes, in spite of himself, were partially diverted by the anguish of his wound."

The work of Achilles Tatius, with all its blemishes and defects, appears to have been highly popular among the Greeks of the lower empire. An epigram is still extant, attributed to the Emperor Leo, the philosopher,⁸ in which it is lauded as an example of chaste and faithful love: and it was esteemed as a model of romantic composition from the elegance of its style and diction, in which Heretius ranks the author above Heliodorus, though he at the same time severely criticizes him for want of originality, accusing him of having borrowed all the interesting passages in his work from the *Ethiopics*. In common with Heliodorus, Tatius has found a host of followers among the later Greeks, some of whom (as the learned critic just quoted, observes) have transcribed, rather than imitated him. In the "Hysminias and Hysmine" of Eumathius, a wretched production of the twelfth century, not

only many of the incidents, but even of the names, as Sostratus, Sosthenes, and Anthia*, are taken from Clitophon and Leucippe: and to so servile an extent is this plagiarism carried, that two books out of the nine, of which the romance consists, are filled with descriptions of paintings; while the plot, not very intelligible at the best, is still further perplexed by the extraordinary affectation of making nearly all the names alike; thus, the hero and heroine are Hysminias and Hysmine, the towns are Aulycomis, Eurycomis, Artycomis, &c. In all these works, the outline is the same; the lovers undergo endless buffetings by sea and land, imaginary deaths, and escapes from marauders; but not a spark of genius or fancy enlivens these dull productions, which, sometimes maudlin and bombastic, often indecent, would defy the patience of the most determined novel reader. One of these writers, Xenophon of Ephesus, the author of the "Ephesiacs, or Habrocomas and Anthia," is commended by Politian for the classical purity of his language, in which he considers him scarcely inferior to his namesake the historian: but the work has little else to recommend it. The two principal personages are represented as miracles of personal beauty; and the women fall in love with Habrocomas, as well as the men with Anthia, literally by dozens at a time: the plot, however differs from that of the others in marrying them at the commencement, and sending them through the ordinary routine of dangers afterwards. The *Ephesiacs* are, however, noticeable from its having been supposed by Mr Douce, (*Illustrations of Shakspeare*, ii. 198,) that the catastrophe in Romeo and Juliet was originally borrowed from one of the adventures of Anthia, who, when separated from her husband, is rescued from banditti by Perilaus, governor of Cilicia, and by him destined for his bride. Unable to evade his solicitations, she procures from the "poverty, not the will" of an aged physician named Eudoxus, what she supposes to be a draught of poison, but which is really an opiate. She is laid with great pomp, loaded with gems and costly ornaments, in a vault; and on awakening, finds herself in the hands of a crew of pirates, who have broken open her sepulchre in order to rifle the treasures which they knew to have been deposited there. "This work," (observes Mr Douce,) "was certainly not published nor translated in the time of Luigi da Porto, the original narrator of the story of Romeo and Juliet: but there is no reason why he might not have seen a copy of the original in MS. We might enumerate several more of these later productions of the same school; but a separate analysis of each would be both tedious

and needless, as none present any marked features of distinction from those already noticed. They are all, more or less, indifferent copies either from Heliodorus or Achilles Tatius; the outline of the story being generally borrowed from one or the other of these sources, while in point of style, nearly all appear to have taken as their model the florid rhetorical display and artificial polish of language which characterize the latter. Their redeeming point is the high position uniformly assigned to the female characters, who are neither immured in the Oriental seclusion of the harem, nor degraded to household drudges, like the Athenian ladies in the polished age of Pericles:⁹ but mingle without restraint in society as the friends and companions of the other sex, and are addressed in the language of admiration and respect. But these pleasing traits are not sufficient to atone for the improbability of the incidents, relieved neither by the brilliant fancy of the East, nor the lofty deeds of the romances of chivalry: and the reader, wearied by the repetition of similar scenes and characters, thinly disguised by change of name and place, finds little reason to regret that "the children of the marriage of Theagenes and Chariclea," as these romances are termed by a writer quoted by d'Israeli in the "Curiosities of Literature"—have not continued to increase and multiply up to our own times.

[8] Some bibliographers have assigned it to Photius; but the opinion of Achilles Tatius expressed by the patriarch, and quoted at the commencement of this article, precludes the possibility of its being from his pen.

[9] See Mitford's *History of Greece*, ch. xiii, sect. 1.

THE NEW ART OF PRINTING.

BY A DESIGNING DEVIL.

"*Aliter non fit, avite, liber.*"—MARTIAL.

It is more than probable that, at the first discovery of that mightiest of arts, which has so tended to facilitate every other—the art of printing—many old-fashioned people looked with a jealous eye on the innovation. Accustomed to a written character, their eyes became wearied by the crabbedness and formality of type. It was like travelling on the paved and rectilinear roads of France, after winding among the blooming hedgerows of England; and how dingy and graceless must have appeared the first printed copy of the Holy Bible, to those accustomed to luxuriate in emblazoned missals, amid all the pride, pomp, and vellum of glorious MS.!

Dangerous and democratic, too, must have appeared the new art, which, by plebeianizing knowledge and enlightening the mass, deprived the law and the prophets of half their terrors, and disrobed priestcraft and kingcraft of their mystery. We can imagine that, as soon as a printed book ceased to be a great rarity, it became an object of great abhorrence.

There were many, no doubt, to prophesy, as on occasion of every new invention, that it was all very well for a novelty; but that the thing would not, and could not last! How were the poor copyists to get their living if their occupation was taken from them? How were so many monasteries to be maintained which had subsisted on *manuscriptum*? And, then, what prince in his right senses would allow a printing-press to be set up in his dominions—a source of sedition and heresy—an implement of disaffection and schism? The free towns, perhaps, might foster this pernicious art, and certain evilly-disposed potentates wink at the establishment of type-founderies in their states. But the great powers of Europe knew better! They would never connive at this second sowing of the dragon's teeth of Cadmus.

Thus, probably, they argued; becoming reconciled, in process of time, to the terrible novelty. Print-books became almost as easy to read as manuscript; soon as cheap, and at length of a quarter the price, or even less; till, two centuries later, benefit of clergy ceased to be a benefit, books were plenty as blackberries, and learning a thing for the multitude. According to Dean Swift's account, the chaplain's time hung heavy on his hands, for my lady had sermon books of her own, and could read; nay, my lady's woman had jest books of her own, and wanted none of his nonsense! The learned professions, or black arts, lost at least ninety-five per cent in importance; and so rapid as been the increase of the evil, that, at this time of day, it is a hard matter to impose on any clodpole in Europe! Instead of signing with their marks, the kings of modern times have turned ushers; instead of reading with difficulty, we have a mob of noblemen who write with ease; and, now-a-days, it is every duke, ay, and every duchess her own book-maker!

A year or two hence, however, and all this will have become obsolete.—*Nous avons changé tout cela!*—No more letter-press! Books, the *small* as well as the great, will have been voted a great evil. There will be no gentlemen of the press. The press itself will have ceased to exist.

For several years past it has been frankly avowed by the trade that books have ceased to sell; that the best works are a drug in the market; that their shelves groan, until themselves are forced to follow the example.

Descend to what shifts they may in order to lower their prices, by piracy from other booksellers, or clipping and coining of authors—no purchasers! Still, the hope prevailed for a time among the lovers of letters, that a great glut having occurred, the world was chewing the cud of its repletion; that the learned were shut up in the Bodleian, and the ignorant battenning upon the circulating libraries; that hungry times would come again!

But this fond delusion has vanished. People have not only ceased to purchase those old-fashioned things called books, but even to read them! Instead of cutting new works, page by page, people cut them altogether! To far-sighted philosophers, indeed, this was a state of things long foreshown. It could not be otherwise. The reading world was a sedentary world. The literary public was a public lying at anchor. When France delighted in the

twelve-volume novels of Mademoiselle de Scudéri, it drove in coaches and six, at the rate of four miles an hour; when England luxuriated in those of Richardson, in eight, it drove in coaches and four, at the rate of five. A journey was then esteemed a family calamity; and people abided all the year round in their cedar parlours, thankful to be diverted by the arrival of the *Spectator*, or a few pages of the *Pilgrim's Progress*, or a new sermon. To their unincidental lives, a book was an event.

Those were the days worth writing for! The fate of Richardson's heroines was made a national affair; and people interceded with him by letter to "spare Clarissa," as they would not now intercede with her Majesty to spare a new Effie Deans. The successive volumes of *Pope's Iliad* were looked for with what is called "breathless" interest, while such political sheets as the *Drapier's Letters*, or *Junius*, set the whole kingdom in an uproar! And now, if Pope, or Swift, or Fielding, or Johnson, or Sterne, were to rise from the grave, MS. in hand, the most adventurous publisher would pass a sleepless night before he undertook the risk of paper and print; would advise a small edition, and exact a sum down in ready money, to be laid out in puffs and advertisements! "Even then, though we may get rid of a few copies to the circulating libraries," he would observe, "do not expect, sir, to obtain readers. A few old maids in the county towns, and a few gouty old gentlemen at the clubs; are the only persons of the present day who ever open a book!"

And who can wonder? *Who* has leisure to read? *Who* cares to sit down and spell out accounts of travels which he can make at less cost than the cost of the narrative? *Who* wants to peruse fictitious adventures, when railroads and steamboats woo him to adventures of his own? Egypt was once a land of mystery; now, every lad, on leaving Eton, yachts it to the pyramids. India was once a country to dream of over a book. Even quattoes, if tolerably well-seasoned with suttees and sandalwood, went down; now, every genteel family has its "own correspondent," per favour of the Red Sea; and the best printed account of Cabul would fall stillborn from the press. As to Van Dieman's Land, it is vulgar as the Isle of Dogs; and since people have steamed it backwards and forwards across the Atlantic more easily than formerly across the Channel, every woman chooses to be her own Trollope—every man his own Boz!

For some time after books had ceased to find a market, the periodicals retained their vogue; and even till very lately, newspapers found readers. But the period at length arrived, when even the leisure requisite for the perusal of these lighter pages, is no longer forthcoming. People are busy ballooning or driving; shooting like stars along railroads; or migrating like swallows or wild-geese. It has been found, within the current year, impossible to read even a newspaper!

The march of intellect, however, luckily keeps pace with the necessities of the times; and no sooner was it ascertained, that reading-made-easy was difficult to accomplish, than a new art was invented for the more ready transmission of ideas. The fallacy of the proverb, that "those who run may read," being established, modern science set about the adoption of a medium, available to those sons of the century who are always on the run. Hence, the grand secret of ILLUSTRATION.—Hence the new art of printing!

The pictorial printing-press is now your only wear! Every thing is communicated by delineation. We are not *told*, but *shown* how the world is wagging. The magazines sketch us a lively article, the newspapers vignette us, step by step, a royal tour. The beauties of Shakspeare are imprinted on the minds of the rising generation, in woodcuts; and the poetry of Byron engraver in their hearts, by means of the graver. Not a boy in his teens has read a line of Don Quixote or Gil Blas, though all have their adventures by heart; while Goldsmith's "Deserted Village" has been committed to memory by our daughters and wives, in a series of exquisite illustrations. Every body has La Fontaine by heart, thanks to the pencil of Granville, which requires neither grammar nor dictionary to aid its interpretations; and even Defoe—even the unparalleled Robinson Crusoe—is devoured by our ingenuous youth in cuts and come again.

At present, indeed, the new art of printing is in its infancy, but it is progressing so rapidly, that the devils of the old will soon have a cold birth of it! Views of the Holy Land are superseding even the Holy Scriptures; and a pictorial Blackstone is teaching the ideas of the sucking lawyers how to shoot. Nay, Buchan's "Domestic Medicine" has (*proh pudor!*) its illustrated edition.

The time saved to an active public by all this, is beyond computation. All the world is now instructed by symbols, as formerly the deaf and dumb; and instead of having to peruse a tedious penny-a-line account of the postilion of the King of the French misdriving his Majesty, and his Majesty's august family, over a draw-bridge into a moat at Tréport, a single glance at a single woodcut places the whole disaster graphically before us; leaving us nine minutes and a half of the time we must otherwise have devoted to the study of the case, to dispose of at our own will and pleasure; to start, for instance, for Chelsea, and be back again by the steam-boat, before our mother knows we are out.

The application of the new art is of daily and hourly extension. The scandalous Sunday newspapers have announced an intention of evading Lord Campbell's act, by veiling their libels in caricature. Instead of *writing* slander and flat blasphemy, they propose to *draw* it, and not draw it mild. The daily prints will doubtless follow their example. No more Jenkinsisms in the *Morning Post*, concerning fashionable parties. A view of the duchess's ball-room, or of the dining-table of the earl, will supersede all occasion for lengthy fiddle-faddle. The opera of the night before will be described in a vignette—the ballet in a tail-piece; and we shall know at a glance whether Cerito and Elssler performed their *pas* meritoriously, by the number of bouquets depicted at their feet.

On the other hand, instead of column after column of dry debates, we shall know sufficiently who were the speakers of the preceding night, by a series of portraits—each having an annexed trophy, indicative of the leading points of his oration. Members of both Houses will be, of course, daguerreotyped for the use of the morning papers; and photographic likenesses of the leaders of *ton* be supplied gratis to the leaders of the press.

How far more interesting a striking sketch of a banquet, containing portraits of undoubted authenticity, to the matter-of-fact announcements of the exploded letter-press—that "yesterday his Grace the Duke of Wellington entertained at dinner, at Apsley House, the Earls of Aberdeen and Liverpool, the Dukes of Richmond and Buccleuch, the Master of the Horse, the Lord Chancellor, Sir Robert Peel, Sir James Graham, Sir Frederick Trench, Colonel Gurwood, and M. Algernon Greville!" Who has patience

for the recapitulation of a string of names, when a group of faces may be placed simultaneously before him?

And then, accounts of races! How admirably will they be concentrated into a delineation of the winner passing the post—the losers distances; and what disgusting particulars of boxing matches shall we avoid by a spirited etching. Think of despatches from India, (one of Lord Ellenborough's XXXX,) published in a series of groupings worthy the frescoes of the tomb of Psammis. As to the affairs of China, we shall henceforward derive as much pleasure from the projects of Sir Henry Pottinger, cut in wood by the *Morning Herald*, as in surveying the Mandarins sailing on buffaloes through the air, or driving in junks over meadows, in one of Wedgewood's soup plates!

It has long been the custom for advertisers in the continental journals to typify their wares. The George Robinses of Brussels, for instance, embody their account of some exquisite villa in a charming perspective of the same, or of a capital town mansion in a grim likeness; while the *carossiers*, who have town chariots or family coaches to dispose of, make it known in the most designing manner. The consequence is, that the columns of certain foreign papers bear a striking likeness to a child's alphabet, such as "A was an archer, and shot at a frog." Among ourselves, this practice is at present only partially adopted. We are all familiar with the shape of Mr Cox Savory's tea-pots, and Messrs Dondney's *point-device* men in buckram; while Mordan acquaints us, with much point, how many varieties he has invented of pencil-cases and toothpicks. As to the London Wine Company, the new art has long imprinted upon our minds a mysterious notion of a series of vaults in the style of the Thames tunnel, frequented by figures armed with spigots and dark lanterns, that remind us of Guy Fawkes, and make us tremble for ourselves and Father Mathew! Loose notions of the stay-making trade have been circulated by the same medium; and we have noticed wood-blocks of wig-blocks, deservedly immortalizing the pernquier.

But consider what it will be when the system is adopted on a more comprehensive scale. The daily papers will present a series of designs, remarkable as those of the Glyptothek and Pinacothek at Munich; and in all

probability, the artists of the prize cartoons will be engaged in behalf of the leading journals of Europe. Who cannot foresee her Majesty's drawing-room illustrated by Parris! Who cannot conceive the invasion of Britain outdone in an allegorical leading article: "Louis Philippe (in a Snooks-like attitude) inviting Queen Victoria to St Cloud; and the British lion lashing out its tail at the Coq Gaulois!"

As to the affairs of Spain, they will be a mine of wealth to the new press—*L'Espagne Pittoresque* will sell thousands more copies than Spain Constitutionalized; and let us trust that Sir George Hayter will instantly "walk his chalks," and secure us the Cortes in black and white.

The Greek character will now become easy to decipher; and the evening papers may take King Otho both off the throne and on. The designs of Russia have long been proverbial; but the exercise of the new art of printing may assign them new features. The representations of impartial periodicals will cut out, or out-cut De Custine; and while contemplating the well-favoured presentment of Nicholas I., we shall exclaim—"Is this a tyrant that I see before me?" Nothing will be easier then to throw the Poles into the shade of the picture, or to occupy the foreground with a brilliant review.

As to Germany, to embody her in the hieroglyphics of the new press, might be a study for Retsch; and who will care for the lumbering pages of Von Raumer, or the wishy-washy details of Kohl, when able, in an *augenblick*, to bring Berlin and Vienna before him; to study the Zollverein in the copy of the King of Prussia's cogitative countenance, and ascertain the views of Metternich concerning the elder branch of the Bourbons, by a *cul de lampe* in the *Morning Chronicle*!

We have little doubt of shortly seeing announcements—standing like tombstones in those literary cemeteries, the Saturday papers—of "A new work upon America, from the graver of George Cruickshank;" or "A new fashionable novel, (diamond edition,) from the accomplished pencil of H.B." Kenny Meadows will become the Byron of the day, Leech the Scott, Forrester the Marryatt, Phiz the Trollope; Stanfield and Turner will be epic poets, Landseer preside over the belles-lettres, and Webster and Stone become the epigrammatists and madrigalists of the press.

All this will, doubtless, throw a number of deserving persons out of employ. The writers, whose stock in trade consists of words rather than ideas, will find their way to Basinghall Street, prose will be at a discount, and long-windedness be accounted a distemper. A great variety of small Sapphos must turn seamstresses*, at three-halfpence a shirt instead of a penny a line; while the minor poets will have to earn a livelihood by writing invoice, instead of in verse. But this transposition of talent, and transition of gain, is no more than arose from the substitution of railroads for turnpike roads. By that innovation thousands of hard-working post-horses were left without rack or manger; and by the present arrangement, Clowes, Spottiswoode, and the authors who have served to afford matter for their types, will be driven from the field.

* Transcriber's Note: Original "semstresses"

But the world (no longer to be called of letters, but of emblems) will be the gainer. It will be no longer a form of speech to talk of having "*glanced* at the morning papers," whose city article will, of course, be composed by artists skilled in drawing figures. The biographies of contemporary or deceased statesmen will be limned, not by Lord Brougham or Macaulay, but by the impartial hand of the Royal Academy; and the catacombs at Kensal Green, like those discovered by Belzoni on the banks of the Nile, exhibit their eulogistic inscriptions in hieroglyphics. By this new species of shorthand we might have embodied this very article in half a dozen sprightly etchings! But as the hapless inventor of the first great art of printing incurred, among his astounded contemporaries, the opprobrium of being in compact with the evil one, (whence, probably, the familiar appellation of printers' devils,) it behoves the early practitioners of the new art to look to their reputations! By economizing the time of the public, they may squander their own good repute. It is not every printer who can afford, like Benjamin Franklin, to be a reformer; and pending the momentum when (the schoolmasters being all abroad) the grand causeway of the metropolis shall become, as it were, a moving diorama, inflicting knowledge upon the million whether it will or no—let us content ourselves with birds'-eye views of passing events, by way of exhibiting the first rudiments of THE NEW ART OF PRINTING!

THE BANKING HOUSE

A HISTORY IN THREE PARTS. PART III

CHAPTER I.

SYMPTOMS OF ROTTENNESS.

Michael Allcroft returned to his duties, tuned for labour, full of courage, and the spirit of enterprise and action. Discharged from the thrall which had hitherto borne hard upon his energies, and kept them down, he felt the blessed influence of perfect Liberty, and the youthful elasticity of mind and body that liberty and conscious strength engender. Devoted to the task that he had inflicted upon himself, he grudged every hour that kept him from the field of operations. Firm in his determination to realize, by his exertions, a sum of money equal to his parent's debts, and to redeem the estate from its insolvency, he was uneasy and impatient until he could resume his yoke, and press resolutely forward. Rich and independent as he was, in virtue of the fortune of his wife, he still spurned the idea of relying upon her for his release—for the means of rescuing his fathers name and house from infamy. No; he saw—he fancied that he saw a brighter way marked out before him. Industry, perseverance, and extreme attention would steer his bark steadily through the difficult ocean, and bring her safely into harbour: these he could command, for they depended upon himself whom he might trust. He had looked diligently into the transactions of the house for many years past, and the investigation was most satisfactory. Year after year, the business had increased—the profits had improved. The accumulations of his father must have been considerable when he entered upon his ruinous speculations. What was the fair inference to draw from this result? Why—that with the additional capital of his partners—the influx and extension of good business, and the application of his own resolute mind, a sum would be raised within a very few years, sufficient to reinstate the firm, to render it

once more stable and secure. And then—this desirable object once effected, and the secret of the unfortunate position of the house never divulged—the income which would afterwards follow for his partners and himself, must be immense. It was this view of the subject that justified, to his mind, the means which he had used—that silenced self-reproof, when it accused him of artifice, and called him to account for the deception he had practised upon his colleagues. It must be acknowledged, that the plan which he proposed held out fair promise of ultimate success and that, reckoning upon the united will and assistance of his partners, he had good reason to look for an eventual release from all his difficulties and cares. Yet it was not to be. "*We still have judgment here.*" Punishment still comes to us from those whom we would circumvent. It was in vain that Michael set foot in the Bank with an indomitable and eager spirit; in vain that he longed to grapple with his fate—resolute to overcome it. The world was against him. The battle was already decided. His first hard struggle for deliverance was coincident with his last hour of earthly peace.

Before one year had passed over the respectable heads of our notable Banking-House, Allcraft was involved in a net of perplexity, from which it required all the acuteness of his apprehending mind to work out a mode of extrication. Augustus Brammel continued abroad, spending his money, and drawing upon the house, with the impudent recklessness which we have already seen to be a prime ingredient in his character. He did not condescend to communicate with his partners, or to give them any information touching his whereabouts, except such as might be gathered from his cheques, which came, week after week, with alarming punctuality, for sums as startling. From this one source of misery, where was a promise or a chance of a final rescue? Michael saw none. What if he refused to cash his partner's drafts? What if he permitted them to find their way back, as best they might, through the various channels by which they had travelled on their previous journey—dishonoured and disgraced? Who but himself would be the loser by the game? Such a refusal would lead to quick enquiry—enquiry to information—information to want of confidence and speedy ruin. What reliance could repose upon a house, divided against itself—not safe from the extravagance and pillage of its own members? The public eye, ever watchful and timid, waits scarcely for the show of danger to take alarm and withdraw its favour. Michael shrunk from the bare conception of an act

of violence. It was more agreeable, in an hour of self-collectedness, to devise a remedy, which, if it did not cure the disease, helped at least to cicatrize the immediate wounds. He looked from Brammel to Brammel's father for indemnification. And the old man was in truth a rare temptation. Fond, pitiable father of a false and bloodless child! doting, when others would have hated, loving his prodigal with a more anxious fondness as his ingratitude grew baser—as the claims upon a parent's heart dwindled more and more away. The grey-haired man was a girl in tenderness and sensibility. He remembered the mother of the wayward child, and the pains she had taken to misuse and spoil her only boy; his own conduct returned to him in the shape of heavy reproaches, and he could not forget, or call to mind without remorse, the smiles of encouragement he had given, the flattering approbation he had bestowed when true love, justice, duty, mercy, all called loudly for rebuke, restraint, wholesome correction, solemn chastisement. Could he be conscious of all this, and not excuse the unsteady youth—accuse himself? It was he who deserved punishment—not the sufferer with his calamities *imposed* upon him by his erring sire. He was ready to receive his punishment. Oh, would that at any cost—at any expense of bodily and mental suffering, he could secure his child from further sorrow and from deeper degradation! To such a heart and mind, Michael might well carry his complaints with some expectation of sympathy and reimbursement. Aggrieved as he was, he did not fail to paint his disappointment and sense of injury in the strongest colours; but blacker than all—and he was capable of such a task, he pictured the gross deception of which he had so cruelly been made the subject.

"I could," he said to the poor father, in whose aged eyes, turned to the earth, tears of shame were gushing, "I could have forgiven any thing but that. You deceived me meanly and deliberately. The character you gave with him was false. You knew it to be so, and you were well aware that nothing but mischief and ruin could result from a connexion with him."

"Indeed, Mr Allcraft," replied the unhappy man, "I had great hopes of his reformation. He had improved of late years a little, and he gave me his word that he would be steady. If I had not thought so, I should certainly not have permitted you to receive him. What can we do, sir?"

"Ah! what, Mr Brammel. It is that I wish to know. The present state of things cannot continue. Where is he now?"

"Indeed, I do not know. He is a bad boy to hide himself from his father. I do not deserve it of him. I cannot guess."

"Are you aware, sir, that he is married?"

"They have told me something of it. I am, in truth, glad to hear it. It will be to his wife's interest to lead him back to duty."

"You have not seen her, then?"

The old man shook his head.

"Well, well, sir," continued Allcraft, "this is not to the purpose. We must protect ourselves. His profligacy must be checked; at all events, we must have no connexion with it. Hitherto we have honoured his drafts, and kept your name and his free from disgrace. I can do so no longer. We have paid his last cheque this very day. To-morrow I shall advertise publicly our determination, to honour his demands no more."

"No—no, no, Mr Allcraft," interposed old Brammel anxiously, taking every word for granted, "that must not be done—I cannot allow it; for the poor boy's sake, that determination must not be made at present. I am sure he will reform at last. I should not be surprised if he returned to business in a day or two, and settled steadily to work for the remainder of his life. It is likely enough, now that he is married. I have much to answer for on account of that youth, Mr Allcraft, and I should never forgive myself if I suffered any thing to be done that is likely to render him desperate, just when a glimmering of hope is stealing upon us. You shake your head, sir, but I am confident he will yet make up for all his folly."

"Heaven grant it, sir, for your sake!"

"Yes, and for his own, poor child—for what will become of him if he does not! Now, as to these cheques, Mr Allcraft, let me have them all. I will restore every farthing that you have paid on his account; and should any

more be presented, let them be duly honoured. I hold myself responsible for their discharge. I am sure this is the wisest course to pursue. It is quite reasonable for you to demur, and to object to these demands. I like you the better, Mr Allcraft, for your scruples: you are an honourable man, sir. I would lose my last drop of blood to make my poor boy like you. It is wise and praiseworthy in you to look so carefully to the good credit of your house; and it is fair and right that I should take this matter upon myself. I do it, persuaded of the propriety of the step, and satisfied that all will go well with him yet. Be lenient with the unhappy boy, sir, and have yet a little patience."

"I am afraid, sir, that he will but presume on your generosity and good nature."

"Ah, but he is never to know it, Mr Allcraft; I would not for the world have him hear of what I have done. Should you discover his abode, write to him, I pray—tell him that I am enraged at his proceedings—that I do not think that I can ever be reconciled to him again. Say that my anger has no bounds—that my heart is breaking—will break and kill me, if he persists in his ingratitude and cruelty. Implore him to come home and save me."

The old man stopped and wept. Michael was not yet a father and could not understand the tears: it appears that he understood business much better; for, taking leave of Brammel as soon as he could after the latter had expressed a wish to cash the cheques, he went immediately to the bank and procured the documents. He presented them with his own hand to the astounded father, from whom, also with his own hand, he received one good substantial draft in fair exchange.

So far, so good; but, in another quarter, Allcraft suddenly discovered that he had committed an egregious blunder. He had entrusted Planner with the secret of his critical position—had made him acquainted with the dishonest transactions of his father, and the consequent bankruptcy of the firm. Not that this disclosure had been made in any violent ebullition of unguarded feeling—from any particular love to Planner—from an inability on the part of the divulger to keep his own good counsel. Michael, when he raised Planner from poverty to comparative affluence, was fully sensible of the value of his man—the dire necessity for him. It was indispensable that the

tragic underplot of the play should never be known to either Bellamy or Brammel, and the only safe way of concealing it from them, was to communicate it unreservedly to their common partner, and his peculiar *protégé*. He did so with much solemnity, and with many references to the extraordinary liberality he had himself displayed in admitting him to his confidence, and to a share of his wealth. "Maintain my secret," he said to Planner, "and your fortune shall be made; betray me, and you are thrown again into a garret. You cannot hurt me; nothing shall save you." He repeated these words over and over again, and he received from his confidant assurance upon assurance of secrecy and unlimited devotion. And up to the period of Allcraft's return from France, the gentleman had every reason to rely upon the probity and good faith of his associate; nor in fact had he less reason *after* his return. Were it not that "the thief doth fear each bush an officer," he had no cause whatever to suspect or tremble: his mind, for any actual danger, might have been at rest. But what did he behold? Why, Planner and Bellamy, whom he had left as distant as stage-coach acquaintances, as intimate and loving, as united and inseparable, as the tawny twins of Siam. Not a week passed which did not find the former, once, twice, or three times a guest at the proud man's table. The visits paid to the bank were rather to Mr Planner than for any other object. Mr Planner only could give advice as to the alteration of the south wing of the hall: Mr Planner's taste must decide upon the internal embellishments: then there were private and mysterious conversations in the small back room—the parlour; nods and significant looks when they met and separated; and once, Michael called to see Planner after the hours of business, and whom should he discover in his room but Mr Bellamy himself, sitting in conclave with the schemer, and manifestly intent upon some serious matter. What was the meaning of all this? Oh, it was too plain! The rebel Planner had fallen from his allegiance, and was making his terms with the enemy. Allcraft cursed himself a thousand times for his folly in placing himself at the mercy of so unstable a character, and immediately became aware that there had never been any cogent reason for such a step, and that his danger would have been infinitely smaller had he never spoken to a human being on the subject. But it was useless to call himself, by turns, madman and fool, for his pains. What could be done now to repair the error? Absolutely nothing; and, at the best, he had only to prepare himself, for the remainder of his days, to live in doubt, fear, anxiety, and torture.

In the meanwhile, Planner grew actually enamoured of the *Pantamorphica* Association. The more he examined it, the more striking appeared its capabilities, the fairer seemed the prospect of triumphant unequivocal success. In pursuance of his generous resolution, he communicated his designs to Allcraft. They were received with looks of unaffected fright. Without an instant's hesitation, Michael implored his partner to desist—to give up at once, and for ever, all thoughts of the delusion—to be faithful to his duty, and to think well of his serious engagement. "Your Association, sir," he exclaimed in the anger of the moment, "is like every other precious scheme you have embarked in—impracticable, ridiculous, absurd!" Planner, in these three words, could only read—*ingratitude*—the basest it had ever been his lot to meet. Here was a return for his frankness—his straightforward conduct—his unequalled liberality. Here was the affectionate expression of thanks which he had so proudly looked forward to—the acknowledgment of superior genius which he had a right to expect from the man who was to profit so largely by the labour of his brains. Very well. Then let it be so. He would prosecute the glorious work alone—he would himself supply the funds needful for the undertaking, and alone he would receive the great reward that most assuredly awaited him. Very delicately did Michael hint to his partner, that his—Planner's—funds existed, with his castles and associations, in the unsubstantial air, and no where else; but not so delicately as to avoid heaping fuel on the fire which he had already kindled in the breast of the offended schemer. The latter bristled at the words, lost for an instant his self-possession, said in his anger more than he intended—more than he might easily unsay—enough to bruise the already smarting soul of Allcraft. A threat escaped his lips—a reproach—a taunt. He spoke of his *power*, and touched cuttingly upon the deep schemes of *other* men, more feasible than his own perhaps, and certainly more honest. Allcraft winced, as every syllable made known the speaker's actual strength—his own dependence and utter weakness. He made no reply to the attack of the man whom he had drawn from beggary; but he looked him in the face steadily and reproachfully, and shamed him into vexation and regret.

"I did not mean to speak unkindly, Michael," he stammered with a view to apologize. "I am sorry that I lost my temper. You need not fear me. Don't remember what I have said."

"You have threatened me, Planner," answered Allcraft, trembling with irritation. "You have attempted to frighten me into compliance with your demands. I say, sir, you have threatened me. It is the first time—it shall be the last."

"It shall, Michael—I promise you it shall."

"I ask no promise from you," continued the excited and suspicious man, writhing under a sense of his helplessness. "You have betrayed the cloven foot. I thank you for it. I am aware of what is to follow—I expect it—I shall hold myself prepared!"

"Do nothing of the kind, Allcraft. You know me better. You are safe with me. I am ashamed of myself for what I have spoken. Forgive me"—

"But never mind," proceeded the unhappy Michael. "I defy you: do your worst. Let this be your acknowledgment of past favours—the fulfilment of your sacred promise. Betray me to Bellamy, and be at ease."

"Michael, you do not use me well. I spoke angrily, and without consideration. I am sorry that I did so, and I have asked your forgiveness. What can I do more? You should allow for wounded feelings. It was hard to hear you ridiculing an affair that occupies my serious thoughts. I was irritated—think no more about it."

"Answer me this, How much does Mr Bellamy already know?"

"From me—nothing. Make your mind happy on that score. It is not to the interest of any one of us that secrets should be known. You need not fear. Shake hands."

Michael took his hand.

"And as to this Association," continued Planner, "let me have my way for once—the thing is clear, and cannot fail. The elements of success are there, and a splendid fortune must be realized. I am not greedy. I don't want to grasp every thing for myself. I told you just now that we would share and share alike. You are not up to projects of this nature. I am. Trust to me. I

will engage to enter upon no new affair if I am disappointed in this. The truth is, I cannot quietly let a fortune slide through my fingers, when a little skill and energy only are necessary to secure it. Come, Michael, this once you must not say *no*."

The hope, however faint, of making money by this speculation, and the fear of offending the depositary of his great secret, compelled at length from Allcraft a reluctant acquiescence. He consented to the trial, receiving Planner's solemn promise that, in the event of failure, it should be the last. Planner himself, overjoyed at his victory, prepared himself for action, and contemplated the magnificent resources of the bank with a resolute and daring spirit that would have gratified exceedingly the customers of the house, could they have but known it. Planner conscientiously believed that he had hitherto failed in all his schemes, because he had never commanded cash sufficient to carry out his views. This great obstacle being removed, he wisely determined to make the most of his good fortune. And in truth he was without the shadow of an excuse for timidity and forbearance. The anxiety which might have accompanied his ventures, had the money been his own, was mercifully spared him; the thought of personal danger and ruin could never come to cloud his intellect, or oppress his energy. As for the ruin of any other party, the idea, by a very happy dispensation, never once occurred to him. It took a very few months to make Mr Planner the largest shareholder—the principal director—the president and first man in the famous "*Joint-Stock Pantamorphica Association*."

And whilst he was busy in the purchase of lands required for the extensive undertaking, his dear friend Mr

Bellamy was agreeably occupied in paying off, by degrees, the heavy mortgages which, for many years, had been weighing on his beautiful estate. In addition to the ten thousand pounds which he had abstracted during the absence of Mr Allcraft, he had not hesitated to draw large sums under the very nose of his too easy and unsuspecting partner. The manner of Mr Bellamy threw Michael off his guard. He walked so erect—looked upon every body so superciliously—spoke even to Allcraft in so high a tone, and with so patronizing an air, that it was quite impossible to suspect him of being any thing but real coin, a sound man, and worthy of all trust. It is

certainly true that Mr Bellamy had not brought into the concern as he had engaged, some twenty, or forty thousand pounds—it does not matter which—but the reasons which he condescended to give for this failure were perfectly satisfactory, and accounted for the delay—so well accounted for it that Michael entreated Mr Bellamy not to think about it, but to take his time. And how very natural it was for a man of Mr Bellamy's consideration and enormous wealth to secure the little property that adjoined his own, and to borrow from the bank any sum of money that he might want to complete so desirable a purchase! And how very natural, likewise, on the part of Allcraft, ever fearful of discovery, ever desirous to keep upon the best terms with Mr Bellamy (the great man of the country, the observed of all observers)—to be at all times anxious to oblige his friend, to render him sensible of his desire to please him, and of the obligation under which, by these repeated acts of kindness and indulgence, he was insensibly brought.

And so they reached the close of the first year of partnership; and who shall say that the situation of Michael was an enviable one, or that the persevering man had not good cause for despondency and dread? He was already deeply indebted to his wife; not one of his three partners had proved to be such as he expected and required. Danger threatened from two of them: Mr Bellamy had not afforded the support which he had promised. A stronger heart than Michael's might have quailed in his position; yet the pressure from without animated and invigorated *him*. In the midst of his gloom, he was not without a gleam of hope and consolation. As he had foreseen, the business of the house rapidly increased: its returns were great. Day and night he laboured to improve them, and to raise the reputation of the tottering concern; for tottering it was, though looking most secure. For himself, he did not draw one farthing from the bank; he resided with his wife in a small cottage, lived economically, and sacrificed to his engrossing occupation every joy of the domestic hearth. The public acknowledged with favour the exertions of the labouring man; pronounced him worthy of his sire; vouchsafed him their respect and confidence. Bravely the youth proceeded on his way—looking ever to the future—straining to his object—prepared to sacrifice his life rather than yield or not attain it. Noble ambition—worthy of a less ignoble cause—a better fate!

The second year passed on, and then the third: at the close of this, Michael looked again at his condition. During the last year the business of the house had doubled. Had not the profits, and more than the profits, been dragged away by Bellamy and Planner—his ardent mind would have been satisfied, his ceaseless toil well-paid. But the continual drafts had kept ever in advance of the receipts, draining the exchequer—crippling its faculties. Even at this melancholy exhibition, his sanguine spirit refused to be cast down, and to resign the hope of ultimate recovery and success. He built upon the promise of Mr Bellamy, who at length had engaged to refund his loans upon a certain day, and to add, at the same time, his long-expected and long-promised quota of floating capital: he built upon the illusions of Planner's strong imagination—Planner, who suddenly becoming sick of his speculation, alarmed at his responsibility, and doubtful of success, had been for some time vigorously looking out for a gentleman, willing to purchase his share and interest in the unrivaled *Pantamorphica*, and to relieve him of his liabilities; and had at last persuaded himself into the belief that he had found one. *He* likewise fixed a period for the restoration of a fearful sum of money, which Michael, madman that he was, had suffered him to expend—to fling away like dirt. Upon such expectation, Allcraft stood—upon such props suffered his aching soul to rest. There wanted but a month to the acceptable season when claims upon the house poured in which could not be put off. Michael borrowed money once more from his wife to meet them. He did it without remorse or hesitation. Why should he have compunction—why think about it, when the hour of repayment was so near at hand? It was a proper question for a man who could slumber on a mine that was ready to burst, and shatter him to atoms.

CHAPTER II.

A MEETING.

It was a constant saying of old Mr Brammel, that if his time were to come over again, he would adopt a very different plan from that which he had pursued in the education of his son. Now, a different plan it might have been; but one leading to a more satisfactory result, I must take the liberty to deny. Of what use is experience to one who, with sixty years of life in him, still feels and thinks, reasons and acts, like a child? Who but a child would

have thought of paying the wholesale demands of that dissolute, incorrigible youth, with the notion of effecting by such subtle means his lasting reformation: who but a child would have made the concealment of his name a condition of the act? As may be guessed, the success of this scheme was equal to its wisdom. Augustus Theodore, too grateful for the facilities afforded him, showed no disposition to abridge his pleasures, or to hasten his return. In the regular and faithful discharge of his drafts, his vulgar soul rejoiced to detect a fear of offending, and an eagerness to conciliate, on the part of his partner, Michael Allcraft. He would see and acknowledge nothing else. And the idea once fixed in his mind, he was not likely to rest contented with half the glory of his victory. "No.—He would punish the fellow.—He would make him smart; he would teach him to come all the way to France on purpose to bully him. He hadn't done with the gentleman yet. Master Allcraft should cry loud enough before he had. He'd sicken him." Still the hopeful youth pursued his travels—still he transmitted his *orders at sight*—still they were honoured punctually—still Augustus Theodore chuckled with stupid delight over what he considered the pitiful submission of his partner, who had not courage to reject his drafts, and dared not utter now one brief expostulatory word. Mr Brammel, junior, like the rest of the firm, lived in his own delusions. The fourth year dawned, and Mr Brammel suddenly appeared amongst his friends. He and his lady had travelled over Europe; they had seen the world—the world had seen them; they were sick of wandering—they desired to settle. A noble villa, with parks and paddocks, was quickly taken and sumptuously furnished; hunters were got from Tattersall's—nursery-maids from France—an establishment worthy of the name rose like magic, almost within sight of Michael's humble dwelling, taking the neighbourhood by surprise, startling and affrighting Allcraft. Again the latter visited the fond old man—remonstrated, complained; and once more the father entreated on behalf of his son, begged for time and patience, and undertook to satisfy the prodigal's extravagance. He gave his money as before, willingly and eagerly, and stipulated only, with unmeaning earnestness, for secrecy and silence. And the fourth year closed as drearily as it had opened. The promises of Bellamy and Planner were as far from fulfilment as ever; their performance as vigorous and disastrous as at first. The landed proprietor still redeemed, day after day, portions of his involved estate. The schemer, disappointed in his expectations of a purchaser, returned to his speculation

with redoubled ardour, and with fresh supplies of gold. His only chance of ultimate recovery was to push boldly forward, and to betray no fear of failure. One retrograde or timid step would open the eyes of men, and bring down ruin on the *Pantamorphica*. Planner became conscious of all this to his dismay, and he had nothing to do in the very extremity of his distress, but to proceed in his venture with the best spirits he could command, and to trust himself fairly to the swelling tide.—Allcraft looked on and trembled.

It is wonderful how long a withered leaf will sometimes cling to its branch. It will hold tenaciously there, the last of its race, days after the decay of its greener and more healthy-looking mates. "A creaking door," the proverb has it, "hangs long upon its hinges;" and many a wheezing, parchment-looking gentleman, as we all know, who ought to have died every year of his life since he was born, draws his difficult breath through threescore years and ten; whilst the young, the hardy, and the sound are smitten in their pride, and fall in heaps about him. It is no less strange that a house of business like that of our friend Mr Allcraft, should assert its existence for years, rotten as it was, during the whole of the time, at its very heart's core. And yet such is the case. Eight years elapsed, and found it still in the land of the living: yes, and to the eye external, as proper and as good a house of business as any you shall name. Its vitals were going—were gone, before the smallest indications of mischief appeared upon the surface. Life must have been well nourished to maintain itself so long. And was it not? Answer, thou kind physician, gentle Margaret! Answer, thou balm and life's elixir—Margaret's *gold*!

Eight weary years have passed, and we have reached a miserable day in the month of November. The wind is howling, and the rain is pelting against the parlour windows of the Banking-house, whose blinds are drawn close down. The partners are all assembled. Michael, whose hair is as grey as his father's on the day of his death, and whom care and misery have made haggard and old, sits at a table, with a heap of papers before him, and a pen in his hand—engaged, as it appears, in casting up accounts. Mr Bellamy, who looks remarkably well—very glossy and very fat—sits at the table likewise, perusing leisurely the county newspapers through golden eyeglasses. He holds them with the air of a gentleman, comfortable and at ease in all respects, mentally and bodily. Augustus Theodore swings on a

chair before the fire, which he keeps at work for his own especial consolation. His feet stretch along the fender—his amusement is the poker. He has grown insufferably vain, is dressed many degrees above the highest fashionable point, and looks a dissipated, hopeless blackguard. Planner, very subdued, very pale, and therefore very unlike himself, stands behind the chair of Allcraft; and ever and anon he casts a rueful glance over the shoulder of his friend, upon the papers which his friend is busy with. No one speaks. At intervals Mr Bellamy coughs extensively and loudly, just to show his dignity and independence, and to assure the company that *his* conscience is very tranquil on the occasion—that his firm "withers are unwrung;" and Mr Brammel struggles like an ill-taught bullfinch, to produce a whistle, and fails in the attempt. With these exceptions, we have a silent room. A quarter of an hour passes. Michael finishes his work. He spends one moment in reflection, and then he speaks:—

"Now, gentlemen," he begins with a deep sigh, that seems to carry from his heart a load of care—"Now, if you please"—

The paper and the poker are abandoned, chairs are drawn towards the baize-covered table. The partners sit and look at one another, face to face.

"Gentlemen," said Michael, at first slowly and seriously, and in a tone which none might hear beyond their walls—"you do not, I am sure, require me to advert to *all* the causes which have rendered this meeting necessary. I have no desire to use reproaches, and I shall refer as little as I may to the past. I ask you all to do me justice. Have I not laboured like a slave for the common good? Have I not toiled in order to avoid the evil hour that has come upon us? Have I not given every thing—have I not robbed another in order to prop up our house and keep its name from infamy?"

"Be calm, be calm," interposed Mr Bellamy gently, remarking that Allcraft slightly raised his voice at the concluding words.

"Calm! calm, Mr Bellamy!" exclaimed the unhappy speaker, renouncing without hesitation all attempts at the *suaviter in modo*, and yet fearful of showing his indignation and of being overheard—"Calm! It is well for you to talk so. Had I been less calm, less easy; had I done my duty—had I been

determined seven years ago, this cruel day would never have arrived. You are my witness that it never would."

Mr Bellamy rose with much formality from his seat.

"Gentlemen," he said, "I cannot submit to dark and plebeian innuendoes. I have come here to-day, at great personal inconvenience, and I am prepared to listen respectfully to any thing which Mr Allcraft thinks it his duty to bring before us. But I must have you remember that a gentleman and a man of honour cannot brook an insult."

"I ask your pardon, sir," added Allcraft, in a tone of bitterness—"I meant no insult. Pray be seated. I have the honour to present you with a statement of our affairs. We have claims upon us, amounting to several thousand pounds, which must be met within a week. A third of the sum required will not be at our command. How is it to be obtained? and, if obtained, how is it to repair the inroads which, year after year, have been made upon the house, and how secure it from further spoliation? It is useless and absurd to hide from ourselves any longer the glaring fact that we are on the actual verge of bankruptcy."

"Well! I have had nothing to do with that. You can't say it's me," ejaculated Mr Brammel. "You have had the management in your own hands, and so you have nobody but yourself to thank for it. I thought from the beginning how the concern would turn out!"

"*Your* share, sir, in furthering the interests of the bank we will speak of shortly," said Michael, turning to the speaker with contempt. "We have little time for recrimination now."

"As for recrimination, Mr Allcraft," interposed Mr Bellamy, "I must be allowed to say, that you betray a very improper spirit in this business—very—very. You are far from being temperate."

"Temperate!"

"Yes; I said so."

"Mr Bellamy," said Allcraft, bursting with rage, "I have been your partner for eight years. I have not for a moment deserted my post, or slackened in my duty. I have given my strength, my health, my peace of mind, to the house. I have drawn less than your clerk from its resources; but I have added to them, wrongfully, cruelly, and unpardonably, from means not my own, which, in common honesty, I ought never to have touched—which"—

"Really, really, Mr Allcraft," said Bellamy, interrupting him, "you have told us every word of this before."

"Wait, sir," continued the other. "I am *intemperate*, and you shall have my excuse for being so. *You*, Mr Bellamy, have never devoted one moment of your life to the interests of the house; no, not a moment. You have, year after year, without the slightest hesitation or remorse, sucked its life-blood from it. You have borrowed, as these accounts will show, thousands of pounds, and paid them back with promises and words. You engaged to produce your fair proportion of capital; you have given nothing. You made grand professions of adding strength and stability to the firm; you have been its stumbling-block and hinderance."

"Mr Allcraft," said Bellamy coolly, "you are still a very young man."

"Have I told the truth?"

"Pshaw, man! Speak to the point. Speak to the point, sir. We have heavy payments due next week. Are we prepared to meet them?"

"No—nor shall we be."

"That's unfortunate," added Mr Bellamy, very quietly. "You are sure of that? You cannot help us—with another loan, for instance?"

Michael answered, with determination—"No."

"Very well. No violence, Mr Allcraft, pray. Such being the case, I shall decline, at present, giving any answer to the unjust, inhuman observations which you have made upon my conduct. Painful as it is to pass this barbarous treatment over for the present, still my own private affairs shall

be as nothing in comparison with the general good. This provided for, I will protect myself from future insult, depend upon it. You are wrong, Mr Allcraft—very wrong. You shall acknowledge it. You will be sorry for the expressions which you have cast upon a gentleman, your senior in years, and [here a very loud cough] let me add—in social station. Now, sir, let me beg a word or two in private."

It was very unfortunate that the whole establishment stood in unaffected awe of the redoubted Mr Bellamy. Allcraft, notwithstanding his knowledge of the man, and his previous attack upon his character, was not, at this moment, free from the fascination; and at the eleventh hour he found it difficult to withdraw entirely his confidence in Mr Bellamy's ultimate desire and capability to deal honorably and justly by him. Much of the Mogul's power was unquestionably derived from his massive *physique*; but his chief excellence lay in that peculiar off-hand, patronizing, take-it-for-granted air, which he made it a point to assume towards every individual with whom he came in contact. He had scarcely requested a few minutes' private conversation with Allcraft, before Planner and Brammel jumped involuntarily from their seats, as if in obedience to a word of command, and edged towards the door.

"If you please," continued Mr Bellamy, nodding to them very graciously; and they departed. In the course of ten minutes they were recalled by the autocrat himself. The gentlemen resumed their seats, and this time, Mr Bellamy addressed them.

"You see, my dear sirs," he began with, for him, peculiar gentleness, "it is absolutely necessary to provide against the immediate exigency, and to postpone all discussion on the past, until this is met, and satisfactorily disposed of."

"Certainly!" said Augustus Brammel, who, for his part, never wished to talk or think about the past again. "Certainly. Hear, hear! I agree to that"——

"I knew you would, dear Mr Brammel—a gentleman of your discretion would not fail to do so."

Augustus looked up at Mr Bellamy to find if he were jeering him; but he saw no reason to believe it.

"Such being the case," continued the worthy speaker; "it behoves us now to look about for some assistance. Our friend, Mr Allcraft, I am sorry to say, does not feel disposed to help us once more through the pressure. I am very sorry to say so. Perhaps he will think better of it, (Allcraft shook his head.) Ah; just so. He desponds a little now. He takes the dark side of things. For my own part, I prefer the bright. He believes, as you have heard, that we are on the verge of bankruptcy. Upon my honour as a gentleman, I really can believe in no such thing. There is a general gloom over the mercantile world; it will break off in time; and we, with the rest of mankind, shall pass into the sunshine."

"Hear, hear!" exclaimed Augustus Brammel; "that's the way to look at things!"

"Taking it for granted, then—which, positively, I am not inclined to do; for really, Mr Allcraft, it is against your interest not to help us in this emergency—but, however, taking it, I say, for granted, that our friend here will not succour us—it appears to me, that only one legitimate course is open to us. If we are refused at home, let us apply for aid as near our home as possible. There are our London friends"—

"Ah, yes, to be sure—so there are," cried Theodore Augustus.

"We surely cannot hesitate to apply to them. Our name stands—and deservedly so—very high. They will be glad to accommodate us with a temporary loan. We will avail ourselves of it—say for three months. That will give us time to turn about us, and to prepare ourselves against similar unpleasant casualties. See what we want, Mr Allcraft: let the sum be raised in London without delay, and let us look forward with the hearts of men."

"Capital, capital," continued Brammel; "I second that motion."

"Thank you, sir," said Mr Bellamy, with a gracious smile. "There remains then to consider only who shall be the favoured individual deputed to this important business. One of us must certainly go to London, and I do think it

due to our youngest member, Brammel, to concede to him the honour of representing us in the metropolis. No offence will, I trust, be taken by our other friends, and I hope that in my zeal for Mr Brammel, I shall not be suspected of betraying an undue preference."

Mr Bellamy turned towards Augustus Theodore with an almost affectionate expression of countenance, as he spoke these words; but perceived, to his mortification, that the latter, instead of being pleasantly affected by his address, wriggled in his chair most impatiently, and assumed the complexion and aspect of a man with whom something has suddenly and violently disagreed.

"No—no—no!" he bellowed out, as soon as he could; "none of that soft-soap, Mr Bellamy; make up your mind at once—I sha'n't go. I can't borrow money. I do not know how to do it. I don't want the honour, thank you. It's very good of you, and I am much obliged to you—that's a fact. But you'll look out for some body else, if you please. I beg to say I decline—pos"—

Mr Bellamy cast upon Theodore one of his natural and annihilating glances, and said deliberately,

"Mr Brammel, for the first time in your life you are honoured by being made a useful individual. You are to go to London.—Go you shall"—

"Go, I sha'n't," answered Brammel, in his accustomed easy style and manner.

"Very well. You are aware, Mr Brammel, that your respected parent has yet to be made acquainted with sundry lively doings of your own, which you would rather, I believe, keep from his ears at present; you likewise are aware that if any thing happens to the serious injury of the bank through your imprudence—your inheritance from that respected parent would be dearly purchased for a shilling. I shall be sorry to hurt your feelings, or your pocket. I have no wish to do it; but depend upon me, sir, your father shall be a wiser man to-night, if you are obstinate and disobedient."

"I can't borrow money—I can't—I don't know how to do it," said Brammel peevishly.

"And who reproaches you for your inability, my dear sir," said Bellamy coaxingly. "No one, I am sure. You shall be taught. Every thing shall be made easy and agreeable. You will carry your credentials from the house, and your simple task shall be beforehand well explained to you."

"I am not used to it."

"And you never will be, Mr Brammel, if you don't begin to practise. Come, I am sure you don't wish me to see your father to-day. I am certain you are not anxious to part with your patrimony. You are too sensible a man. Pray let us have no delay, Mr Allcraft. See what we want. Mr Brammel will go to London to-morrow. We must take time by the forelock. Let us meet these heavy payments, and then we can think, and breathe, and talk. Till then it is idle to wrangle, and to lose one's temper. Very well: then there's little more, I imagine, to be done at present."

Augustus Theodore still opposed his nomination, like an irritable child; but a fly kicking against a stone wall, was as likely to move it, as Brammel to break down the resolution of such a personage as Mr Bellamy. After an hour's insane remonstrance, he gave in to his own alarm, rather than to the persuasion of his partner. He was fearfully in debt; his only hope of getting out of it rested in the speedy decease of his unfortunate parent, whom he had not seen for months, and who, he had reason to believe, had vowed to make him pay with his whole fortune for any calamity that might happen to the bank through his misconduct or extravagance. It was not from the lips of Mr Bellamy that he heard this threat for the first time. What he should do, if it were carried out, heaven only knows. He consented to go to London on this disgusting mission, and he could have bitten his tongue out for speaking his acquiescence, so enraged was he with himself, and all the world, at his defeat. He did not affect to conceal his anger; and yet, strange to say, it was not visible to Mr Bellamy. On the contrary, he thanked Mr Brammel for the cheerful and excellent spirit in which he had met his partners' wishes, and expressed himself delighted at the opportunity which now presented itself for introducing their young friend to life. Then, turning to Michael Allcraft, he begged him to prepare their deputation for his work immediately, and to place no obstacle in the way of his departure. Then he moved the adjournment of the meeting until the return of Mr Brammel; and

then he finished by inviting all his partners to dine with him at the hall that day, and to join him in drinking success and happiness to their young adventurer. The invitation was accepted; and Mr. Bellamy's grand carriage drew up immediately with splash and clatter to the door.

CHAPTER III.

A CHAPTER OF LOANS.

Augustus Brammel hated his partners with all his heart and soul. He had never been very fond of them, but the result of this interview gave an activity and a form to feelings which it required only sufficient occasion to bring into play. Notwithstanding the polite tone which Mr Bellamy had cunningly adopted in placing his mission before him, even he, the ignorant and obtuse Brammel, could not fail to see that he had been made the tool, the cat's-paw in a business from which his partners shrank. Now, had the young man been as full of courage as he was of vulgar conceit, he might, I verily believe, have turned his hatred, and his knowledge of affairs, to very good account. Lacking the spirit of the smallest animal that crawls, he was content to eject his odious malice in oaths and execrations, and to submit to his beating after all. No sooner was the meeting at an end, than he left the Banking-house, and turned his steps towards home. He had become—as it was very natural he should—a brute of a husband, and the terror of his helpless household. He remembered, all at once, that he had been deeply aggrieved in the morning by Mrs Brammel; that as many as two of his shirt buttons had given way whilst he was in the act of dressing, and unable to contain himself after the treatment of Mr Bellamy, he resolved forthwith to have his vengeance out upon his wife. But he had not walked a hundred yards, before his rancour and fury increased to such a height, that he was compelled to pull up short in the street, and to vow, with a horrible oath, that he would see all his partners roasting in the warmest place that he could think of, before he'd move one inch to save their souls from rotting. So, instead of proceeding homeward, he turned back again, with a view to make this statement; but before he could reach the Banking-house, a wiser thought entered his head, and induced him to retrace his steps. "He would go," he said, "to his father; and lay his complaint there. He would impeach all his partners, acknowledge his errors, and promise once more to reform.

His father, easy old fool, would believe him, forgive him, and do any thing else, in his joy." It was certainly a bright idea—but, alas! his debts were so very extensive. Bellamy's threatening look rose before him, and made them appear even larger and more terrible than they were. What if his father insisted upon his going to London, and doing any other dirty work which these fellows chose to put upon him? Bellamy, he was sure, could make the old man do any thing. No, it wouldn't do. He stamped his foot to the ground in vexation, and recurred to his original determination. It was all he could do. He must go to London, and take what indemnification he might in the domestic circle previously to starting. And the miserable man did have his revenge, and did go to London. He was empowered to borrow twenty thousand pounds from the London house, and he was furnished by Michael Allcraft with particulars explanatory of his commission. And he walked into Lombard Street with the feelings of a culprit walking up the scaffold to his execution. His pitiful heart deserted him at the very instant when he most needed its support. He passed and repassed the large door of the establishment, which he saw opened and shut a hundred times in a minute, by individuals, whose self-collectedness and independence, he would have given half his fortune to possess. He tried, time after time, to summon courage for his entry, and, as he afterwards expressed it, a ball rose in his throat—just as he got one foot upon the step—large enough to choke him. Impudent and reckless as he had been all his life, he was now more timid and nervous than an hysterical girl. Oh, what should he do! First, he thought of going to a neighbouring hotel, and writing at once to Allcraft; swearing that he was very ill, that he couldn't move, and was utterly unable to perform his duties. If he went to bed, and sent for a doctor, surely Allcraft would believe him; and in pity would come up and do the business. He dwelt upon this contrivance, until it seemed too complicated for success. Would it not be more advisable to write to the London house itself, and explain the object of his coming up? But if he could write, why couldn't he *call*? They would certainly ask that question, and perhaps refuse the loan. Oh, what was he to do! He could hit upon no plan, and he couldn't muster confidence to turn in. The porter of the firm mercifully interposed to rescue Mr Brammel from his dilemma. That functionary had watched the stranger shuffling to and fro in great anxiety and doubt, and at length he deemed it proper to enquire whether the gentleman was looking for the doorway of the house of Messrs —— and ——, or not. Augustus, frightened, answered

yes at random, and in another instant found himself in what he called "THE SWEATING ROOM of the awfulest house of business he had ever seen in all his life." It was a large square apartment, very lofty and very naked-looking. There was an iron chest, and two shelves filled with giant books; and there was nothing else in the room but a stillness, and a mouldiness of smell, that hung upon his spirits like pounds of lead, dragging them down, and freezing them. Yet, cold as were his spirits, the perspiration that oozed from the pores of his skin was profuse and steady during the quarter of an hour that elapsed whilst he waited for the arrival of the worthy principal. During those memorable fifteen minutes—the most unpleasant of his life—Augustus, for two seconds together, could neither sit, stand nor walk with comfort. He knew nothing of the affairs of his house; he was not in a condition to answer the most trivial business question; he had heard that his firm was on the eve of bankruptcy, (and, judging from the part he had taken in its affairs, he could easily believe it;) he felt that his partners had thrown the odium of the present application upon him, not having courage to take it upon themselves; and he had an indistinct apprehension that this very act of borrowing money would lead to transportation or the gallows, should the business go to rack and ruin, as he could see it shortly would. All these considerations went far to stultify the otherwise weak and feeble Mr Brammel; when, in addition, he endeavoured to arrange in his mind the terms on which he would request the favour of a temporary loan of only (!) twenty thousand pounds, a sensation of nausea completely overpowered him, and the table, the chairs, the iron chest, swam round him like so many ships at sea. To recover from his sickness, and to curse the banking-house, every member of the same, and his own respectable parent for linking him to it, was one and the same exertion. To the infinite astonishment of Augustus Theodore, the acquisition of these twenty thousand pounds proved the most amusing and easiest transaction of his life. Mr Cutbill, the managing partner of the London house, received him with profound respect and pleasure. He listened most attentively to the stammering request, and put the deputation at his ease at once, by expressing his readiness to comply with Mr Allcraft's wishes, provided a note of hand, signed by all the partners, and payable in three months, was given as security for the sum required. Augustus wrote word home to that effect; the note of hand arrived—the twenty thousand pounds were paid—the dreaded business was

transacted with half the trouble that it generally cost Augustus Theodore to effect the purchase of a pair of gloves.

Mr Bellamy remained at the hall just one week after the receipt of the cash, and then was carried to the north by pressing business. Before he started he complimented Allcraft upon their success, trusted that they should now go smoothly on, promised to return at the very earliest moment, and gave directions on his route by which all letters of importance might safely reach him. And Allcraft, relieved for a brief season, indefatigable as ever, strained every nerve and muscle to sustain his credit and increase his gains. As heretofore, he denied himself all diversion and amusement. The first at the bank, the last to leave it, he had his eye for ever on its doings. Visible at all times to the world, and most conspicuous there where the world was pleased to find him, he maintained his reputation as a thorough man of business, and held, with hooks of steel, a confidence as necessary to existence as the vital air around him. To lose a breath of the public approbation in his present state, were to give up fatally the only stay on which he rested. Wonderful that, as the prospects of the man grew darker, his courage strengthened, his spirit roused, his industry increased! And a bitter reflection was it, that reward still came to him—still a fair return for time and strength expended. He could not complain of the neglect of mankind, or of the ingratitude of those he served. In the legitimate transactions of the house, he was a prosperous and a prospering man. Such, to the outer world, did he appear in all respects, and such he would have been but for the hidden and internal sores already past cure or reparation. Who had brought them there? Michael did not ask the question—yet. Never did three months pass away so rapidly as those which came between the day of borrowing and the day of paying back those twenty thousand pounds. The moment the money had arrived, Michael's previous anxieties fled from his bosom, and left him as happy as a boy without a care. It came like a respite from death. Sanguine to the last, he congratulated himself upon the overthrow of his temporary difficulties, and relied upon the upturning of some means of payment, on the arrival of the distant day. But distant as it looked at first, it crept nearer and nearer, until at the end of two months, when—as he saw no possibility of relieving himself from the engagement—it appeared close upon him, haunting him morning, noon, and night, wheresoever he might be, and sickening him with its terrible and desperate

aspect. When there wanted only a week to the fatal day, Michael's hope of meeting the note of hand was slighter than ever. He became irritable, distressed, and anxious—struggled hard to get the needful sum together, struggled and strove; but failed. Hours and minutes were now of vital consequence; and, in a rash and unprotected moment, he permitted himself to write a letter to the London house, begging them, as a particular favour, just for one week to retire the bill they held against him. The London house civilly complied with the request, and five days of that last and dreary week swept by, leaving poor Allcraft as ill prepared for payment as they had found him. What could he do? At length the gulf had opened—was yawning—to receive him. How should he escape it?

Heaven, in its infinite mercy, has vouchsafed to men *angels* to guide and cheer them on their difficult and thorny paths. Could Michael suffer, and Margaret not sympathize? Could he have a sorrow which she might chase away, and, having the power, lack the heart to do it? Impossible! Oh! hear her in her impassioned supplications; hear her at midnight, in their disturbed and sleepless bedchamber, whilst the doomed man sits at her side in agony, clasps his face, and buries it within his hand for shame and disappointment.

"Michael, do not break my heart. Take, dearest, all that I possess; but, I entreat you, let me see you cheerful. Do not take this thing to heart. Whatever may be your trouble, confide it, love, to me. I will try to kill it!"

"No, no, no," answered Allcraft wildly; "it must not be—it shall not be, dear Margaret. You shall be imposed upon no longer. You shall not be robbed. I am a villain!"

"Do not say so, Michael. You are kind and good; but this cruel business has worn you out. Leave it, I implore you, if you can, and let us live in peace."

"Margaret, it is impossible. Do not flatter yourself or me with the vain hope of extrication. Release will never come. I am bound to it for my life; it will take longer than a life to effect deliverance. You know not my calamities."

"But I *will* know them, Michael, and share them with you, if they must be borne. I am your wife, and have a right to this. Trust me, Michael, and do

not kill me with suspense. What is this new affliction? Whatsoever it may be, it is fitting that I should know it—yes, will know it, dearest, or I am not worthy to lie beside you there. Tell me, love, how is it that for these many days you have looked so sad, and sighed, and frowned upon me. I am conscious of no fault. Have I done amiss? Say so, and I will speedily repair the fault?"

Michael pressed his Margaret to his heart, and kissed her fondly.

"Why, oh why, my Margaret, did you link your fate with mine?"

"Why, having done so, Michael, do you not love and trust me?"

"Love?"

"Yes—*love*! Say what you will, you do not love me, if you hide your griefs from me. We are one. Let us be truly so. One in our joys and in our sufferings."

"Dearest Margaret, why should I distress you? Why should I call upon you for assistance? Why drag your substance from you?—why prey upon you until you have parted with your all? I have taken too much already."

"Answer me one simple question, Michael. Can money buy away this present sorrow? Can it bring to you contentment and repose? Can it restore to me the smile which is my own? Oh, if it can, be merciful and kind; take freely what is needful, and let me purchase back my blessings!"

"Margaret, you deserve a better fate!"

"Name the sum, dear. Is it my fortune? Not more? Then never were peace of mind and woman's happiness so cheaply bought. Take it, Michael, and let us thank Heaven that it is enough. My fortune never gave me so much joy as now. I do not remember, Michael, that you have ever refused my smallest wish. It is not in your nature to be unkind. Come, dearest, smile a little. We have made the bargain—be generous, and pay me in advance."

He smiled and wept in gratitude.

Now Michael retired to rest, determined not to take advantage of the generous impulses of his confiding wife; yet, although he did so, it could not but be very satisfactory to his marital feelings to discover, and to be assured of the existence of, such devotedness and disregard of self and fortune as she displayed. Indeed, he was very much tranquillized and comforted; so much so, in fact, that he was enabled, towards morning, to wake up in a condition to review his affairs with great serenity of mind, and (notwithstanding his determination) to contrive some mode of turning the virtuous magnanimity of his wife to good account, without inflicting any injury upon herself. Surely if he could do this, he was bound to act. To save himself by her help, and, at the same time, without injuring her at all, was a very defensible step, to say the least of it. Who should say it wasn't his absolute duty to adopt it? Whatever repugnance he might have felt in asking a further loan from one who had already helped him beyond his expectations, it was certainly very much diminished since she had offered to yield to him, without reserve, every farthing that she possessed. Not that he would ever suffer her to do any thing so wild and inexcusable; still, after such an expression of her wishes, he was at liberty to ask her aid, provided always that he could secure her from any loss or risk. When Michael got thus far in his proposition, it was not very difficult to work it to the end. Once satisfied that it was just and honourable, and it was comparatively child's work to arrange the *modus operandi*. A common trick occurred to him. In former transactions with his wife, he had pledged his word of honour to repay her. It had become a stale pledge, and very worthless, as Michael felt. What if he put his *life* in pawn! Ah, capital idea! This would secure to her every farthing of her debt. Dear me, how very easy! He had but to insure his life for the amount he wanted, and let what would happen, she was safe. His spirit rejoiced. Oh, it was joy to think that she could save him from perdition, and yet not suffer a farthing's loss. Loss! So far from this, his ready mind already calculated how she might be a gainer by the arrangement. He was yet young. Let him insure his life at present for twenty thousand pounds, and how much more would it be worth—say that he lived for twenty years to come? He explained it to his lady—to his own perfect satisfaction. The willing Margaret required no more. He could not ask as freely as the woman's boundless love could grant. He, with all his reasoning, could not persuade his conscience to pronounce the dealing just. She, with her beating heart for her sole argument and guide, looked for no

motive save her strong affection—no end but her beloved's happiness and peace. Woe is me, the twenty thousand pounds were griped—the precious life of Mr Allcraft was insured—the London house was satisfied. A very few weeks flew over the head of the needy man, before he was reduced to the same pitiable straits. Money was again required to carry the reeling firm through unexpected difficulties. Brammel was again dispatched to London. The commissioner, grown bolder by his first success, was ill prepared for hesitation and reproof, and awkward references to "that last affair." Ten thousand pounds were the most they could advance, and all transactions of the kind must close with this, if there should be any deviation from the strictest punctuality. Brammel attempted to apologise, and failed in the attempt, of course. He came home disgusted, shortening his journey by swearing over half the distance, and promising his partners his cordial forgiveness, if ever they persuaded him again to go to London on a begging expedition!

Oh, Margaret! Margaret! Oh, spirit of the mild and gentle Mildred! Must I add, that your good money paid this second loan—and yet a third—a fourth—a fifth? When shall fond woman cease to give—when shall mean and sordid man be satisfied with something less than all she has to grant?

CHAPTER IV.

A DISSOLUTION OF PARTNERSHIP.

The most remarkable circumstance in that meeting of the partners, which ended in Brammel's first visit to London, was the behaviour of our very dear friend and ally—the volatile Planner—volatile, alas! no longer. His best friend would not have recognized him on that deeply interesting occasion. He was a subdued, a shaken man. Every drop of his brave spirit had been squeezed out of him, and he stood the mere pulp and rind of his former self. He who, for years, had been accustomed to look at men, not only in the face, but very impertinently over their heads, could not drag his shambling vision now higher than men's shoe-strings. His eye, his heart, his soul was on the ground. He was disappointed, crushed. Not a syllable did he utter; not a single word of remonstrance and advice did he presume to offer in the presence of his associates. He had a sense of guilt, and men so

situated are sometimes tongue-tied. He had, in truth, a great deal to answer for, and enough to make a livelier man than he dissatisfied and wretched. Every farthing which had passed from the bank to the *Pantamorphica* Association was irrecoverably gone. The Association itself was in the same condition—gone irrecoverably likewise. Nothing remained of that once beautiful and promising vision, but some hundred acres of valueless land, a half-finished and straggling brick wall, falling rapidly to decay, the foundations of a theatre, and the rudiments of a temple dedicated to Apollo. Planner had gazed upon the scene once, when dismal rain was pouring down upon the ruins, and he burst into bitter tears, and sobbed like a child at the annihilation of his hopes. He had not courage to look a second time upon that desolation, and yet he found courage to turn away from it, and to do a thing more desperate. Ashamed to be beaten, afraid to meet the just rebuke of Allcraft, he flung himself recklessly into the hands of a small band of needy speculators, and secretly engaged in schemes that promised restitution of the wealth he had expended, or make his ruin perfect and complete. One adventure after another failed, cutting the thread of his career shorter every instant, and rendering him more hot-brained and impatient. He doubled and trebled his risks, and did the like, as may be guessed, to his anxieties and failures. He lived in a perpetual fear and danger of discovery; and discovery now was but another name, for poison—prison—death. Here was enough, and more than enough, to extinguish every spark of joy in the bosom of Mr Planner, and to account for his despondency and settled gloom. And yet Planner, in this, his darkest hour, was nearer to deliverance and perfect peace, than at any previous period of his history. Planner was essentially "a lucky dog." Had he fallen from a house-top, he would have reached *terra firma* on his feet. Had he been conducted to the gallows, according to his desserts, the noose would have slipped, and his life would certainly have been spared.

It happened, that whilst Michael was immersed in the management of his loans, a hint was forwarded to him of the pranks of his partner; a letter, written by an anonymous hand, revealed his losses in one transaction, amounting to many hundred pounds. The news came like a thunderbolt to Allcraft. It was a death-blow. Iniquitous, unpardonable as were the acts of his colleague—serious as was the actual sum of money gone; yet these were as nothing compared with the distressing fact, that intelligence of the evil

work had already gone abroad, was in circulation, and might at any moment put a violent end to his own unsteady course. He carried the note to Planner—he thrust it into his face, and called him to account for his baseness and ingratitude. He could have struck his friend and partner to the earth, and trod him there to death, as he confronted and upbraided him.

"Now, sir," roared Allcraft in his fury—"What excuse—what lie have you at your tongue's end to palliate this? What can justify this? Will you never be satisfied until you have rendered me the same hopeless, helpless creature that I found you, when I dragged you from your beggaring.§ Answer me!"—

There is nothing like a plaintive retort when your case is utterly indefensible. Planner looked at the letter, read it—then turned his eyes mildly and reproachfully upon his accuser.

"Michael Allcraft," he said affectingly, "you treat me cruelly."

"I!" answered the other astounded. "I treat *you*! Planner, I intrusted you years ago with a secret. I paid you well for keeping it. Could I dream that nothing would satisfy your rapacity but my destruction? Could I suppose it? I have fed your ravenous desires. I have submitted to your encroachments. Do you ask my soul as well as body? Let me know what it is you ask—what I have to pay—let me hear the worst, and—prepare for all my punishment."

"I have listened to all you have said," continued Planner, "and I consider myself an ill-used man."

Michael stared.

"Yes—I mean it. I have worked like a negro for you Allcraft, and this is the return you make me. I get your drift; do not attempt to disguise it—it is cruel—most, most cruel!

"What do you mean?"

"Have I not always promised to share my gains with you?"

"Pshaw—*your* gains—where are they?"

"That's nothing to the point. Did I not promise?"

"Well—well."

"And now, after all my labour and struggling, because I have *failed*, you wish to turn me off, and throw me to the world. Now, speak the truth, man—is it not so?"

Oh! Planner was a cunning creature, and so was Michael Allcraft. Mark them both! This idea, which Planner deemed too good to be seriously entertained by his colleague, had never once occurred to Michael; but it seemed so promising, and so likely, if followed up, to relieve him effectually of his greatest plague, and of any floating ill report, that he found no hesitation in adopting it at once. He did not answer, but he tried to look as if his partner had exactly guessed his actual intention. Such §* gentlemen both!

* Transcriber's Note: Original cut off between §s—Section completed with best guess of correct wording.

"I thought so," continued the injured Planner. "Michael, you do not know me. You do not understand my character. I am a child to persuade, but a rock if you attempt to force me. I shall *not* desert the bank, whilst there is a chance of paying back all that we have drawn."

"We, sir?"

"Yes—we. You and I together for our schemes, and you alone for private purposes. You recollect your father's debts"—

"Planner, do not think to threaten me into further compromise. You can frighten me no longer—be sure of that. Your transactions are the common talk of the city—the bank is stigmatized by its connexion with you."

"Curse the bank!" said Planner fretfully. "Would to Heaven I had never heard of it!"

"Leave it then, and rid yourself of the annoyance. You are free to do it!"

"What! and leave behind me every chance of realizing a competency for my old age! Oh, Michael, Michael—shame, shame!"

"Competency! Are you serious? Are you sane? Competency! Why, the labour of your life will not make good a tithe of what you have squandered."

"Come, come, Michael, you know better. You know well enough that one lucky turn would set us up at last. Speak like a man. Say that you want to grasp all—that you are tired of me—that you are sick of the old face, and wish to see my back. Put the thing in its proper light, and you shall not find me hard to deal with."

"Planner, you are deceived. Your mind is full of fancy and delusion, and that has been your curse and mine."

"Very well. Have your way; but look you, Michael, you are anxious to get rid of me—there's no denying that. There is no reason why we should quarrel on that account. I would sacrifice my prospects, were they double what they are, rather than beg you to retain me. I did not ask for a share in your bank. You sought me, and I came at your request. Blot out the past. Release me from the debt that stands against my name, and I am gone. As I came at your bidding, so, at your bidding, I am ready to depart."

"Agreed," said Allcraft, almost before the wily Planner finished. "It is done. I consent to your proposal. A dissolution shall be drawn up without delay, and shall be published in the next gazette."

"And publish with it," said Planner, like a martyr as he was, "the fate of him who gave up all to his own high sense of honour, and his friend's ingratitude."

So Planner spake, scarcely crediting his good fortune, and almost mad with joy at his deliverance. He had no rest until the seals were fixed to parchment, and the warrant of his release appeared in public print. Within a week, the fettered man was free. Within another week, his bounding spirits

came like a spring-tide back to him, and in less than eight-and-twenty days of freedom and repose, he recovered quite as many years of sweet and precious life. He made quick use of his wings. At first, like a wild and liberated bird, he sported and tumbled in the air, and fixed upon no particular aim; a thousand captivating objects soon caught his eagle eye, and then he mounted, dazzled by them all, and soon eluded mortal sight and reach. But, glad as was the schemer, his delight and sense of freedom were much inferior to those of his misguided and unlucky partner. Michael breathed as a man relieved from nightmare. The encumbrance which had for years prevented him from rising, that had so lately threatened his existence, was gone, could no longer hang upon him, haunt and oppress him. What a deliverance!—Yet, what a price had he paid for it! True, but was not the money already sacrificed? Would it have been restored, had the luckless speculator himself remained? Never! Well, fearful then as was the sum, let it go, taking the incubus along with it. Allcraft took care to obtain the consent of Bellamy to his arrangement. He wrote to him, explaining the reasons for parting with their partner; and an answer came from the landed proprietor, acquiescing in the plan, but slightly doubting the propriety of the movement. As for Brammel, he consented, as he was ready to agree to any thing but a personal visit to the great metropolis. And then, what was Michael's next step? A proper one—to put out effectually the few sparks of scandal which might, possibly, be still flying about after the discovery of Planner's scheme. He worked fiercer than ever—harder than the day-labourer—at his place of business. It was wise in him to do so, and thus to draw men's thoughts from Planner's faults to his own unquestioned merits. And here he might have stopped with safety; but his roused, suspicious, sensitive nature, would not suffer him. He began to read, then to doubt and fear men's looks; to draw conclusions from their innocent words; to find grounds of uneasiness and torture in their silence. A vulgar fellow treated him with rudeness, and for days he treasured up the man's words, and repeated them to himself. What could they mean? Did people smell a rat? Were they on the watch? Did they suspect that he was poor? Ah, that was it! He saw it—he believed he did—that was equivalent to sight, and enough for him. Men did not understand him. He would not die so easily—they must be undeceived. Miserable Allcraft! He speedily removed from his small cottage—took a mansion, furnished it magnificently, and made it a palace in costliness and hospitality. Ah! was he poor? The trick answered.

The world was not surprised, but satisfied. There was but one opinion. He deserved it all, and more. The only wonder was, that he had hitherto lived so quietly, rich as he was, in virtue of his wife's inheritance, and from his own hard-earned gains. His increasing business still enlarged. Customers brought guests, and, in their turn, the guests became good customers. It was a splendid mansion, with its countless rooms and gorgeous appointments. What pleasure-grounds—gardens—parks—preserves! Noble establishment, with its butler, under-butler, upper-servant, and my lady's (so the working people called poor Margaret) footman! In truth, a palace; but, alas! although it took a prince's revenue to maintain it, and although the lady's purse was draining fast to keep it and the bank upon its legs, yet was there not a corner, a nook, a hole in the building, in which master or mistress could find an hour's comfort, or a night's unmingled sleep. As for the devoted woman, it made very little difference to her whether she dwelt in a castle or a hovel, provided she could see her husband cheerful, and know that he was happy. This was all she looked for—cared for—lived for. *He* was her life. What was her money—the dross which mankind yearned after—but for its use to him, but for the power it might exercise amongst men to elevate and ennoble *him*? What was her palace but a dungeon if it rendered her beloved more miserable than ever, if it added daily to the troubles he had brought there—to the cares which had accumulated on his head from the very hour she had become his mate? Michael Allcraft! you never deserved this woman for your wife; you told her so many times, and perhaps you meant what was wrung from your heart in its anguish. It was the truth. Why, if not in rank cowardice and pitiful ambition, entangle yourself in the perplexities of such a household with all that heap of woe already on your soul? Why, when your London agents refused, in consequence of your irregularity and neglect, to advance your further loans—why take a base advantage of that heroic generosity that placed its all, unquestioning, at your command? Why, when you pretended with so much ceremony and regard, to effect an insurance on your worthless life, did you fail to pay up the policy even for a second year, and so resign all claim and right to such assurance, making it null and void? Let it stand here recorded to your disgrace, that, in the prosecution of your views, in the working out of your insane ambition, no one single thought of her, who gave her wealth as freely as ever fount poured forth its liberal stream, deterred you in your progress for an instant; that no one glow or gush of feeling towards the fond and faithful wife

interposed to save her from the consequences of your selfishness, and to humble you with shame for inhumanity as vile as it was undeserved. It is not surprising, that after the taking of the great house the demands upon the property of Margaret were made without apology or explanation. He asked, and he obtained. The refusal of aid, on the part of the London house, terrified him when it came, and caused him to rush, with a natural instinct, to the quarter whence he had no fear of denial and complaint. He drew largely from her resources. The money was sucked into the whirlpool; there was a speedy cry for more; and more was got and sacrificed. It would have been a miracle had Allcraft, in the midst of his crushing cares, retained his early vigour of mind and body, and passed through ten years of such an existence without suffering the penalties usually inflicted upon the man prodigal of the blessings and good gifts of Providence. In his appearance, and in his temperament, he had undergone a woful change. His hair—all that remained of it, for the greater part had fallen away—was grey; and, thin, weak, and straggling, dropped upon his wrinkled forehead—wrinkled with a frown that had taken root there. His face was sickly, and never free from the traces of acute anxiety that was eating at his heart. His body was emaciated, and, at times, his hand shook like a drunkard's. It was even worse with the spiritual man. He had become irritable, peevish, and ill-natured; he had lost, by degrees, every generous sentiment. As a young man he had been remarkable for his liberality in pecuniary matters. He had been wont to part freely with his money. Inconsistent as it may seem, notwithstanding his heavy losses through his partners, and his fearful expenditure, he was as greedy of gain as though he were stinting himself of every farthing, and secretly hoarding up his chests of gold. He would haggle in a bargain for a shilling, and economize in things beneath a wise man's notice or consideration. For a few years, as it has been seen, Allcraft had denied himself the customary recreations of a man of business, and had devoted himself entirely to his occupation. It was by no means a favourable indication of his state of mind, that he derived no satisfaction at the grand mansion, either alone or in the mere society of his wife. He quitted the bank daily at a late hour, and reached his home just in time for dinner. That over, he could not sit or rest—he must be moving. He could not live in quiet. "Quietness"—it was his own expression—"stunned him." He rushed to the theatre, to balls, concerts, wherever there was noise, talk, excitement, crowds of people; wherever there was release from his own pricking

conscience and miserable thoughts. And then to parties; of course there was no lack of them, for their society was in great request, and every one was eager for an invitation in return to *Eden*—such being the strange misnomer of their magnificent prison-house. And, oh, rare entertainments were they which the suffering pair provided for the cold-hearted crew that flocked to partake of their substance! How the poor creature smiled upon her guests as they arrived, whilst her wounded heart bled on! How she sang—exquisitely always—for their amusement and nauseous approbation, until her sweet voice almost failed to crush the rising tears! How gracefully she led off the merry dance whilst clogs were on her spirits, weighing upon every movement. Extravagant joyousness! Dearly purchased pleasure! Yes, dearly purchased, if only with that half hour of dreadful silence and remorse that intervened between the banquet and the chamber—not of sweet slumber and benevolent repose but of restlessness and horrid dreams!

CHAPTER V.

THE CRISIS.

Michael was half mad in the midst of his troubles; and, in truth, they gathered so thickly and rapidly about him, that he is to be admired for the little check which he contrived to keep over his reason, saving him from absolute insanity and a lunatic asylum. Mr Bellamy, although away, made free with the capital of the bank, and applied it to his own private uses. Mr Brammel, senior, after having, for many years, made good to Allcraft the losses the latter had sustained through his son's extravagance, at length grew tired of the work, and left the neighbourhood, in disgust, as Michael thought, but, in sad truth, with a bruised and broken heart. At last he had dismissed the long-cherished hope of the prodigal's reformation, and with his latest hope departed every wish to look upon his hastening decay and fall. He crawled from the scene—the country; no one knew his course; not a soul was cognizant of his intentions, or could guess his resting-place. Augustus Theodore did not, in consequence of his father's absence, draw less furiously upon the bank! He had never heard of that father's generosity—how should he know of it now? And, if he knew it, was he very likely to profit by the information? Michael honoured his drafts for many reasons; two may be mentioned, founded on hope and fear—the hope of frightening

the unfortunate Brammel senior into payment when he met with him again, the fear of making Brammel junior desperate by his refusal, and of his divulging all he knew. Could a man, not crazy, carry more care upon his brain? Yes, for demands on account of Planner poured in, the very instant that fortunate speculator had taken his lucky leave of the establishment—demands for which Michael had rendered himself liable in law, by the undertaking which he had drawn up and signed in his alarm and haste. Oh, why had he overwhelmed himself with partners—why had he married—why had he taken upon himself the responsibility of his parent's debts—why had he not explained every thing when he might have done it with honour and advantage—why had he not relied upon his own integrity—and why had he attempted, with cunning and duplicity, to overreach his neighbours? Why, oh why, had he done all this? When Michael was fairly hemmed in by his difficulties, and, as it is vulgarly said, had not a leg to stand upon, or a hole to creep through, then, and not till then, did he put these various questions to himself; and since it is somewhat singular that so shrewd a man should have waited until the last moment to put queries of such vast importance to himself, I shall dwell here for one brief moment on the fact, be it only to remind and to warn others, equally shrewd and equally clever, of the mischief they are doing when they postpone the consideration of their motives and acts until motives and acts both have brought them into a distress, out of which all their consideration will not move them an inch. "Why have I *done*?" was, is, and ever will be, the whining interrogative of stricken *inability*; "Why am I about *to do*?" the provident question of thoughtful, far-seeing *success*. Remember that.

I am really afraid to say how much of poor Margaret's fortune was dragged from her—how little of it still remained. It must have been a trifle, indeed, when Michael, with a solemn oath, swore that he would not touch one farthing more, let the consequences be what they might. Could it be possible that the whole of her splendid inheritance had shrunk to so paltry a sum, that the grasping man had ceased to think it worth his while to touch it? or did the dread of beholding the confiding woman, beggar'd at last, induce him to leave at her disposal enough to purchase for her—necessary bread? Whatever was his motive, he persisted in his resolution, and to the end was faithful to his oath. Not another sixpence did he take from her. And how much the better was he for all that he had taken already? Poor Michael

had not time to enquire and answer the question. He could not employ his precious moments in retrospection. He lived from hand to mouth; struggled every hour to meet the exigencies of the hour that followed. He was absorbed in the agitated present, and dared not look an inch away from it. Now, thanks to the efforts of her people, England is a Christian country; and whenever fortune goes very hard with a man who has received all the assistance that his immediate connexions can afford him, there is a benevolent brotherhood at hand, eager to relieve the sufferer's wants, and to put an end to his anxiety. This charitable band is known by the name of *Money-lenders*—*Jewish* money-lenders; so called, no doubt, in profound humility and self-denial, displayed in the Christian's wish to give the *honour* of the work elsewhere, reserving to himself the labour and—the profit. When Michael needed fresh supplies, he was not long in gathering a gang of harpies about him. They kept their victim for a while well afloat. They permitted their principal to accumulate in his hands, whilst they received full half of their advances back in the form of interest. So he went on; and how long this game would have lasted, it is impossible to say, because it was cut short in its height by a circumstance that brought the toppling house down, as it were, with a blow and a run.

When Allcraft, one morning at his usual hour, presented himself at the bank, his confidential clerk approached him with a very serious face, and placed a newspaper in his hand. Michael had grown very timid and excitable; and when the clerk put his finger on the particular spot to which he desired to call his superior's attention, the heart of the nervous man leapt into his throat, and the blood rushed from his cheek, as if it were its duty to go and look after it. He literally wanted the courage to read the words. He attempted to smile indifferently, and to thank his servant as courteously as if he had given him a pleasant pinch of snuff; but at the same time, he pressed his thumb upon the paragraph, and made his way straight to his snug and private room. He was ready to drop when he reached it, and his heart beat like a hammer against his ribs. He placed the paper on the table, and, ere he read a syllable, he laboured to compose himself. What could it be? Was the thing exploded? Was he already the common talk and laugh of men? Was he ruined and disgraced? He read at length—*The property and estates of Walter Bellamy, Esq., were announced for sale by auction.* His first sensation on perusing the advertisement was one of overpowering sickness.

Here, then, was his destruction sealed! Here was the declaration of poverty trumpeted to the world. Here was the alarum sounded—here was his doom proclaimed. Let there be a run upon the bank—and who could stop it now?—let it last for four-and-twenty hours, and he is himself a bankrupt, an outcast, and a beggar. The tale was told—the disastrous history was closed. He had spun his web—had been his own destiny. God help and pardon him for his transgressions! There he sat, unhappy creature, weeping, and weeping like a heart-broken boy, sobbing aloud from the very depths of his soul, frantic with distress. For a full half hour he sat there, now clenching his fists in silent agony, now accusing himself of crime, now permitting horrible visions to take possession of his brain, and to madden it with their terrible and truth-like glare. He saw himself—whilst his closed eyes were pressed upon his paralysed hands—saw himself as palpably as though he stood *before* himself, crawling through the public streets, an object for men's pity, scorn, and curses. Now men laughed at him, pointed to him with their fingers, and made their children mock and hoot the penniless insolvent. Labouring men, with whose small savings he had played the thief, prayed for maledictions on his head; and mothers taught their little ones to hate the very name he bore, and frightened them by making use of it. Miserable pictures, one upon the other, rose before him—dark judgments, which he had never dreamed of or anticipated; and he stood like a stricken coward, and he yearned for the silence and concealment of the *grave*. Ay—the grave! Delightful haven to pigeon-hearted malefactors—inconsistent criminals, who fear the puny look of mortal man, and, unabashed, stalk beneath the eternal and the killing frown of God. Michael fixed upon his remedy, and the delusive opiate gave him temporary ease; but, in an another instant, he derived even hope and consolation from another and altogether opposite view of things. A thought suddenly occurred to him, as thoughts will occur to the tossed and working mind—how, why, or whence we know not; and the drowning man, catching sight of the straw, did not fail to clutch it. What if, after all, Mr. Bellamy proposed to sell his property *in favour of the bank*!! Very likely, certainly; and yet Allcraft, sinking, could believe it possible—yes possible, and (by a course of happy reasoning and self-persuasion) not only so—but *true*. And if this were Mr. Bellamy's motive and design, how cruel had been his own suspicions—how vain and wicked his previous disturbance and complaints! And why should it not be? Had he not engaged to restore the money which

he had borrowed; and had he not given his word of honour to pay in a large amount of capital? At the memorable meeting, had he not promised to satisfy Allcraft of the justice of his own proceedings, and the impropriety of Michael's attack upon his character? And had not the time arrived for the redemption of his word, and the payment of every farthing that was due from him? Yes; it had arrived—it had come—it was here. Mr Bellamy was about to assert his integrity, and the banking-house was saved. Michael rose from his chair—wiped the heavy sweat-drops from his brow—dried his tears, and gave one long and grateful sigh for his deliverance from that state of horror, by which, for one sad, sickening moment, he had been bewildered and betrayed. But, satisfied as he was, and rejoiced as he pretended to be, it could hardly be expected that a gentleman possessed of so lively a temperament as that enjoyed by Mr. Allcraft would rest quietly upon his convictions, and take no steps to strengthen and establish them. Michael for many days past had had no direct communication with his absent partner, and, at the present moment, he was ignorant of his movements. He resolved to make his way at once to the Hall, and to get what intelligence he could of its lord and master, from the servants left in charge of that most noble and encumbered property. Accordingly he quitted his apartment, threw a ghastly smile into his countenance, and then came quickly upon his clerks, humming a few cheerful notes, with about as much spirit and energy as a man might have if forced to sing a comic song just before his execution. Thoroughly persuaded that the officials had not obtained an inkling of what had transpired in his *sanctum*, and that he left them without a suspicion of evil upon their minds, he started upon his errand, and waited not for breath until he reached his destination. He arrived at the lodge—he arrived at the Hall. He rang the loud bell, and a minute afterwards he learned that Mr Bellamy was within—had made his appearance at home late on the evening before, and, at the present moment, was enjoying his breakfast. Michael, for sudden joy and excitement, was wellnigh thrown from his equilibrium. Here was confirmation stronger than ever! Would he have returned to the estate upon the very eve of disposing of it, if he had not intended to deal well and honestly in the transaction? Would he not have been ashamed to do it? Would he have subjected himself to the just reproaches and upbraidings of his partner, when, by his absence, he might so easily have avoided them? Certainly not. Michael Allcraft, for a few brief seconds, was a happier man than he had been for years. His eyes were hardly free of the tears which he

had shed in the extremity of his distress, and he was now ready to weep again in the very exuberance and wildness of his delight. He presented his card to the corpulent and powdered footman; he was announced; he was ushered in. Walter Bellamy, Esquire, sitting in state, received his friend and partner with many smiles and much urbanity. He was still at breakfast, and advancing slowly in the meal, like a gentleman whose breakfast was his greatest care in life. Nothing could be more striking than the air of stately repose visible in the proprietor himself, and in the specious and solemn serving-man, who stood behind him—less a *serving*-man than a sublime dumb waiter. Michael was affected by it, and he approached his colleague with a rising sentiment of awe—partly, perhaps, the effect of the scene—partly the result of natural apprehension.

"Most glad to see you, my very good friend," began the master—"most glad—most happy—pray, be seated. A lovely morning this! A plate for Mr. Allcraft."

"Thank you—I have breakfasted," said Michael, declining the kind offer. "I had no thought of finding you at home."

"Ay—a mutual and unexpected pleasure. Just so. I had no thought of coming home until I started, and I arrived here only late last night. Business seldom suites itself to one's convenience."

"Seldom, indeed—very seldom," answered Michael, with a friendly smile, and a look of meaning, which showed that he had taken hope from Mr Bellamy's expression—"and," he continued, "having returned, I presume you spend some time amongst us."

"Not a day, my friend. To-morrow I am on the wing again. I have left a dozen men behind me, who'll hunt me over the country, if I don't rejoin them without delay. No. I am off again to-morrow." (Michael moved uneasily in his chair.) "But, how are you, Mr Allcraft? How are all our friends? Nothing new, I'll venture to say. This world is a stale affair at the best. Life is seen and known at twenty. Live to sixty, and it is like reading a dull book three times over. You had better take a cup of coffee, Mr Allcraft!"

"Thank you—no. You surprise me by your determination."

"Don't be surprised at any thing, Mr Allcraft. Take things as they come, if you wish to be happy."

Michael, very uneasy indeed, wished to make a remark, but he looked at the man in crimson plush, and held his tongue. Mr Bellamy observed him.

"You have something to say? Can I give you any advice, my friend? Pray, command me, and speak without reserve. As much as you please, and as quickly as you please, for I assure you time is precious. In half an hour I have twenty men to see, and twice as many things to do."

Again Michael glanced at the stout footman, who was pretending to throw his mind into the coming week, and to appear oblivious of every thing about him.

"I have a question to ask," proceeded Michael hesitatingly; "but it can be answered in a moment, and at another opportunity—in a little while, when you are *quite* at leisure."

"As you please; only remember I have no end of engagements, and if I am called away I cannot return to you."

Poor Michael! His expectations were again at a fearful discount. The language and demeanor of Mr Bellamy seemed decisive of his intentions. What could he do? What—but fasten on his man, and not suffer him to leave his sight without an explanation, which he dreaded to receive. Mr Bellamy continued to be very polite and very talkative, and to prosecute his repast with unyielding equanimity. At the close of the meal the servant removed the cloth, and departed. At the same instant the landed proprietor rose from his chair, and was about to depart likewise. Michael, alarmed at the movement, touched Mr Bellamy gently on the sleeve, and then, less gently, detained him by the wrist.

"What do you mean, sir?" asked Bellamy, turning sharply upon his partner: "What do you mean? What is your object?"

"Mr Bellamy," said Allcraft, pale as death, and much excited; "you must not go until you have satisfied me on a point of life and death to both of us. Your conduct is a mystery. I cannot explain it. I know not what are the motives which actuate you. These are known to yourself. Let them be so. But I have a question to ask, and you must and shall answer it."

"*Must* and *shall*, Mr Allcraft! Take care—pray, take care of your expressions. You will commit yourself. When will you cease to be a very young man? I will answer voluntarily any questions put to me by any gentleman. *Must* and *shall* never forced a syllable from my lips yet. Now, sir—ask what you please."

"Mr Bellamy," continued Allcraft, "your property is announced for public sale."

"It is," said Bellamy.

"And the announcement has your sanction?"

"It has."

"And with the sum realized by that sale, you propose to"—

Michael stopped, as though he wished his partner to fill up the sentence.

"Go on, sir," said the proprietor.

"With the sum thus realized, I say, you propose to make good the losses which the bank has suffered by your improvidence?"

"Not exactly. Is there any thing else?"

"Oh, Mr Bellamy, you cannot mean what you say? I am sure you cannot. You are aware of our condition. You know that there needs only a breath to destroy us in one moment for ever. At this very time your purpose is known to the world; and, before we can prevent it, the bank may be run upon and annihilated. What will be said of your proceedings? How can you reconcile the answer which you have just now given to me, with your vaunted high sense of honour, or even with your own most worldly interests?"

"Have you finished, sir?" said Bellamy, in a quiet voice.

"No!" exclaimed Michael, in as angry a tone of indignation: "no! I have not finished. I call upon you, Mr Bellamy, to mark my words; to mark and heed them—for, so Heaven help me, I bid you listen to the truth. Quiet and easy as you profess to be, I will be cozened by you no longer. If you carry out your work, your doings shall be told to every human soul within a hundred miles of where you stand. You shall be exhibited as you are. If every farthing got from the sale of this estate be not given up to defray your past extravagance, you shall be branded as you deserve. Mr Bellamy, you have deceived me for many years. Do not deceive yourself now."

"Have you finished, sir?" repeated Mr Bellamy.

"Yes—with a sentence. If you are mad—I will be resolute. Persist in your determination, and the bank shall stop this very night."

"And let it stop," said Bellamy; "by all means let it stop. If it be a necessary, inevitable arrangement, I would not interfere with it for the world. Act, Mr Allcraft, precisely as you think proper. It is all I ask on my own account. I have unfortunately private debts to a very large amount. What is still more unfortunate, they must be paid. I have no means of paying them except by selling my estate, and therefore it must go. I hope you are satisfied?"

Michael threw himself into a chair, and moved about in it, groaning. Mr Bellamy closed the door, and approached him.

"This is a very unnecessary display of feeling, Mr Allcraft," said the imperturbable Bellamy; "very—and can answer no good end. The thing, as

I have told you, is inevitable."

"No—no—no," cried Allcraft, imploringly; "Not so, Mr Bellamy. Think again—ponder well our dreadful situation. Reflect that, before another day is gone, we may be ruined, beggared, and that this very property may be wrested from you by our angry creditors. What will become of us? For Heaven's sake, my dear, good sir, do not rush blindly upon destruction. Do not suffer us to be hooted, trampled upon, despised, cursed by every man that meets us. You can save us if you will—do it then—be generous—be just."

"As for being *just*, Mr Allcraft," replied Bellamy composedly, "the less we speak about that matter the better. Had *justice* been ever taken into account, you and I would, in all probability, not have met on the present business. I cannot help saying, that, when you are ready to justify to me your conduct in respect of your late father's liabilities, I shall be more disposed to listen to any thing you may have to urge in reason touching the produce of this estate. Until that time, I am an unmoved man. You conceive me?"

"Yes," said Michael, changing colour, "I see—I perceive your drift—I am aware—Mr Bellamy," continued the unhappy speaker, stammering until he almost burst with rage. "You are a villain! You have heard of my misfortunes, and you take a mean advantage of your knowledge to crush and kill me. You are a villain and I defy you!"

Mr Bellamy moved leisurely to the fire-place, and rang the bell. The stout gentleman in plush walked in, and the landed proprietor pointed to the door.

"For Mr Allcraft, William," said the squire.

"Very well!" said Michael, white with agitation; "Very well! As sure as you are a living man, your ruin shall be coincident with mine. Not a step shall I fall, down which you shall not follow and be dragged yourself. You shall not be spared one pang. I warn you of your fate, and it shall come sooner than you look for it."

"Pooh, pooh; you have been drinking, Mr. Allcraft."

"You lie, sir, as you have lied for months and years—lived upon lies, and"—

"You need not say another word. You shall finish your sentence, sir, elsewhere. Begone! William, show Mr. Allcraft to the door."

William pretended to look very absent again, and bowed. Michael stared at him for a second or two, as if confounded, and then, like a madman, rushed from the room and house.

CHAPTER VI.

THE CRASH.

The plans and objects of Mr Walter Bellamy were best known to himself. Whatever they might be, he diverged from them for a few hours in order to give his miserable partner the opportunity he had promised him, of completing that very inauspicious sentence—the last which he had uttered in Mr. Bellamy's house previously to his abrupt departure. Michael had not been in the banking-house an hour after his return from the Hall before he was visited by a business-like gentleman, who introduced himself as the particular friend of Mr. Bellamy, on whose particular business he professed to come. Allcraft, with his brain on fire, received the visit of this man with secret glee. All the way home he had prayed that Bellamy might prove as good as his word, and not fail to demand immediate satisfaction. He longed for death with a full and yearning desire, and he could kiss the hand that would be merciful and give the fatal blow. A suicide at heart, it was something to escape the guilt and punishment of self-murder. Bellamy was reputed a first-rate shot. Michael was aware of the fact, and hugged the consciousness to his soul. He would not detract from his reputation; the duellist should add another laurel to his chaplet of *honour*, and purchase it with his blood. He had resolved to fight and fall. It was very evident that the friend of Mr Bellamy expected rather to frighten Michael into a humble and contrite apology, than to find him ready and eager for the battle; for he commenced his mission by a very long and high-flown address, and assured Mr Allcraft, time after time, that nothing but the most ample and the most public *amende* could be received by his friend after what had taken place.

Michael listened impatiently, and interrupted the speaker in the midst of his oration.

"You are quite right, sir," said he. "If an apology is to be made, it should be an ample one. But I decline to make any whatever. I am prepared to give Mr Bellamy all the satisfaction that he asks. I will refer you at once to my friend, and the sooner the affair is settled the better."

"Well, but surely, Mr Allcraft, you must regret the strong expression"—

"Which I uttered to your friend? By no means. I told him that he lied. I repeat the word to you. I would say it in his teeth again if he stood here. What more is necessary?"

"Nothing," said the gentleman, certainly unprepared for Michael's resolution. "Nothing; name your friend, sir."

Michael had already fixed upon a second, and he told his name. His visitor went to seek him, and the poor bewildered man rubbed his hands gleefully, as though he had just saved his life, instead of having placed it in such fearful jeopardy.

That day passed like a dream. The meeting was quickly arranged. Six o'clock on the following morning was the hour fixed. The place was a field, the first beyond the turnpike gate, and within a mile of the city. As soon as Michael made sure of the duel, he saw his confidential clerk. His name was Burrage. He had been a servant in the banking-house for forty years, and had known Michael since his birth. It was he who gave the newspaper into Allcraft's hands, on the first arrival of the latter at the bank that morning. He was a quiet old man of sixty, an affectionate creature, and as much a part of the banking-house as the iron chest, the desk, the counter, or any other solid fixture. He stepped softly into his master's room after he had been summoned there, and he gazed at his unhappy principal as a father might at his own child in misfortune—a beloved and favourite child.

"You are not well this morning, sir," said Burrage most respectfully. "You look very pale and anxious."

"My looks belie me, Burrage. I am very well. I have not been so well for years. I am composed and happy. I have been ill, but the time is past. How old are you, Burrage?"

"Turned threescore, sir; old enough to die."

"Die—die! death is a sweet thing, old man, when it comes to the care-worn. I have had my share of trouble."

"Too much, sir—too much!" said Burrage, his eyes filling with water. "You have half killed yourself here. I am sure your poor father never expected this. Nobody could have expected it in his time, when you were a little, fat, rosy-cheeked boy, running about without a thought, except a thought of kindness for other people."

Michael Allcraft burst into a flood of tears—they gushed faster and faster into his eyes, and he sobbed as only men sob who have reached the climax of earthly suffering and trial.

"Do not take on so, my dear sir," said Burrage, running to him. "Pray, be calm. I am sure you are unwell. You have been ill for some time. You should see a doctor—although I am very much afraid that your disease is beyond their cure—in truth I am."

"Burrage," said Michael in a whisper, and still sighing convulsively—"It is all over. It is finished. Prepare for the crash—look to your own safety. Hide yourself from the gaze of men. It will strike us all dead."

"You frighten me, Mr Allcraft.—You are really very ill. Your brain is overworked—you want a little repose and recreation."

"Yes, you are right Burrage—the recreation of a jail—the repose of a tomb. We will have one, at least—yes, one—and I have made the selection."

"Have you heard any bad news to-day, sir?"

"None—excellent news to-day. No more hopes and fears—no alarms—no lying and knavery—eternal peace now, and not eternal wretchedness."

"Had you not better leave the bank, Mr Allcraft, and go home? Your hands are burning hot. You are in a high fever."

"Put up the shutters—put up the shutters," muttered Michael, more to himself than to his clerk. "Write *bankrupt* on the door—write it in large letters—in staring capitals—that the children may read the word, and know why they are taught to curse me. You hear me, Burrage?"

"I hear what you say, sir, but I do not understand you. You want rest—you are excited."

"I tell you, Burrage, I am quiet—I never was so quiet—never sounder in body and mind. Will you refuse to listen to the truth? Man," he continued, raising his voice and looking the clerk steadily in the face. "I am ruined—a beggar. The bank is at its last gasp. The doors are closed to-night—never to be re-opened."

"God forbid, sir!"

"Why so?—Would you drive me mad? Am I to have no peace—no rest? Am I to be devoured, eaten away by anxiety and trouble? Have you no human blood—no pity for me? Are you as selfish as the rest?"

"Is it possible, sir?"

"It is the truth. But speak not of it. I will have your life if you betray me until the event tells its own tale. We close the door to-night, to open it no more. You hear the words. They are very simple words. Why do you stare so, as if you couldn't guess their meaning?"

"Oh—I have dreaded this—I have suspected it!" said Burrage, wringing his hands; "but it has always seemed impossible. Poor Mr Allcraft!"

"*Poor!*" exclaimed Michael. "Do you begin already? Do you throw it in my teeth so soon? You are in the right, man—go with the stream—taunt me—spit in my face—trample me in the dust!"

"Do not speak unkindly to me, master," said the old clerk. "You will break my heart at once if you do. What you have told me is hard enough to bear in one day."

Michael took the good fellow's hand, and answered, whilst his lips quivered with grief, "It is—it is enough, old friend. Go your ways. Leave me to myself. I have told you a secret—keep it whilst it remains one. Oh, what a havoc! What devastation! Go, Burrage—go—seal your lips—do not breathe a syllable—go to your work."

The clerk went as he was bid, but stupified and stunned by the information he had received. He took his accustomed seat at the desk, and placed a large ledger before him. He was occupied with one trifling account for half the day, and did not finish it at last. A simple sum of compound addition puzzled the man who, an hour before, could have gone through the whole of the arithmetic in his sleep. Oh, boasted intellect of man! How little is it thou canst do when the delicate and feeling heart is out of tune! How impotent thou art! How like a rudderless ship upon a stormy sea! Poor Burrage was helpless and adrift! And Michael sat for hours together alone, in his little room. He was literally afraid to creep out of it. He struggled to keep his mind steadily and composedly fixed upon the fate that awaited him—a fate which he had marked out for himself, and resolved not to escape. He forced himself to regard the great Enemy of Man as *his* best friend—his only comforter and refuge. But just when he deemed himself well armed, least vulnerable, and most secure, the awful *reality* of death—its horrible accompaniments—dissolution, corruption, rottenness, decay, and its still more awful and obscure *uncertainties*, started suddenly before him, and sent a sickening chill through every pore of his unnerved flesh. Then he retreated from his position—fled, as it were, for life, and dared not look behind, so terrible was the sight of his grim adversary. He leaped from his chair, as if unable to sit there; and, whilst he paced the room, he drew his breath, as though he needed air for respiration—his heart throbbed, and his brain grew tight and hot within his skull. The fit passing away, Michael hastened to review the last few years of his existence, and to bribe himself to quietness and resignation, by contrasting the hateful life which he had spent with the desirable repose offered to him in the grave; and by degrees the agitation ceased—the alarm subsided, and the deluded man was once

more cozened into hardened and unnatural tranquillity. In this way flew the hours—one train of feeling succeeding to another, until the worn-out spirit of the man gave in, and would be moved no longer. At last, the unhappy banker grew sullen and silent. He ceased to sigh, and groan, and weep. His brain refused to think. He drew his seat to the window of the room, which permitted him, unperceived, to observe the movements in the bank—and, folding his arms, he looked doggedly on, and clenched his teeth, and frowned. He saw the fortunate few who came for money and received it—and the unfortunate many, who brought their money—left, and lost it. He was indifferent to all. He beheld—as the spirits fair may be supposed to look upon the earth a moment before the sweeping pestilence that comes to thin it—life, vigorous and active, in that house of business, whose latest hour had come—whose knell was already sounding; but it moved him not. He heard men speak his name in tones of kindness, whose lips on the morrow would deal out curses. He saw others, hat in hand, begging for an audience, who would avoid him with a sneer and a scorning when he passed them in the street. He looked upon his own servants, who could not flatter their master too highly to-day, and would be the first to-morrow to cry him down, and rail against his unpardonable extravagance and recklessness; but he heeded nothing. His mind had suspended its operations, whilst his physical eye stared upon vacancy.

It was very strange. He continued in this fashion for a long time, and suddenly sensibility seemed restored to him; for an ashy paleness came over him—his eyelid trembled, and his lips were drawn down convulsively, as if through strong and heavy grief. He rose instantly, rushed to the bell, and rang it violently.

Burrage came to answer it.

"Monster!" exclaimed his master, gazing at him spitefully, "have you no heart—no feeling left within you? How could you do it?"

"Do what, sir?"

"Rob that poor old man. Plunder and kill that hoary unoffending creature. Why did you take his miserable earnings? Why did you rob his little ones? Why clutch the bread from his starving grandchildren? He will die of a

broken heart, and will plead against me at the judgment-seat. Why was that old man's money taken?"

"We must take all, or nothing, sir. You forbade me to speak a syllable."

"Speak—speak! Yes, but could you not have given him a look, one merciful look, to save his life, and my soul from everlasting ruin? You might, you could have done it, but you conspire to overthrow me. Go—but mark me—breathe not a word, if you hope to live."

The poor clerk held up his hands, shook them piteously, sighed, and went his way again.

It was six o'clock in the evening, and every soul connected with the bank, except Michael and Burrage, had left it. They were both in the private room, which the former had not quitted during the day. Michael was writing a letter; the clerk was standing mournfully at his side. When the note was finished, directed, and sealed, Allcraft turned to his old friend and spoke—

"I shall not sleep at home to-night, Burrage. I have business which must be seen to."

"Indeed, sir, you had better go home. You are very unwell."

"Silence, once more. I tell you, Burrage, it cannot be. This business must not be neglected. I have written to Mrs Allcraft, explaining the reason of my absence. You will yourself deliver the letter to her, with your own hands, Burrage. You hear me?"

"Yes, sir," faltered Burrage, wishing himself deaf.

"Very well. I have no more to say. Good-by—good-night."

"Good-night, sir," said the man, walking slowly off.

"Stay, Burrage. You are a true old friend—my oldest. Give me your hand. I have spoken unkindly—very harshly and cruelly to-day. Do not think ill of me. My temper has been soured by the troubles of life. You forgive me for my anger—do you not?"

The old man did not answer. He could not. He held the hand of his master tightly in his own. He drew it to his lips and kissed it; and then, ashamed not of the act, but of his unmanly tears, he walked slowly to the door, and quitted the room—his head bending to the earth, whence it never again was raised.

Two hours later Michael was many miles away. He had followed to his humble home the aged man who had that morning paid his substance into the bank. Much as he had to answer for, Michael could not bear to carry about with him the knowledge that he had ruined and destroyed the grey-haired labourer. Why and how it was that he felt so acutely for the stranger, and selected him from the hundreds who were beggared by his failure, it is impossible to guess. It is certain that he restored every sixpence that had been deposited in the morning, and could not die until he had done so. Where Allcraft passed the night was never known. He was punctual to his appointment on the following morning; and so was Mr Bellamy. It is due to the latter to state, that, at the latest moment, he was willing, as far as in him lay, to settle the difference without proceeding to extreme measures. All that a man could offer, who did not wish to be suspected of rank cowardice, he offered without reservation. But Allcraft was inexorable. He repeated his insult on the field; and there was nothing to be done but to make him accountable for his words at the point of the pistol—to receive and give THE SATISFACTION OF A GENTLEMAN. Whatever satisfaction the mangled corpse of a man whom he had deeply injured, could afford the high-born Mr Bellamy, that gentleman enjoyed in a very few minutes after his arrival; for he shot his antagonist in the mouth, saw him spinning in the air, and afterwards lying at his feet—an object that he could not recognize—a spectacle for devils to rejoice in. Happy the low-born man who may not have or feel such exquisite and noble SATISFACTION!

Allcraft was not cold before Mr Bellamy was at sea, sailing for France. The latter had not put his feet upon foreign soil, before his property was seized by hungry creditors. The bank was closed. Burrage himself pasted on the shutters the paper that notified its failure. Augustus Theodore Brammel heard of the stoppage whilst he was at breakfast, sipping chocolate; and greatly he rejoiced thereat. His delight was sensibly diminished in the course of the morning, when he received a letter informing him of his

father's death, and an intimation from a lawyer, that every farthing which he inherited would be taken from him, as goods and chattels, for the discharge of claims which the creditors of the bank might have against him. Later in the day, he heard of Allcraft's death and Bellamy's escape, and then he rushed into a chemist's shop and bought an ounce of arsenic; but after he had purchased it, he had not heart enough to swallow it. Enraged beyond expression—knowing not what to do, nor upon whom to vent his rage—it suddenly occurred to him to visit Mrs Allcraft, and to worry her with his complaints. He hurried to her house, and forced himself into her presence. We will not follow him, for grief is sacred; and who that had the heart of man, would desecrate the hearth hallowed by affliction, deep and terrible as that of our poor Margaret?

CHAPTER VII.

THE VICARAGE.

Our history began at the Vicarage; there let it end. It is a cheerful summer's morning, and Margaret sits in the study of her friend Mr. Middleton, who has learned to look upon his charge as upon a daughter. She is still attired in widow's weeds, but looks more composed and happy than when we saw her many months ago there.

"You will not leave us, then," said the good vicar; "we have not tired you yet?"

"No," answered Margaret, with a sweet contented smile, "here must I live and die. My duties will not suffer me to depart, even were I so inclined. What would my children do?"

"Ah, what indeed? The school would certainly go to rack and ruin."

"And my old friends, the Harpers and the Wakefields?"

"Why, the old ladies would very soon die of a broken heart, no doubt of it; and then, there's our dispensary and little hospital. Why, where should we look for a new apothecary?"

"These are but the worst days of my life, Mr. Middleton, which I dedicate to usefulness. How am I to make good the deficiency of earlier years?"

"By relying, my dear madam, upon the grace and love of Heaven, who in mercy regards not what we have been, but what we are."

"And is there pardon for so great a sinner?"

"Doubt it not, dear lady. Had you not been loved, you never would have been chastised—you would never have become an obedient and willing child. Be sure, dear Mrs Allcraft, that having repented, you are pardoned and reconciled to your Father. Pray, hold fast to this conviction. You have reason to believe it; for truly *you have not despised the chastening of the Lord, nor fainted when you were rebuked of him.*"

KÍEFF.

TRANSLATED FROM THE RUSSIAN OF IVÁN KOZLÓFF.
BY T.B. SHAW.

O Kiéff! where religion ever seemeth
To light existence in our native land;
Where o'er Petchérskoi's dome the bright cross gleameth,
Like some fair star, that still in heaven doth stand;
Where, like a golden sheet, around thee streameth
Thy plain, and meads that far away expand;
And by thy hoary wall, with ceaseless motion,
Old Dniéper's foaming swell sweeps on to ocean.

How oft to thee in spirit have I panted,
O holy city, country of my heart!
How oft, in vision, have I gazed enchanted
On thy fair towers—a sainted thing thou art!—
By Lávra's walls or Dniéper's wave, nor wanted
A spell to draw me from this life apart;
In thee my country I behold, victorious,
Holy and beautiful, and great and glorious.

The moon her soft ray on Petchérskoi poureth,
Its domes are shining in the river's wave;
The soul the spirit of the past adoreth,
Where sleeps beneath thee many a holy grave:
Vladímir's shade above thee calmly soareth,
Thy towers speak of the sainted and the brave;
Afar I gaze, and all in dreamy splendour
Breathes of the past—a spell sublime and tender.

There fought the warriors in the field of glory,
Strong in the faith, against their country's foe;

And many a royal flower yon palace hoary,
In virgin loveliness, hath seen to blow.
And Báyan sang to them the noble story,
And secret rapture in their breast did glow;
Hark! midnight sounds—that brazen voice is dying—
A day to meet the vanish'd days is flying.

Where are the valiant?—the resistless lances—
The brands that were as lightning when they waved?
Where are the beautiful—whose sunny glances
Our fathers, with such potency, enslaved?
Where is the bard, whose song no more entrances?
Ah! that deep bell hath answer'd what I craved:
And thou alone, by these grey walls, O river!
Murmurest, Dniéper, still, and flow'st for ever.

MARSTON; OR, THE MEMOIRS OF A STATESMAN.

PART VII.

Have I not in my time heard lions roar?
Have I not heard the sea, puft up with wind,
Rage like an angry boar chafed with sweat?
Have I not heard great ordnance in the field,
And heaven's artillery thunder in the skies?
Have I not in the pitched battle heard
Loud 'larums, neighing steeds, and trumpets clang?"

SHAKSPEARE.

At daybreak, the bustle of the camp awoke me. I rose hastily, mounted my horse, and spurred to the rendezvous of the general staff. Nothing could be more animated than the scene before me, and which spread to the utmost reach of view. The advance of the combined forces had moved at early dawn, and the columns were seen far away, ascending the sides of a hilly range by different routes, sometimes penetrating through the forest, and catching the lights of a brilliant rising sun on their plumes and arms. The sound of their trumpets and bands was heard from time to time, enriched by the distance, and coming on the fresh morning breeze, with something of its freshness, to the ear and the mind. The troops now passing under the knoll on which the commander-in-chief and his staff had taken their stand, were the main body, and were Austrian, fine-looking battalions, superbly uniformed, and covered with military decorations, the fruits of the late Turkish campaigns, and the picked troops of an empire of thirty millions of men. Nothing could be more brilliant, novel, or picturesque, than the display of this admirable force, as it moved in front of the rising ground on which our *cortège* stood.

"You will now see," said Varnhorst, who sat curbing, with no slight difficulty, his fiery Ukraine charger at my side, "the troops of countries of which Europe, in general, knows no more than of the tribes of the new world. The Austrian sceptre brings into the field all the barbaric arms and costumes of the border land of Christendom and the Turk."

Varnhorst, familiar with every service of the continent, was a capital cicerone, and I listened with strong interest as he pronounced the names, and gave little characteristic anecdotes, of the gallant regiments that successively wheeled at the foot of the slope—the Archducal grenadiers—the Eugene battalion, which had won their horse-tails at the passage of the Danube—the Lichtensteins, who had stormed Belgrade—the Imperial Guard, a magnificent corps, who had led the last assault on the Grand Vizier's lines, and finished the war. The light infantry of Maria Theresa, and the Hungarian grenadiers and cuirassiers, a mass of steel and gold, closed the march of the main body. Nothing could be more splendid. And all this was done under the perpetual peal of trumpets, and the thunder of drums and gongs, that seemed absolutely to shake the air. It was completely the Miltonic march and harmony—

"Sonorous metal blowing martial sounds."

But I was now to witness a still more spirit-stirring scene.

The trampling of a multitude of horse, and the tossing of lances and banners in the distance, suddenly turned all eyes in their direction.

"Now, prepare," said the Count, "for a sight, perhaps not altogether so soldierlike, but fully as much to my taste, as the buff-belt and grenadiers'-cap formality of the line. You shall see the Austrian flankers—every corps equipped after its native fashion. And whatever our martinets may say, there is nothing that gives such spirits to the soldier, as dressing according to the style of his own country. My early service was in Transylvania; and if I were to choose troops for a desperate service, I say—give me either the man of the hill, or the man of the forest, exactly in the coat of the chamois-shooter, or the wolf-hunter."

He had scarcely pointed my attention to the movement, when the whole body of the rearguard was in full and rapid advance. The plain was literally covered with those irregulars, who swept on like a surge, or rather, from the diversity of their colours, and the vast half-circle which they formed on the ground, a living rainbow. Part were infantry and part cavalry, but they were so intermingled, and the motion of all was so rapid, that it was difficult to mark the distinction. From my recollection of the history of the Seven Years' War, I felt a double interest in the sight of the different castes and classes of the service, which I had hitherto known only by name. Thus passed before me the famous Croatian companies—the Pandours, together forming the finest outpost troops of the army—the free companies of the Tyrol, the first marksmen of the empire, a fine athletic race, with the eagle's feather in their broad hats, and the sinewy step of the mountaineer—the lancers of the Bannat, first-rate videttes, an Albanian division, which had taken service with Austria on the close of the war; and, independently of all name and order, a cloud of wild cavalry, Turk, Christian, and barbarian, who followed the campaign for its chances, and galloped, sported, and charged each other like the Arabs of the desert.

The late triumphs of the Imperial arms in Turkey had even enhanced the customary display, and the standards of the cavalry and colours of the battalions, were stiff with the embroidered titles of captured fortresses and conquered fields. Turkish instruments of music figured among the troops, and the captive horse-tails were conspicuous in more than one corps, which had plucked down the pride of the Moslem. The richness and variety of this extraordinary spectacle struck me as so perfectly Oriental, that I might have imagined myself suddenly transferred to Asia, and looked for the pasha and his spahis; or even for the rajah, his elephants, and his turbaned spearmen. But all this gay splendour has long since been changed. The Croats are now regulars, and all the rest have followed their example.

My admiration was so loud, that it caught the ear of the duke. He turned his quick countenance on me, and said—"Tell our friends at home, M. Marston, what you have seen to-day. I presume you know that Maria Theresa was a first-rate soldier; or, at least, she had the happy art of finding them. You may see Laudohn's hand in her battalions. As for the light troops, Europe can show nothing superior in their kind. Trenk's Pandours, and Nadasti's

hussars were worth an army to Austria, from the first Silesian war down to the last shot fired in Germany. But follow me, and you shall see the work of another great master."

We spurred across the plain to the mouth of a deep, wooded defile, through which the Prussian grand *corps d'armée* were advancing. The brigades which now met our view were evidently of a different character from the Austrian; their uniforms of the utmost simplicity; their march utterly silent; the heads of the columns observing their distances with such accuracy, that, on a signal, they could have been instantly formed in order of battle; every movement of the main body simply directed by a flag carried from hill to hill, and even the battalion movements marked by the mere waving of a sword. Even their military music was of a peculiarly soft and subdued character. On my observing this to Varnhorst, his reply was—"That this was one of the favourite points of the Great Frederick. 'I hate drums in the march,' said the king, 'they do nothing but confuse the step. Every one knows that the beat at the head of the column takes time to reach the rear. Besides, the drum deafens the ear. Keep it, therefore, for the battle, when the more noise the better.' He also placed the band in the centre of the column. 'If they are fond of music,' said he, 'why should not every man have his share?'"

The steady advance, the solid force, and the sweet harmony, almost realized the noble poetic conception—

"Anon they move
In perfect phalanx, to the Dorian mood
Of flutes and soft recorders, such as raised
To heights of noblest temper heroes old
Arming to battle; and instead of rage,
Deliberate valour breathed, firm and unmoved
With dread of death to flight or foul retreat."

It is true that they wanted the picturesque splendour of ancient warfare. The ten thousand banners, with orient colours waving, the "forest huge of spears," the "thronging helmets," and "serried shields, in thick array of depth immeasurable." But if the bayonet, the lance, and even the cannon offered less to the eye, the true source of the grandeur of war was there—the power,

the tremendous impulse, the *materiel* of those shocks which convulse nations—the marshalled strength, fierce science, and stern will, before which the works of man perish like chaff before the wind, and the glory of nations vanishes like a shade.

While the last of the troops were defiling before the duke and his staff, a courier brought up despatches.

"Gentlemen," said the duke, after glancing at one of the papers, "the army of the Prince de Condé is in march to join us. They have already reached the neighbourhood. We must now lose no time. M. Marston, you will report to your Government what you have seen to-day. We *are* in march for Paris."

Varnhorst and Guiscard were now summoned to the side of the duke; a spot was found where we might shelter ourselves from the overpowering blaze of the sun; the successive despatches were opened; a large map of the routes from Champagne to the capital was laid on the ground; and we dismounted, and, sitting together, like old comrades, we held our little council of war.

"I can make nothing of my French correspondents in general," said the duke, after perusing a long letter, "but M. le Comte writes like Cagliostro. He has evidently some prodigious secret, which he is determined to envelope in still deeper secrecy. He tells me that La Fayette has fled; but when, where, or for what purpose, is all equally an enigma. In one sentence of his letter he would persuade me that all France is disorganized, and in the next, that it is more resolved to resist than ever. Paris is prepared to rise at the first sight of the white flag, and Paris is sending out six thousand men every three hours to join the republican force in the field. Paris is in despair. Paris is in furious exultation. How am I to understand all this? Even in his postscript he tells me, in one breath, that the whole of the strong places in our front are filled with national guards, and that no less than seven corps of troops of the line are prepared to fight us in the plains of Champagne; and that we have only to push on to take the towns—charge the troops of the line to see them disperse—and advance within ten leagues of Paris to extinguish the rebellion, set the royal family free, and restore the monarchy."

The mysterious letter was handed round our circle in succession, and seemed equally beyond comprehension to us all. We had yet to learn the temperament of a capital, where every half-hour produced a total change of the popular mind. The letter, fantastically expressed as it was, conveyed the true condition of the hour. The picture was true, but the countenance changed every moment. He might as well have given the colours of cloud.

I had now entered on a course of adventure the most exciting of all others, and at the most exciting time of life. But all the world round me was in a state of excitement. Every nation of Europe was throwing open its armoury, and preparing its weapons for the field. The troops invading France were palpably no more than the advanced guards of Prussia and Austria. Even with all my inexperience, I foresaw that the war would differ from all the past; that it would be, not a war of tactics, but a war of opinion; that not armies, but the people marshalled into hosts, would be ultimately the deciders of the victory; and that on whichever side the popular feeling was more serious, persevering, and intense, there the triumph would be gained. I must still confess, however, in disparagement to my military sagacity, that I was totally unprepared for the gallant resistance of the French recruits. What can they do without officers?—ten thousand of whom had been noblesse, and were now emigrants? What can they do without a commissariat, what can they do without pay, and who is to pay them in a bankrupt nation? Those were the constant topics at headquarters. We were marching to an assured victory. France was at an end. We should remodel the Government, and teach the *sans culottes* the hazard of trying the trade of politicians.

There was but one man in the camp who did not coincide in those glittering visions. Let me once more do justice to a prince whose character has been affected by the caprices of fortune. The Duke of Brunswick's language to me, as we saw the Tricolor waving on the walls of Longwy, the first fortress which lay in our road, was—"Sir, your court must not be deceived. We shall probably take the town, and defeat its wavering army; but up to this moment, we have not been joined by a single peasant. The population are against us. This is not a German war; it is more like yours in America. I have but one hundred and twenty thousand men against twenty-five millions." To my remark, "that there might be large body of concealed

loyalty in France, which only waited the advance of the Allies to declare itself," his calm and grave reply was: "That I must not suffer my Government to suppose him capable of abandoning the royal cause, while there was hope in military means. That it was his determination to hazard all things rather than chill the coalition. But this let me impress upon your Ministry," said he, with his powerful eye turned full on me; "that if intrigue in the German cabinets, or tardiness on the part of yours, shall be suffered to impede my progress, all is at an end. I know the French; if we pause, they will pour on. If we do not reach Paris, we must prepare to defend Berlin and Vienna. If the war is not ended within a month, it may last for those twenty years."

The commander-in-chief was true to his word. He lost no time. Before night our batteries were in full play upon the bastions of Longwy, and as our tents had not yet overtaken us, I lay down under a vineyard shed in a circle of the staff, with our cloaks for our pillows, listening to the roar of our artillery; until it mingled with my dreams.

We were on horse an hour before daybreak, and the cannonade still continued heavy. It was actively returned, and the ramparts were a circuit of fire. As a spectacle, nothing could be more vivid, striking, and full of interest. To wait for the slow approaches of a formal siege was out of the question. Intelligence had reached us that the scattered French armies, having now ascertained the point at which the burst over the frontier was to be made, had been suddenly combined, and had taken a strong position directly in our way to the capital. A protracted siege would raise the country in our rear, and, thus placed between two fires, the grand army might find itself paralysed at the first step of the campaign. The place must be battered until a breach was made, and stormed *à la Turque*. Our anxiety during the day was indescribable. With our telescopes constantly in our hands, we watched the effect of every new discharge; we galloped from hill to hill with the impatience of men in actual combat, and every eye and tongue was busy in calculating the distances, the power of guns, and the time which the crumbling works would take to fill up the ditch. The reports of the engineers, towards evening, announced that a practicable breach was made, and three battalions of Austrian grenadiers, and as many of Prussians, were ordered under arms for the assault. To make this gallant enterprize more

conspicuous, the whole army was formed in columns, and marched to the heights, which commanded a view of the fortress. The fire from the batteries now became a continued roar, and the guns of Longwy, whose fire had slackened during the day, answered them with an equal thunder; the space between was soon covered with smoke, and when the battalions of grenadiers moved down the hillside, and plunged into the valley, they looked like masses of men disappearing into the depths of ocean. The anxiety now grew intense. I hardly breathed; and yet I had a mingled sensation of delight, eagerness, and yet of uncertainty, to which nothing that I had ever felt before was comparable. I longed to follow those brave men to the assault, and probably would have made some such extravagant blunder, but for seeing Varnhorst's broad visage turned on me with a look of that quiet humour which, of all things on earth, soonest brings a man to his senses. "My good friend," said he, "however fine this affair may be, live in hope of seeing something finer. Never be shot at Longwy, when you may have a chance of scaling the walls of Paris. I have made a vow never to be hanged in the beginning of a revolution, nor to be shot in the beginning of a war. But come, the duke is beckoning to us. Let us follow him."

We saw the general and his staff galloping from the ground where he had remained from the beginning of the assault, to a height still more exposed, and where the guns from the fortress were tearing up the soil. From this spot a large body of troops were seen rushing from the gate of the fortress, and plunging into the valley. The result of this powerful sortie was soon heard, for every thing was invisible under the thick cloud, which grew thicker every moment, in the volleys of musketry, and the shouts of the troops on both sides. Varnhorst now received an order from the chief of the staff, which produced its effect, in the rush of a squadron of Prussian cavalry on the flank of the enemy's column. In a few minutes it was broken, and we saw its wrecks swept along the side of the hill. An universal shout was sent up from the army, and our next sight was the ascent of the Austrian and Prussian standards, gradually rising through the smoke, and making their way towards the glacis. They had reached the foot of the breach, when the fire of the town suddenly ceased. A white flag waved on the rampart, and the drums of the garrison beat the *chamade*. Longwy had surrendered! All now was triumph and congratulation. We flocked round the duke, and hailed his first conquest as a promise of perpetual success. He was in high

spirits at an achievement which was so important to the national impression of his talents and resources. The sortie of the garrison had given the capture an *éclât* which could not have been obtained by the mere surrender of a strong place. But the most important point of all was, the surrender before the assault. "The sight of our troops is enough," was the universal conclusion. If the fortified barrier of France cannot resist, what will be done by troops as raw as peasants, and officers as raw as their troops? The capitulation was a matter of half an hour, and by nightfall I followed the duke and his escort into the town. It was illuminated by order of the conquerors, and, whether *bongrè* or *malgrè*, it looked showy; we had gazers in abundance, as the dashing staff caracoled their way through the streets. I observed, however, that we had no acclamations. To have hissed us, might be a hazardous experiment, while so many Hulans were galloping through the Grande Rue; but we got no smiles. In the midst of the crowd, I met Varnhorst steering his charger with no small difficulty, and carrying a packet of notes in his hand. "Go to your quarters, and dress," said my good-humoured friend. "You will have a busy night of it. The duke has invited the French commandant and his officers to dine with him, and we are to have a ball and supper afterwards for the ladies. Lose no time." He left me wondering at the new world into which I had fallen, and strongly doubting, that he would be able to fill up his ball-room. But I was mistaken. The dinner was handsomely attended, and the ball more handsomely still. "Fortune de la guerre," reconciled the gallant captains of the garrison to the change; and they fully enjoyed the contrast between a night on the ramparts, and the hours spent at the Prussian generalissimo's splendidly furnished table. The ball which followed exhibited a crowd of the *belles* of Longwy, all as happy as dress and dancing could make them. It was a charming episode in the sullen history of campaigning, and before I flung myself on the embroidered sofa of the mayor's drawing-room, where my billet had been given for the night, I was on terms of eternal "friendship" with a whole group of classic beauties—Aspasias, Psyches and Cleopatras.

But neither love nor luxury, neither the smiles of that fair *Champagnaises*, nor the delight of treading on the tessellated floors, and feasting on the richness of municipal tables, could now detain us. We were in our saddles by daybreak, and with horses that outstripped the wind, with hearts light as air, and with prospects of endless victory and orders and honours

innumerable before us, we galloped along, preceded, surrounded, and followed by the most showy squadrons that ever wore lace and feathers. The delight of this period was indescribable. It was to me a new birth of faculties that resembled a new sense of being, a buoyant and elastic lightness of feelings and frame. The pure air; the perpetual change of scene; the novelty of the landscape; the restless and vivid variety of events, and those too of the most powerful and comprehensive nature; the superb display of the finest army that the Continent had sent to war for the last hundred years; and all this excitement and enjoyment, with an unrivaled vista of matchless conquest in the horizon, a triumphal march through the provinces, to be consummated by the peace of Europe in Paris, filled even my vexed and wearied spirit with new life. If I am right in my theory, that the mind reaches stages of its growth with as much distinctness as the frame, this was one of them. I was conscious from this time of a more matured view of human being, of a clearer knowledge of its impulses, of a more vigorous, firm, and enlarged capacity for dealing with the real concerns of life. I still loved; and, strange, hopeless, and bewildering as that passion was in the breast of one who seemed destined to all the diversities of fortune—it remained without relief, or relaxation through all. It was the vein of gold, or perhaps the stream of fire, beneath the soil, inaccessible to the power of change on the surface, but that surface undergoing every impulse and influence of art and nature.

The army now advanced unopposed. Still we received neither cheers nor reinforcements from the population. Yet we had now begun to be careless on the topic. The intelligence from Paris was favourable in all the leading points. The king was resuming his popularity, though still a prisoner. The Jacobins were exhibiting signs of terror, though still masters of every thing. The recruits were running away, though the decree for the general rising of the country was arming the people. In short, the news was exactly of that checkered order which was calculated to put us all in the highest spirits. The submission of Paris, at least until we were its conquerors, would have deprived us of a triumph on the spot, and the proclamation of a general peace would have been received as the command for a general mourning.

The duke was in the highest animation, and he talked to every one round him, as we marched along, with more than condescension. He was easy,

familiar, and flushed with approaching victory. "We have now," said he, "broken through the 'iron barrier,' the pride of Vauban, and the boast of France for these hundred years. To-morrow Verdun will fall. The commandant of Thionville, in desperation at the certainty of our taking the town by assault, has shot himself, and the keys are on their way to me. Nothing but villages now lie in our road, and once past those heights," and he pointed to a range of woody hills on the far horizon, "and we shall send our light troops *en promenade* to Paris." We all responded in our various ways of congratulation.

"Apropos," said the duke, applying to me, "M. Marston, you have been later on the spot than any of us. What can you tell of this M. Dumourier, who, I see from my letters, is appointed to the forlorn hope of France—the command of the broken armies of Lafayette and Luckner?"

My answer was briefly a hope that the new general would be as much overmatched by the duke's fortunes in the field, as he had been by party in the capital. "Still, he seemed to me a clever, and even a remarkable man, however inexperienced as a soldier."

"If he is the officer of that name who served in the last French war, he is an old acquaintance of mine," observed the duke. "I remember him perfectly. He was a mere boy, who, in a rash skirmish with some of our hussars, was wounded severely and taken prisoner. But as I learned that he was the son of a French *literateur* of some eminence whom I had met in Paris, and as I had conceived a favourable opinion of the young soldier's gallantry, I gave him his parole and sent him back to his family, who, I think, were Provencals. He was unquestionably spirited and intelligent, and with experience might make either minister or general; but as he has begun by failure in the one capacity, it will be our business to show him that he may find success equally difficult in another. At all events, we have nothing but this minister-general between us and Notre-Dame. He has taken up a position on the Argonne ridge in our front. To force it will be but an affair of three hours. Adieu, gentlemen." He put spurs to his horse, and galloped to one of the columns which approached with trumpets sounding, bearing the captured banner of the church tower of Longwy.

The world was now before us, and we enjoyed it to the full. Varnhorst and I were inseparable, and feasted on the scene, the gaiety, the oddity of the various characters, which campaigning develops more than any mode of existence. The simple meal, the noon-rest under a tree, the songs of our troopers, the dance in the villages, as soon as the peasantry had discovered that we did not eat women and children—even the consciousness of a life wholly without care, formed a delicious state of being. "If this is the life of the Arab," I often was ready to exclaim, "what folly would it be in him to leave the wilderness! If the Esquimaux can sleep through one half of the year and revel through the other, is he not the true philosopher in the midst of his frost and snow?" Guiscard, who sometimes joined our party, was now and then moved to smile at our unripe conceptions of the nature of things. But we laughed at his gravity, and he returned to pore over the mysteries of that diplomacy which evidently thickened on him hour by hour. I recollect, however, one of his expressions—"My friend, you think that all the battle is to be fought in front: I can assure you that a much more severe battle is to be fought in the rear. Argonne will be much more easily mastered than the King's closet and the Aulic Council." We had good reason to remember the oracle.

One morning as, with half a dozen hussars, I was ranging the thickets on the flank of the advance, with the spirit of an English fox-hunter, on reaching the summit of a rising ground, I saw, some miles off, a party of horsemen making their way at full speed across the country. The perfect level of the plains, particularly in Champagne, makes the ground as open as a race-course. I called my hussars, and we galloped forward to intercept. On seeing us, they slackened their speed, and were evidently in consultation. At length the sight of our uniforms reassured them, and one of their number came forward to meet us. To our enquiry, the answer was, that "General Lafayette desired to be led to the headquarters." I now saw this memorable man for the first time, and was busy, in my usual style, in looking for the hero or the revolutionist in his physiognomy. I was disappointed in both. I saw a quiet visage, and a figure of moderate size, rather *embonpoint*, and altogether the reverse of that fire-eyed and lean-countenanced "Cassius" which I had pictured in my imagination. But his manners perplexed me as much as his features. They were calm, easy, and almost frank. It was impossible to recognize in him the Frenchman, except by his language; and

he was the last man in whom I could ever have detected that pride of the theatre, the "French *marquis*." His manners were English, and I had a fellow-feeling for him even in our short ride to the camp, and congratulated myself on being thrown into the intercourse of one who had played so conspicuous a part in the most conspicuous scene of our day.

But on his introduction to the duke, my ardour received a sudden chill. I saw instantly, by the utter absence of all cordiality in his reception, that the French fugitive had taken a dangerous step, and that his Parisian ill fortune had deprived his retreat of all merit in the sight of the commander-in-chief. My doubts were soon confirmed by a message from his tent. I obeyed; and as I passed the lines, saw Lafayette surrounded by a troop of Hulans of the Guard. I found the duke pacing uneasily in front of the tent.

"M. Marston," said he, with a vexed manner, "your capture of this morning has added to our perplexities. You acted zealously, and with the spirit that distinguishes your nation; but I heartily wish that M. La Fayette had taken any other direction than towards us. His fall has been contemplated for some time, and even the possibility of his being arrested by some of our parties. I have received a communication from the Allied cabinets on the contingency; and the question now is, how to execute my order without public weakness or personal severity."

I proposed to accompany him, while we were on the march, and to pledge myself for his honour when we arrived at quarters.

"Generously offered," was the reply. "But my duty, in the first instance, prohibits his remaining in the camp; and in the next, my feelings for himself would spare a man who has commanded the enemy's troops, the sight of that actual collision which must immediately take place. We attack the defiles of the Argonne to-morrow."

He entered the tent, wrote a few lines, and returned to me.

"M. Lafayette must consider himself as a prisoner; but as my wish is to treat him with honour, I must beg of you, M. Marston, to take charge of him for the time. Your offer has relieved me from an embarrassment; and I shall take care to make honourable mention of your conduct in this instance, as in

all others, to both the courts of Berlin and St James's. The marquis must be sent to Berlin, and I must request that you will be ready to set out with him this evening."

The sound was a thunder-stroke. "This evening!" when the decisive action of the war was to be fought next morning. "To Berlin!" when all my gallant friends were to be on the march to Paris. Impossible! I retracted my offer at once. But the prince, not accustomed to be resisted, held his purpose firmly; representing that, as the French general was actually *my* prisoner, and as *my* court was equally interested with those of the Allied powers, in preventing his return to embroil France, "it was my duty, as her commissioner, to see that the measure was effectively performed." But the appearance of leaving the army, on the very eve of important service, was not to be argued, or even commanded, away. The duke was equally inflexible, though his sentences were perhaps shorter than mine; and I finally left his presence, declaring, that if the request were persisted in, I should throw up my commission at once, volunteer as a common trooper into the first squadron which would admit me, and then, his highness, might, of course, order me wherever he pleased."

A stately smile was the answer to this tirade. I bowed, and retired.

Within a hundred yards I met my two friends, Varnhorst and Guiscard, and poured out my whole catalogue of wrongs at once. Varnhorst shared my indignation, fiercely pulled his thick mustaches, and muttered some phrases about oppression, martinetism, and other dangerous topics, which fortunately were scattered on the air. Guiscard neither raged nor smiled, but walked into the ducal tent. After a few minutes he returned, and then his sallow countenance wore a smile. "You have offended the duke desperately," said he. "And as a sovereign prince, I dare say that banishment from his territories for life would be the least reparation; but as a general, we think that we cannot have too many good troops, and your proposal to take a Hulan's lance and pistol in your hand, is irresistible. In short, he receives you as a volunteer into his own hussars, and as you are henceforth at his disposal, he orders."—My tormentor here made a malicious pause, which threw me into a fever. I gazed on his countenance, to anticipate his mission. It wore the same deep and moveless expression. "His highness

orders, that you shall escort, with a squadron, General Lafayette, to the Chateau, our former headquarters, and where we first met; there deliver over the Frenchman to an officer of the staff, who will be in readiness to escort him further; and, in the mean time, if the very fiery and independent M. Marston should have no objection to travel at night, he may return, and be in time for whatever is to be done here to-morrow."

"Bravo, bravo!" exclaimed good-natured Varnhorst. "Guiscard, you are the first of negotiators!"

"No," was the quiet reply. "I pretend to nothing more than the art of being a good listener. I merely waited until the duke had spoken his will, and then interposed my suggestion. It was adopted at once; and now our young friend has only to ride hard to-night, and come to shade his brow with a share of any laurels which we may pluck in the forest of Argonne, in the next twenty-four hours."

I was enraptured—the communication was made in the most courteous manner to the marquis. He had at once perceived the difficulties of his position, and was glad to leave them behind as far as possible. Our escort was mounted within a few minutes, and we were in full gallop over the fruitful levels of Champagne.

To speed of this order, time and space were of little importance; and with the rapidity of a flock of falcons, we reached the foot of the noble hill, on which, embosomed in the most famous vineyards of the vine country, stood the Chateau. It was blazing with lights, and had evidently lost nothing of its population by the change of headquarters. We were soon brought to a stand by a challenge in French, and found that we were no longer among the jovial Jägers of Deutchland. We had fallen in with the advanced corps of the Emigrant army under the command of the Prince of Condé.

Here was a new dilemma. Our prisoner's was perhaps the most startling name which could have been pronounced among those high-blooded and headlong men. The army was composed almost wholly of the *noblesse*; and Lafayette, under all his circumstances of birth, sentiments, and services, had been the constant theme of noble indignation. The champion of the American Republic, the leader of the Parisian movement, the commandant

of the National Guard, the chief of the rebel army in the field—all was terribly against him. Even the knowledge of his fall could not have appeased their resentment; and the additional knowledge that he was within their hands, might have only produced some unfortunate display of what the philosopher calls "wild justice." In this difficulty, while the officer of the patrol was on his way to the Chateau to announce our coming, I consulted the captain of my escort. But, though a capital *sabreur*, he was evidently not made to solve questions in diplomacy. After various grimaces of thinking, and even taking the meersham from his mouth, I was thrown on my own resources. My application to the captive general was equally fruitless: it was answered with the composure of one prepared for all consequences, but it amounted simply to—"Do just as you please."

But no time was to be lost, and leaving the escort to wait till my return, I rode up the hill alone, and desired an interview with the officer in command of the division. Fortunately I found him to be one of my gayest Parisian companions, now transformed into a fierce chevalier, colonel des chasseurs, bronzed like an Arab, and mustached like a tiger. But his inner man was the same as ever. I communicated my purpose to him as briefly as possible. His open brow lowered, and his fingers instinctively began playing with the hilt of his sabre. And if the *rencontre* could have been arranged on the old terms of man to man, my gallant friend would have undoubtedly made me the bearer of a message on the spot. But I had come for other objects, and gradually brought him round; he allowed that "a prisoner was something entitled to respect." The "request of his distinguished and valued friend, M. Marston, dear to him by so many charming recollections of Paris, &c., was much more;" and we finally arranged that the general should be conveyed unseen to an apartment in the Chateau, while I did him and his "*braves camarades*" the honour of sharing their supper. I gave the most willing consent; a ride of thirty miles had given me the appetite of a hunter.

I was now introduced to a new scene. The room was filled with muskets and knapsacks piled against the walls, and three-fourths of those who sat down were private soldiers; yet there was scarcely a man who did not wear some knightly decoration, and I heard the noblest names of France everywhere round me. Thus extremes meet: the Faubourg St Germain had taken the equality of the new order of things, and the very first attempt to

retain an exclusive rank had brought all to the same level. But it was a generous, a graceful, and a gallant level. All was good-humour under their privations, and the fearful chances which awaited them were evidently regarded with a feeling which had all the force of physical courage without its roughness. I was much struck, too, with the remarkable appearance of the military figures round me. Contrary to our general notions of the foreign noblesse those exhibited some of the finest-looking men whom I had ever seen. This was perhaps, in a considerable degree, owing to the military life. In countries where the nobility are destitute of public employment, they naturally degenerate—become the victims of the diseases of indolence and profligacy, transmit their decrepitude to their descendants, and bequeath dwarfishness and deformity to their name. But in France, the young noble was destined for soldiership from his cradle. His education partook of the manly preparations for the soldier's career. The discipline of the service, even in peace, taught him some superiority to the effeminate habits of opulence; and a sense of the actual claims of talents, integrity, and determination, gave them all an importance which, whatever might be the follies of an individual, from time to time, powerfully shaped the general character of the nobles. In England, the efforts for political power, and the distinctions of political fame, preserve our nobility from relaxing into the slavery of indulgence. The continual ascent of accomplished minds from the humbler ranks, at once reinforces their ability and excites their emulation; and if England may proudly boast of men of intellectual vigour, worthy of rising to the highest rank from the humblest condition, she may, with not less justice, boast of her favourites of fortune fitted to cope with her favourites of nature.

Among these showy and high-bred soldiers, the hours passed delightfully. Anecdotes of every court of Europe, where most of them had been, either as tourists or envoys; the piquant tales of the court of their unfortunate sovereign; narratives—sufficiently contemptuous of the present possessors of power; and *chansons*—some gay, and some touching—made us all forget the flight of time. Among their military choruses was one which drew tears from many a bold eye. It was a species of brief elegy to the memory of Turenne, whom the French soldier still regarded as his tutelar genius. It was said to have been written on the spot where that great leader fell:—

Reçois, O Turenne, où tu perdis lavie,
Les transports d'un soldat, qui te plaint et t'envie.
Dans l'Elysee assis, près du cef des Césars,
Ou dans le ciel, peutêtre entre Bellone et Mars.
Fais-moi te suivre en tout, exauce ma prière;
Puis se-je ainsi remplir, et finir ma carrière."

The application to the immediate circumstances of those brave gentlemen was painfully direct. What to-morrow might bring was unknown, further than that they would probably soon be engaged with their countrymen; and whether successful or not, they must be embarked in war against France. But my intelligence that an action was expected on the next day awoke the soldier within them again; the wrongs of their order, the plunders of the ruling faction, their hopeless expatriation, if some daring effort was not made, and the triumphant change from exiles to possessors and conquerors, stirred them all into enthusiasm. The army of the Allies, the enemy's position, the public feeling of Paris, and the hope of sharing in the honours of an engagement which was to sweep the revolutionary "canaille" before the "gentlemen of France," were the rapid and animating topics. All were ardent, all eloquent; fortune was at their feet, the only crime was to doubt—the only difficulty was to choose in what shape of splendid vengeance, of matchless retribution, and of permanent glory, they should restore the tarnished lustre of the diadem, and raise the insulted name of France to its ancient rank among the monarchies of the world. I never heard among men so many brilliancies of speech—so many expressions of feeling full of the heart—so glowing a display of what the heart of man may unconsciously retain for the time when some great emotion rouses all its depths, and opens them to the light of day. It was to me a new chapter in the history of man.

The news which I had brought of the positions of the armies rendered me an object of marked interest. I was questioned on every point; first, and especially, of the intention of the commander-in-chief, with the most anxious yet most polished minuteness. But, as on this subject my lips were comparatively sealed, the state of the troops with whom they were so soon to be brought into contact became the more manageable topic. On mentioning that Dumourier was placed in command, I received free and full communications on the subject of his qualities for being the last hope of

revolutionary France. One had known him in his early career in the engineers, another had served along with him in Corsica, a third had met him at the court of Portugal; the concurring report being, that he was a coxcomb of the first water, showy but superficial, and though personally brave, sure to be bewildered when he found himself for the first time working the wheels and springs of that puzzling machine, an army in the field. A caustic old Provençal marquis, with his breast glittering with the stars of a whole constellation of knighthood, yet who sat with the cross-belts and cartouche-box of the rank and file upon him, agreeing with all the premises, stoutly denied the conclusions. "He is a coxcomb," said the old Marquis. "Well, he is only the fitter to command an army of upstarts. He has seen nothing but Corsican service; well, he is the fitter to command an army of banditti. And he has been an *espion* of the Government in Portugal; what better training could he have for heading an army of traitors? Rely upon it, gentlemen, that you have mistaken his character; if you think that he is not the very man whom the mob of Paris ought to have chosen for their general, I merely recommend, that when you go into action you should leave your watches in camp, and, if you charge any of their battalions, look well to your purses."

The old soldier's sally restored our gaiety; but the man best acquainted with the French commander-in-chief was my friend the chevalier, at the head of the table. "It has singularly enough happened to me to have met M. Dumourier in almost every scene of his life, since his return from his first service in Germany. Our first meeting was in the military hospital in Toulouse, where he had been sent, like myself, to recover, in his native air, from the wounds of our last German campaign. He was then a coxcomb, but a clever one, full of animal spirits, and intoxicated with the honour of having survived the German bullets, of being appointed to a company, and wearing a *croix*. Our next meeting was in Portugal. Our Minister had adopted some romantic idea of shaking the English influence, and Dumourier had been sent as an engineer to reconnoitre the defences of the country. The word *espion* was not wholly applicable to his mission, yet there can be no doubt that the memoir published on his return, was *not* a volume of travels. His services had now recommended him to the Government, and he was sent to Corsica. There again I met him, as my regiment formed part of the force in the island. He was high on the staff,

our intercourse was renewed, and he was regarded as a very expert diplomatist. A few years after, I found him in a still higher situation, a favourite of De Choiseul, and managing the affairs of the Polish confederation. On his return to Paris, such was the credit in which he stood, that he was placed by the minister of war at the head of a commission to reform the military code; thus he has been always distinguished; and has at least had experience."

Even this slight approach to praise was evidently not popular among the circle, and I could hear murmurs.

"Distinguished!—yes, more with the pen than the sword."

"Diplomacy!—the business of a clerk. Command is another affair."

"Mon cher Chevalier," said the old Marquis, with a laugh, "pray, after being in so many places with him, were you with him in the Bastile?" This was followed with a roar.

I saw my friend's swarthy cheek burn. He started up, and was about to make some fierce retort, when a fine old man, a general, with as many orders as the marquis, and a still whiter head, averted the storm, by saying, "Whether the chevalier was with M. Dumourier in that predicament, I know not; but I can say that I was. I was sent there for the high offence of kicking a page of the court down the grande escalier at Versailles for impertinence, at the time when M. Dumourier was sent there by the Duc d'Acquillon, for knowing more than the minister. I assure you that I found him a most agreeable personage—very gay, very witty, and very much determined to pass his time in the pleasantest manner imaginable. But our companionship was too brief for a perfect union of souls," said he laughing; "for I was liberated within a week, while he was left behind for, I think, the better part of a year."

"But his talents?" was the question down the table.

"Gentlemen," said the old man, "my experience in life has always made me judge of talents by circumstances. If, for example, I find that a man has the talent exactly fitted for his position, I give him credit for all—he had the

talent for making the Bastile endurable, and I required no other. But there were times when graver topics varied our pleasantry, and he exhibited very various intelligence, a practical experience of the chief European courts, and, I am sorry to say, a very striking contempt for their politics and their politicians alike. He was especially indignant at the selfish perfidy with which the late king had given him up to the ignorant jealousy of the minister, and looked forward to the new reign with a resolute, and sometimes a gloomy determination to be revenged. If that man is a republican, it is the Bastile that has made him one; and if he ever shall have a fair opportunity of displaying his genius, unless a cannonball stops his career I should conceive him capable of producing a powerful impression on Europe."

The conversation might again have become stormy but for the entrance of a patrol, for whom a vacant space at the table had been left. Forty or fifty fine tall fellows now came rushing into the room, flinging down shakos, knapsacks, and sabres, and fully prepared to enjoy the good cheer provided for them. I heard the names of the first families of France among those privates—the Montmorencies, the Lamoignons, the Nivernois, the Rochefoucaults, the De Noailles, "familiar as household words." All was good-humour again. They had a little adventure in scaring away a corps of the rustic national guards who, to expedite their escape, had flung away their arms, which were brought in as good prize. The festivity and frolic of youth, engaged in a cause which conferred a certain dignity even on their *tours de page*, renewed the pleasantry of the night. We again had the *chansons*; and I recollect one, sung with delicious taste by a handsome Italian-faced youth, a nephew of the writer, the Duc de Nivernois.

The duke had requested a ringlet from a beautiful woman. She answered, that she had just found a grey hair among her locks, and could now give then away no more. The gallant reply was—

Quoi! vous parlez de cheveux blancs!
Laissez, laissez courir le temps;
Que vous importe son ravage?
Les tendres coeurs en sont exempts;
Les Amours sont toujours enfants,

Et les Graces sont de tout age.
Pour moi, Thémire, je le sens.
Je suis toujours dans mon printemps,
Quand je vous offre mon hommage.
Si je n'avais que dixhuit ans,
Je pourrais aimer plus longtemps,
Mais, non pas aimer davantage.^{[10](#)}

[\[10\]](#)

Lovely and loved! shall one slight hair
Touch thy delicious lip with care?
A heart like thine may laugh at Time—
The Soul is ever in its prime.
All Loves, you know, have infant faces,
A thousand years can't chill the Graces!
While thou art in my soul enshrined,
I give all sorrows to the wind.
Were I this hour but gay eighteen,
Thou couldst be but my bosom's queen;
I might for longer years adore,
But could not, could not love thee more.

On returning to look for my distinguished prisoner, I found a packet lying on the table of my apartment; it had arrived in my absence with the troops in advance; and I must acknowledge that I opened it with a trembling hand, when I saw that it came from London and Mordecai.

It was written in evident anxiety, and the chief subject was the illness of his daughter. She had some secret on her mind, which utterly baffled even the Jew's paternal sagacity. No letters had reached either of them from France, and he almost implored me to return, or, if that were impossible, to write without delay. Mariamne had grown more fantastic, and capricious, and wayward than ever. Her eyes had lost their brightness, and her cheek its colour. Yet she complained of nothing, beyond a general distaste to existence. She had seen the Comtesse de Tourville, and they had many a long conference together, from which, however, Mariamne always returned more melancholy than ever. She had refused the match which he had provided for her, and declared her determination to live, like the daughter of Jephthah, single to her grave.

The letter then turned to my own circumstances, and entered into them with the singular mixture of ardour and sneering which formed this extraordinary character.

"I am doing your business here as indefatigably as if I were robbing nabobs in India, or setting up republics at home. The tardiness of the Horse-Guards is to be moved by nothing but an invasion; and it would be almost as rational to wait the growth of an oak, as to wait the signing of your commission; but it shall be done in my own way. I have means which can make the tardy quick, and open the eyes of the blind. You *shall* be a subaltern in the Guards, unless you are in too much haste to be a general, and get yourself shot by some Parisian cobbler in the purloined uniform of a rifleman. But, let me tell you one fact, and I might indorse this piece of intelligence, 'Secret and Confidential,' to the English cabinet, for even our great minister has yet to learn it—*the Allies will never reach Paris*. Rely, and *act* upon this. They might now enter the capital, if, instead of bayonets, they carried only trusses of straw. The road is open before them, but they will look only behind. The war was almost a feint from the beginning. The invasion was the second act of the farce—the retreat will be the third. Poland has been the *true object*; and, to cover the substantial seizures there, has been the trick of the French invasion. I predict that, in one month from the date of this letter, there will not be an Austrian or Prussian cartridge found in France. Potsdam and Schoenbrunn know more on the subject at this moment than the duke. I write to you as a friend, and by Mariamne's especial order, to take care of yourself. I have seen the retreats of continental armies in my time; they are always a scene of horrors. Follow the army so long as it advances; then all is well, and even the experience of service may be of use to you. But, in this instance, the moment that you find it come to a stop, turn your horse's head to any point of the compass but the front, and ride to the nearest seaport. The duke is a brave man, and his army is a brave army; but both will be instantly covered with all the obloquy of all the libelers on earth. If you have met him as man with man, you have doubtless been captivated with his manners, his wit, his animation, and his accomplishments. I have known him long and well. But Europe, within a month, will decry him, as a fugitive, a fool, and a dastard. Such is popular wisdom, justice, and knowledge. A pupil of the first warrior of Prussia and of modern ages, and wanting only experience to do honour to the lessons of Frederick, he will be laughed at by the loose loungers of the Palais Royal, as ignorant of the art of war, and

branded by the graver loungers of courts and councils, as ignorant of the art of government. Once more, I say, take care of yourself. The first step in retreat will raise all France against the Allies. Ten victories would not cost as much as the first week's march towards the frontier. Every thicket will have its troop; every finger, for a hundred leagues round, will be on the trigger. Robbery and murder, famine and fatigue; disease and death, will be upon the troops; the retreat will become a flight, and happy is the man who will ever see the Rhine again. Be wise in time."

Enclosed within this long epistle was a brief note from Mariamne.

"You must not think me dying, because I importune you no longer. But, *can* you give me any tidings of Lafontaine? I know that he is rash, and even enthusiastic; but I equally know that he is faithful and true. Yet, if he *has* forgotten me, or is married, or is any thing that, as a preux chevalier, he ought not to be, tell me at once, and you shall see how grateful I can be, before I cease to be any thing. But if he has fallen—if, in the dreadful scenes now acting in Paris, Lafontaine is no more—*tell me not*. Write some deluding thing to me—conceal your terrible knowledge. I should not wish to drop down dead before my father's face. He is looking at me while I write this, and I am trying to laugh, with a heart as heavy as lead, and eyes that can scarcely see the paper. No—for mercy's sake, do not tell me *that he is dead*. Give me gentle words, give me hope, deceive me—as they give laudanum, not to prolong life, but to lull agony. Do this, and with my last pulse I shall be grateful—with my last breath I shall bless you."

Poor Mariamne! I had, at least, better hopes than those for her. But within this billet was a third. It was but a few lines; yet at the foot of those lines was the signature—"Clotilde de Tourville." The light almost forsook my eyes; my head swam; if the paper had been a talisman, and every letter written with the pen of magic, it could not have produced a more powerful effect upon me. My hands trembled, and my ears thrilled; and yet it contained but a few unimportant words—an enquiry addressed to Mariamne, whether she could forward a letter to the Chateau Montauban in Champagne, or whether her father had any correspondent in the vicinity

who could send her the picture of a beloved relative, which, in the haste of their flight to England, they had most reluctantly left behind.

The note at once threw every thing else into the background. What were invasions and armies—what were kings and kingdoms—to the slightest wish of the being who had written this billet? All this I admit to be the fever of the mind—a waking dream—an illusion to which mesmerism or magic is but a frivolity. Like all fevers, it is destined to pass away, or to kill the patient; yet for the time, what on earth is so strange, or so powerful—so dangerous to the reason—so delicious to the soul!

But, after the long reverie into which I sank, with the writing of Clotilde in my hand, I recollected that fortune had for once given me the power of meeting the wishes of this noble and beautiful creature. The resemblance of the picture that had so much perplexed and attracted me, was now explained. I was in the Chateau de Montauban, and I now blessed the chance which had sent me to its honoured walls.

To hasten to the chamber where I was again to look upon the exquisite resemblance of features which, till then, I had thought without a similar in the world, was a matter of instinct; and, winding my way through the intricacies of galleries and corridors, loaded with the baggage of the emigrant army, and strewn with many a gallant noble who had exchanged the down bed of his ancestral mansion for the bare floor, or the open bivouac, I at length reached the apartment to which the captive general had been consigned. To my utter astonishment, instead of the silence which I expected under the circumstances, I heard the jingling of glasses and roars of laughter. Was this the abode of solitude and misfortune? I entered, and found M. Lafayette, indeed, conducting himself with the composure of a personage of his rank; but the other performers exhibiting a totally different temperament. A group of Polish officers, who had formerly borne commissions in the royal service, and now followed the Emigrant troops, had recognized Lafayette, and insisted on paying due honours to the "noble comrade" with whom they had served beyond the Atlantic. Hamlet's menace to his friend, that he would "teach him to drink deep ere he depart," had been adopted in the amplest sense by those jovial sons of the north, and "healths bottle-deep" were sent round the board with rapid circulation.

My entrance but slightly deranged the symposium, and I was soon furnished with all the freemasonry of the feast, by being called on to do honour to the toast of "His Majesty the King of Great Britain." My duty was now done, my initiation was complete, and while my eyes were fixed on the portrait which, still in its unharmed beauty, looked beaming on the wild revel below, I heard, in the broken queries, and interjectional panegyrics of these hyperborean heroes, more of the history of Lafayette than I had ever expected to reach my ears.

His life had been the strangest contrast to the calm countenance which I saw so tranquilly listen to its own tale. It was Quixotic, and two hundred years ago could scarcely have escaped the pen of some French Cervantes. He had begun life as an officer in the French household troops in absolute boyhood. At sixteen he had married! at eighteen he had formed his political principles, and begun his military career by crossing the Atlantic, and offering his sword to the Republic. To meet the thousand wonderings at his conduct, he exchanged the ancient motto of the Lafayettes for a new one of his own. The words, "Why not?" were his answer to all, and they were sufficient. On reaching America, he asked but two favours, to be suffered to serve, and to serve without pay.

In America he was more republican than the Republicans. He toiled, traveled, and bled, with an indefatigable zeal for the independence of the colonists; his zeal was a passion, his love of liberty a romance, his hostility to the dominion of England an universal scorn of established power. But if fantastic, he was bold; and if too hot for the frigidity of America, he was but preparing to touch France with kindred fire. He refused rank in the French army coupled with the condition of leaving the service of the Republic; and it was only on the French alliance in 1788 that he returned to Paris, to be received with feigned displeasure by the King, and even put under arrest by the minister, but to be welcomed by the praises of the true sovereign, the Queen, feted by the court, the sovereign of that sovereign, and huzzaed by the mob of Paris, already the sovereign of them all; from his military prison he emerged, colonel of the King's regiment of dragoons.

While this narrative was going on, mingled with bumpers, and bursts of Slavonic good-fellowship, I could not help asking myself whether Lavater

was not quack and physiognomy a folly? Could this be the dashing Revolutionist? No plodder over the desk ever wore a more broadcloth countenance; an occasional smile was the only indication of his interest in what was passing around him. He evidently avoided taking a share in the discussion of his Transatlantic career, probably from delicacy to his English auditor. But when the conversation turned upon France, the man came forth, and he vindicated his conduct with a spirit and fulness that told me what he might have been when the blood of youth was added to the glow of the imagination. He was now evidently exhausted by toil, and dispirited by disappointment. No man could be more thoroughly ruined; baffled in theory, undone in practice—an exile from his country, a fugitive from his troops—overwhelmed by the hopelessness of giving a constitution to France, and with nothing but the dungeon before him, and the crash of the guillotine behind.

"What was to be done?" said Lafayette. "France was bankrupt—the treasury was empty—the profligate reign of Louis XV. had at once wasted the wealth, dried up the revenues, and corrupted the energies of France. Ministers wrung their hands, the king sent for his confessor, the queen wept—but the nation groaned. There was but one expedient, to call on the people. In 1787 the Assembly of the Notables was summoned. It was the first time since the reign of Henry IV. France had been a direct and formal despotism for almost two hundred years. She had seen England spread from an island into an empire; she had seen America spread from a colony into an empire. What had been the worker of the miracle?—Liberty. While all the despotisms remained within the boundaries fixed centuries ago, like vast dungeons, never extending, and never opening to the light and air, except through the dilapidations of time, I saw England and America expanding like fertile fields, open to every breath of heaven and every beam of day, expanding from year to year by the cheerful labour of man, and every year covered with new productiveness for the use of universal mankind. I own that there may have been rashness in urging the great experiment—there may have been a dangerous disregard of the actual circumstances of the people, the time, and the world—the daring hand of the philosopher may have drawn down the lightning too suddenly to be safe; the patriot may have flashed the blaze of his torch too strongly on eyes so long trained to the twilight of the dungeon. The leader of this enterprise himself, like the

first discoverer of fire, may have brought wrath upon his own head, and be condemned to have his vitals gnawed in loneliness and chains; but nothing shall convince Lafayette that a great work has not been begun for the living race, for all nations, and for all posterity."

I could not suppress the question—"But when will the experiment be complete? When will the tree, planted thus in storms, take hold of the soil? When will the tremendous tillage which begins by clearing with the conflagration, and ploughing with the earthquake, bring forth the harvest of peace to the people?"

"These must be the legacy to our children," was the reply, in a grave and almost contrite tone. "The works of man are rapid only when they are meant for decay. The American savage builds his wigwam in a week, to last for a year. The Parthenon took half an age and the treasures of a people, to last for ever."

We parted for the night—and for thirty years. My impression of this remarkable man was, that he had more heart than head; that a single idea had engrossed his faculties, to the exclusion of all others; that he was following a phantom, with the belief that it was a substantial form, and that, like the idolaters of old, who offered their children to their frowning deity, he imagined that the costlier the sacrifice, the surer it was of propitiation. Few men have been more misunderstood in his own day or in ours. Lifted to the skies for an hour by popular adulation, he has been sunk into obscurity ever since by historic contempt. Both were mistaken. He was the man made for the time—precisely the middle term between the reign of the nobility and the reign of the populace. Certainly not the man to "ride on the whirlwind and direct the storm;" but as certainly altogether superior to the indolent luxury of the class among whom he was born. Glory and liberty, the two highest impulses of our common nature, sent him at two and twenty from the most splendid court of Europe, to the swamps and snows, the desperate service and dubious battles of America. Eight years of voyages, negotiations, travels, and exposure to the chances of the field, proved his energy, and at the age of thirty he had drawn upon himself the eyes of the world. Here he ought to have rested, or have died. But the Revolution swept him off his feet. It was an untried region—a conflict of elements unknown

to the calculation of man; he was whirled along by a force which whirled the monarchy, the church, and the nation with him, and sank only when France plunged after him.

I have no honour for a similar career, and no homage for a similar memory; but it is from those mingled characters that history derives her deepest lesson, her warnings for the weak, her cautions for the ambitious, and her wisdom for the wise.

On the retiring of the party for the night, my first act was to summon the old Swiss and his wife who had been left in charge of the mansion, and collect from them all their feeble memories could tell Clotilde. But Madame la Maréchale was a much more important personage in their old eyes, than the "charmante enfant" whom they had dandled on their knees, and who was likely to remain a "charmante enfant" to them during their lives. The chateau had been the retreat of the Maréchale after the death of her husband; and it was in its stately solitudes, and in the woods and wilds which surrounded it for many a league, that Clotilde had acquired those accomplished tastes, and that characteristic dignity and force of mind, which distinguished her from the frivolity of her country-women, however elegant and attractive, who had been trained in the *salons* of the court. The green glades and fresh air of the forest had given beauty to her cheek and grace to her form; and scarcely conceiving how the rouged and jewelled Maréchale could have endured such an absence from the circles of the young queen, and the "*beaux restes*" of the wits and beauties of the court of Louis the 15th, I thanked in soul the fortunate necessity which had driven her from the atmosphere of the Du Barris to the shades thus sacred to innocence and knowledge.

But the grand business of the thing was still to be done. The picture was taken down at last, to the great sorrow of the old servants, who seemed to regard it as a patron saint, and who declared that its presence, and its presence alone, could have saved the mansion, in the first instance, from being burned by the "patriots," who generally began their reforms of the nobility by laying their chateaux in ashes, and in the next, from being plundered by the multitudes of whiskered savages speaking unknown tongues, and came to leave France without "*ni pain ni vin*" for her

legitimate sons. But the will of Madame la Maréchale was to them as the laws of the Medes and Persians, irresistible and unchangeable; and with heavy hearts they dismounted the portrait, and assisted in enfolding and encasing it, with much the same feeling that might have been shown in paying the last honours to a rightful branch of the beloved line.

But, in the wall which the picture had covered, I found a small recess, closed by an iron door, and evidently unknown to the Swiss and his old wife. I might have hesitated about extending my enquiry further, but Time, the great discoverer of all things, saved my conscience: with a slight pressure against the lock it gave way; the door flew open, and dropped off the hinges, a mass of rust and decay. Within was a casket of a larger size than that generally used for jewels; but my curiosity durst not go beyond the superscription, which was a consignment of the casket, in the name of the Maréchale, to her banker in London. Whatever might be the contents, it was clear that, like the picture, it had been left behind in the hurry of flight, and that to transmit it to England was fairly within my commission. Before our busy work was done, day was glancing in through the coloured panes of the fine old chamber. I hurried off the Swiss, with my precious possessions, to the next town, in one of the baggage carts, with a trooper in front to prevent his search by hands still more hazardous than those of a custom-house officer; and then, mounting my horse, and bidding a brief farewell to the brave and noble fellows who were already mustering for the march, and envying me with all their souls, I set off at full speed to rejoin the army.

With all my speed, the action had begun for some hours before I came in sight of the field. With what pangs of heart I heard the roar of the cannon, for league on league, while I was threading my bewildered way, and spurring my tired horse through the miry paths of a country alternately marsh and forest; with what pantings I looked from every successive height, to see even to what quarter the smoke of the firing might direct me; with what eager vexation I questioned every hurrying peasant, who either shook his moody head and refused to answer, or who answered with the fright of one who expected to have his head swept off his shoulders by some of my fierce-looking troop, I shall not now venture to tell; but it was as genuine a torture as could be felt by man. At length, exhausted by mortal fatigue, and ready to lie down and die, I made a last effort, would listen no more to the

remonstrances of the troop, whose horses were sinking under them. I ordered them to halt where they were, pushed on alone, and, winding my way through a forest covering the side of a low but abrupt hill, or rather succession of hills, I suddenly burst out into the light, and saw the whole battle beneath, around, and before me. It was magnificent.

LETTER FROM LEMUEL GULLIVER.

TO THE EDITOR.

Sir—At the request of my four-footed friends, I forward to you a free translation of the proceedings of a meeting of Houynhym, recently held for the protection of their interests in corn. As the language appears more temperate, and the propositions quite as rational, as those which are ordinarily brought forward in the other Corn-law meetings which still continue to agitate the county, I have no difficulty in complying with their wishes; and if you can afford space for the insertion of the report in your valuable Magazine, you will greatly oblige the Houynhym race, and confer a favour upon, sir, your obedient servant,

LEMUEL GULLIVER.

Stable-Yard, Nov. 10th, 1843.

ADVERTISEMENT.

A meeting of delegates from the different classes of consumers of oats was held on Friday last, at the Nag's Head in the Borough, pursuant to public advertisement in the *Hors-Lham Gazette*. The object of the meeting was to take into consideration the present consumption of the article, and to devise means for its increase. The celebrated horse Comrade, of Drury-Lane Theatre, presided on the occasion.

The business of the meeting was opened by a young Racer of great promise, who said it was his anxious desire to protect the interests of the horse community, and to promote any measure which might contribute to the increase of the consumption of oats, and improve the condition of his fellow-quadrupeds. He was not versed in political economy, nor, indeed, economy of any kind. He had heard much of demand and supply, and the difficulty of regulating them properly; but, for his own part, he found the latter always equalled the former, though he understood such was not the case with his less fortunate brethren. He warmly advocated the practice of sowing wild oats, and considered that much of the decrease of consumption complained of arose from the undue encouragement given to the growth of other grain; and that the horse interest would be best promoted by imposing a maximum as to the growth of wheat and barley, according to the acreage of each particular farm.

A HACKNEY-COACH HORSE declared himself in favour of the sliding-scale, which he understood from Sir Peter Lawrie to mean the wooden pavement. He admitted it was not well adapted for rainy seasons, but it was impossible to doubt that things went much more smoothly wherever it was established; and that he, and the working classes whom he represented, found in it a considerable relief from the heavy duties daily imposed upon them. He wished that some measure could be devised for superseding the use of nosebags, which he designated as an intolerable nuisance, especially during the summer months; but he principally relied for an improvement in condition on the prohibition of the mixture of chaff with oats; which latter article, he contended, was unfit for the use of able-bodied horses, who

earned their daily food, and ought to be limited to those cattle who spent an idle existence in straw-yards.

A BRIGHT CHESTNUT HORSE, of great power, and well-known in the parks, warmly replied to the last neigher. He denounced the sliding-scale as a slippery measure, unworthy of a horse of spirit, and adding greatly to the burdens with which horses like himself were saddled. He daily saw steeds of the noblest blood and most undaunted action humbled to the dust by its operation; and if Sir Peter Lawrie was to be believed, it was more dreaded by the household troops than Napoleon's army on the field of Waterloo. He yielded to no horse in an anxious desire to promote the true interests of the horse community; but he could not give his support to measures so unsafe, merely because they enabled a small and inferior section of their community to move more smoothly. He reprobated, in strong terms, the unfeeling allusion of the last neigher to the unfortunate inmates of union straw-yards, whom, for his own part, he looked upon as nowise inferior to the hackney-coach horse himself, of whose right to be present at a meeting of consumers of oats he entertained serious doubts. (Loud neighs of "Order! Order!")

A SCOTCH HORSE feared that, strictly speaking, he was included in the same category with the hackney-coach horse, and had no right to be heard, having no personal interest in the question; but he trusted he might be permitted to speak as the delegate of the horses of Scotland, who were ignorant of the Houynhym language, and not entitled to attend. Permission being granted, to the surprise of the assembly he descanted with much asperity upon the gross oppression to which horses in Scotland were subject, as their rough coats and ragged appearance plainly manifested; and stated, in conclusion, that no hope or expectation of bettering the condition of the Scotch horse could be entertained until their lawful food was restored to them, and Scotchmen were compelled, by act of Parliament, to abstain from the use of oatmeal, and live like the rest of the civilized world.

Several worn-out horses belonging to members of the Whig administration then endeavoured to address the meeting, with an evident intention of converting the proceedings into a party question; but they were informed by the president, in the midst of loud snorting and neighing, that they had not

the slightest right to be present, as they were all undoubtedly turned out for life. This decision appeared to give universal satisfaction.

AN IRISH HORSE was of opinion that the great cause of the present difficulties arose from deficiency in the quality and not the quantity of the article, and strongly recommended the growth of Irish oats in England. To the surprise of the English delegates, he warmly eulogized the superiority of the Irish oat; but it afterwards appeared, upon the production of a sample, that he had mistaken the potatoe oat for the Irish oat.

AN OLD ENGLISH HUNTER next addressed the meeting, and was listened to with deep attention. He impressed upon the young delegates the good old adage of "Look before you leap," and cautioned them against the delusive hope that their condition would be improved by change of measures. In the course of his long life he had experienced measures of every description, and had invariably found that his supplies depended, not on the measure itself; but on the hand that filled it. He had ever given his willing support to his employers, and served them faithfully; and if they were as well acquainted as quadrupeds with the secrets of the stable, they would learn the fallacy of their favourite maxim of "Measures, not men," and trust the administration of their affairs to upright and steady grooms, rather than those fanciful half-educated gentlemen who were perpetually changing the rules of the stables, and altering the form of the measures, whereby they embarrassed the regular feeding and training of the inmates, without producing any practical good.

A STAGE-COACH HORSE imputed their want of condition to the misconduct of their leaders, who, he said, could never be kept in the right path, or made to do one-half of the work which properly belonged to them. By a strange fatality, they were generally purblind, and always shyed most fearfully when an Opposition coach approached them. Indeed, it was well known that the horses selected for these duties were, generally speaking, vicious and unsound, and not taken from the most able and powerful, but from the most showy classes. He then proceeded to descant upon the general wrongs of horses. He congratulated the community upon the abolition of bearing reins, those grievous burdens upon the necks of all free-going horses; and he trusted the time would soon arrive when the blinkers

would also be taken off, every corn-binn thrown open, and every horse his own leader.

Several other delegates addressed the meeting, and various plans were discussed; but it invariably turned out, upon investigation, that the change would only benefit the class of animals by whom it was proposed. A post-horse was of opinion, that the true remedy lay in decreasing the amount of speed, and shortening the spaces between milestones. A Welsh pony was for the abolition of tolls, which, he said, exhausted the money intended for repairs; whilst some plough-horses from Lincolnshire proposed the encouragement of pasture land, the abolition of tillage, and the disuse of oats altogether. The harmony of the meeting was, at one period, interrupted, by the unfortunate use of the word "*blackguard*" by a delegate from the collieries, which caused a magnificent charger from the Royal Horse Guards, Blue, to rear up, and, with great indignation, demand if the allusion was personal; but who was satisfied with the explanation of the president, that it was applicable only in a warlike sense. A long, lean, bay horse, with a sour head, demanded a similar explanation of the word "*job*," and was told it was used in a *working* sense. Several resolutions, drawn by two dray-horses, embodying the supposed grievances of the community, were finally agreed upon, and a petition, under the hoof of the president, founded upon them, having been prepared, and ordered to be presented to the House of Commons by the members for Horsham, the meeting separated, and the delegates returned to their respective stables.

THE PROCLAMATION.

Bold warriors of Erin, I hereby *proclaim*,
That the world never witness'd your rivals in fame;
Bold sons of Macmurrough, Macarthy, O'Neill,
The armies of earth at your sight would turn pale.
A flash from your eyes would light England's last pile,
And a touch give her sceptre to Erin's green isle.

Hurrah for the vengeance of old Mullaghmast,
On the blood-bolter'd ground where your gauntlet was cast;
Hurrah for the vengeance of Tara's proud hill,
Where the bones of our monarchs are blood-sprinkled still.
Hurrah for Clontarf, though the Saxon may smile,
The last, greatest triumph of Erin's green isle!

Let the scoffer scoff on, while I hereby *proclaim*,
That flight may be courage, and fear but a name;
That boasting is good, when 'tis good for the cause,
But, in sight of cold steel, *we should honour the laws*;
That powder and shot make men swallow their bile—
So, hurrah for the glory of Erin's green isle!

If they ask for your leader, the land's sword and shield,
At least none can say that *he fled from the field*.
He kept a whole skin—for the service of Rome;
So he fix'd his headquarters in quiet at home.
They might just as well hunt for the head of the Nile,
While he reckon'd his beads for St Patrick's green isle.

If beggars on horseback will ride—to Clontarf;
If tailors will caper with truncheon and scarf,
At Sunday carousels, all know, I'm in flower,
My taste for the grape don't extend to the shower.
Besides, those blue pills disagree with my chyle,

So, hurrah!—pence and peace for the grand Emerald Isle!

If the scoffer should ask, what the deuce brought you there?
Of course, it was only to taste the fresh air;
To pick cowslips and daisies; and brush off the dew,
Or drink gin o'er the tombstone of Brian Boru.
As to flags, and all that; 'twas but doing in style,
The honours of Freedom to Erin's green isle.

Then, as to your "Squadrons," your "Mount for Repeal,"
'Twas merely to teach them the "Right about wheel,"
By the word of command from the Saxon to run,
As your leader would fly from a bailiff or dun;
In short, since a miss is as good as a mile,
Swear the whole was a humbug for Erin's green isle.

Besides, these are delicate moments to croak,
Since the Saxon's new plan of a word and a stroke.
My mind is made up, like a poodle or pug,
No longer to stir from my berth on the rug;
Though the bold may revile me, so let them revile—
I'm determined to *live* for old Erin's green isle.

I *proclaim*—that the Saxon will tremble to meet
The heroes of Erin; but, boys, life is sweet.
I *proclaim*—that your shout frightens Europe's base thrones;
But remember, my boys, there is luck in whole bones;
So, take the advice of a friend—wait a while,
In a century or two you'll revenge the Green Isle.

I know in my soul, at the very first shot
That your whole monster meeting would fly at full trot;
What horrid mêlée, then, of popping and flashing!
At least I'LL not share in your holiday thrashing;
Brawl at Sugden and Smith, but beware "rank and file"—
They're too rough for the lambkins of Erin's green isle.

Observe, my dear boys, if you once get me hang'd,

'Tis fifty to one if you'll e'er be harangued.
Farewell to the pleasure of paying the "Rint"—
Farewell to all earth's vilest nonsense in print—
Farewell to the feast of your gall and your guile—
All's over at once with the grand Emerald Isle.

THE FIREMAN'S SONG.

"Ho, comrade, up! awake, arise! look forth into the night:
Say, is yon gleam the morning-beam, yon broad and bloody light?
Say, does it tell—yon clanging bell—of mass or matin song?
Yon drum-roll—calls it to parade the soldier's armèd throng?"

"No, brother, no! no morning-beam is yonder crimson glare!
Yon deep bell tolls no matin—'tis the tocsin's hurried blare!
Yon sullen drum-roll mutters out no summons to parade:
To fight the flame it summons us—the valiant Fire-Brigade!"

Then fast the Fireman rose, and waked his mate that lay beside;
And each man gripp'd his trusty axe, and donn'd his coat of hide—
There bounds beneath that leather coat a heart as strange to fear
As ever swell'd beneath the steel of gilded cuirassier.

And from beneath the leather casque that guards the Fireman's brow,
A bolder, sterner glance shines out than plummy crest can show;
And oft shall ply the Fireman's axe, though rude and rough it be,
Where sabre, lance, and bayonet, right soon would turn and flee!

Off dash the thundering engines, like goblin jäger-chase—
The sleeper shudders as they pass, and pallid grows his face:
Away, away! though close and bright yon ruddy glow appear,
Far, far we have to gallop yet, or e'er our work we near!

A plain of upturn'd faces—pale brows and quivering lips,
All flickering like the tropic sea in the green light of eclipse;
And the multitude waves to and fro, as in the tropic sea,
After a tempest, heaves and falls the ground-swell sleeplessly.

Now, by my faith! goodly sight you mansion fast asleep—
Those winking lamps beside the gate a dull watch seem to keep—
But a gay awaking waits them, when the crash of blazing beam,

And the Fireman's stern *réveille*, shall mingle with their dream!

And sound as sleeps that mansion, ye may mark in every chink
A gleam, as in the lava-cracks by the volcano's brink;
Through key-hole and through window-slit, a white and sullen glow—
And all above is rolling smoke, and all is dark below.

Hark! hear ye not that murmur, that hush and hollow roar,
As when to the south-wester bow the pines upon the shore;
And that low crackling intermix'd, like wither'd twig that breaks,
When in the midnight greenwood the startled squirrel wakes!

Lo, how the fire comes roaring on, like a host in war array!
Nor lacks it gallant music to cheer it on its way,
Nor flap of flame-tongued banner, like the *Oriflamme* of old,
Its vanward cohorts heralding, in crimson, green, and gold.

The engines now are ranged a-row—hark, how they sob and pant!
How gallantly the water-jets curve soaringly aslant!
Up spins the stream—it meets the flame—it bursts in fleecy rain,
Like the last spout of the dying whale, when the lance is in his brain.

Ha, ha! from yon high window thrill'd the wild shriek of despair,
And gibbering phantoms seem to dance within the ruddy glare;
And as a valiant captain leads his boarders to the fray,
"Up, up, my sons!" our foreman shouts—"up firemen, and away!"

Their arms are strong and sinewy—see how the splinters fly—
Their axes they are sharp and good—"Back, comrades! or ye die—
Look to the walls!"—a rending crash—they topple—down they come—
A cloud of sparks—a feeble cheer—again!—and all is dumb.

A pause—as on that battle-day, 'twixt France and England's might,
When huge *L'Orient* blew up at once, in the hottest of the fight:
There was not one, they say, but wink'd, and held his breath the while,
Though brave were they that fought that day with Nelson at the Nile.

And by to-morrow's sunrise, amid the steaming stones,

A chain of gold half-melted, and a few small white bones,
And a few rags of roasted flesh, alone shall show where died—
The noble and the beautiful, the baby and the bride!

O fire, he is a noble thing!—the sot's pipe gives him birth;
Or from the livid thunder-cloud he leaps alive on earth;
Or in the western wilderness devouring silently;
Or on the lava rocking in the womb of Stromboli.

Right well in Hamburg revell'd he—though Elbe ran rolling by—
He could have drain'd—so fierce his thirst—the mighty river dry!
With silk, and gold, and diamond, he cramm'd his hungry maw;
And he tamed the wild republicans, who knew nor lord nor law!

He feasted well in Moscow—in the city of the Tsar—
When 'fore the northern streamers paled Napoleon's lurid star:
Around the hoary Kremlin, where Moscow once had stood,
He pass'd, and left a heap behind, of ashes slaked in blood!

He feasted once in London—he feasted best of all—
When through the close-packed city, he swept from wall to wall:
Even as of old the wrath of God came down in fiery rain,
On Sodom and Gomorrha, on the Cities of the Plain!

POSITION AND PROSPECTS OF THE GOVERNMENT.

A recruited revenue; reviving trade and commerce; reduction in the price of provisions; the triumphant termination of hostilities in all parts of the world, with its great immediate prospective advantages: a general feeling of confidence, arising from the steady administration of public affairs, in spite of persevering and atrocious efforts to excite dissatisfaction and alarm; nay, even the stern repose prevailing in Ireland, preserved though it be, for a while, under cover of artillery, and at the bayonet's point, but affording a precious respite from agitation, and a foretaste of the blessings that may be expected from its permanent suppression: all these circumstances unequivocally attest the existence of a powerful Government acting upon a comprehensive and enduring policy, which is becoming daily better appreciated by the strong good sense which ever distinguishes the British character, when a fair opportunity is afforded for its exercise.

Upwards of two years have now elapsed since the accession of the present Government to power, at a period of universally admitted difficulty and danger. We have been, during this critical interval, dispassionate and independent observers of Ministers, and their conduct of public affairs, anxious to see whether they were really equal to the occasion, and worthy of the confidence of the Sovereign and the country. We are ourselves satisfied, and undertake to demonstrate to our readers, that this question must be answered in the affirmative. We say all this advisedly, and with no disposition to deny the existence of difficulties, which, if serious to the present, would be absolutely insuperable to any other Government. During the interval in question, Ministers have triumphed over more formidable difficulties than any which they have at present to encounter. *That*, also, we say advisedly—cheerfully, confidently—with Ireland before our eyes, and the din of the audacious and virulent Anti-corn-law League in our ears.

Passing these topics for the present, let us proceed to examine carefully the real position of Sir Robert Peel and his Government, with a view to

ascertaining its prospects of a continuance in power. This enquiry cannot be successfully conducted, without referring for a moment to the immense changes in principles and parties effected by the Reform Bill in 1832—a period of quite as great a revolution as that of 1688. The Tory party it nearly annihilated!—The first Reform Parliament consisting of only 187 Tories to 471 Whigs and Radicals—the former being thus in the fearful minority of 284. We recollect sharing in the despondency, and even despair, which paralysed our party. There was, however, one signal exception in the person of Sir Robert Peel, whose conduct on that occasion entitles him to the eternal gratitude of every man pretending to the character of a Conservative, nay, of every true lover of his country and its institutions. With surprising energy, calmness, and foresight, he instantly addressed himself to the formation, even under those inauspicious and disheartening circumstances, of that *great CONSERVATIVE party* of which he is now the acknowledged head. In 1841, just *before* the general election, he thus *reminded that party*, and apprized the country at large of the principle on which he had acted in 1832. We beg our readers to ponder his words, and the period when he uttered them.

"I then foresaw the good that might result from laying the foundation of a great Conservative party in the state, attached to the fundamental institutions of the country—not opposed to any rational change in it which the lapse of years, or the altered circumstances of society might require, but determined to maintain, on their ancient footing and foundation, our great institutions in church and state. In order to form that party, however, it was necessary, in the first instance, to widen the foundation on which it should stand: to call into our connexion men from whom we had been separated in consequence of differences which no longer existed. My grand object was to build up that great party which has been gradually acquiring strength in this country—which has been gradually widening the foundation on which it stands, and which has drawn, from time to time, its support from its opponents."^{[11](#)}

^[11].Speech to the Tamworth Electors on 28th June 1841, (Painter, Strand.)

The shortest and best evidence of the success which has attended the unwearied exertions of Sir Robert Peel during the ensuing then years, is

afforded by the following summary of the results of the four general elections since the passing of the Reform Bill; three of them under the auspices and with the unscrupulously exercised patronage of the Reform Government. Observe the ascending and descending scales:—

C. L.

187 471 (1832)

275 383 (1835)

314 344 (1837)

373 283 (1841)

Who was it but its founder, that led the Conservative party through these successive stages of triumph? Who did so much as he to effect that gradual but decisive change in public opinion which, in 1841, routed the Liberal Ministry in spite of their extraordinary exertions and advantages, and placed a Conservative Government at the head of affairs? To enable us to appreciate the importance of that great victory, and also the decision of character evinced on that occasion by Sir Robert Peel, let us for a moment advert to the calm self-reliance with which, amidst the breathless apprehensions and misgivings of his whole party, he gave battle to the enemy—proposed the memorable vote of want of confidence, and carried it by a majority of one.¹² A more critical move never was followed by more signal success; every ensuing event serving to show, that so far from his movements having been impelled by rash and desperate party speculations, they had been based upon a profound and accurate knowledge of his resources, and of the state of feeling and opinion in the country. "I gave the Government every advantage," said he, "to make their appeal to the country. They boast of the confidence of the crown—they have every means at their disposal which official influence can command to exert in their own behalf. An appeal has been made by them from the House of Commons to you, and it is for the country to decide the question at issue. They have made an appeal to public feeling on account of cheap sugar and cheap bread. My firm belief is, that the people of this country have not at all responded to that cry." How well-founded was that "firm belief," was proved by the glorious result:—the "people of this country did" *not* "respond to that

cry"—they rejected—they repudiated it, and they would do so again if another such appeal were made to them to-morrow.

[12].Ayes, 312; Noes, 311—4th June 1841.

Let us now proceed to show what pretence there is for the injurious insinuations and assertions of Sir Robert Peel's traducers—whether treacherous friends or open enemies—that, in order to obtain power, he hung out false colours to the nation; that his declarations before the general election have been disregarded and falsified by his acts on attaining office. We will for ever demolish all such calumnies and false pretences by going, step by step, through a document which we made a point of procuring at the time, and preserving hitherto, and to which we have since frequently referred, on hearing uttered the slanderous charges to which we allude. That document is a copy of the speech which Sir Robert Peel, on the 28th June 1841, addressed formally to his constituents, but virtually, of course, to the whole nation.

One of his earliest declarations was the following:—"Gentlemen, *I have ever professed moderate opinions on politics*. The principles I professed, and adhered to, I shall adhere to during my public life, whether in opposition or in power, are, I believe, in perfect conformity with the prevailing good sense, the moderation, and the intelligence of the great body of the people of England." This was a sufficiently distinct notice to all men, especially to those of extreme opinions, whether Tory, Liberal, or Radical, of the course of action which was to be looked for from the expectant Prime Minister.

Then, first, he proceeded to admit the existence of manufacturing distress.

"I admit and deplore it, but I do not despair. I have seen distress in manufactures and in commerce before now. I think the causes of the present distress are but temporary—that the cloud will soon blow over—and that the great foundations of manufacturing prosperity are not affected; and I hope I shall very shortly see the day when our manufactures will once more revive, and when we shall again fill the place we have always occupied—that of producers for the markets of the world."

Now for its *cause*.

"Now let us consider the important question, as to how far the distress in the manufactures and commerce of the country is fairly attributable to the corn-laws." He proceeded to show, from Lord Palmerston's official statement in Parliament on the 22d July 1840, that, between the years 1830 and 1839, the *exports* had risen from the value of L.38,000,000 to L.53,000,000, and the *imports* from L.46,000,000 to L.62,000,000, "a clear proof that, notwithstanding the local and temporary checks which our commerce had experienced, on the whole it had gone on steadily improving, and that between the two periods it had increased not much less than from two to three."

He then took the *shipping* and *navigation* of the country for the preceding three years; and in looking at them, I cannot help thinking that, if there was any thing like an absolute decrease in trade and commerce, there would also be a decrease in the shipping of the country. "Well," said Sir Robert Peel, "What do I find?" The returns "showed an increase, presented within the last three years, from 4,000,000 tons to 4,780,000 tons." Now mark—"during the whole of this period the corn-laws were in operation; how then can they be fairly or honestly assigned as the cause of the present manufacturing and commercial distress?"

But if the corn-laws were *not*, what *was* the cause?

"I see causes enough in the world, as well as in this country, why there should be manufacturing and commercial distress at the present moment, irrespective and totally independent of the corn-laws."

These were—

1st, "*I do fear that, in the north of England, an undue stimulus has been given to manufacturing industry by the accommodation system pursued by the joint-stock banks. I think the connexion of the manufacturer with the joint-stock banks gave an undue and an improper impulse to trade in that quarter of the county; and I think that, in consequence of this, there have been more manufactures produced within the last two years than were necessary to supply the demand for them.*"

2ndly, "Look to the state of some of the foreign countries, which took, at one time, the greatest quantity of our manufactures;" South America, its ports strictly blockaded by France; the United States of North America, "in a state of nascent hostility," and also labouring under "a distress similar to our own, and arising from similar causes. The facility of accommodation afforded by certain banks there gave an undue stimulus to industry; this produced extravagant speculations; many persons failed in consequence, and trade necessarily then came to a stand-still." Canada—the peninsula, France, the great Kingdoms of the middle and north of Europe—Syria, Egypt, China, had been, and were, in such a state, as occasioned all interruption of our trade thither; "a stoppage in the demand for manufactured goods, and a correspondent depression in commerce." "When you put all these things together, all causes, mind you, affecting the market for your goods, and then combine them with the two or three defective harvests we have had of late, I ask you to answer me the question, Whether or not they have been sufficient to account for the depression of manufacturing industry."

Then came Sir Robert Peel to the two grand and suddenly discovered panaceas of the late Government, for recruiting the exhausted revenue, and relieving the general distress—viz. "cheap sugar," and "cheap bread."

1st, As to foreign sugar:—

"I clearly and freely admit that those restrictions which cannot be justified should be removed, and that the commerce of the country should be perfectly free, whenever it can possibly be so; but I consider the article of sugar to be wholly exempt from the principle of free trade." * * * "The question now is this—whether, after the sacrifices which this country has made for the suppression of the slave trade and the abolition of slavery, and the glorious results that have ensued, and are likely to ensue, from these sacrifices—whether we shall run the risk of losing the benefit of those sacrifices, and tarnishing for ever that glory, by admitting to the British market sugar the produce of foreign slavery." * * * "If you admit it, it will come from Brazil and Cuba. In Brazil, the slave-trade exists in full force; in Cuba, it is unmitigated in its extent and horrors. The sugar of Cuba is the finest in the world; but in Cuba, slavery is unparalleled in its horrors. I do

not at all overstate the fact, when I say, that 50,000 slaves are annually landed in Cuba. That is the yearly importation into the island; but, when you take into consideration the vast numbers that perish before they leave their own coasts, the still greater number that die amidst the horrors of the middle passage, and the number that are lost at sea, you will come to the inevitable conclusion, that the number landed in Cuba—50,000 annually—is but a slight indication of the number shipped in Africa, or of the miseries and destruction that have taken place among them during their transport thither. If you open the markets of England to the sugar of Cuba, you may depend on it that you give a great stimulus to slavery, and the slave-trade." Sir Robert Peel then pointed out peculiar and decisive distinctions between the case of sugar, and that of cotton, tobacco, and coffee; that, though all of them were the produce of slave labour—First, we cannot now reject the *cotton* of the United States, without endangering to the last degree the manufacturing prosperity of the kingdom. Secondly, of all the descriptions of slave produce, sugar is the most cruelly destructive of human life—the proportion of deaths in a sugar plantation being infinitely greater than on those of cotton or coffee. Thirdly, slave grown sugar has *never* been admitted to consumption in this country.¹³ He also assigned two great co-operating reasons for rejecting slave-grown sugar:—"That the people of England required the great experiment of emancipation to be fairly tried; and they would *not* think it fairly tried, if, at this moment, when the colonies were struggling with such difficulties, we were to open the floodgates of a foreign supply, and inundate the British market with sugar, the produce of slave-labour;" adopting the very words of the Whig Vice-President of the Board of Trade, Mr Labouchere, on the 25th June 1840. The other reason was, "that our immense possessions in the East Indies give us the means, and afford us every facility, for acquiring sugar, the produce of free labour, to an illimitable extent."

[13]. The following striking passage from the writings of the celebrated Dr Channing of America, was quoted by Sir Robert Peel in the speech under consideration. "Great Britain, loaded with an unprecedented debt, and with a grinding taxation, contracted a new debt of a hundred millions of dollars, to give freedom, not to Englishmen, but to the degraded African. I know not that history records an act so disinterested, so sublime. In the progress of ages, England's naval triumphs will shrink into a more and more narrow space in the records of our race—this moral triumph will fill a broader—brighter page." "Take care!" emphatically added Sir Robert Peel, "that this brighter page be not sullied by the admission of slave sugar into the consumption of this country—by our encouragement—and, too, our unnecessary encouragement of slavery and the slave-trade!"—Noble sentiments!

So much for foreign sugar. Now for—

II. FOREIGN CORN; and we beg the special attention of all parties to this portion of the manifesto of Sir Robert Peel:—

"Look at the capital invested in land and agriculture in this country—look at the interests involved in it—look at the arrangement that has been come to for the commutation of tithes—look at your importation of corn diminishing for the last ten years—consider the burdens on the land peculiar to this country¹⁴—take all these circumstances into consideration, and then you will agree with Mr McCulloch, the great advocate of a change in the Corn-law, that 'considering the vast importance of agriculture, *nearly half the population of the empire are directly or indirectly dependent on it for employment and the means of subsistence*; a prudent statesman would pause before he gave his sanction to any measure however sound in principle, or beneficial to the mercantile and manufacturing classes, that might endanger the prosperity of agriculture, or check the rapid spread of improvement.'"¹⁵

[14] "We believe," says *Mr McCulloch* himself in another part of the pamphlet, (Longman & Co., 1841, p. 23—6th Edit.) from which Sir Robert Peel is quoting, "that land is more heavily taxed than any other species of property in the country—and that its owners are clearly entitled to insist that a duty should be laid on foreign corn when imported, sufficient fully to countervail the excess of burdens laid upon the land."

[15] Speech, pp. 9, 10.

Now for the "*Sliding Scale*."

"I just here repeat the opinion which I have declared here before, and also in the House of Commons, that I cannot consent to substitute a fixed duty of 8s. a-quarter on foreign corn, for the present ascending and descending scale of duties. I prefer the principle of the ascending and descending scale, to such an amount of fixed duty. And when I look at the burdens to which the land of this country is subject, I do not consider the fixed duty of 8s. a-quarter on corn from Poland, and Prussia, and Russia, where no such burdens exist, a sufficient protection for it."¹⁶

[16] Do. p. 8.

Again—

"If you disturb agriculture, and divert the employment of capital from the land, you may not increase your foreign trade—for that is a thing to dwell under existing circumstances—but *will assuredly reduce the home trade, by reducing the means to meet the demand*, and thus permanently injure yourselves also."¹⁷

^[17]Do. p. 13.

Again—

"I have come to the conclusion, that the existing system of an ascending and descending scale of duties, should not be altered: and that, moreover, we should as much as possible make ourselves independent of a foreign supply—and not disturb the principle of the existing corn-laws—of these corn-laws, which, when you have an abundance of your own, exclude altogether the foreign supply—and when the price rises in this country, freely admits it."¹⁸

^[18]Speech, p. 15.

Again—he quoted the following remarkable language of Lord Melbourne on the 11th June 1840—

*"Whether the object be to have a fixed duty, or an alteration as to the ascending and descending scale, I see clearly and distinctly, that that object will not be carried without a most violent struggle—without causing much ill-blood, and a deep sense of grievance—without stirring society to its foundations, and leaving behind every sort of bitterness and animosity. I do not think the advantages to be gained by the change are worth the evils of the struggle."*¹⁹

^[19]Do. p. 18.

And Sir Robert Peel concluded the foregoing summary of his views, on the great questions then proposed to the country for its decision, in the following words:—

"I ask your free suffrages, with this frank and explicit declaration of my opinions."²⁰

On this, there occur to us three questions—

(1st.) Was this, or was it not, a frank and explicit declaration of his opinions? And, (2d.) Did it, or did it not, as tested by the result of the general election, completely satisfy the country? (3d.) In what respect has the subsequent conduct of Sir Robert Peel been inconsistent with these declarations? And we echo the stern enquiry of the Duke of Wellington, for "the *when*, the *where*, and the *how*," "of Sir Robert Peel's deceiving his supporters or the country"—and "pause for a reply." Failing to receive any—for none can be given, except in the negative—we shall proceed to condense the substance of this memorable manifesto into a few words; offer some general observations designed to assist in forming a correct judgment upon the topics discussed in the ensuing pages; and then give as fair an outline as we know how to present, of the "DOINGS" of Sir Robert Peel and his Government, by way of comment upon, and illustration of his previous and preparatory "SAYINGS."

What, then, was the substance of Sir Robert Peel's declaration, on presenting himself before the country as a candidate for the office which he fills? He avowed himself a man of moderate political opinions; recognized the existence of manufacturing and commercial distress, but referred it to causes of only a temporary nature, unconnected with the corn-laws; repudiated the empirical expedients proposed by the late ministry; and pledged himself to maintain the principle of protection to our agricultural interests; declaring his deliberate preference of a sliding scale of duties, to a fixed duty, upon foreign corn.

The first of the observations to which we beg the reader's earnest attention, is—that Sir Robert Peel has *to govern by means of a Reformed House of Commons*. It is for want of well considering this circumstance, that one or two respectable sections of the Conservative party have conceived some dissatisfaction at the line of policy adopted by Sir Robert Peel. They forget that, as we have already stated, the *Tory* party was nearly destroyed by the passing of the Reform Bill; that from its ashes rose the CONSERVATIVE party, adapted to the totally new political exigencies of the times; its grand object being, as it were, out of the elements of democracy to arrest the

progress of democracy. The bond of its union was correctly described by its founder, as consisting in attachment to the fundamental institutions of the country—non-opposition to rational changes rendered requisite by the altered circumstances of the times—but determination to maintain, on their ancient footing and foundation, our great institutions in Church and State. Keeping these grand objects ever in view, the true policy to be adopted was to widen the foundations on which should stand "that new party *which was to draw, from time to time, its strength from its opponents.*" None saw this more clearly than Sir Robert Peel—and hence the "*moderation,*" indispensable and all-powerful, which he prescribed to himself, and recommended to all those who chose to act with him, and the steady acting upon which has at length conducted them to their present splendid position of power and responsibility. Could the government of the country be now carried on upon principles that were all-powerful twenty—or even fewer—years ago? No more than Queen Victoria could govern on the principles of Queen Elizabeth! We must look at things, not as they were, or as we would wish them to be—but as they are and are likely to be. He is unable to take a just and comprehensive view of political affairs in this country—of the position of parties, and the tendency of the principles respectively advocated by them, who does not see that the great and only contest now going on, is between *conservative* and *destructive*. We say boldly—and we are satisfied that we say it in conformity with the opinions of the immense majority of persons of intelligence and property—that the forces which would drive Sir Robert Peel's Government from office would immediately and inevitably supply their places by a Government which must act upon destructive principles. This will not be believed by many of those who, moving in the circumscribed sphere of intense party feeling, can contemplate only one object, namely—a return to power, and disregard the intentions of the fierce auxiliaries of whose services they would avail themselves. To the country at large, however, who breathe a freer air, the true nature of the struggle is plain as the sun at noonday. The number of those who only nominally belong to parties, but have a very deep stake in the preservation of our national institutions, and see distinctly the advantages of a Minister acting *firmly* on moderate principles, and who will consequently give him a *silent* but steady support in moments of danger, is infinitely larger than is supposed by the opponents of the Conservative party. Such a Minister, however, must make up his account with receiving

often only a cold and jealous support from those of his adherents who incline to extreme opinions; while his opponents will increase their zeal and animosity in proportion to their perception of the unobjectionableness of his measures, the practical *working* of his moderation, viz.—his continuance in power, and their own exclusion from it. Such a Minister must possess a large share of fortitude, careless of its exhibition, and often exposing him to the charge of insensibility, as he moves steadily on amongst disaffected supporters and desperate opponents, mindless equally of taunts, threats, reproaches, and misrepresentations. He must resolve to *bide his time*, while his well-matured measures are slowly developing themselves, relying on the conscious purity of his motives. Such a man as this the country will prize and support, and such a man we sincerely believe that the country possesses in the present Prime Minister. He may view, therefore, with perfect equanimity, a degree of methodized clamour and violence, which would overthrow a Minister of a different stamp. Such are the inconveniences—such the consolations and advantages—attending that course of *moderation* which alone can be adopted with permanent success, by a Conservative Minister governing with a reformed House of Commons.

Another observation we would offer, has for its object to abate the pique and vexation under which the ablest volunteer advisers of the Minister are apt to suffer, on his disregard of their counsels, and sometimes to revenge themselves by bitter and indiscriminate censure of his general policy. They should remember, that while they are irresponsible volunteers, he acts under a tremendous responsibility; to sustain which, however, he has advantages which none but those in his situation can possibly possess—the co-operation of able brother Ministers, with all those sources and means of universal information which the constitution has placed at his disposal. The superior knowledge of the circumstances of the country thus acquired, enable him to see insuperable objections to schemes and suggestions, which their proposers reasonably deem to be palpably just and feasible. We have often thought that if Sir Robert Peel, or any other Prime Minister, were to take one of these eager and confident advisers into his cabinet, and calmly exhibit to him the actual impossibility—the imminent danger—of adopting the course of procedure which that adviser has been strenuously recommending, he would go away with slightly increased distrust of himself, and consideration for the Minister. Neither Sir Robert Peel, nor any

other Minister, would be so arrogantly stupid as to disregard free information and advice, *merely* because it came from such persons, who, if they have no right to expect their advice to be followed, have yet a clear right to offer it, and urge it with all their force.

Again—The present Ministers had the disadvantage (in some respects) of succeeding to those, who, if they could *do* nothing, made up for it by *promising* every thing. Sir Robert Peel and his friends, on the contrary, made no promises whatever, beyond what would indeed be implied by acceptance of office—namely, honestly to endeavour to govern the country, for the permanent good of the country. While admitting the existence of great distress, they expressly admitted also, that they saw no mode of sudden relief for that distress, but would trust to the energies of the country gradually recovering themselves, under steady and cautious management. Sir Robert Peel frankly stated in the House of Commons, just previously to the dissolution in 1841, that he had no hope of an immediate return of prosperity; and that such had become the state of our domestic and foreign embarrassments, that "we must for years expect to struggle with difficulty." This was their language on the eve of the general election, yet the country placed confidence in their honour and capacity, heartily sickened of the prodigal *promises* of their opponents. The extravagant visionary hopes which they held forth at the eleventh hour, in their frenzied eagerness to obtain a majority at the last election, are still gleaming brightly before the eyes of numbers of their deluded supporters; imposing on the present Government the painful and ungracious duty of proving to them that such hopes and expectations cannot be realized, even for a brief space, without breaking up the foundations of our national existence and greatness.

Lastly. Can the Conservatives be expected in TWO years' time to repair all the evils resulting from a TEN years' gross mismanagement of the national affairs by their predecessors? "The evil that they did, *lives after them*." But for the fortunate strength of the Conservative party, moreover, in opposition, and the patriotism and wisdom of the house of Lords, the late Ministers would, by the time of their expulsion from office, have rendered the condition of the country *utterly* desperate—for very nearly desperate it assuredly was. Their vacillating, inconsistent, wild, and extravagant conduct during these ten years, had generated an universal sense of insecurity and

want of confidence among all the great interests of the country, which locked up capital—palsied enterprise. Trade and commerce drooped daily, and the revenue melted away rapidly every year. Great things were justly expected from the practical skill and experience possessed by the new Government; but *time* is requisite for the development of a policy which had, and still has, to contend against such numerous and formidable obstacles. Confidence, especially mercantile confidence, is a delicate flower, of slow growth, and very difficult to rear. A breath may blight it. It will bloom only in a tranquil and temperate air. If ever there was a man entitled to speak, however, with authority upon this subject, it was Mr Baring, the late candidate, and unquestionably the future member, for the city of London—a man constantly engaged in vast mercantile transactions in all parts of the globe, and whose ability equals his experience. In the presence of a great number of gentlemen, representing two-thirds of the wealth and intelligence of the city of London, thus spoke Mr Baring, on the 6th October 1843:—"I rejoice that Sir Robert Peel did not hold out to the country the fallacious hope, that, by any particular measure, he could restore prosperity, or cure sufferings which were beyond the reach of legislation, and that he patiently relied upon the resources and energies of the country to set trade and commerce right. That expectation is already beginning to be realized. That calm reliance is already justified. I am speaking in the presence of those who are as much as, if not more conversant with business than, myself, and they will contradict me if I am not right when I say, that great symptoms of improvement in the trade and industry of the country have manifested themselves; which symptoms are of such a nature, that they do not appear to be the result of momentary excitement produced by some fallacious experiment, but of the paramount re-establishment of commerce, and of a fresh era in the prosperity of the empire. I am asked what have the Government done? Why, they have *restored* CONFIDENCE to the country! They have terminated wars, they have restored confidence at home, and commanded respect abroad."

Now, however, for the DOINGS of the Government; and of those we shall take no more detailed or extended notice than is requisite, in our opinion, to exhibit the general system and *plan* of their procedure, and show its complete consistency with the declaration of opinions made by Sir Robert Peel previous to the general election of 1841.

It will be borne in mind, that the then existing distress in our commercial and manufacturing interests he referred to three *temporary* causes:—the undue stimulus which had been given to industry in the manufacturing districts—by the accommodation system pursued in the joint-stock banks, the troubled and hostile condition of almost all those foreign countries which used to be the best customers for our manufactures, and the two or three preceding defective harvests. The first of these was not of a nature to call for, or perhaps admit of, direct and specific legislative interference. It originated in a vicious system of contagious private speculation, which has involved many thousands of those engaged in it in irredeemable, shall we add *deserved*, disgrace and ruin—and which had better, perhaps, be left to work its own cure. The last of the three causes was one to which all mankind is every where subject, and which is in a great measure beyond the reach of effective human interference. Before proceeding to explain the steps taken to remedy the second, viz., our distracted foreign relations, let us premise briefly for the present, that the very earliest acts of Ministers showed how profoundly sensible they were of the necessity of doing *something*, and that promptly, to relieve the grievous distress under which the lower orders were suffering, and at the same time afford a safe, effective, and permanent stimulus to trade and commerce. A comprehensive survey of the state, not only of our own but foreign commercial countries, satisfied them, as practical men, of the serious difficulties to be here contended with. The steps they took, after due deliberation—viz., the proposing the new tariff and the new corn-law—we shall presently refer to. Let us now point out *the income-tax* as a measure reflecting infinite credit upon those who had the sagacity and resolution to propose it. We shall not dwell upon this great *temporary* measure, which in one year has poured upwards of *five millions* into the exhausted exchequer, further than to say, that as soon as ever it was known among the monied classes, that the Minister, environed as he was with financial difficulties, would risk any amount of popular odium rather than add to the permanent burdens of the country, or permit the ruinous continuance of an excess of expenditure over revenue. As soon as this was evident, we say, the great monied interests of the kingdom recognized in Sir Robert Peel an honest minister, and gave him forthwith its complete confidence, which has never since been for an instant withdrawn from him. And how great are the obligations of that vast portion

of the most suffering classes of the community, whom he exempted from this extraordinary contribution to the burdens of the state!

But now for *foreign affairs*. May not the present Ministers look with just pride towards every quarter of the globe, and exclaim, *Quæ regio in terris nostri non plena laboris*? In truth their success here has been sufficient to set up half a dozen Ministers—as is known to no man better than Lord Palmerston. The Duke of Wellington and Lord Aberdeen have restored peace to the whole world, re-establishing it on a footing of dignified security and equality. By the persevering energy, the calm determination, and inexhaustible resources of Lord Aberdeen, "the winter of our discontent," has been "made glorious summer," with all the great powers of the world. Look at our glorious but irritable neighbour—France: is there any language too strong to express the delight which we feel at the renovated sympathy and affection which exist between us?

We cannot answer for France to the extent which we can for England; but we know, that through the length and breadth of *this* land—our beloved Queen's familiar visit to the King of the French, their affectionate greeting, and her Majesty's enthusiastic reception by the people, diffused a feeling of joy and affection towards France, which will not soon—nay, should it ever?—subside. But would that visit have taken place, if Lord Palmerston, and not Lord Aberdeen, had presided over the foreign councils of this country? 'Tis a disagreeable question, and we pass on. Then as to America, thanks to the mission of Lord Ashburton, peace has been secured between us, on terms equally honourable to both. We are now at peace with the United States—a peace not to be disturbed by the (to Whiggish eyes) *promising* (!!) aspect of the Oregon difficulties—which we tell our aforesaid friends will end in—*nothing at all*—[It is not, by the way, *the fault of our Government*, that this disputed matter was not embraced by the Washington Treaty.]—While Lord Palmerston and his doleful ally, the *Morning Chronicle*, were daily stigmatizing the treaty of Washington, as highly dishonourable and disadvantageous to this country, it may interest our readers to see what one of the disaffected *American* senators had to say on the subject. Thus spoke, in the senate, Mr Benton, a well-known member of congress:—

"The concessions of Great Britain to the United States are small. The territory granted to the United States, is of such a nature, that it will never be of importance to hold it, while the possessions given up by the United States are important and valuable to them, and have the effect of admitting a foreign power within a territory which was granted to the United States, by the treaty of 1783. * * When I see the Government giving up more than Great Britain demanded, I cannot conceal my amazement and mortification!"

Glancing, however, from the West to the East—what do we see? Wars in India and China, brought gloriously to an advantageous termination.—"Wars," to adopt the language of one of the greatest mercantile authorities living, "which have been deranging our money transactions, and making our trade a trade of hazard and speculation, most injurious to the commerce of the empire at large."

While, on the one hand, we are relieved from the ruinous drain upon our resources, occasioned by our protracted warlike operations in India and China, on the other, a prospect is opened to us, by the immensely important treaty into which the Emperor of China has entered with this country, of very great and permanent commercial advantages, which are already being realized. Let our manufacturers, however, beware of the danger of forfeiting these advantages, by excessive eagerness to avail themselves of these newly acquired markets. Twelve-months ago, we earnestly warned them on this score,^{[21](#)} and we now as earnestly repeat that warning; "Notwithstanding," observed an able French journalist, a few weeks ago, upon this subject, "the opening of five ports to European commerce, China will for many years preserve her internal laws, her eccentric tastes, her inveterate habits. China is the country of routine and immovability. The treaty with Great Britain cannot modify the nature of China in a few months. *If the English are not prudent in their exports, if they overload the newly opened ports with foreign produce, they will injure themselves more than they were injured by the war just concluded.*" In every word of this we concur: but alas! what weight will such considerations have with the agitating manufacturers in the north of England? Their fierce but short-sighted anxiety to make rapid fortunes, will make most of them, in a very few years, melancholy evidences of the justness of our observations! We cannot pass from the East

without noticing the sound statesmanship which is regulating all Lord Ellenborough's leading movements in India—a matter now universally admitted. How unspeakably contemptible and ridiculous has the lapse of a few months rendered the petty clamours against him, with which the ex-ministerial party commenced their last year's campaign! Without, however, travelling round the entire circle of our foreign connexions and operations—there are one or two points to which we will briefly refer, as striking instances of the vigilant and indefatigable energy, and the powerful diplomatic influence of Lord Aberdeen, especially with reference to the securing commercial advantages to this country—and which has extorted the following testimony, during the present month (December,) from another French journal, by no means favourably disposed to this country:—"The English Government is incontestably the best served of all Governments in the means of obtaining new, and extending old markets, and in the rapid and complete knowledge of the course to be adopted to ensure the sale of the immense products of Great Britain in different parts of the globe." Take for instance the case of Russia. We have actually succeeded in wringing from the tenacious and inflexible Cabinet of St Petersburg an important commercial advantage! On Lord Aberdeen's accession to office, he found Russia in the act of aiming a fatal blow at a very important branch of our shipping trade, by levying a differential duty on all British vessels conveying to Russian ports any goods which were not the produce of the British dominions. After, however, a skilful and very arduous negotiation, our foreign secretary has succeeded in averting that blow—and we retain the great advantages of which we were about to be deprived. Nor has this signal advantage been purchased by any sacrifice on the part of Great Britain, but only by a permission, founded on most equitable principles, for Russian vessels arriving here from Russian ports with the produce of Russian Poland, to possess the same privileges as if they had come direct from Russian ports: Russian Poland being able to communicate effectively with the sea, only through the Prussian territory. Look again at Brazil—which has also been recently the object of persevering and energetic negotiation on the part of Lord Aberdeen. It is true that, at present, his exertions have been attended with no direct success; but we have doubts whether the importance of the proposed Brazilian treaty has not, after all, been greatly exaggerated. However this may be, Lord Aberdeen is, at this moment, as strenuously at work with the young

emperor, as could be desired by the most eager advocate of a commercial treaty with Brazil. But, suppose the emperor's advisers should be disposed to continue their obstinate and unreasonable opposition, observe the gentle pressure upon them, to be felt by and by, which Lord Aberdeen has contrived to effect by the commercial treaty which he has concluded with the contiguous republic of Monte Video, and other states on the right bank of the river Plata, for the admission (on most favourable terms) of British imports into these states. One of them is the Uruguay republic, which borders through a great extent of country on Brazil, the Government of which is utterly unable to prevent the transfer of merchandise across the border; whereby the exclusion of British goods from the Brazilian territory is rendered a matter of physical impossibility.

[\[21\]](#). Great Britain at the commencement of the 19th Century—January 1843—No. CCC.

It is true, that our efforts to enter into commercial treaties with France and Portugal have not, as yet, been successful; but, formidable as are the obstacles at present in existence, we do not despair. Those least wonder at the present position of affairs who are best acquainted with the artificial and complicated positions of the respective countries, and their relations, and consequent policy, towards each other. Whatever can be done by man, is at this moment being done by Lord Aberdeen; and sooner than we have at present a right to expect, his indefatigable exertions may be crowned with success—not only in these, but in other quarters. All foreign Governments must be strongly influenced in such matters, by contemplating a steady and strong Government established in this country; and that object they see more nearly and distinctly every day. Such (without entering into details which would be inconsistent with either our space or our present object) is the general result—namely, the rapidly returning tide of prosperous commercial intercourse of the foreign policy of Conservative Government, which has raised Great Britain, within the short space of two years, to even a higher elevation among the nations of the world, than she had occupied before a "Liberal Ministry undertook the government of the country"—"a policy," to adopt the equally strong and just language of an able writer, "replete with auspicious evidences of the efficacy of intellect, combined with firmness, activity, and integrity, in restoring to wholesome and honourable order a chaotic jumble of anomalies—of humiliations and dangers—of fears, hatred, and confusion thrice trebly confounded."[22](#)

[\[22\]](#) Thoughts on Tenets of Ministerial Policy. By a Very Quiet Looker-on.—P. 22. Aylott, London, 1843.

While thus successfully active abroad, have Ministers been either idle or unsuccessful at home? Let us look at their two main measures—the *new tariff* and the *new corn-law*.

The object of the first of these great measures was twofold—to give a healthy and speedy but permanent stimulus to trade and commerce; and, at the same time, to effect such a reduction of price in the leading articles of consumption as should greatly reduce the cost of living—a boon, of course, inexpressibly precious to the poorer classes. Mark the moment at which this bold and critical line of policy was conceived and carried into execution—namely, a moment when the nation was plunged into such a depth of gloom and distress as had very nearly induced utter despair! when there was a deficiency of *five millions sterling* in the revenue of the two preceding years, and a certainty of greatly augmented expenditure for the future, owing to our wars in the East and elsewhere. We say—*mark this*, in order to appreciate a display of the true genius of statesmanship. Foreseeing one effect of such a measure, namely, a serious reduction in the revenue derived from the customs, and which would commence with the bare *announcement* of such a measure, the Government had to consider whether it would prove a permanent or only a temporary reduction, and to act accordingly. After profound consideration, they satisfied themselves (whether justly or not remains to be seen) that the diminution of revenue would prove only temporary; and to secure the *immediate* benefits of the measure, they imposed a temporary income-tax, the onerous pressure of which was to cease as soon as matters should have come round again. That period they fixed at the expiration of three years. After an interval of two years, do their calculations appear to have been well or ill founded? Let us see. Early in March 1842 they announced the proposed new tariff, (instantly producing the effect on the customs duties which had been anticipated;) and succeeded in bringing it into operation on the 9th of the ensuing July. The deficiency of revenue which ensued was so very serious that it would have alarmed the whole country, but for their confidence in the firmness and sagacity of Ministers, particularly as evidenced by their announced measures. We have not at the present moment before us the earliest *quarterly* revenue returns of the period referred to; but it will suffice to state, that such had been the extent of the reductions effected, that the deficiency on the *year* ending on the 5th October 1843, amounted to no less a sum than L.1,136,000; the decrease on the *quarter* ending on that day being L.414,000. Still, however, each succeeding quarter—or at least the latter quarters—gave more satisfactory indications of a rallying revenue; and we are enabled to

announce the highly gratifying fact that, up to the 8th of the present month (December,) the customs duties returns *are of the most decisively improving character*. The receipts of duties for the port of London alone, during that period, exceeds the receipt on the corresponding period of last year by L.206,000; while the returns from all the outports, especially from Liverpool, are of the same cheering character, and warrant us in predicting that the returns to be presented on the 5th of the ensuing month will afford a most triumphant proof of the accuracy of the Minister's calculations and the success of his policy; for be it borne in mind, moreover, that his income-tax realized, in the year ending on the 5th October last, the immense sum of L.5,052,000. As far, therefore, as concerns the direct *financial* effects of the new tariff and its counterbalancing income-tax, the results of Sir Robert Peel's policy are such as may stagger and confound the boldest of his opponents.

Now, however, for the two great objects of the new tariff, which were declared by Sir Robert Peel^{[23](#)} to be "the revival of commerce, and such an improvement in the manufacturing interest, as would react on every other interest in the country; and diminishing the prices of the articles of consumption and the cost of living."

^[23] Hansard, Vol. lxi. Col. 439.

With respect to the first of these objects, we had prepared a copious explanation of the highly satisfactory working of one great portion of the machine of the new tariff, viz. *the relaxation of the taxes on the raw materials of manufacture*; but it has occurred to us, that the necessity of our doing so has been entirely superseded by the following very remarkable admission, contained in a number of the *Morning Chronicle* newspaper, published towards the close of September last; an invaluable admission, tending to prove, out of the mouth of the bitterest opponent of the present Ministry, the general success of their domestic policy:—"Notwithstanding insurrection in Wales and agitation in Ireland, there are various circumstances in the present aspect of our national affairs of an encouraging and cheering nature. The first and most prominent thing which strikes an observer, is, the undoubted general revival of trade and commerce. Every thing seems to indicate that the morning is breaking; that the dreary night of disaster and suffering, through which all our material interests have been

passing since 1836, is now well-nigh over. The hum of busy industry is once more heard throughout our manufacturing districts; our seaports begin once more to stir with business; merchants on 'Change have smiling faces; and the labouring population are once more finding employment easier of access; and wages are gently, slowly rising. This has not come upon us suddenly; it has been in operation since the end of last year; but so terrible was the depression, so gradual the improvement, that the effects of the revival could not be perceptible till within a recent period. Our exports of cotton and wool, during the present year, very considerably exceed those of a similar period in the preceding; and though there might be increase of export without increase of profit, the simple fact that the districts of our great manufacturing staples are now more active and busy than they have been for a very considerable period, coupled with the apparently well-founded belief that this increased activity is produced, not by speculative but genuine demand, are indications of the most pleasing and gratifying kind to all who are in the least concerned about the prosperity of the country. In addition to the improvement manifested in our staple articles of industry, other important interests are showing symptoms of decided improvement; even the iron-trade has got over its 'crisis;' and though we are very far indeed from having attained to a condition of prosperity, the steady, though slow, revival of every branch of industry, is a proof that the cause of the improvement must be a general one, operating universally." May we venture to suggest, that the worthy editor of the *Morning Chronicle* need not go about with a lantern to discover this *cause*?—that it is every where before his very eyes, under his very nose, in the form of the bold, but sagacious and consistent, policy pursued by the present Government?

With respect to the second great object of the new tariff, viz., the "Diminishing of the prices of the articles of consumption and the cost of living."

Has *this* great object, or has it not, been attained? Why, the reduced price of provisions is a matter of universal notoriety, and past all question. Unable to contest the existence of this most consolatory fact, the Opposition papers endeavoured to get up a diversion by frightening the farmers, whom they assured, that the admission of foreign live-stock would lead to a fearful depreciation in the value of British agricultural produce. The graziers and

cattle-dealers were forthwith to find "their occupations gone." British pasture farming was to be annihilated, and an immense stimulus given to that of our continental rivals. Hereat the farmers pricked up their ears, and began to consider for a moment whether they should not join in the outcry against the new tariff. But the poor beasts that have come, doubtless much to their own surprise, across the water to us, looked heartily ashamed of themselves, on catching a glimpse of their plump, sleek brother beasts in England—and the farmers burst out a-laughing at sight of *the lean kine that were to eat up the fat ones!* The practical result has been, that between the 9th of July 1842, and the present time, there have not come over foreign cattle enough to make one week's show at Smithfield. But mark, *the power* of admitting foreign cattle and poultry, (on payment, however, of a considerable duty,²⁴) conferred by the new tariff, is one that must be attended with infinite permanent benefits to the public, in its *moderating influence upon the prices of animal food*. Its working is in beautiful harmony with that of the newly modeled corn-laws, as we shall presently explain. In years of abundance, when plenty of meat is produced at home, the new tariff will be inoperative, as far as regards the actual importations of foreign cattle; but in years of scarcity at home, the expectation of a good price will induce the foreigner to send us a sufficient supply; for he will then be, and then only, able to repay himself the duty, and the heavy cost of sea-carriage. As prices fall, the inducement to import also declines. In short, "the inducement to importation falls with the fall, and rises with the rise of price. The painful contingency of continued bad seasons has thus, in some measure, been provided against. The new tariff is so adjusted, that when prices threaten to mount to an unfair and extravagant height, unjust to consumers, and dangerous to producers, in such contingencies a mediating power steps in, and brings things to an equilibrium."²⁵ These great and obvious advantages of the new tariff, the opponents of Ministers, and especially their reckless and discreditable allies called the "Anti-corn-law League," see as plainly as we do; but their anxious aim is to conceal these advantages as much as possible from public view; and for this purpose they never willingly make *any allusion* to the tariff, or if forced to do so, underrate its value, or grossly misrepresent its operation. But we are convinced that *this will not do*. Proofs of their humbug and falsehood are, as it were, daily *forcing themselves into the very stomachs* of those whom once, when an incompetent Ministry was in power, these heartless

impostors were able to delude. "A single shove of the bayonet," said Corporal Trim to Doctor Slop, "is worth all your fine discourses about the art of war;" and so the English operative may reply to the hireling "Leaguers," "This good piece of cheap beef and mutton, now smoking daintily before me, is worth all your palaver."

[24] Poultry £5 for every £100 value; oxen and bulls, £1 each; cows, 15s.; calves, 10s.; horses, mares, foals, colts, and geldings, £1 each; sheep, 3s. each; lambs, 2s. each; swine and hogs, 5s. each—(Stat. 5 and 6 Vict. c. 47, Table A.)

[25] Thoughts, &c., by a Quiet Looker-on, pp. 16, 17.

Before passing from the subject of the new tariff, let us observe, that the suddenness and vastness of its changes (some of which we consider to be of questionable propriety) for a time unavoidably deranged mercantile operations; and in doing so, as necessarily produced many cases of individual dissatisfaction and distress. Some of the persons thus situated angrily quitted the Conservative ranks for those of the Opposition; others, for a position of mortified neutrality: but we believe that many more, notwithstanding this sharp trial of their constancy, remained true to their principles, faithful to their party, and are now rewarded by seeing things coming rapidly round again, while unvarying and complete success has attended every other branch of the policy of Ministers. We know a good deal of the real state of opinion among the mercantile classes of the City of London; and believe we correctly represent it averse to further changes in our tariff-system, and coincident with the views expressed by Mr Baring in his address to the electors, when he deprecated "a constant change, unsettling men's minds, baffling all combinations, destroying all calculations, paralysing trade, and continuing the stagnation from which we are recovering;" and declared his belief "that the minister who applies the principles of free-trade with the most caution, deliberation, and judgment, is the statesman who merits the confidence of the commercial world." We now, however, quit the subject—interesting, indeed, and all-important—of the tariff, with the deliberate expression of our opinion, that it is, taken as a whole, a very bold, masterly, and successful stroke of policy. Now for the NEW CORN-LAW.

But how shall we deal with a topic with which the public has been so utterly sickened by the people calling themselves "The Anti-corn-law League?" We do not, nevertheless, despair of securing the attention of our readers to the

few observations which we have to offer upon a subject which, however hackneyed, is one of paramount importance. We are satisfied that nine out of every ten even of newspaper readers turn with disgust from the columns headed "Anti-corn-law League," "Doings of the League," "Great Meeting of the Anti-corn-law League," and so forth; and, (making every allowance for the exigencies occasioned by the dearth of topics while Parliament is not sitting,) we are exceedingly surprised, that the great London newspapers should inflict upon their readers so much of the slang and drivel of the gentry in question. In the due prosecution of our subject, we cannot avoid the topic of the new corn-law, even were we so disposed; and we shall at once proceed to our task, with two objects in view—to vindicate the course pursued by Sir Robert Peel, and set forth, briefly and distinctly, those truly admirable qualities of the existing Corn-laws, which are either most imprudently misrepresented, or artfully kept out of view, by those who are now making such desperate efforts to overthrow it. "Mark how a plain tale shall set them down!"

Whether foreign corn should be admitted into this country on payment of *fluctuating* duties, or a *fixed* duty, or free of all duties, are obviously questions of the highest importance, involving extensive and complicated considerations. Sir Robert Peel, Lord John Russell, and the persons banded together under the name of "The Anti-corn-law League," may be taken as representing the classes of opinion which would respectively answer these three questions in the affirmative. All of them appealed to the nation at large on the last general election. The *form* in which the question was proposed to the country, it fell to the lot of the advocates of a fixed duty to prescribe, and they shaped it thus in the Queen's speech:—

"It will be for you to determine whether the corn-laws do not aggravate the natural fluctuations of supply; whether they do not embarrass trade, derange currency, and, by their operation, diminish the comforts and increase the privations of the great body of the community."

To this question the country returned a deliberate and peremptory answer in the NEGATIVE; expressing thereby its will, that the existing system, which admits foreign corn on payment of *fluctuating* duties, should continue. The country thus adopted the opinions of Sir Robert Peel, rejected those of Lord

John Russell, and utterly scouted those of the "Anti-corn-law League," in spite of all their frantic exertions.

We believe that this deliberate decision of the nation, is that to which it will come whenever again appealed to; and is supported by reasons of cogency. The nation is thoroughly aware of the immense importance of upholding and protecting the agriculture of the country, and that to secure this grand object, it is necessary to admit foreign corn into the country, only when our deficiencies absolutely require it. That *in* the operation of the "*sliding-scale* of duties," and the exact distinction between its effect and that of the proposed *fixed* duty, is demonstrably this: that the former would admit foreign corn in dear years, excluding it in seasons of abundance; while the latter would admit foreign corn in seasons of abundance, and exclude it in dear years. Our *present* concern, however, is with the course taken by the present Government. Have they hitherto yielded to the clamour with which they have been assailed, and departed from the principle of affording efficient protection to the agriculture of the country? Not a hair's breadth; *nor will they*. We have seen that Sir Robert Peel, previously to the general election, declared his determination to adhere to the existing system of corn-laws, regulating the admission of foreign corn by the power of the sliding-scale of duties; but both he and the leading members of his party, had distinctly stated in Parliament, just before its dissolution, that while resolved to adhere to the *principle* of a sliding-scale, they would not pledge themselves to adhere to all the *details* of that scale. And they said well and wisely, for there were grave objections to some of those details. These objections they have removed, and infinitely added to the efficiency of the sliding-scale; but in removing the principal objections, they stirred a hornet's nest—they rendered furious a host of sleek gamblers in grain, who found their "occupation gone" suddenly! On the other hand, the Government conferred a great substantial benefit upon the country, by securing a just balance between protection to the British corn consumer and producer; removing, at the same time, from the latter, a long-existing source of jealousy and prejudice. A few words will suffice to explain the general scope of those alterations. Under the system established by statute 9 Geo. IV. c. 60, in the year 1828, the duty on foreign corn, up to the price of 68s. per quarter, was so high, and declined so very slowly, (L.1, 5s. 8d., L.1. 4s. 8d., L.1, 3s. 8d., L.1, 2s. 8d., L.1, 1s. 8d., L.1, 0s. 8d., 18s. 8d.,) as to

amount to a virtual prohibition against importation. But when the price mounted from 68s. to 72s. per quarter, the duty declined with such great rapidity. (16s. 8d., 13s. 8d., 10s. 8d., 6s. 8d., 2s. 8d.,) as to occasion the alarming and frequently recurring evils of glut and panic. Now the following was the mode in which these serious defects in the law of 1828 were taken advantage of by the aforesaid desperate and greedy "rogues in grain," who are utterly prostrated by the new system; they entered into a combination, for the purpose of raising the apparent average price of corn, and forcing it up to the point at which they could import vast quantities of foreign corn at little or no duty. Thus the price of corn was rising in England—the people were starving—and turned with execration against those into whose pockets the high prices were supposed to go, viz., the poor farmers; whereas those high prices really were all the while flowing silently but rapidly into the pockets of the aforesaid "rogues in grain"—the gamblers of the Corn Exchange!—Ministers effected their salutary alterations, by statute 5 and 6 Vict. c. 14, in the following manner:—They substituted for the former duties of 10s. 8d. per quarter, when the price of corn was 70s. per quarter, and 1s. when the price was 73s.; a duty of 4s. when the price of corn is 70s. per quarter, and made the duty fall gradually, shilling by shilling, with the rise of price, to 3s., 2s., and 1s. Thus are at one blow destroyed all the inducements formerly existing for corn-dealers to "hold" their foreign corn, in the hopes of forcing up the price of corn to starvation-point, viz., the low duty, every inducement being now given them to *sell*, and none to speculate. Another important provision for preventing fraudulent combinations to raise the price of corn, was that of greatly extending the averages, and placing them under regulations of salutary stringency.

So far, then, from evincing a disposition to trifle with, or surrender, the principle of the sliding-scale, the Government have, with infinite pains and skill, applied themselves to effect such improvements in it as will secure its permanency, and a better appreciation of its value by the country at large, with every additional year's experience of its admirable qualities. There is a perfect identity of principle, both working to the same good end, between the existing corn-law and the new tariff. Their combined effect is to oppose every barrier that human wisdom and foresight can devise, against dearth and famine in England: securing an abundant supply of corn and meat from

abroad, whenever our own supply is deficient; but up to that point protecting our home producers, whose direct interest it will henceforth be to supply us at fair and moderate prices. It is the cunning policy of the heterogeneous opponents of the existing corn-laws, to speak of them as "doomed" by a sort of universal tacit consent; to familiarise the public with the notion that the recent remodeling of the system is to be regarded as constituting it into nothing more than a sort of transition-measure—a stepping-stone towards a great fundamental change, by the adoption of "a fixed duty," some say—"a total repeal," say the Anti-corn-law League. But those who think thus, must be shallow and short-sighted indeed, and have paid very little real attention to the subject, if they have failed to perceive in the existing system itself all the marks of completeness, solidity, and permanence; and, in the successful pains that have been taken to bring it to a higher degree of perfection than before, a determination to uphold it—a conviction that it will long continue the law of the land, and approved of as such by the vast majority of those who represent the wealth and intellect of the kingdom, and have the deepest stake in its well-being.

As for a total repeal of the corn-laws, no thinking man believes that there is the remotest prospect of such a thing; but many imagine that a fixed duty would be a great change for the better, and a safe sort of compromise between the two extreme parties. Can any thing be more fallacious? We hesitate not to express our opinion, that the idea of maintaining a fixed duty on corn is an utter absurdity, and that Lord John Russell and his friends know it to be so, and are guilty of political dishonesty in making such a proposal. They affect to be friends of the agricultural interest, and satisfied of the necessity for protection to that body; and yet they acknowledge that their "*fixity*" of duty is of precisely the same nature as the "*finality*" of the Reform bill, viz.—to last only till the first pressure shall call for an order in council. Does any one in his senses believe that any Minister could abide by a fixed duty with corn at the price of 70s., with a starving, and therefore an agitating and rebellious population? A fixed duty, under all times and circumstances, is a glaring impossibility; and, besides, is it not certain that the period for the issue of an order in council will be a grand object of speculation to the corn importer; and that he will hoard, and create distress, merely to force out that order? And the issuing of that order would depend entirely on the strength or the necessity of the Minister: on his

"Squeezableness"—his anxiety for popularity. Does the experience of the last ten years justify the country in placing confidence, on such a point, in a *Whig* Ministry? In every point of view, the project of a fixed duty is exposed to insuperable objections. It is plain that on the very first instant of there being a pressure upon the "fixed duty," it must give way, and for ever. Once off, it is gone for ever; it can never be re-imposed. Again, what is to govern the *amount* at which it is to be fixed? Must it be the additional burden on land? or the price at which foreign countries, with their increased facilities of transport, and improved cultivation of their soil, would be able to deliver it in the British markets? What *data* have we, in either case, on which to decide? Let it, however, always be borne in mind, by those who are apt too easily to entertain the question as to either a fixed duty, or a total repeal of duty, that the advantages predicted by the respective advocates of those measures are *mere assumptions*. We have no experience by which to try the question. The doctrines of free trade are of very recent growth; the *data* on which its laws are founded are few, and also uncertain. And does any one out of Bedlam imagine, that any Minister of this country would consent to run such tremendous risks—to try such experiments upon an article of such immense importance to its well-being? Let us never lose sight of Lord Melbourne's memorable words:—"Whether the object be to have a fixed duty, or an alteration as to the ascending and descending scale, I see clearly and distinctly, that the object will not be carried without a most violent struggle—without causing much ill-blood, and a deep sense of grievance—without stirring society to its foundation, and leaving every sort of bitterness and animosity. I do not think the advantages to be gained by the change are worth the evils of the struggle."²⁶

[26]. Debates, 11th June 1840.

To return, however. Under the joint operation of the three great measures of the Government—the income-tax, the new tariff, and the new corn-law, our domestic affairs exhibit, at this moment, such an aspect of steadily returning prosperity, as not the most sanguine person living could have imagined possible two years ago. For the first time after a miserable interval, we behold our revenue exceeding our expenditure; while every one feels satisfied of the fact, that our finances are now placed upon a sound and solid basis, and daily improving. Provisions are of unexampled cheapness, and the means of obtaining them are—thank Almighty God!—gradually

increasing among the poorer classes. Trade and commerce are now, and have for the last six months been steadily improving; and we perceive that a new era of prosperity is beginning to dawn upon us. We have a strong and united Government, evidently as firmly fixed in the confidence of the Queen as in that of the country, and supported by a powerful majority in the House of Commons—an annihilating one in the House of Lords. The reign of order and tranquillity has been restored in Wales, and let us also add, in Ireland, after an unexampled display of mingled determination and forbearance on the part of the Government. Chartism is defunct, notwithstanding the efforts made by its dishonoured and discomfited leaders to revive it. When, in short, has Great Britain enjoyed a state of more complete internal calm and repose than that which at present exists, notwithstanding the systematic attempts made to diffuse alarm and agitation? Do the public funds exhibit the slightest symptoms of uneasiness or excitement? On the contrary, ever since the accession of the present Government, there has been scarce any variation in them, even when the disturbances in the manufacturing districts in the north of England, and in Wales, and in Ireland, were respectively at their height. Her Majesty moves calmly to and fro—even quitting England—her Ministers enjoy their usual intervals of relaxation and absence from town—all the movements of Government go on like clockwork—no symptoms visible any where of feverish uneasiness. But what say you, enquires a timid friend, or a bitter opponent, to the Repeal agitation in Ireland, and the Anti-corn-law agitation in England? Why, we say this—that we sincerely regret the mischief which the one has done, and is doing, in Ireland, and the other in England, among their ignorant and unthinking dupes; but with no degree of alarm for the stability of the Government, or the maintenance of public tranquillity and order. Ministers are perfectly competent to deal with both the one and the other of these two conspiracies, as the chief actors in the one have found already, and those in the other will find, perhaps, by and by; if, indeed, they should ever become important or successful enough to challenge the notice and interference of the Government. A word, however, about each, in its turn.

The Anti-corn-law League has in view a two-fold object—the overthrow of the present Ministry whom they abhor for their steadfast and powerful support of the agricultural interest;—and the depression of the wages of

labour, to enable our manufacturers (of whom the league almost exclusively consists) to compete with the manufacturers on the Continent. Their engine for effecting their purposes, is the Repeal of the corn-laws; and they are working it with such a desperate energy, as satisfies any disinterested observer, that they themselves perceive the task to be all but utterly hopeless. They were confounded by the result of the general election, and dismayed at the accession to power of men whom they knew to be thoroughly acquainted with their true objects and intentions, and resolved to frustrate them, and able to carry their resolutions into effect. The ominous words of Sir Robert Peel—"I think that the connexion of the manufacturers in the north of England with the joint-stock banks, gave an undue and improper impulse to trade in that quarter of the country"—rang in their ears as a knell; and told them that they were *found out* by a firm and sagacious Minister, whom, therefore, their sole object thenceforth must be to overthrow *per fas aut nefas*. For this purpose they adopted such an atrocious course of action, as instantly deprived them of the countenance of all their own moderate and reasoning friends, and earned for themselves the execration of the bulk of the community:—they resolved to inflame the starving thousands in the manufacturing districts into acts of outrage and rebellion. They felt it necessary, in the language of Mr Grey, one of their own principal men, in order "*to raise the stubborn enthusiasm of the people,*" (!) to resort to some desperate expedient—which was—immediately on Sir Robert Peel's announcing his determination, early in 1842, to preserve, but improve, the existing system of the corn-laws—to reduce the wages of all their work-people to the amount of from ten to twenty per cent. This move originated with the *Stockport* manufacturers. We have little doubt but it was the suggestion of Mr Cobden; and are quite prepared for a similar move during the ensuing session of Parliament. But was not—is not—this a species of moral arson? The Government calmly carried their measure: the outbreak (which we firmly believe to have been concerted by the Anti-corn-law League) in Lancashire arrived, and was promptly and resolutely, but mercifully repressed; and thus was extinguished the guilty hopes and expectations of its contrivers; and Ministers were left stronger at the close of the session than they had been at its commencement. They resolved to open a new campaign against Ministers and the Corn-laws—greatly to augment their numbers and pecuniary resources—to redouble their exertions, and immensely to extend

the sphere of their operations. They *did* augment their pecuniary resources, by large forced contributions among the few persons most deeply interested in the success of their schemes; namely, the Lancashire manufacturers—they *did* redouble their exertions—they *did* extend the sphere of their operations, spreading themselves over the whole length and breadth of the land, even as did the plague of lice over Egypt. But did they augment the number of their friends? Not a person of the least political or personal importance could be prevailed upon to join their discreditable ranks; it remained as before:—Cobden and Bright—Bright and Cobden—Wilson, Bright, and Cobden—Milner Gibson, Fox, Bright and Cobden—*ad nauseam usque*; but, like a band of travelling incendiaries, they presented themselves with indefatigable energy in places which had never known their presence before. And how comes it to pass that they have not long since kindled at least the manufacturing population into a blaze? Is it any fault of the aforesaid incendiaries? No—but because there is too much intelligence abroad, they could not do what they would—"*raise the stubborn enthusiasm*" of the people. In one quarter they were suspected—in another despised—in another hated; and it became a very general impression that they were, in fact, a knot of double dealers, who certainly contrived to make a great noise, and keep themselves perpetually before the public; but as for getting the steam "up," in the nation at large, they found it impossible. In truth, the "Anti-corn-law League" would have long ago been dissolved amidst the indifference or contempt of the public, but for the countenance they received, from time to time, and on which they naturally calculated, from the party of the late Ministers, whose miserable object was to secure their own return to power by means of any agency that they could press into their service. But, to return to our sketch of the progress of the "League." Admitting that, by dint of very great and incessant exertion, they kept their ground, they made little or no progress among the mercantile part of the community; and they resolved to try their fortune with the agricultural constituencies—to sow dissension between the landlords and the tenants, the farmers and their labourers, and combine as many of the disaffected as they could, in support of the clamour for free trade. This was distinctly avowed by Cobden, at a meeting of the Anti-corn-law deputies, in the following very significant terms: "*We can never carry the measure ourselves: WE MUST HAVE THE AGRICULTURAL LABOURERS WITH US!!*"^{[27](#)}

They therefore proceeded to commence operations upon the agricultural constituencies. They knew they could always reckon upon a share of support wherever they went—it being hard to find any country without its cluster of bitter and reckless opponents of a Conservative government, who would willingly aid in any demonstration against it. With such aid, and indefatigable efforts to collect a crowd of noisy non-electors: with a judicious choice of localities, and profuse bribery of the local Radical newspapers, in order to procure copious accounts of their proceedings—they commenced their "grand series of country triumphs!" Their own organs, from time to time, gave out that in each and every county visited by the League, the *farmers* attended their meetings, and joined in a vote condemnatory of the corn-laws, and pledged themselves to vote thereafter for none but the candidates of the Anti-corn-law League!

The following are specimens of the flattering appellations which had till now been bestowed, by their new friends, upon these selfsame farmers—"Bull-frogs!" "chaw-bacons!" "clod-poles!" "hair-bucks!" "deluded slaves!" "brute drudges!"²⁸ Now, however, they and their labourers were addressed in terms of respectful sympathy and flattery, as the victims of the rapacity of their landlords—on whom were poured the full phials of Anti-corn-law wrath. The following are some of the scalding drops let fall upon their devoted heads—"Monster of impiety!" "inhuman fiend!" "heartless brutes!" "rapacious harpies!" "relentless demons!" "plunderers of the people!" "merciless footpads!" "murderers!" "swindlers!" "insatiable!" "insolent!" "flesh-mongering!" "scoundrel!" "law-making landlords!" "a bread-taxing oligarchy!"²⁹ Need we say that the authors of these very choice and elegant expressions were treated with utter contempt by both landlords and tenants—always making the few allowances above referred to? Was it very likely that the landlord or the farmer should quit their honourable and important avocations at the bidding of such creatures as had thus intruded themselves into their counties? should consent to be yoked to the car, or to follow in the train of these enlightened, disinterested, and philanthropic cotton-spinners and calico-printers? Absurd! It became, in fact, daily more obvious to even the most unreflecting, that these worthies were not likely to be engaged in their "labours of love;" were not *exactly* the kind of persons to desert their own businesses, to attend out of pure

benevolence that of others—to let succumb their own interest to promote those of others; to subscribe out of the gains which they had wrung from their unhappy factory slaves, their L.10, L.20, L.30, L.50, L.100, out of mere public spirit and philanthropy.

[28] League Circular, No. 10.

[29] Ibid. Nos. 26, 29, 44, 50, 71, 83, 94, 99, 100.

Still, we say, the whole thing was really a failure—the "steam," even yet, could not be "got up," in spite of all their multiplied agencies and machinery, incessantly at work—the unprecedented personal exertions of the members of the league—the large pecuniary sacrifices of the Lancashire subscribers to its funds. One more desperate exertion was therefore felt necessary—and they resolved to attempt getting up a *sensation*, by the sudden subscription of splendid sums of money, by way of starting a vast fund, with which to operate directly upon the entire electoral body—in what way, it is not very difficult to guess. Accordingly, they began—but where? At the old place—Manchester!—Manchester!—*Manchester!* Many thousands were subscribed at an hour's notice by a mere handful of manufacturers; the news came up to London—and the editor of the *Times*, in a transient fit of excitement, pronounced "the existence of the League" to be a GREAT FACT. Upon this phrase they have lived ever since—till somewhat roughly reminded the other day, by Mr Baring, that "great *facts*" are very "*great follies!*" Now let us once more ask the question—would all these desperate and long-continued exertions and sacrifices—(all proceeding, be it ever observed, from *one* quarter, and from the same class of people—nay, the same individuals of that class)—be requisite, were there any *real movement of the public mind and feeling* against the Corn-laws? Are they not requisite solely because of the *absence* of any such movement? Nay, are they not evidence that the public feeling and opinion are against them? And that, perhaps, they will by and by succeed in rousing the "stubborn enthusiasm of the people" against themselves? Where has there been called one single spontaneous public meeting of any importance, and where exhibited a spark of enthusiasm, for the total repeal of the Corn-laws? Surely the *topic* is capable of being handled in a sufficiently exciting manner! But no; wherever a "meeting," or "demonstration," is heard of—there, also, are the eternal Cobden, Bright and Wilson, and their miserable fellow-agitators, who alone have got up—who alone harangue the meetings.

Was it so with Catholic Emancipation?—with the abolition of Negro Slavery?—with the Reform Bill? Right or wrong, the public feeling was then roused, and exhibited itself unequivocally, powerfully, and spontaneously; but *here*—bah! common sense revolts at the absurd supposition that even hundreds of thousands of pounds can of themselves get up a real demonstration of public feeling in favour of the object, for which so much Manchester money has been already subscribed.

"'Tis not in *thousands* to command success."

If the public opinion of this great country—this great enlightened nation—were *really* roused against the Corn-laws, they would disappear like snow under sunshine. But, as the matter *now* stands, if their dreary drivellers Cobden, Bright, Wilson, Acland, W.J. Fox, were withdrawn from the public scene in which they are so anxious to figure, and sent to enjoy the healthy exercise of the tread-mill for one single three months, would this eternal "*brutum fulmen*" about the repeal of the Corn-laws be heard of any more? We verily believe not. "But look at our triumphs!"—quoth Cobden—"Look at our glorious victories at Durham, London, and Kendal!—our virtual victory at Salisbury!" Moonshine, gentlemen, and you know it;—and that you have spent your money in vain. Let us see how the matter stands.

I. *Durham*. True, Mr Bright was returned; but to what is the House of Commons indebted for the acquisition of that distinguished senator, except the personal pique and caprice of that eccentric Tory peer, Lord Londonderry? This is notorious, and admitted by all parties; and these causes will not be in operation at another election.

II. *London*. And do you really call this a "great triumph?" Undoubtedly Mr Pattison was returned; but is it a matter of congratulation that this notorious political nonentity, who openly, we understand, entertains and will support *Chartist* opinions, is returned instead of such a man as Mr Baring? What was the majority of Mr Pattison? One hundred and sixty-five, out of twelve thousand eight hundred and eighty-nine who actually voted. And how was even that majority secured? By the notorious absence from London—as is always the case at that period of the year (21st October 1843)—of vast numbers of the staunchest Conservative electors. There is no doubt whatever, that had the election happened one fortnight later than it did, Mr Baring

would have been returned by a large majority, in spite of the desperate exertions of the Anti-corn-law League and Mr Rothschild and the Jews. As it was, Mr Baring polled more (6367) than had ever been polled by a Conservative candidate for London before; and had an immense majority over his competitor, among the superior classes of the constituency.³⁰ At another election, we can confidently predict that Mr Baring will be returned, and by a large majority, unless, indeed, the Charter should be the law of the land; in which case Mr Pattison will probably enjoy another ovation.

[30]. Among the *Livery*, the numbers were—Baring, 3196; Pattison, 2367;—majority for Baring, 889!

Among the *Templars*—Baring, 258; Pattison, 78!!—majority for Baring, 180!

III. *Kendal*. Is this, too, a victory? "Another such, and you are undone." Why? Till Mr Bentinck presented himself before that enlightened little constituency, no Conservative dared even to offer himself; 'twas a snug little stronghold of the Anti-corn-law League interest, and yet the gallant Conservative gave battle against the whole force of the League; and after a mortal struggle of some fourteen days, was defeated by a far smaller majority than either friends or enemies had expected, and has pledged himself to fight the battle again. Here, then, the League and their stanch friends have sustained an unexpected and serious shock.

IV. *Salisbury*.—We have not the least desire to magnify this into a mighty victory for the Conservative party; but the interference of the Anti-corn-law League certainly made the struggle a very critical and important one. We expected to succeed, but not by a large majority; for ever since 1832, the representation had (till within the last year) been divided between a Conservative and a Liberal. However, the Anti-corn-law League, flushed with their "triumphs" at London and Kendal, flung all their forces ostentatiously into the borough, and exhibited a disgusting and alarming specimen of the sort of interference which it seems we are to expect in all future elections, in all counties and boroughs. It was, however, in vain; the ambitious young gentleman who had the benefit of their services, and who is a law-student in London, but the son of the great Earl of Radnor, lost his election by a large majority, and the discomfited League retired ridiculously to Manchester. When we heard of their meditated descent upon Salisbury,

we fancied we saw Cobden and his companions waddling back, geese-like, and exclaimed—

"Geese! if we had you but on Sarum plain,
We'd drive you cackling back to Camelot!"

So much for the boasted electoral triumphs of the Anti-corn-law League—we repeat, that they are all mere moonshine, and challenge them to disprove our assertion.

They are now making another desperate effort to raise a further sum of a hundred thousand pounds; and beginning, as usual, at Manchester, have raised there alone, within a few days' time, upwards of L.20,000! The fact (if *true*) is at once ludicrous and disgusting: ludicrous for its transparency of humbug—disgusting for its palpable selfishness. Will these proverbially hard-hearted men put down their L.100, L.200, L.300, L.400, L.500, for nothing? Alas, the great sums they have expended in this crusade against the Corn-laws, will have to be wrung out of their wretched and exhausted factory slaves! For how otherwise but by diminishing wages can they repay themselves for lost time, for trouble, and for expense?

Looked at in its proper light, the Corn-law League is nothing but *an abominable conspiracy against labour*. Cheap *bread* means cheap *labour*; those who cannot see this, must be blind indeed! The melancholy fact of the continually-decreasing price of labour in this country, rests on undisputable authority—on, amongst others, that of Mr Fielding. In 1825, the price of labour was 51 per cent less than in 1815; in 1830 it was 65 per cent less than in 1815, though the consumption of cotton had increased from 80,000,000 lbs. to 240,000,000 lbs.! In 1835 it was 318,000,000 lbs., but the operative received 70 per cent less than in 1815. In 1840 the consumption of cotton was 415,000,000 lbs., and the unhappy operative received 75 per cent less than in 1815!

If proofs be required to show that in reality the deadly snake, *cheap labour*, lurks among the flourishing grass, *cheap bread*, we will select one or two out of very many now lying before us, and prepared to be presented to the reader.

"If grain be high," said Mr Ricardo, in the House of Commons,³¹ "the price of labour would necessarily be a deduction from the *profits of stock*." "The Corn-laws raise the price of sustenance—that has *raised the price of labour*; which, of course, diminishes the profit in capital."³²

^[31] Debates, May 30, 1820.

^[32] *Ib.* Dec. 24, 1819.

"Until the price of food in this country," said Mr Hume, in the House of Commons on the 12th of May last, in the presence of all the leading free-trade members, "is placed on a level with that on the Continent, it will be impossible for us to compete with the growing manufactures of Belgium, Germany, France, and America!!"

Hear a member of the League, and of the Manchester Chamber of Commerce, Mr G. Sandars:—

"If three loaves instead of two could be got for 2s., in consequence of a repeal of the Corn-laws, another consequence would be, that the workman's 2s. would be reduced to 1s. 4d., which would leave matters, as far as he was concerned, just as they were!!"³³

^[33] *Authentic Discussions on the Corn-law*, (Ridgway, 1839,) p. 86.

Hear a straightforward manufacturer—Mr Muntz, M.P.—in the debate on the 17th May last:—

"If the Corn-laws were repealed, the benefit which the manufacturer expected was, that he could produce at a lower price; and this he could do only by reducing wages to the continental level!!"

If the above fail to open the eyes of the duped workmen of this country, what will succeed in doing so? Let us conclude this portion of our subject—disgusting enough, but necessary to expose imposture—with the following tabular view, &c., of the gross contradiction of the men, whom we wish to hold up to universal and deserved contempt, on even the most vital points of the controversy in which they are engaged; and then let our readers say whether any thing proceeding from such a quarter is worthy of notice:—

The *League Oracle* says—

1. "If we have free trade, the landlords' rents will fall 100 per cent."—(*League Circular*, No. 15. p. 3.)

2. "Provisions will fall one-third."—(Ib. No. 34, p. 4.)

"The Corn-laws makes the labourer pay double the price for his food."—(Ib. No. 15.)

3. "The Corn-law compels us to pay *three times the value for a loaf of bread*."—(Ib. No. 13.)

"If the Corn-laws were abolished, the working man WOULD SAVE 31/2d. UPON EVERY LOAF OF BREAD."—(Ib. No. 75.)

"As a consequence of the repeal of the Corn-laws, *we promise cheaper food*, and our hand-loom weavers would get *double* the rate of wages!"—(Ib. No. 7.)

"We shall have *cheap bread*, and its price will be reduced 33 per cent."—(Ib. No. 34.)

4. Messrs Villiers, Muntz, Hume, Roche, Thornton, Rawson, Sandars, (all Leaguers,) say, and the oracle of the *League* itself has said, that "We want free trade, to enable us to *reduce wages*, that we may compete with foreigners."—(*Post*, pp. 13-16.)

5. The *League Oracle* admits that "a repeal would *injure* the farmer, but not so much as he fears."—(*League Circular*, No. 58.)

Mr Cobden says—

1. "If we have free trade, the landlords will have as good rents as now."—(Speech in the House of Commons, 15th May last.)

2. "Provisions will be no cheaper."—(Speech at Bedford, *Hertford Reformer*, 10th June last.)

3. "THE ARGUMENT FOR CHEAP BREAD WAS NEVER MINE."—(*Morning Chronicle*, 30th June 1843, Speech on Penenden Heath.)

"THE IDEA OF LOW-PRICED FOREIGN CORN IS ALL A DELUSION."—SPEECH AT Winchester, *Salisbury Herald*, July 29, 1843, p. 3.

4. Messrs Cobden, Bright, and Moore, now affirm—"It is a base falsehood to say we want free trade, to enable us to reduce the rate of wages."—(Mr Cobden on Penenden Heath. Messrs Bright and Moore at Huntingdon.)

5. Cobden, Moore, and Bright, say, that it is to the *interest* of the farmer to have a total and *immediate* repeal.—(Uxbridge, Bedford, Huntingdon.^{[34](#)}

^[34] Extracted from a very admirable speech by Mr Day of Huntingdon, (Ollivier, 1843,) and which we earnestly recommend for perusal.

The disgusting selfishness and hypocrisy of such men as Cobden and his companions, in veiling their real objects under a pretended enmity to "Monopoly" and "Class Legislation"—and disinterested anxiety to procure for the poor the blessings of "cheap bread"—fills us with a just indignation; and we never see an account of their hebdomadal proceedings, but we exclaim, in the language of our immortal bard—

"Oh, Heaven! that such impostors thoud'st unfold,
And put in every honest hand a whip,
To lash the rascals naked through the land!"

While we repeat our deliberate opinion, that the Anti-corn-law League, as a body, is, in respect of actual present influence, infinitely less formidable than the vanity and selfish purposes of its members would lead them to wish the country to believe—we must add, that it is quite another question

how long it will continue so. It may soon be converted—if indeed it has not already been secretly converted, into an engine of tremendous mischief, for other purposes than any ever contemplated by its originators. Suppose, in the next session of parliament, Ministers were to offer a law-fixed duty on corn: would that concession dissolve the League? Absurd—they have long ago scouted the idea of so ridiculous a compromise. Suppose they effected their avowed object of a total repeal of the Corn-laws—is any one weak enough to imagine that they would *then* dissolve? No—nor do they *now* dream of such a thing; but are at the present moment, as we are informed, "*fraternizing*" with other political societies of a very dangerous character, and on the eve of originating serious and revolutionary movements. Their present organization is precisely that of the French Jacobins; their plan of operation the same. Let any one turn to *The League Circular* of the 18th November, and he will see announced a plan of action on the part of this Association, precisely analagous, in all its leading features, to that of the French Jacobins: and we would call the attention of the legislature to the question, whether the Anti-corn-law League, in its most recent form of organization and plan of action, be not clearly within the provisions of statutes 57 Geo. III., c. 19, § 25 and 39; Geo. III., c. 79? What steps, if any, the legislature may take, is one thing; it is quite another, what course shall be adopted by the friends of the Conservative cause—the supporters of the British constitution. It is impossible to assign limits to the mischief which may be effected by the indefatigable and systematic exertions of the League to diffuse pernicious misrepresentations, and artful and popular fallacies, among all classes of society. That they entertain a fearfully envenomed hatred of the agricultural interest, is clear; and their evident object is to render the landed proprietors of this country objects of fierce hatred to the inferior orders of the community. "If a man tells me his story every morning of my life, by the year's end he will be my master," said Burke, "and I shall believe him, however untrue and improbable his story may be;" and if, whilst the Anti-corn-law League can display such perseverance, determination, and system, its opponents obstinately remain supine and silent, can any one wonder if such progress be not made by the League, in their demoralizing and revolutionary enterprize, that it will soon be too late to attempt even to arrest?

If this Journal has earned, during a quarter of a century's career of unwavering consistency and independence, any title to the respect of the Conservative party, we desire now to rely upon that title for the purpose of adding weight to our solemn protest against the want of union and energy—against the apathy, from whatever cause arising—now but too visible. In vain do we and others exert ourselves to the uttermost to diffuse sound political principles by means of the press; in vain do the distinguished leaders of our party fight the battles of the constitution with consummate skill and energy in parliament—if their exertions be not supported by corresponding energy and activity on the part of the Conservative constituencies, and those persons of talent and influence professing the same principles, by whom they can, and ought to be, easily set in motion. It is true that persons of liberal education, of a high and generous tone of feeling, of intellectual refinement, are entitled to treat such men as Cobden, Bright, and Acland, with profound contempt, and dislike the notion of personal contact or collision with them, as representatives of the foulest state of ill feeling that can be generated in the worst manufacturing regions—of sordid avarice, selfishness, envy, and malignity; but they are active—ever up and doing, and steadily applying themselves, with palatable topics, to the corruption of the hearts of the working classes. So, unless the persons to whom we allude choose to cast aside their morbid aversions—to be "UP AND AT them," in the language of the Duke of Waterloo—why then will be verified the observation of Burke—that "if, when bad men combine, the good do not associate, they will fall, one by one—an unpitied sacrifice in a contemptible struggle." Vast as are our forces, they can effect comparatively nothing without union, energy, and system: *with* these, their power is tremendous and irresistible. What we would say, therefore, is—ORGANIZE! ORGANIZE! ORGANIZE! Let every existing Conservative club or association be stirred up into increased action, and *put into real working trim* forthwith; and where none such clubs or associations exist, let them be immediately formed, and set into cheerful and spirited motion. Let them all be placed under the vigilant superintendence of one or two *real men of business*—of local knowledge, of ability, and influence. We would point out Conservative solicitors as auxiliaries of infinite value to those engaged in the good cause; men of high character, of business habits, extensive acquaintance with the character and circumstances of the electors—and capable of bringing legitimate influence to bear upon them in a far

more direct and effective manner than any other class of persons. One such gentleman—say a young and active solicitor, with a moderate salary, as permanent secretary in order to secure and, in some measure, requite his services throughout the year—would be worth fifty *dilletante* "friends of the good cause dropping in every now and then," but whose "friendship" evaporates in mere *talk*. Let every local Conservative newspaper receive constant and substantial patronage; for they are worthy of the very highest consideration, on account of the ability with which they are generally conducted, and their great influence upon local society. Many of them, to our own knowledge, display a degree of talent and knowledge which would do honour to the very highest metropolitan journals. Let them, then, be vigorously supported, their circulation extended through the influence of the resident nobility and gentry, and the clergy of every particular district throughout the kingdom. Let no opportunity be missed of exposing the true character of the vile and selfish agitators of the Anti-corn-law league. Let not the league have all the "publishing" to themselves; but let their impudent fallacies and falsehoods be *instantly* encountered and exposed on the spot, by means of small and cheap tracts and pamphlets, which shall bring plain, wholesome, and important truths home to the businesses and bosoms of the very humblest in the land. Again, let the resident gentry seek frequent opportunities of mingling with their humbler neighbours, friends, and dependents, by way of keeping up a cordial and hearty good understanding with them, so as to rely upon their effective co-operation whenever occasions may arise for political action.

Let all this be done, and we may defy a hundred Anti-corn-law Leagues. Let these objects be kept constantly in view, and the Anti-corn-law League will be utterly palsied, had it a hundred times its present funds—a thousand times its present members!

Let us now, however, turn for a brief space to Ireland; the present condition of which we contemplate with profound concern and anxiety, but with neither surprise nor dismay. As far as regards the Government, the state of affairs in Ireland bears at this moment unquestionable testimony to the stability and strength of the Government; and no one knows this better than the gigantic impostor, to whom so much of the misery of that afflicted portion of the empire is owing. He perceives, with inexpressible

mortification, that neither he nor his present position awake any sympathy or excitement whatever in the kingdom at large, where the enormity of his misconduct is fully appreciated, and every movement of the Government against him sanctioned by public opinion. The general feeling is one of profound disgust towards him, sympathy and commiseration for his long-plundered dupes and of perfect confidence that the Government will deal firmly and wisely with both. As for a *Repeal of the Union*! Pshaw! Every child knows that it is a notion too absurd to be seriously dealt with; that Great Britain would rather plunge *instantly* into the bloodiest civil war that ever desolated a country, than submit to the dismemberment of the empire by repealing the union between Great Britain and Ireland. This opinion has had, from time to time, every possible mode of authentic and solemn expression that can be given to the national will; in speeches from the Throne; in Parliamentary declarations by the leaders of both the Whig and Conservative Governments; the members of both Houses of Parliament are (with not a single exception worth noticing) unanimous upon the subject; the press, whether quarterly, monthly, weekly, or daily, of all classes and shades of political opinions, is unanimous upon the subject; in society, whether high or low, the subject is never broached, except to enquire whether any one can, for one moment, seriously believe the Repeal of the Union to be possible. In Ireland itself, the vast majority of the intellect, wealth, and respectability of the island, without distinction of religion or politics, entertains the same opinion and determination which prevail in Great Britain. Is Mr O'Connell ignorant of all this? He knows it as certainly as he knows that Queen Victoria occupies the throne of these realms; and yet, down to his very last appearance in public, he has solemnly and perseveringly asseverated that the Repeal of the Union is an absolutely certain and inevitable event, and one that will happen within a few months! *Is he in his senses?* If so, he is speaking from his knowledge of some vast and dreadful conspiracy, which he has organized himself, which has hitherto escaped detection. The idea is too monstrous to be entertained for a moment. What, then, can Mr O'Connell be about? Our opinion is, that his sole object in setting on foot the Repeal agitation, was to increase his pecuniary resources, and at the same time overthrow Sir Robert Peel's Government, by showing the Queen and the nation that his admitted "*chief difficulty*"—Ireland—was one *insuperable*; and that he must consequently retire. We believe, moreover, that he is, to a certain extent, acting upon a

secret understanding with the party of the late Government, who, however, never contemplated matters being carried to their present pitch; but that the Ministry would long ago have retired, terrified before the tremendous "demonstration" in Ireland. We feel as certain as if it were a past event, that, had the desperate experiment succeeded so far as to replace the present by the late Government, Mr O'Connell's intention was to have announced his determination to "*give England ONE MORE trial*"—to place Repeal once more in abeyance—in order to see whether England would really, at length, do "*justice to Ireland*;" in other words, restore the halcyon days of Lord Normanby's nominal, and Mr O'Connell's real, rule in Ireland, and enable him, by these means, to provide for himself, his family, and dependents; for old age is creeping rapidly upon him—his physical powers are no longer equal to the task of vigorous agitation—and he is known to be in utterly desperate circumstances. The reckless character of his proceedings during the last fifteen months, is, in our opinion, fully accounted for, by his unexpected discovery, that the ministry were strong enough to defy any thing that he could do, and to continue calmly in their course of administering, not *pseudo*, but real "*justice to Ireland*," supported in that course by the manifest favour and countenance of the Crown, overwhelming majorities in Parliament, and the decided and unequivocal expression of public opinion. His personal position was, in truth, inexpressibly galling and most critical, and he must have agitated, or sunk at once into ignominious obscurity and submission to a Government whom, individually and collectively, he loathed and abhorred. Vain were the hopes which, doubtless, he had entertained, that, as his agitation assumed a bolder form, it would provoke formidable demonstrations in England against Ministers and their policy; not a meeting could be got up to petition her Majesty for the dismissal of her Ministers! But it is quite conceivable that Mr O'Connell, in the course he was pursuing, forgot to consider the possibility of developing a power which might be too great for him, which would not be wielded by him, but carry *him* along with *it*. The following remarkable expressions fell from the perplexed and terrified agitator, at a great dinner at Lismore in the county of Waterford, in the month of September last:—"Like the heavy school-boy on the ice, *my pupils are overtaking me*. It is now my duty to regulate the vigour and temper the energy of the people—to compress, as it were, the exuberance of both."

We said that Mr O'Connell revived the Repeal agitation; and the fact was so. He first raised it in 1829—having, however, at various previous periods of his life, professed a desire to struggle for Repeal; but Mr Shiel, in his examination before the House of Commons in 1825, characterized such allusions as mere "rhetorical artifices." "What were his real motives," observes the able and impartial author of *Ireland and its Rulers*³⁵, "when he announced his new agitation in 1829, can be left only to him to determine." It is probable that they were of so mixed a nature, that he himself could not accurately define them.... It is, however, quite possible, that, after having so long tasted of the luxuries of popularity, he could not consent that the chalice should pass from his lips. Agitation had, perhaps, begun to be necessary to his existence: a tranquil life would have been a hell to him." It would seem that Mr O'Connell's earliest recorded manifesto on Repeal was on the 3d June 1829, previous to the Clare election, on which occasion he said—"We want political excitement, in order that we may insist on our rights as Irishmen, but not as Catholics;" and on the 20th of the same month in the same year, 1829, he predicted—listen to this, ye his infatuated dupes!—"that BEFORE THREE YEARS THERE WOULD BE A PARLIAMENT IN DUBLIN!!!" In the general elections of 1832, it was proclaimed by Mr O'Connell, that no member should be returned unless he solemnly pledged himself to vote for the Repeal of the Union; but it was at the same time hinted, that *if they would only enter the House as professed Repealers, they would never be required to VOTE for Repeal*. On the hustings at the county of Waterford election, one of these gentry, Sir Richard Keave, on being closely questioned concerning the real nature of his opinion on Repeal, let out the whole truth:—"I will hold it as an imposing weapon to get justice to Ireland." This has held true ever since, and completely exemplifies all the intervening operations of Mr O'Connell. It has been his practice ever since "to connect every grievance with the subject of Repeal—to convert every wrongful act of any Government into an argument for the necessity of an Irish Legislature." Can it be wondered at that the present Government, thoroughly aware of the true state of the case—*knowing their man*—should regard the cry for Repeal simply as an imposture, its utterers as impostors? They did and do so regard it and its utterers—never allowing either the one or the other to disturb their administration of affairs with impartiality and firmness; but, nevertheless, keeping a most watchful eye upon all their movements.

At length, whether emboldened by a conviction that the non-interference of the Government was occasioned solely by their incapacity to grapple with an agitation becoming hourly more formidable, and that thus his schemes were succeeding—or impelled onwards by those whom he had roused into action, but could no longer restrain—his movements became daily characterized by more astounding audacity—more vivid the glare of sedition, and even treason, which surrounded them: still the Government interfered not. Their apparent inaction most wondered, very many murmured, some were alarmed, and Mr O'Connell laughed at. Sir Robert Peel, on one occasion, when his attention was challenged to the subject in the House of Commons, replied, that "he was not in the least degree moved or disturbed by what was passing in Ireland." This perfect calmness of the Government served to check the rising of any alarm in the country; which felt a confidence of the Ministry's being equal to any exigency that could be contemplated. Thus stood matters till the 11th July last, when, at the close of the debate on the state of Ireland, Sir Robert Peel delivered a very remarkable speech. It consisted of a calm demonstration of the falsehood of all the charges brought by the Repealers against the imperial Parliament; of the impolicy and the impracticability of the various schemes for the relief of Ireland proposed by the Opposition; of the absolute impossibility of Parliament entertaining the question of a Repeal of the Union; and a distinct answer to the question—"What course do you intend to pursue?" That answer is worthy of being distinctly brought under the notice of the reader. "I am prepared to administer the law in Ireland upon principles of justice and impartiality. I am prepared to recognise the principle established by law—that there shall be equality in civil privileges. I am prepared to respect the franchise, to give substantially, although not nominally, equality. In respect to the social condition of Ireland—as to the relation of landlord and tenant³⁶—I am prepared to give the most deliberate consideration to the important matters involved in those questions. With respect to the Established Church, I have already stated that we are not prepared to make an alteration in the law by which that Church is maintained."

[36].In conformity with this declaration, has been issued the recent commission, for "enquiring into the state of the law and practice in respect to the occupation of land in Ireland, and in respect also to the burdens of county cess and other charges, which fall respectively on the landlord and occupying tenant, and for reporting as to the amendments, if any, of the existing laws, which, having due regard to the just rights of property, may be calculated to encourage the cultivation of the soil, to extend a better system of

agriculture, and to improve the relation between landlord and tenant, in that part of the United Kingdom."

We recollect being greatly struck with the ominous calmness perceptible in the tone of this speech. It seemed characterised by a solemn declaration to place the agitation of Ireland for ever in the *wrong*—to deprive them of all pretence for accusing England of having misgoverned Ireland since the Union. It appeared to us as if that speech had been designed to lay the basis of a contemplated movement against the agitation of the most decisive kind. The Government acted up to the spirit of the declaration, on that occasion, of Sir Robert Peel, with perfect dignity and resolution, unmoved by the taunts, the threats, the expostulations, or fears of either enemies or friends. Mr O'Connell's tone increased in audacity; but we greatly doubt whether in his heart he had not frequent misgivings as to the real nature of the "*frightful silence*"—"cette affreuse silence"—of a Government in whose councils the Duke of Wellington took a decided part, and which was actually at that moment taking complete military occupation of Ireland. On what information they were acting, no one knew; but their preparations were *for the worst*. During all this time nothing could exceed the tranquillity which prevailed in England. None of these threatening appearances, these tremendous preparations, caused the least excitement or alarm; the funds did not vary a farthing per cent in consequence of them; and to what could all this be ascribed but to the strength of public confidence in the Government? At length the harvest in Ireland had been got in; ships of war surrounded the coast; thirty thousand picked and chosen troops, ready for instant action, were disposed in the most masterly manner all over Ireland. With an almost insane audacity, Mr O'Connell appointed his crowning monster meeting to take place at Clontarf, in the immediate vicinity of the residence and presence of the Queen's representative, and of such a military force as rendered the bare possibility of encountering it appalling. The critical moment, however, for the interference of Government had at length arrived, and it spoke out in a voice of thunder, prohibiting the monster meeting. The rest is matter of history. The monster demagogue fell prostrate and confounded among his panic-stricken confederates; and, in an agony of consternation, declared their implicit obedience to the proclamation, and set about dispersing the myriad dupes, as fast as they arrived to attend the prohibited meeting. Thus was the Queen's peace preserved, her crown and dignity vindicated, without one

sword being drawn or one shot being fired. Mr O'Connell had repeatedly "defied the Government to go to law with him." They *have* gone to law with him; and by this time we suspect that he finds himself in an infinitely more serious position than he has ever been in, during the whole of a long and prosperous career of agitation. Here, however, we leave him and his fellow defendants.

We may, however, take this opportunity of expressing our opinion, that there is not a shadow of foundation for the charges of blundering and incompetency which have been so liberally brought against the Irish Attorney-General. He certainly appears, in the earlier stages of the proceedings, to have evinced some little irritability—but, only consider, under what unprecedented provocation! His conduct has since, however, been characterised by calmness and dignity; and as for his legal capabilities, all competent judges who have attended to the case, will pronounce them to be first-rate; and we feel perfectly confident that his future conduct of the proceedings will convince the public of the justness of our eulogium.

The selection by the Government of the moment for interference with Mr O'Connell's proceedings, was unquestionably characterised by consummate prudence. When the meetings commenced in March or April, this year, they had nothing of outward character which could well be noticed. They professed to be meetings to petition Parliament for Repeal; and, undoubtedly, no lawyer could say that such a meeting would *per se* be illegal, any more than a meeting to complain of Catholic relief, or to pray for its repeal—or for any other matter which is considered a settled part of the established constitution. The mere numbers were certainly alarming, but the meetings quietly dispersed without any breach of the peace: and after two or three such meetings, without any disturbance attending them, no one could with truth swear that he expected a breach of the peace as a *direct* consequence of such a meeting, though many thought they saw a civil war as a *remote* consequence. The meetings went on: some ten, twelve, fifteen occurred,—still no breach of the peace, no disturbance. The language, indeed, became gradually more seditious—more daring and ferocious: but, as an attempt to put down the first meeting by *force* would have been considered a wanton act of oppression, and a direct interference with the subject's right to petition, it became a very difficult *practical* question, at

what moment any *legal* notice could be taken by prosecution, or *executive* notice by proclamation, to put down such meetings. Notwithstanding several confident opinions to the contrary advanced by the newspaper press at the time, a greater mistake—indeed a grosser blunder—could not have been made, than to have prosecuted those who attended the early meetings, or to have sent the police or the military to put those meetings down. An acquittal in the one case, or a conflict in the other, would have been attended with most mischievous consequences; and, as to the latter, it is clear that the executive never ought to interfere unless with a *force which renders all resistance useless*. It appears perfectly clear to us, *even now*, that a prosecution for the earlier meetings must have failed; for there existed then none of that evidence which would prove the object and the nature of the association: and to proclaim a meeting, without using force to prevent or disperse it if it defied the proclamation; and to use force without being certain that the extent of the illegality would carry public opinion along with the use of force; further, to begin to use force without being sure that you have enough to use—would be acts of madness, and, at least, of great and criminal disregard of consequences. Now, when meeting after meeting had taken place, and the general design, and its mischief, were unfolded, it became necessary that *some new feature should occur* to justify the interference of Government; and that occurred at the Clontarf meeting. No meeting had, before that, ventured to call itself "*Repeal infantry*;" and to Clontarf *horsemen* also were summoned, and were designated "*Repeal cavalry*;" and, in the orders for their assembling, marching, and conducting themselves, *military directions were given*; and the meeting, had it been permitted to assemble, would have been a parade of cavalry, ready for civil war. It would have been a sort of review—in the face of the city of Dublin, in open defiance of all order and government. Let us add, that, just at that time, Mr O'Connell had published his "Address to all her Majesty's subjects, in all parts of her dominions," (a most libellous and treasonable publication;) and the arrangements to secure the peace were more complete, and could be brought to bear more easily, on the Clontarf than on any of the preceding meetings. The occasion presented itself, and as soon as possible the Irish authorities assembled at Dublin; the proclamation appeared; the ground was pre-occupied, and a force that was irresistible went out to keep the peace, and prevent the meeting. The result showed the perfect success of the Government's enterprise.

As the foregoing topics will doubtless occupy much of the attention of parliament during the ensuing session, we were anxious to place on record our own opinions, as the result of much reflection, during a period when events were transpiring which threw upon the Government an awful responsibility, and rendered their course one of almost unprecedented difficulty. Modern times, we are convinced, have witnessed but few instances of such a masterly policy, combined with signal self-reliance.

One or two general topics connected with Ireland, we have time only to glance at. First.—From the faint reluctant disavowal and discouragement of Mr O'Connell and his Repeal agitation, by the leading ex-Ministers during the last session, when emphatically challenged by Sir Robert Peel to join him in denouncing the attempted dismemberment of the empire, irrespective and independent of all party consideration, we are prepared to expect that in the ensuing session, the Opposition will, to a great extent, make common cause with Mr O'Connell, out of mingled fear, and gratitude, and hope towards their late friend and patron. Such a course will immensely strengthen the hands of the Queen's Government.

Secondly.—To any thoughtful and independent politician, the present Sovereign state of Ireland demonstrates the utter impossibility of governing it upon the principle of breaking down or disparaging the Protestant interest. Such a course would tend only to bloody and interminable anarchy.

Thirdly.—Ireland's misery springs from social more than political evils; and the greatest boon that Providence could give her, would be a powerful government inflexibly resolved to *put down agitation*.

Lastly.—Can we wonder at the exasperation of the peasantry, who have for so many years had their money extorted from them, without ever having had, up to this moment, the shadow of an equivalent? And how long is this disgraceful pillage to go on? But we must conclude. The ensuing session of parliament may, and probably will, be a stormy one, and harassing to the Government; but they may prepare to encounter it with cheerful confidence. Their measures, during their brief tenure of office, have been attended with extraordinary success—and of that both the sovereign and the country are thoroughly aware, and we entertain high hopes concerning the future. We expect to see their strong majority in the House of Commons rather

augmented than diminished by reason of the events which have happened during the recess. If the Ministers remain firm in their determination—and who doubts it?—to support the agricultural interests of the country, and persevere in their present vigorous policy towards Ireland, the Government is impregnable, and the surges of Repeal agitation in Ireland, and Anti-corn-law agitation in England, will dash against it in vain. So long as they pursue this course, they will be cheered by augmented indications of the national good-will, and of that implicit and affectionate confidence in their councils, which, we rejoice to know, is vouchsafed to her Ministers by our gracious Sovereign.

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